

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT

(August 1, 2016 through August 31, 2016)

Oliver, Matter of, v Board of Assessors of the Towns of Champlain	App Div, 3d Dept: 2016 NY Slip Op 74764(U), 2016 NY Slip Op 74765(U), 2016 NY Slip Op 74766(U), 2016 NY Slip Op 74767(U)	8/25/16
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PineView Apts., LLC v Sathue	City Ct, Niagara County, 5/17/16	8/25/16
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APPEALS WITHDRAWN AND DISCONTINUED

(August 1, 2016 through August 31, 2016)

Charite v Duane Reade, Inc.	2d Dept: 120 AD3d 1378	8/2/16
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(August 1, 2016 through August 31, 2016)

People v Agee	4th Dept: 140 AD3d 1704 (Niagara)	denied 8/24/16 (DiFiore, Ch. J.)
People v Alfair	1st Dept: 139 AD3d 531 (NY)	denied 8/25/16 (Fahey, J.)
People v Allen (Kevin)	4th Dept: 137 AD3d 1632 (Erie)	denied 8/16/16 (DiFiore, Ch. J.)
People v Allen (Lamont)	2d Dept: 140 AD3d 781 (Queens)	denied 8/24/16 (Abdus-Salaam, J.)
People v Amos	4th Dept: 140 AD3d 1683 (Erie)	denied 8/24/16 (Abdus-Salaam, J.)
People v Andretta	1st Dept: 140 AD3d 476 (NY)	denied 8/23/16 (DiFiore, Ch. J.)

People v Antoine (Ted)	2d Dept: 131 AD3d 1178 (Kings)	denied 8/10/16 (Abdus-Salaam, J.)
People v Antoine (Ted)	2d Dept: 137 AD3d 1295 (Kings)	denied 8/10/16 (Abdus-Salaam, J.)
People v Armstrong	2d Dept: 138 AD3d 877 (Queens)	denied 8/24/16 (Abdus-Salaam, J.)
People v Arroyo	App Div, 1st Dept: 2016 NY Slip Op 71756(U) (NY)	denied 8/31/16 (DiFiore, Ch. J.)
People v Arterberry	4th Dept: 140 AD3d 1675 (Monroe)	denied 8/19/16 (Stein, J.)
People v Bah	App Term, 1st Dept: 51 Misc 3d 146(A) (NY)	denied 8/1/16 (Rivera, J.)
People v Baker (Gene)	1st Dept: 139 AD3d 581 (NY)	denied 8/12/16 (Pigott, J.)
People v Baker (Joanne)	2d Dept: 139 AD3d 1078 (Westchester)	denied 8/29/16 (Pigott, J.)
People v Balde	App Term, 1st Dept: 51 Misc 3d 152(A) (Bronx)	denied 8/30/16 (Stein, J.)
People v Banker	3d Dept: 138 AD3d 1253 (Clinton)	denied 8/2/16 (Abdus-Salaam, J.)
People v Banner	2d Dept: 139 AD3d 869 (Nassau)	denied 8/5/16 (Stein, J.)
People v Barber	2d Dept: 133 AD3d 868 (Nassau)	denied 8/4/16 (Abdus-Salaam, J.)
People v Barber-Montemayor	4th Dept: 138 AD3d 1455 (Onondaga)	denied 8/1/16 (Rivera, J.)
People v Barksdale	4th Dept: 140 AD3d 1778 (Erie)	denied 8/19/16 (Stein, J.)
People v Barnes	4th Dept: 139 AD3d 1371 (Ontario)	denied 8/2/16 (Abdus-Salaam, J.) (Appeal No. 1)
People v Barton	2d Dept: 139 AD3d 750 (Queens)	denied 8/1/16 (Fahey, J.)
People v Batista	1st Dept: 140 AD3d 522 (Bronx)	denied 8/22/16 (DiFiore, Ch. J.)
People v Baught	2d Dept: 138 AD3d 1129 (Kings)	denied 8/12/16 (Pigott, J.)
People v Baxter	4th Dept: 141 AD3d 1109 (Monroe)	denied 8/31/16 (Rivera, J.)
People v Beauchamp (Angel)	App Div, 1st Dept: 2015 NY Slip Op 85251(U) (Bronx)	denied 8/25/16 (DiFiore, Ch. J.)
People v Beauchamp (Angel)	App Div, 1st Dept: 2015 NY Slip Op 93830(U) (Bronx)	dismissed 8/25/16 (DiFiore, Ch. J.)
People v Beebe	4th Dept: 137 AD3d 1663 (Wayne)	denied 8/2/16 (Abdus-Salaam, J.)

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People v Beharry	2d Dept: 139 AD3d 869 (Kings)	denied 8/17/16 (Pigott, J.)
People v Bell	4th Dept: 140 AD3d 1695 (Monroe)	denied 8/24/16 (Abdus-Salaam, J.)
People v Beverly	3d Dept: 140 AD3d 1400 (Albany)	denied 8/16/16 (DiFiore, Ch. J.)
People v Blair	3d Dept: 140 AD3d 1478 (Hamilton)	denied 8/23/16 (Rivera, J.)
People v Blanding	1st Dept: 139 AD3d 641 (NY)	denied 8/25/16 (DiFiore, Ch. J.)
People v Blond	App Div, 3d Dept: 2016 NY Slip Op 68278(U) (Schenectady)	denied 8/24/16 (Abdus-Salaam, J.)
People v Blue	2d Dept: 136 AD3d 840 (Kings)	denied 8/1/16 (Rivera, J.)
People v Bowman	3d Dept: 139 AD3d 1251 (Albany)	denied 8/1/16 (Rivera, J.)
People v Boyce	2d Dept: 138 AD3d 881 (Suffolk)	denied 8/1/16 (Rivera, J.)
People v Breazil	App Div, 2d Dept: 2016 NY Slip Op 74726(U) (Kings)	dismissed 8/29/16 (Pigott, J.)
People v Briggs	3d Dept: 138 AD3d 1355 (Schenectady)	denied 8/2/16 (Abdus-Salaam, J.)
People v Bristol	2d Dept: 140 AD3d 781 (Queens)	denied 8/19/16 (Stein, J.)
People v Britton	2d Dept: 140 AD3d 975 (Kings)	denied 8/31/16 (DiFiore, Ch. J.)
People v Brooks (Shantee)	2d Dept: 139 AD3d 751 (Queens)	denied 8/23/16 (DiFiore, Ch. J.)
People v Brooks (Tracy)	4th Dept: 139 AD3d 1396 (Ontario)	denied 8/11/16 (Rivera, J.)
People v Brown (Derrick)	2d Dept: 139 AD3d 963 (Kings)	denied 8/10/16 (Rivera, J.)
People v Brown (Shyron)	2d Dept: 139 AD3d 964 (Dutchess)	denied 8/1/16 (Fahey, J.)
People v Caballero	2d Dept: 137 AD3d 929 (Queens)	denied 8/2/16 (Fahey, J.)
People v Cabrera	1st Dept: 133 AD3d 495 (NY)	denied 8/1/16 (Rivera, J.)
People v Calas	2d Dept: 134 AD3d 1043 (Queens)	denied 8/25/16 (Rivera, J.)
People v Campbell (Christopher)	1st Dept: 140 AD3d 531 (NY)	denied 8/23/16 (DiFiore, Ch. J.)
People v Campbell (Jabbar)	App Div, 2d Dept: 2016 NY Slip Op 74482(U) (Kings)	dismissed 8/29/16 (Garcia, J.)
People v Carney	App Div, 4th Dept: 2016 NY Slip Op 68898(U) (Erie)	denied reconsideration 8/16/16 (DiFiore, Ch. J.)

People v Carpenter	2d Dept: 138 AD3d 1130 (Queens)	denied 8/15/16 (Fahey, J.)
People v Cartel	4th Dept: 141 AD3d 1110 (Cayuga)	denied 8/30/16 (Stein, J.)
People v Case	3d Dept: 139 AD3d 1239 (Albany)	denied 8/1/16 (Fahey, J.)
People v Castaneda	County Ct, 5/23/16 (Monroe)	denied 8/10/16 (Fahey, J.)
People v Ceruti	2d Dept: 132 AD3d 776 (Queens)	dismissed 8/25/16 (Stein, J.)
People v Charleau	1st Dept: 139 AD3d 597 (NY)	denied 8/5/16 (Abdus-Salaam, J.)
People v Cintron	1st Dept: 140 AD3d 402 (Bronx)	denied 8/10/16 (Rivera, J.)
People v Clairmont	App Div, 3d Dept: 2016 NY Slip Op 76972(U) (Saratoga)	dismissed 8/29/16 (Fahey, J.)
People v Clark	4th Dept: 139 AD3d 1368 (Monroe)	denied 8/17/16 (Pigott, J.)
People v Clemente	2d Dept: 139 AD3d 751 (Queens)	denied 8/11/16 (Rivera, J.)
People v Coleman	1st Dept: 139 AD3d 544 (NY)	denied 8/31/16 (Garcia, J.)
People v Conway	2d Dept: 140 AD3d 1185 (Suffolk)	denied 8/30/16 (Stein, J.)
People v Cooke	App Div, 2d Dept: 2016 NY Slip Op 74242(U) (Queens)	dismissed 8/17/16 (Garcia, J.)
People v Coriolan	2d Dept: 138 AD3d 1134 (Queens)	denied 8/25/16 (Fahey, J.)
People v Cumberland	1st Dept: 139 AD3d 598 (NY)	denied 8/17/16 (Pigott, J.)
People v Danclair	1st Dept: 139 AD3d 541 (NY)	denied 8/19/16 (Stein, J.)
People v Dangerfield	4th Dept: 140 AD3d 1626 (Monroe)	denied 8/18/16 (Rivera, J.)
People v Davis	App Div, 1st Dept: 2016 NY Slip Op 73031(U) (Bronx)	dismissed 8/8/16 (Garcia, J.)
People v Decker	3d Dept: 139 AD3d 1113 (Montgomery)	denied 8/8/16 (Fahey, J.)
People v DeJesus	2d Dept: 140 AD3d 788 (Kings)	denied 8/22/16 (Stein, J.)
People v Delaney	4th Dept: 138 AD3d 1420 (Monroe)	denied 8/12/16 (Pigott, J.)
People v Diamond M.	1st Dept: 140 AD3d 628 (Bronx)	denied 8/31/16 (Garcia, J.)
People v Diaz	2d Dept: 139 AD3d 871 (Queens)	denied 8/2/16 (Abdus-Salaam, J.)
People v Dingle	1st Dept: 139 AD3d 623 (Bronx)	denied 8/24/16 (Abdus-Salaam, J.)

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People v Dixon	App Div, 2d Dept: 2016 NY Slip Op 74294(U) (Kings)	dismissed 8/25/16 (Stein, J.)
People v Dobbs	3d Dept: 138 AD3d 1352 (Albany)	denied 8/24/16 (DiFiore, Ch. J.)
People v Drake	4th Dept: 138 AD3d 1396 (Livingston)	denied 8/10/16 (Rivera, J.) (Appeal No. 1)
People v Dudden	4th Dept: 138 AD3d 1452 (Onondaga)	denied 8/17/16 (Garcia, J.)
People v Dwight	1st Dept: 140 AD3d 466 (NY)	denied 8/24/16 (Pigott, J.)
People v Ellison	2d Dept: 138 AD3d 1137 (Queens)	denied 8/3/16 (Stein, J.)
People v Ero	3d Dept: 139 AD3d 1248 (Clinton)	denied 8/10/16 (Rivera, J.)
People v Fana	1st Dept: 140 AD3d 534 (NY)	denied 8/24/16 (Pigott, J.)
People v Farnham	3d Dept: 136 AD3d 1215 (Albany)	denied 8/24/16 (Pigott, J.)
People v Farquharson	1st Dept: 139 AD3d 467 (Bronx)	denied 8/16/16 (Garcia, J.)
People v Ferguson	1st Dept: 137 AD3d 641 (Bronx)	denied 8/1/16 (Rivera, J.)
People v Forde	2d Dept: 140 AD3d 1085 (Queens)	denied 8/23/16 (Stein, J.)
People v Forget	3d Dept: 136 AD3d 1115 (Franklin)	denied 8/15/16 (Fahey, J.)
People v Fournier	3d Dept: 137 AD3d 1318 (Cortland)	denied 8/1/16 (Rivera, J.)
People v Fox	2d Dept: 139 AD3d 871 (Nassau)	denied 8/10/16 (Rivera, J.)
People v Franklin	4th Dept: 141 AD3d 1103 (Monroe)	denied 8/31/16 (DiFiore, Ch. J.)
People v Franks	2d Dept: 137 AD3d 936 (Richmond)	denied 8/1/16 (Rivera, J.)
People v Frazier	2d Dept: 140 AD3d 977 (Queens)	denied 8/25/16 (Fahey, J.)
People v Galunas	App Div, 3d Dept: 2016 NY Slip Op 74121(U) (Ulster)	denied 8/16/16 (Garcia, J.)
People v Garcia (Angel)	3d Dept: 141 AD3d 861 (Albany)	denied 8/25/16 (Abdus-Salaam, J.)
People v Garcia (Frank)	2d Dept: 139 AD3d 1090 (Dutchess)	denied 8/30/16 (Stein, J.)
People v Garcia-Cruz	4th Dept: 138 AD3d 1414 (Onondaga)	denied 8/10/16 (Rivera, J.)
People v Gasparro	3d Dept: 139 AD3d 1247 (Ulster)	denied 8/17/16 (Pigott, J.)
People v Gaston	1st Dept: 135 AD3d 575 (NY)	denied 8/15/16 (Rivera, J.)

People v Gee	App Div, 4th Dept, 6/6/16 (Monroe)	dismissed 8/10/16 (DiFiore, Ch. J.)
People v Gordon	3d Dept: 139 AD3d 1265 (Warren)	denied 8/24/16 (Abdus-Salaam, J.)
People v Graham (Raquad)	3d Dept: 138 AD3d 1242 (Albany)	denied 8/2/16 (Abdus-Salaam, J.)
People v Graham (Tyrone)	4th Dept: 140 AD3d 1686 (Monroe)	denied 8/19/16 (Stein, J.)
People v Gramza (Debora)	4th Dept: 140 AD3d 1643 (Erie)	denied 8/25/16 (DiFiore, Ch. J.) (Appeal No. 1)
People v Gramza (Debora)	4th Dept: 140 AD3d 1644 (Erie)	denied 8/25/16 (DiFiore, Ch. J.) (Appeal No. 2)
People v Green (Kahleif)	4th Dept: 140 AD3d 1660 (Onondaga)	denied 8/24/16 (Pigott, J.)
People v Green (Trameil)	4th Dept: 132 AD3d 1268 (Erie)	denied reconsideration 8/24/16 (Abdus-Salaam, J.) (Appeal No. 1)
People v Gressler	App Div, 3d Dept, 4/19/16 (Rensselaer)	dismissed 8/31/16 (DiFiore, Ch. J.)
People v Hagaman	3d Dept: 139 AD3d 1183 (Warren)	denied 8/5/16 (Abdus-Salaam, J.)
People v Hampton	4th Dept: 139 AD3d 1368 (Monroe)	denied 8/17/16 (Pigott, J.)
People v Harris	3d Dept: 139 AD3d 1244 (Chemung)	denied 8/17/16 (Abdus-Salaam, J.)
People v Harrison	2d Dept: 138 AD3d 757 (Queens)	denied 8/2/16 (Abdus-Salaam, J.)
People v Hayes	2d Dept: 139 AD3d 754 (Queens)	denied 8/1/16 (Rivera, J.)
People v Heath	1st Dept: 139 AD3d 421 (NY)	denied 8/5/16 (Abdus-Salaam, J.)
People v Henriquez	App Div, 3d Dept: 2015 NY Slip Op 66066(U) (Chemung)	denied 8/5/16 (Abdus-Salaam, J.)
People v Hewitt	2d Dept: 139 AD3d 754 (Westchester)	denied 8/19/16 (Stein, J.)
People v Hibbert	2d Dept: 134 AD3d 957 (Dutchess)	denied 8/2/16 (Fahey, J.)
People v Hilario	1st Dept: 140 AD3d 500 (NY)	denied 8/15/16 (Fahey, J.)

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People v Hill (Desean)	1st Dept: 139 AD3d 468 (Bronx)	denied 8/1/16 (Rivera, J.)
People v Hill (Jacqueline)	App Term, 2d Dept, 9th & 10th Jud Dists: 51 Misc 3d 134(A) (Nassau)	denied 8/16/16 (Garcia, J.)
People v Howell	1st Dept: 139 AD3d 484 (Bronx)	denied 8/15/16 (Fahey, J.)
People v Hunter	1st Dept: 139 AD3d 536 (NY)	denied 8/10/16 (Rivera, J.)
People v Irby	3d Dept: 140 AD3d 1319 (Sullivan)	denied 8/11/16 (Rivera, J.)
People v Irizarry	1st Dept: 135 AD3d 641 (NY)	denied 8/1/16 (Rivera, J.)
People v Isaac	1st Dept: 139 AD3d 641 (NY)	denied 8/1/16 (Fahey, J.)
People v Ivey	1st Dept: 138 AD3d 574 (NY)	denied 8/25/16 (Fahey, J.)
People v Jackson (Damion)	2d Dept: 139 AD3d 875 (Queens)	denied 8/17/16 (Abdus-Salaam, J.)
People v Jackson (Rasheed)	4th Dept: 140 AD3d 1771 (Onondaga)	denied 8/24/16 (Abdus-Salaam, J.)
People v Jaen	1st Dept: 140 AD3d 594 (NY)	denied 8/29/16 (Pigott, J.)
People v James (Julian)	1st Dept: 140 AD3d 592 (Bronx)	denied 8/23/16 (DiFiore, Ch. J.)
People v James (Ovarado)	County Ct, 5/5/16 (Monroe)	denied 8/17/16 (Pigott, J.)
People v Jamison	2d Dept: 138 AD3d 1020 (Queens)	denied 8/17/16 (Pigott, J.)
People v Jaramillo	4th Dept: 136 AD3d 1354 (Jefferson)	denied reconsideration 8/5/16 (Stein, J.)
People v Jennings	1st Dept: 140 AD3d 526 (NY)	denied 8/11/16 (Rivera, J.)
People v Jimenez	1st Dept: 139 AD3d 631 (NY)	denied 8/25/16 (Fahey, J.)
People v Joaquin	1st Dept: 138 AD3d 422 (Bronx)	denied 8/1/16 (Rivera, J.)
People v Johnson (Gregory)	2d Dept: 140 AD3d 978 (Suffolk)	denied 8/23/16 (Rivera, J.)
People v Johnson (Jonathan)	App Div, 2d Dept: 2016 NY Slip Op 72184(U) (Queens)	denied reconsideration 8/31/16 (DiFiore, Ch. J.)
People v Johnson (Jimmie)	4th Dept: 138 AD3d 1454 (Monroe)	denied 8/23/16 (DiFiore, Ch. J.)
People v Jones (Dylan)	App Term, 1st Dept: 50 Misc 3d 136(A) (NY)	denied 8/1/16 (Rivera, J.)
People v Jones (Gary)	2d Dept: 139 AD3d 880 (Queens)	denied 8/1/16 (Rivera, J.)

People v Jones (Justin)	3d Dept: 139 AD3d 1189 (Chemung)	denied 8/19/16 (Garcia, J.)
People v Jones (Nathaniel)	3d Dept: 139 AD3d 1237 (St. Lawrence)	denied 8/1/16 (Fahey, J.)
People v Jones (William)	2d Dept: 138 AD3d 1145 (Richmond)	denied 8/2/16 (Abdus-Salaam, J.)
People v Jones (William)	2d Dept: 138 AD3d 1144 (Richmond)	denied 8/2/16 (Abdus-Salaam, J.)
People v Kelly	1st Dept: 138 AD3d 574 (NY)	denied 8/25/16 (Fahey, J.)
People v Ken	3d Dept: 138 AD3d 1233 (Albany)	denied 8/24/16 (Pigott, J.)
People v Khan	3d Dept: 139 AD3d 1261 (Schenectady)	denied 8/15/16 (Fahey, J.)
People v King	App Div, 2d Dept: 2016 NY Slip Op 69944(U) (Kings)	denied reconsideration 8/31/16 (Rivera, J.)
People v Kopper	4th Dept: 140 AD3d 1782 (Genesee)	denied 8/31/16 (DiFiore, Ch. J.)
People v Krieg	1st Dept: 139 AD3d 625 (NY)	denied 8/17/16 (Pigott, J.)
People v Kwas	App Term, 2d Dept, 9th & 10th Jud Dists: 52 Misc 3d 52 (Nassau)	denied 8/22/16 (Stein, J.)
People v Larock	3d Dept: 139 AD3d 1241 (St. Lawrence)	denied 8/10/16 (Rivera, J.)
People v Lashley	1st Dept: 140 AD3d 640 (NY)	denied 8/30/16 (Stein, J.)
People v Laventure	2d Dept: 138 AD3d 1023 (Kings)	denied 8/16/16 (DiFiore, Ch. J.)
People v Lawrence	App Div, 3d Dept, 5/12/16 (Broome)	dismissed 8/11/16 (Pigott, J.)
People v Lawson	App Div, 4th Dept: 2016 NY Slip Op 61273(U) (Onondaga)	dismissed 8/8/16 (Garcia, J.)
People v Layou	4th Dept: 134 AD3d 1510 (Onondaga)	denied reconsideration 8/10/16 (Rivera, J.)
People v Leach	2d Dept: 137 AD3d 1300 (Kings)	denied 8/16/16 (Garcia, J.)
People v Leduc	3d Dept: 140 AD3d 1305 (Clinton)	denied 8/18/16 (Rivera, J.)
People v Lee	3d Dept: 139 AD3d 1258 (Chemung)	denied 8/24/16 (DiFiore, Ch. J.)
People v Lewis (Gil)	1st Dept: 139 AD3d 571 (NY)	denied 8/10/16 (Rivera, J.)
People v Lewis (Michael)	4th Dept: 138 AD3d 1495 (Ontario)	denied 8/24/16 (Abdus-Salaam, J.)

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People v Light	3d Dept: 140 AD3d 1400 (Albany)	denied 8/16/16 (DiFiore, Ch. J.)
People v Linton	1st Dept: 139 AD3d 416 (NY)	denied 8/24/16 (Pigott, J.)
People v Little	4th Dept: 139 AD3d 1356 (Erie)	denied 8/16/16 (DiFiore, Ch. J.)
People v Llewellyn	2d Dept: 138 AD3d 888 (Kings)	denied 8/23/16 (Stein, J.)
People v Lockwood	4th Dept: 140 AD3d 1705 (Onondaga)	denied 8/16/16 (DiFiore, Ch. J.)
People v Lorraine	4th Dept: 138 AD3d 1494 (Niagara)	denied 8/2/16 (Abdus-Salaam, J.)
People v Louallen	1st Dept: 137 AD3d 637 (Bronx)	denied 8/2/16 (Abdus-Salaam, J.)
People v Mack	2d Dept: 140 AD3d 791 (Kings)	denied 8/23/16 (DiFiore, Ch. J.)
People v Maier	4th Dept: 140 AD3d 1603 (Erie)	denied 8/10/16 (Rivera, J.)
People v Maldonado	4th Dept: 122 AD3d 1379 (Erie)	denied reconsideration 8/1/16 (Rivera, J.)
People v Marino	2d Dept: 135 AD3d 877 (Queens)	denied 8/25/16 (Stein, J.)
People v Mathura	2d Dept: 138 AD3d 888 (Queens)	denied 8/23/16 (DiFiore, Ch. J.)
People v Maxey	4th Dept: 129 AD3d 1664 (Wayne)	denied reconsideration 8/2/16 (Abdus-Salaam, J.)
People v May	2d Dept: 138 AD3d 1024 (Westchester)	denied 8/1/16 (Rivera, J.)
People v McCain	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 50 Misc 3d 132(A) (Queens)	granted 8/5/16 (Stein, J.)
People v McCrea	4th Dept: 140 AD3d 1655 (Wyoming)	denied 8/23/16 (DiFiore, Ch. J.)
People v Meadow	4th Dept: 140 AD3d 1596 (Onondaga)	denied 8/4/16 (Stein, J.)
People v Medina	1st Dept: 139 AD3d 460 (NY)	denied 8/24/16 (Pigott, J.)
People v Meehan	App Div, 3d Dept, 1/14/16 (Broome)	denied reconsideration 8/1/16 (Fahey, J.)
People v Mena	1st Dept: 2016 NY Slip Op 69493(U) (Bronx)	denied 8/31/16 (Garcia, J.)
People v Mendez	1st Dept: 139 AD3d 495 (NY)	denied 8/2/16 (Abdus-Salaam, J.)

People v Meza	4th Dept: 141 AD3d 1110 (Cayuga)	denied 8/30/16 (Stein, J.)
People v Miles	3d Dept: 138 AD3d 1350 (Broome)	denied 8/1/16 (Fahey, J.)
People v Mirabella	4th Dept: 138 AD3d 1513 (Monroe)	dismissed 8/12/16 (Pigott, J.)
People v Montgomery	4th Dept: 140 AD3d 1662 (Monroe)	denied 8/23/16 (Rivera, J.)
People v Moore (Richard)	4th Dept: 140 AD3d 1684 (Niagara)	denied 8/29/16 (Pigott, J.)
People v Moore (Zachary)	County Ct, 5/18/16 (Monroe)	denied 8/1/16 (Fahey, J.)
People v Moors	3d Dept: 140 AD3d 1207 (Ulster)	denied 8/11/16 (Pigott, J.)
People v Mora	1st Dept: 138 AD3d 641 (Bronx)	denied 8/25/16 (DiFiore, Ch. J.)
People v Morales	App Term, 1st Dept: 51 Misc 3d 148(A) (NY)	denied 8/24/16 (Abdus-Salaam, J.)
People v Morehouse	3d Dept: 140 AD3d 1202 (Warren)	denied 8/8/16 (Fahey, J.)
People v Moreno	1st Dept: 139 AD3d 401 (NY)	denied 8/12/16 (Pigott, J.)
People v Moss	2d Dept: 138 AD3d 761 (Nassau)	denied 8/1/16 (Rivera, J.)
People v Mrkulic	App Term, 1st Dept: 52 Misc 3d 130(A) (Bronx)	denied 8/24/16 (Abdus-Salaam, J.)
People v Muridi M.	4th Dept: 140 AD3d 1643 (Erie)	denied 8/25/16 (Stein, J.) (Appeal No. 2)
People v Nanand	2d Dept: 137 AD3d 945 (Queens)	denied 8/17/16 (Pigott, J.)
People v Nevaro	1st Dept: 139 AD3d 525 (NY)	denied 8/30/16 (Fahey, J.)
People v New	3d Dept: 140 AD3d 1297 (Schenectady)	denied 8/24/16 (Abdus-Salaam, J.)
People v Newland	1st Dept: 138 AD3d 611 (NY)	denied 8/12/16 (Pigott, J.)
People v Niddy	3d Dept: 139 AD3d 1261 (Schenectady)	denied 8/15/16 (Fahey, J.)
People v Nino	3d Dept: 139 AD3d 1094 (Albany)	denied ¹ 8/10/16 (Abdus-Salaam, J.)
People v Nunez	2d Dept: 139 AD3d 983 (Queens)	denied 8/24/16 (Abdus-Salaam, J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Whitehead* (130 AD3d 1142 [2015], *lv granted* 26 NY3d 1043 [2015]).

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People v O’Kane	County Ct, 9/14/15 (Albany)	granted 8/1/16 (Abdus-Salaam, J.)
People v Olah	2d Dept: 139 AD3d 964 (Dutchess)	denied 8/1/16 (Fahey, J.)
People v Ortiz (Jose)	1st Dept: 139 AD3d 448 (NY)	denied 8/2/16 (Abdus-Salaam, J.)
People v Ortiz (Jovan)	1st Dept: 139 AD3d 592 (NY)	denied 8/26/16 (DiFiore, Ch. J.)
People v Owens	2d Dept: 138 AD3d 1035 (Queens)	denied 8/2/16 (Abdus-Salaam, J.)
People v Paris	1st Dept: 137 AD3d 537 (NY)	denied 8/2/16 (Abdus-Salaam, J.)
People v Parker	4th Dept: 132 AD3d 1268 (Erie)	denied reconsideration 8/24/16 (Abdus-Salaam, J.) (Appeal No. 1)
People v Paulin (Rakim)	App Div, 2d Dept: 2016 NY Slip Op 72186(U) (Dutchess)	dismissed 8/30/16 (Fahey, J.)
People v Paulin (Rakim)	2d Dept: 140 AD3d 985 (Dutchess)	denied 8/30/16 (Fahey, J.)
People v Pendleton	2d Dept: 128 AD3d 856 (Dutchess)	denied 8/2/16 (Abdus-Salaam, J.)
People v Pereira-Orlando	1st Dept: 139 AD3d 616 (Bronx)	denied 8/30/16 (Garcia, J.)
People v Peters	App Div, 3d Dept: 2016 NY Slip Op 72779(U) (Chemung)	denied 8/30/16 (Garcia, J.)
People v Peyatt	4th Dept: 140 AD3d 1680 (Niagara)	denied 8/31/16 (Rivera, J.)
People v Quinones (Luis)	4th Dept: 140 AD3d 1693 (Onondaga)	denied 8/23/16 (DiFiore, Ch. J.)
People v Quinones (Nolber)	1st Dept: 139 AD3d 408 (NY)	denied 8/30/16 (Fahey, J.)
People v Rabanal	2d Dept: 139 AD3d 758 (Nassau)	denied 8/10/16 (Rivera, J.)
People v Rahman	1st Dept: 137 AD3d 523 (Bronx)	denied 8/11/16 (Pigott, J.)
People v Ramdass	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 51 Misc 3d 138(A) (Queens)	denied 8/25/16 (Fahey, J.)
People v Ramos	3d Dept: 135 AD3d 1234 (Albany)	denied 8/16/16 (Garcia, J.)
People v Ramsundar (Gomatee)	2d Dept: 138 AD3d 890 (Queens)	denied 8/26/16 (DiFiore, Ch. J.)
People v Ramsundar (Shane)	2d Dept: 138 AD3d 891 (Queens)	denied 8/26/16 (DiFiore, Ch. J.)
People v Ramsundar (Shantel)	2d Dept: 138 AD3d 892 (Queens)	denied 8/26/16 (DiFiore, Ch. J.)

People v Ramtahal	2d Dept: 139 AD3d 983 (Queens)	denied 8/16/16 (DiFiore, Ch. J.)
People v Rebelo	3d Dept: 137 AD3d 1315 (Delaware)	denied 8/2/16 (Abdus-Salaam, J.)
People v Respress	3d Dept: 140 AD3d 1324 (Chemung)	denied 8/1/16 (Rivera, J.)
People v Ricci	County Ct, 5/5/16 (Oneida)	denied 8/11/16 (Pigott, J.)
People v Rich	3d Dept: 140 AD3d 1407 (Warren)	denied 8/29/16 (Pigott, J.)
People v Rivera	1st Dept: 138 AD3d 401 (NY)	denied 8/17/16 (Abdus-Salaam, J.)
People v Roberts	2d Dept: 139 AD3d 985 (Kings)	denied 8/10/16 (Fahey, J.)
People v Rodriguez	3d Dept: 135 AD3d 1181 (Ulster)	denied 8/11/16 (Rivera, J.)
People v Roth	4th Dept: 141 AD3d 1090 (Lewis)	denied 8/31/16 (Rivera, J.)
People v Rowser	1st Dept: 139 AD3d 489 (Bronx)	denied 8/10/16 (Rivera, J.)
People v Sahadeo	2d Dept: 140 AD3d 1093 (Queens)	denied 8/30/16 (Stein, J.)
People v Santiago	1st Dept: 139 AD3d 515 (Bronx)	denied 8/24/16 (Pigott, J.)
People v Santos	1st Dept: 140 AD3d 462 (NY)	denied 8/22/16 (DiFiore, Ch. J.)
People v Scaringe	3d Dept: 137 AD3d 1409 (Franklin)	denied 8/24/16 (Garcia, J.)
People v Seitz	4th Dept: 140 AD3d 1694 (Onondaga)	denied 8/31/16 (Rivera, J.)
People v Sha Banger	2d Dept: 139 AD3d 964 (Dutchess)	denied 8/1/16 (Fahey, J.)
People v Sha Easy	2d Dept: 139 AD3d 964 (Dutchess)	denied 8/1/16 (Fahey, J.)
People v Shepard	2d Dept: 138 AD3d 895 (Nassau)	denied 8/1/16 (Rivera, J.)
People v Sherrod	4th Dept: 136 AD3d 1353 (Erie)	denied 8/30/16 (Garcia, J.)
People v Shipp	4th Dept: 138 AD3d 1416 (Monroe)	denied 8/10/16 (Rivera, J.)
People v Silva	1st Dept: 135 AD3d 498 (Bronx)	denied 8/18/16 (Rivera, J.)
People v Singh	2d Dept: 139 AD3d 761 (Queens)	denied 8/26/16 (DiFiore, Ch. J.)
People v Singleton	App Term, 1st Dept: 51 Misc 3d 145(A) (NY)	denied 8/24/16 (Pigott, J.)
People v Smith (Bobby)	3d Dept: 140 AD3d 1396 (Columbia)	denied 8/29/16 (Pigott, J.)

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People v Smith (Brian)	4th Dept: 138 AD3d 1418 (Monroe)	denied 8/24/16 (Abdus-Salaam, J.)
People v Smith (Jeffrey)	1st Dept: 138 AD3d 628 (NY)	denied 8/2/16 (Abdus-Salaam, J.)
People v Soto	1st Dept: 138 AD3d 533 (NY)	denied 8/1/16 (Fahey, J.)
People v SP	2d Dept: 134 AD3d 957 (Dutchess)	denied 8/2/16 (Fahey, J.)
People v Spragion	2d Dept: 140 AD3d 903 (Kings)	denied 8/18/16 (Rivera, J.)
People v Stapleton	App Div, 2d Dept: 2016 NY Slip Op 74250(U) (Kings)	dismissed 8/3/16 (Stein, J.)
People v Stewart	4th Dept: 140 AD3d 1654 (Onondaga)	denied 8/25/16 (Stein, J.)
People v Stitt	4th Dept: 140 AD3d 1783 (Erie)	denied 8/29/16 (Pigott, J.)
People v Stokes	2d Dept: 140 AD3d 800 (Kings)	denied 8/24/16 (Pigott, J.)
People v Summerville	2d Dept: 138 AD3d 897 (Nassau)	denied 8/2/16 (Abdus-Salaam, J.)
People v Suyoung Yun	1st Dept: 140 AD3d 402 (NY)	denied 8/24/16 (Pigott, J.)
People v Sweeper	App Div, 1st Dept: 2016 NY Slip Op 66539(U); 2016 NY Slip Op 66540(U) (NY)	dismissed 8/1/16 (Fahey, J.)
People v Symonds	4th Dept: 140 AD3d 1685 (Livingston)	denied 8/24/16 (Pigott, J.)
People v Tackman	1st Dept: 139 AD3d 537 (NY)	denied 8/24/16 (Abdus-Salaam, J.)
People v Tai	App Div, 1st Dept: 2016 NY Slip Op 69509(U) (NY)	dismissed 8/17/16 (Rivera, J.)
People v Tai Chi Chuan	App Div, 1st Dept: 2016 NY Slip Op 69509(U) (NY)	dismissed 8/17/16 (Rivera, J.)
People v Taylor	1st Dept: 139 AD3d 547 (Bronx)	denied 8/23/16 (DiFiore, Ch. J.)
People v Thomas (Bernard)	4th Dept: 140 AD3d 1715 (Erie)	denied 8/31/16 (DiFiore, Ch. J.)
People v Thomas (English)	2d Dept: 139 AD3d 764 (Westchester)	denied 8/25/16 (Stein, J.)
People v Thomas (John)	1st Dept: 137 AD3d 698 (NY)	denied 8/2/16 (Abdus-Salaam, J.)
People v Torres	4th Dept: 136 AD3d 1329 (Monroe)	denied 8/1/16 (Rivera, J.)

People v Truitt	4th Dept: 132 AD3d 1268 (Erie)	denied reconsideration 8/24/16 (Abdus-Salaam, J.) (Appeal No. 1)
People v Tumminello	App Term, 2d Dept, 9th & 10th Jud Dists: 53 Misc 3d 34 (Nassau)	denied 8/17/16 (Abdus-Salaam, J.)
People v Udeozo	2d Dept: 140 AD3d 1094 (Richmond)	denied 8/31/16 (Rivera, J.)
People v Valdez	2d Dept: 138 AD3d 1151 (Suffolk)	denied 8/2/16 (Abdus-Salaam, J.)
People v VanVleet	4th Dept: 140 AD3d 1633 (Steuben)	denied 8/4/16 (Stein, J.)
People v Velez	2d Dept: 138 AD3d 1041 (Kings)	denied 8/16/16 (Garcia, J.)
People v Volpe	County Ct, 5/23/16 (Wyoming)	denied 8/25/16 (DiFiore, Ch. J.)
People v Walters	4th Dept: 140 AD3d 1761 (Erie)	denied 8/29/16 (Pigott, J.)
People v Walton	App Div, 1st Dept: 2014 NY Slip Op 79216(U) (NY)	dismissed 8/25/16 (DiFiore, Ch. J.)
People v Ward (Juliette)	1st Dept: 136 AD3d 504 (Rockland)	denied 8/25/16 (Fahey, J.)
People v Ward (Sean)	2d Dept: 140 AD3d 903 (Westchester)	denied 8/15/16 (Fahey, J.)
People v Warwick	2d Dept: 139 AD3d 1093 (Westchester)	denied 8/24/16 (Abdus-Salaam, J.)
People v Washington	3d Dept: 138 AD3d 1352 (Columbia)	denied 8/2/16 (Abdus-Salaam, J.)
People v Welcher	4th Dept: 138 AD3d 1481 (Wayne)	denied 8/5/16 (Abdus-Salaam, J.)
People v Welden	3d Dept: 140 AD3d 1406 (Saratoga)	denied 8/15/16 (Fahey, J.)
People v Wheelings	2d Dept: 137 AD3d 1310 (Kings)	denied 8/31/16 (DiFiore, Ch. J.)
People v Wiggins	1st Dept: 138 AD3d 634 (NY)	denied 8/2/16 (Abdus-Salaam, J.)
People v Wilkerson (Chanelle)	App Term, 1st Dept: 51 Misc 3d 149(A) (Bronx)	denied 8/22/16 (Stein, J.)
People v Wilkerson (Mali)	3d Dept: 140 AD3d 1297 (Schenectady)	denied 8/24/16 (Abdus-Salaam, J.)
People v Williams (Benjamin)	App Div, 1st Dept: 2015 NY Slip Op 88133(U) (NY)	denied reconsideration 8/30/16 (Abdus-Salaam, J.)

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People v Williams (Cortney)	4th Dept: 140 AD3d 1750 (Monroe)	denied 8/17/16 (Rivera, J.)
People v Williams (DeAndre)	App Div, 2d Dept: 2016 NY Slip Op 73385(U) (Westchester)	dismissed 8/15/16 (Rivera, J.)
People v Williams (Donnell)	4th Dept: 140 AD3d 1645 (Monroe)	denied 8/16/16 (DiFiore, Ch. J.)
People v Williams (Isiah)	App Div, 4th Dept: 2016 NY Slip Op 74620(U) (Monroe)	dismissed 8/10/16 (Abdus-Salaam, J.)
People v Williams (Isiah)	App Div, 4th Dept: 2016 NY Slip Op 74620(U) (Ontario)	dismissed 8/10/16 (Abdus-Salaam, J.)
People v Williams (Isiah)	App Div, 4th Dept, 6/2/16 (Monroe)	dismissed 8/10/16 (Abdus-Salaam, J.)
People v Williams (Kenneth)	3d Dept: 138 AD3d 1233 (Albany)	denied 8/24/16 (Pigott, J.)
People v Williams (Larry)	App Div, 4th Dept, 4/26/16 (Onondaga)	dismissed 8/8/16 (Garcia, J.)
People v Wilson	1st Dept: 138 AD3d 637 (Bronx)	denied 8/10/16 (Rivera, J.)
People v Witcher	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 51 Misc 3d 142(A) (Queens)	denied 8/1/16 (Rivera, J.)
People v Woodard	3d Dept: 139 AD3d 1238 (Franklin)	denied 8/16/16 (DiFiore, Ch. J.)
People v Woodworth	App Div, 4th Dept, 6/20/16 (Livingston)	dismissed 8/31/16 (Rivera, J.)
People v Worthy	2d Dept: 138 AD3d 1042 (Nassau)	denied 8/2/16 (Abdus-Salaam, J.)
People v Wright	3d Dept: 139 AD3d 1094 (Albany)	denied ² 8/10/16 (Abdus-Salaam, J.)
People v Xiangmei Zhang	App Term, 1st Dept: 51 Misc 3d 141(A) (NY)	denied 8/16/16 (Garcia, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices ***

(August 1, 2016 through August 31, 2016)

People v Helms	4th Dept: 141 AD3d 1138 (Monroe)	granted 8/10/16 (Curran, J.)
People v Johnson (Michael)	2d Dept: 139 AD3d 967 (Queens)	granted 8/5/16 (Hall, J.)
People v Staton	2d Dept: 138 AD3d 1149 (Queens)	granted 8/10/16 (Hall, J.)

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Whitehead* (130 AD3d 1142 [2015], *lv granted* 26 NY3d 1043 [2015]).

* Includes only applications that were granted.

[60 NE3d 403, 38 NYS3d 509]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICARDO RICKETTS, Appellant.

Decided September 8, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 18, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (John G. Ingram, J.), which had convicted defendant, upon a jury verdict, of criminal sale of a controlled substance in the fourth degree, criminal possession of a controlled substance in the seventh degree, resisting arrest, and obstructing governmental administration in the second degree.

The Appellate Division determined, among other things, that defendant's contention that his right of confrontation was violated when the trial court permitted two undercover police officers to testify anonymously at trial was unpreserved for appellate review (*see* CPL 470.05 [2]), and the Appellate Division declined to reach the issue in the exercise of its interest of justice jurisdiction (*see* CPL 470.15 [6] [a]).

People v Ricketts, 125 AD3d 893, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review

Defendant's sole argument, concerning whether the trial court followed the proper procedure for permitting witnesses to testify anonymously, was unpreserved for review by the Court of Appeals.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Denise A. Corsi* of counsel), for appellant.

Kenneth P. Thompson, District Attorney, Brooklyn (*Michael L. Brenner* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed. Defendant's sole argument, concerning whether the trial court followed the proper procedure for permitting witnesses to testify anonymously, is unpreserved for our review.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

SORORAZAM BETHUNE, Appellant, v MTA LONG ISLAND BUS, Respondent, et al., Defendant.

Submitted July 25, 2016; decided September 8, 2016

Reported below, 2016 NY Slip Op 78374(U).

On the Court's own motion, appeal, insofar as taken from the March 2016 Supreme Court order and the April 2016 Supreme Court judgment, dismissed, without costs, as untimely (*see* CPLR 5513 [a]); appeal, insofar as taken from the June 2016 Appellate Division order, dismissed, without costs, upon the ground that such order does not finally determine the action within the meaning of the Constitution. Motion, insofar as it seeks leave to appeal from the March 2016 Supreme Court order and the April 2016 Supreme Court judgment, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the June 2016 Appellate Division order, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution.

MARIE CASTIGLIONE et al., Respondents, v ROBERT KRUSE et al., Appellants.

Submitted June 20, 2016; decided September 8, 2016

Reported below, 130 AD3d 957.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 27 NY3d 1018 (2016)].

CF HY LLC, Respondent, v HUDSON YARDS LLC et al., Defendants, and BARUCH SINGER, Appellant.

Submitted June 27, 2016; decided September 8, 2016

Motion for leave to appeal dismissed upon the ground that no motion for leave to appeal lies pursuant to CPLR 5602 (a) (1) (ii) from the April 2016 order of Supreme Court because that order does not finally determine the action within the meaning of the Constitution.

CHAMBERLAIN, D'AMANDA, OPPENHEIMER & GREENFIELD, LLP,
Respondent, v REBECCA P. WILSON, Appellant.

Submitted June 20, 2016; decided September 8, 2016

Reported below, 136 AD3d 1326.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JOEL S. CHARLESTON, Doing Business as THE
LAW OFFICE OF JOEL S. CHARLESTON, Appellant. COMMIS-
SIONER OF LABOR, Respondent.

Submitted June 27, 2016; decided September 8, 2016

Reported below, 138 AD3d 1366.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ESTATE OF HELEN DEL TERZO et al., Respondents, v 33 FIFTH
AVENUE OWNERS CORP., Appellant.

Submitted August 29, 2016; decided September 8, 2016

Reported below, 136 AD3d 486.

Motion by Council of New York Cooperatives and Con-
dominiums for leave to file a brief amicus curiae on the appeal
herein granted and the proposed brief is accepted as filed.

FLO & EDDIE, INC., a California Corporation, Individually and
on Behalf of All Others Similarly Situated, Respondent, v
SIRIUS XM RADIO, INC., a Delaware Corporation, Appel-
lant, and DOES 1 THROUGH 10, Defendants.

Submitted August 29, 2016; decided September 8, 2016

See 821 F3d 265.

Motion by Electronic Frontier Foundation for leave to file a
brief amicus curiae on consideration of the certified question
herein granted and the proposed brief is accepted as filed.
Three copies of the brief must be served and an original and
nine copies filed within seven days.

In the Matter of SYLVIA GOLUB, Deceased. NORMAN GOLUB, Respondent; J. DAVID GOLUB, Appellant. (Matter No. 1.)

NORMAN GOLUB, Respondent, v JERRY DAVID GOLUB, Appellant. (Matter No. 2.)

Submitted June 20, 2016; decided September 8, 2016

Reported below, 2015 NY Slip Op 67154(U).

Motion for reargument etc. denied [*see* 27 NY3d 1015 (2016)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

MARY JANE HAYES, Respondent, v WILLIAM AMES HAYES, Appellant.

Submitted July 5, 2016; decided September 8, 2016

Reported below, 127 AD3d 1021.

Motion for reargument of motion etc. dismissed upon the ground that it does not lie (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [e]) [*see* 27 NY3d 973 (2016)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

JOHN G. ULLMAN & ASSOCIATES, INC., Appellant, v BCK PARTNERS, INC., et al., Respondents.

Submitted June 20, 2016; decided September 8, 2016

Reported below, 139 AD3d 1358.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JOAN C. LIPIN, Appellant, v DAVID E. HUNT, Defendant, and DANSKE BANK et al., Respondents.

Submitted July 18, 2016; decided September 8, 2016

Reported below, 137 AD3d 518.

Motion for reargument denied [*see* 27 NY3d 1053 (2016)].

MILLENNIUM HOLDINGS LLC, Plaintiff, THE NORTHERN ASSURANCE COMPANY OF AMERICA, Appellant, and CERTAIN UNDERWRITERS AT LLOYD'S et al., Intervenor-Appellants, v THE GLIDDEN COMPANY, Now Known as AKZO NOBEL PAINTS LLC, et al., Respondents.

Submitted June 20, 2016; decided September 8, 2016

Reported below, 121 AD3d 444.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 27 NY3d 406 (2016)].

Judge GARCIA taking no part.

ANTHONY ODDO, Respondent, v QUEENS VILLAGE COMMITTEE FOR MENTAL HEALTH FOR JAMAICA COMMUNITY ADOLESCENT PROGRAM, INC., Appellant.

Submitted August 29, 2016; decided September 8, 2016

Reported below, 135 AD3d 211.

Motion by Pacific Legal Foundation for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. An original and nine copies of the brief must be filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES BROWN, Appellant.

Submitted September 6, 2016; decided September 8, 2016

Reported below, 126 AD3d 516.

Motion by The Bronx Defenders for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v TERRANCE L. MACK, Respondent.

Submitted July 25, 2016; decided September 8, 2016

Reported below, 117 AD3d 1450.

Motion for reargument denied [*see* 27 NY3d 534 (2016)].

ADAM PLOTCH, Appellant, v CITIBANK, N.A., Respondent.

Submitted June 20, 2016; decided September 8, 2016

Reported below, 120 AD3d 1210.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 27 NY3d 477 (2016)].

Judge GARCIA taking no part.

PS 157 LOFTS, LLC, Respondent, v KIMBERLY AUSTIN et al., Appellants.

Submitted July 25, 2016; decided September 8, 2016

Motion for reconsideration denied [*see* 27 NY3d 1054 (2016)].

In the Matter of PATRICE ATWOOD et al., Respondents, v MARKETH PRIDGEN et al., Respondents, and MAURICE McCRAY et al., Appellants.

Submitted September 9, 2016; decided September 9, 2016

Reported below, 142 AD3d 1278.

Motion for leave to appeal denied. The Court of Appeals restates the rule that denial of a motion for leave to appeal is not equivalent to an affirmance and has no precedential value (*see Matter of Marchant v Mead-Morrison Mfg. Co.*, 252 NY 284, 297-298 [1929]).

LANE ALTSCHULER, Respondent, v JOBMAN 478/480, LLC, Appellant.

Submitted June 20, 2016; decided September 13, 2016

Reported below, 135 AD3d 439.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LANE ALTSCHULER, Respondent, v JOBMAN 478/480, LLC, Appellant.

Submitted June 20, 2016; decided September 13, 2016

Reported below, 135 AD3d 439.

Motion by Rent Stabilization Association of New York City, Inc., et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

In the Matter of the Claim of LINDA ARMBRUSTER, Respondent.
SUMMIT HEALTH, INC., Appellant; COMMISSIONER OF LABOR,
Respondent.

Submitted June 13, 2016; decided September 13, 2016

Reported below, 138 AD3d 1367.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

PHILLIP GOOTEE, Respondent, v GLOBAL CREDIT SERVICES, LLC,
Appellant.

Decided September 13, 2016

Reported below, 139 AD3d 551.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of DOUGLAS E. JOHNSON, Appellant, v ANTHONY
J. ANNUCCI, as Acting Commissioner of Corrections and
Community Supervision, Respondent.

Decided September 13, 2016

Reported below, 139 AD3d 1271.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Claim of KARINE KARAPETYAN, Respondent. CP LANGUAGE INSTITUTE INC., Appellant; COMMISSIONER OF LABOR, Respondent.

Submitted June 27, 2016; decided September 13, 2016

Reported below, 134 AD3d 1309.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

REGINALD G. McFADDEN, Appellant, v STATE OF NEW YORK, Respondent.

Decided September 13, 2016

Reported below, 138 AD3d 1167.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

MARIE CLAUDE MORENCY, by Her Guardian ad Litem, MIRIAM MORENCY, et al., Respondents, v HORIZON TRANSPORTATION SERVICES, INC., et al., Defendants/Third-Party Plaintiffs-Appellants. BHRAGS HOME CARE, CORP., et al., Third-Party Defendants-Respondents.

Submitted July 25, 2016; decided September 13, 2016

Reported below, 139 AD3d 1021.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LEROY MORRELL, Appellant.

Submitted July 11, 2016; decided September 13, 2016

Reported below, 139 AD3d 835.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as dismissed defendant's appeal from a Supreme Court decision, dismissed upon the ground that no motion for leave to appeal lies from an Appellate Division order dismissing an appeal from a decision (*see* CPLR 5602); motion for leave to appeal otherwise denied.

In the Matter of the Claim of JOSEPH A. TERRANOVA, JR., Appellant, v LEHR CONSTRUCTION Co. et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted July 11, 2016; decided September 13, 2016

Reported below, 139 AD3d 1309.

Motion by New York State Trial Lawyers Association for leave to appear amicus curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

H. PATRICK BARCLAY, Appellant, v ODELL H. ETIM et al., Respondents.

Submitted July 18, 2016; decided September 15, 2016

Reported below, 129 AD3d 591; 2015 NY Slip Op 88712(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of FR. JOHN W. BRODERICK, Appellant, v HUGH A. GILBERT, in His Official Capacity as Justice of Supreme Court, County of Onondaga, et al., Respondents.

Submitted July 5, 2016; decided September 15, 2016

Reported below, 2016 NY Slip Op 74571(U).

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of DAVID E. EAGAN, an Attorney and Counselor-at-Law, Appellant; GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

Submitted August 29, 2016; decided September 15, 2016

Reported below, 142 AD3d 182.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of ENTERGY NUCLEAR OPERATIONS, INC., et al.,
Respondents, v NEW YORK STATE DEPARTMENT OF STATE et
al., Appellants.

Submitted September 12, 2016; decided September 15, 2016

Reported below, 125 AD3d 21.

Motion by Chamber of Commerce of the United States of America et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of ENTERGY NUCLEAR OPERATIONS, INC., et al.,
Respondents, v NEW YORK STATE DEPARTMENT OF STATE et
al., Appellants.

Submitted September 12, 2016; decided September 15, 2016

Reported below, 125 AD3d 21.

Motion by Emily Hammond for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of ENTERGY NUCLEAR OPERATIONS, INC., et al.,
Respondents, v NEW YORK STATE DEPARTMENT OF STATE et
al., Appellants.

Submitted September 12, 2016; decided September 15, 2016

Reported below, 125 AD3d 21.

Motion by Kevin S. Parker et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

FLO & EDDIE, INC., a California Corporation, Individually and on Behalf of All Others Similarly Situated, Respondent, v SIRIUS XM RADIO, INC., a Delaware Corporation, Appellant, et al., Defendants.

Submitted September 12, 2016; decided September 15, 2016

See 821 F3d 265.

Motion by Recording Industry Association of America, Inc. for leave to appear amicus curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge DiFIORE taking no part.

FLO & EDDIE, INC., a California Corporation, Individually and on Behalf of All Others Similarly Situated, Respondent, v SIRIUS XM RADIO, INC., a Delaware Corporation, Appellant, et al., Defendants.

Submitted September 12, 2016; decided September 15, 2016

See 821 F3d 265.

Motion by National Association of Broadcasters for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge DiFIORE taking no part.

FLO & EDDIE, INC., a California Corporation, Individually and on Behalf of All Others Similarly Situated, Respondent, v SIRIUS XM RADIO, INC., a Delaware Corporation, Appellant, et al., Defendants.

Submitted September 12, 2016; decided September 15, 2016

See 821 F3d 265.

Motion by Association for Recorded Sound Collections for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served within seven days.

Chief Judge DiFIORE taking no part.

FLO & EDDIE, INC., a California Corporation, Individually and on Behalf of All Others Similarly Situated, Respondent, v SIRIUS XM RADIO, INC., a Delaware Corporation, Appellant, et al., Defendants.

Submitted September 12, 2016; decided September 15, 2016

See 821 F3d 265.

Motion by Howard B. Abrams et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge DiFIORE taking no part.

FLO & EDDIE, INC., a California Corporation, Individually and on Behalf of All Others Similarly Situated, Respondent, v SIRIUS XM RADIO, INC., a Delaware Corporation, Appellant, et al., Defendants.

Submitted September 12, 2016; decided September 15, 2016

See 821 F3d 265.

Motion by New York State Broadcasters Association Inc. for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge DiFIORE taking no part.

FLO & EDDIE, INC., a California Corporation, Individually and on Behalf of All Others Similarly Situated, Respondent, v SIRIUS XM RADIO, INC., a Delaware Corporation, Appellant, et al., Defendants.

Submitted September 12, 2016; decided September 15, 2016

See 821 F3d 265.

Motion by CBS Radio Inc. for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge DiFIORE taking no part.

FLO & EDDIE, INC., a California Corporation, Individually and on Behalf of All Others Similarly Situated, Respondent, v SIRIUS XM RADIO, INC., a Delaware Corporation, Appellant, et al., Defendants.

Submitted September 12, 2016; decided September 15, 2016

See 821 F3d 265.

Motion by iHeartMedia, Inc. et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

Chief Judge DiFIORE taking no part.

FLO & EDDIE, INC., a California Corporation, Individually and on Behalf of All Others Similarly Situated, Respondent, v SIRIUS XM RADIO, INC., a Delaware Corporation, Appellant, et al., Defendants.

Submitted September 12, 2016; decided September 15, 2016

See 821 F3d 265.

Motion by Public Knowledge for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge DiFIORE taking no part.

ALEXANDER GLIKLAD, Respondent, v MICHAEL CHERNEY, Appellant.

Submitted June 27, 2016; decided September 15, 2016

Reported below, 132 AD3d 601.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]).

In the Matter of IRONELYS A., Appellant, v JOSE A., Respondent.

Submitted June 27, 2016; decided September 15, 2016

Reported below, 140 AD3d 473.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of GANIYU ADEBOLA ODUNBAKU, Respondent, v DIANA ODUNBAKU, Appellant. (Proceeding No. 1.)

In the Matter of DIANA ODUNBAKU, Appellant, v GANIYU ADEBOLA ODUNBAKU, Respondent. (Proceeding No. 2.)

Submitted September 12, 2016; decided September 15, 2016

Reported below, 131 AD3d 617.

Motion by Sanctuary for Families et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE AVILES, Appellant.

Submitted September 12, 2016; decided September 15, 2016

Reported below, 47 Misc 3d 126(A), 2015 NY Slip Op 50347(U).

Motion by Make the Road New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES BROWN, Appellant.

Submitted September 12, 2016; decided September 15, 2016

Reported below, 126 AD3d 516.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANZE R. MASON, Appellant.

Submitted August 22, 2016; decided September 15, 2016

Reported below, 132 AD3d 777.

Motion to vacate this Court's July 27, 2016 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARRIN STATON, Appellant.

Submitted September 12, 2016; decided September 15, 2016

Reported below, 138 AD3d 1149.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

In the Matter of ALAN M. SIMON, a Justice of the Spring Valley Village Court and the Ramapo Town Court, Rockland County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted September 12, 2016; decided September 15, 2016

Motion by James D. Licata, Rockland County Public Defender, for leave to file a brief amicus curiae on the request for review herein dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [a]).

JENNIFER CANGRO, Appellant, v GINA MARIE REITANO, Respondent.

Submitted August 1, 2016; decided September 20, 2016

Reported below, 130 AD3d 486.

Motion for reconsideration of this Court's November 18, 2015 dismissal order denied [*see* 26 NY3d 1021 (2015)].

CITY OF NEW YORK, Respondent, v GRANITE STATE INSURANCE COMPANY, Appellant.

Submitted August 1, 2016; decided September 20, 2016

Reported below, 136 AD3d 523.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GARTHON BUSINESS INC. et al., Respondents, v KIRILL ACE STEIN et al., Appellants.

Submitted September 12, 2016; decided September 20, 2016

Reported below, 138 AD3d 587.

Motion to vacate stay denied.

In the Matter of JESSICA C. GRAHAM, Appellant, v CHARLES T. RAWLEY, Respondent. (Proceeding Nos. 1 and 3.)

In the Matter of CHARLES T. RAWLEY, Respondent, v JESSICA GRAHAM, Appellant. (Proceeding Nos. 2 and 4.)

Submitted July 5, 2016; decided September 20, 2016

Reported below, 140 AD3d 765.

Motion, insofar as it seeks leave to appeal from those portions of the Appellate Division order as affirmed so much of Family Court's orders as denied appellant Jessica C. Graham's violation application and as denied her motion to vacate a prior Family Court order, dismissed upon the ground that such portions of the Appellate Division order do not finally determine a proceeding within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from remaining portions of the Appellate Division order, denied.

TRATHONY GRIFFIN et al, Appellants, v SIRVA, INC., et al., Respondents.

Decided September 20, 2016

See 835 F3d 283.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

NIAGARA MOHAWK POWER CORPORATION, Doing Business as NATIONAL GRID, Respondent, v ALLIED HEALTHCARE PRODUCTS, INC., Appellant, and ALBANY ENGINEERING CORPORATION, Respondent.

Submitted August 8, 2016; decided September 20, 2016

Reported below, 137 AD3d 1539.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DOCTOR FRED L. PASTERNAK, Appellant, v LABORATORY CORPORATION OF AMERICA HOLDINGS, Also Known as LabCorp, et al., Respondents.

Submitted August 15, 2016; decided September 20, 2016

See 807 F3d 14.

Motion for reargument denied [*see* 27 NY3d 817 (2016)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NASEAN BONIE, Defendant. DINA SFORZA, a Representative of News 12 the Bronx, L.L.C., Nonparty Appellant.

Submitted July 25, 2016; decided September 20, 2016

Reported below, 141 AD3d 401.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the issues presented have become moot. Motion for leave to appeal dismissed upon the ground that the issues presented have become moot. Motion to vacate stay denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NASEAN BONIE, Defendant. DINA SFORZA, a Representative of News 12 the Bronx, L.L.C., Nonparty Appellant.

Submitted August 8, 2016; decided September 20, 2016

Reported below, 141 AD3d 401.

Motion by The New York Times Company et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ROGER COONEY, Respondent.

Decided September 20, 2016

Reported below, 137 AD3d 1665 (Appeal No. 2).

Appeal dismissed, by the Court of Appeals, sua sponte, upon the ground that no appeal lies to the Court of Appeals from the Appellate Division order of reversal (*see* CPL 450.90 [2]).

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PERRY C. GRIGGS, Appellant.

Submitted August 1, 2016; decided September 20, 2016

Reported below, 117 AD3d 1523.

Motion for reargument denied [*see* 27 NY3d 602 (2016)].

Judge FAHEY taking no part.

In the Matter of MATTHEW R. SMITH, Appellant, v WILLIAM J. CONDON, a Justice of the Supreme Court, Suffolk County, et al., Respondents.

Submitted August 1, 2016; decided September 20, 2016

Reported below, 132 AD3d 1002; 2016 NY Slip Op 74960(U).

On the Court's own motion, appeal, insofar as taken from the May 27, 2016 Appellate Division order, dismissed, without costs, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal, insofar as taken from the October 28, 2015 Appellate Division order, dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

SHIKEMA WILLIAMS, Administratrix of the Estates of FREDERICK VELEZ and Another, Deceased, et al., Appellants, v STATE OF NEW YORK, Respondent.

Submitted May 16, 2016; decided September 20, 2016

Reported below, 137 AD3d 1579.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of CORINNE ZAJAC, Appellant, v NEW YORK STATE DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted July 11, 2016; decided September 20, 2016

Reported below, 132 AD3d 1265.

Motion, insofar as it seeks leave to appeal as against respondent Service Employees International Union, Local 200 United, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal as against respondent New York State Division of Human Rights, denied.

[60 NE3d 411, 38 NYS3d 516]

HECTOR TAVERAS, Respondent, v 1149 WEBSTER REALTY CORP. et al., Appellants.

Decided September 13, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order

of that Court, entered December 15, 2015. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Bronx County (Wilma Guzman, J.), which had, insofar as appealed from as limited by the briefs, sua sponte dismissed the complaint as against defendant 1149 Webster Realty Corp. and granted the motion of defendant A&K Convenience Store, Inc. for summary judgment dismissing the complaint as against it; (2) vacated the sua sponte dismissal of the complaint as against defendant 1149 Webster Realty Corp.; and (3) denied defendants' motions for summary judgment. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of the Supreme Court, properly made?"

In a personal injury action alleging that plaintiff fell while exiting a convenience store as a result of a dangerous and defective condition on the ramp leading from the public sidewalk to the entranceway of the store, the Appellate Division determined that defendants, the owner and lessee of the premises, failed to meet their initial burden of establishing, prima facie, their entitlement to judgment as a matter of law by asserting that plaintiff could not identify the defect that caused him to fall. Although plaintiff could not initially identify the location of his accident based upon photographs he was shown at his first deposition, upon being shown additional photographs at his second deposition depicting the full entrance area and front of the convenience store, he was able to definitively identify and mark with an "X" the area on the ramp which was "not leveled" and caused him to fall.

Taveras v 1149 Webster Realty Corp., 134 AD3d 495, affirmed.

HEADNOTE

Negligence — Maintenance of Premises — Fall while Exiting Store — Summary Judgment

In a personal injury action alleging that plaintiff fell while exiting a convenience store as a result of a dangerous and defective condition on the ramp leading from the public sidewalk to the entranceway of the store, an order of the Appellate Division, which denied the summary judgment motions of defendants owner and lessee of the premises, was affirmed. Defendants failed to satisfy their burden of establishing entitlement to judgment as a matter of law.

APPEARANCES OF COUNSEL

Gannon, Rosenfarb & Drossman, New York City (*Lisa L. Gokhulsingh* of counsel), for 1149 Webster Realty Corp., appellant.

Law Offices of Michael E. Pressman, New York City (*Stuart B. Cholewa* of counsel), for A&K Convenience Store, Inc., appellant.

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (*Brian J. Isaac* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. Defendants failed to satisfy their burden of establishing entitlement to judgment as a matter of law.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[63 NE3d 66, 40 NYS3d 346]

ESTEE LAUDER INC., Respondent, v ONEBEACON INSURANCE GROUP, LLC, et al., Appellants.

Decided September 15, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered July 9, 2015. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Carol R. Edmead, J.; op 2015 NY Slip Op 32592[U] [2015]), which, to the extent appealed from, granted defendants' motion for leave to amend their answer to reassert an affirmative defense of late notice; and (2) denied the motion. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as reversed by the order of this Court, properly made?"

Estee Lauder Inc. v OneBeacon Ins. Group, LLC, 130 AD3d 497, reversed.

HEADNOTE

Insurance — Disclaimer of Coverage — Waiver of Late-Notice Defense

Supreme Court properly granted defendants' motion for leave to amend their answer to reassert an affirmative defense of late notice, as defendants did not waive their right to assert the defense as a matter of law by failing to specifically identify late notice in their disclaimer letters. Defendants identi-

fied the late-notice defense in early communications with plaintiff before relying on a reservation of rights in two disclaimer letters. Thus, under common-law principles, triable issues of fact existed whether defendants clearly manifested an intent to abandon their late-notice defense.

APPEARANCES OF COUNSEL

Steptoe & Johnson LLP, Washington, D.C. (*Harry Lee*, of the District of Columbia bar, admitted pro hac vice, and *Leah M. Quadrino* of counsel), and *Steptoe & Johnson LLP*, New York City (*Michael C. Miller* and *Evan Glassman* of counsel), for appellants.

Reed Smith LLP, Washington, D.C. (*John W. Schryber* of counsel), for respondent.

O'Melveny & Myers LLP, New York City (*Jonathan D. Hacker* and *Anton Metlitsky* of counsel), for Century Indemnity Company, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, the order of Supreme Court reinstated, and the certified question answered in the negative.

Analyzing the circumstances under the common-law waiver standard, which requires an examination of all factors, defendants cannot be said to have waived their right to assert the late-notice defense as a matter of law by failing to specifically identify late notice in their disclaimer letters. Defendants identified the late-notice defense in early communications with plaintiff before relying on a reservation of rights in two disclaimer letters. “[U]nder common-law principles, triable issues of fact exist whether defendants clearly manifested an intent to abandon their late-notice defense” (*KeySpan Gas E. Corp. v Munich Reins. Am., Inc.*, 23 NY3d 583, 591 [2014]). Accordingly, Supreme Court properly granted defendants’ motion for leave to amend their answer to reassert the affirmative defense of late notice.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, order of Supreme Court, New York County, reinstated, and certified question answered in the negative, in a memorandum.

[60 NE3d 419, 38 NYS3d 523]

In the Matter of THE 60 EAST 12TH STREET TENANTS' ASSOCIATION et al., Appellants, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL et al., Respondents. (And Another Proceeding.)

Decided September 15, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 29, 2015. The Appellate Division modified, on the law, an order of the Supreme Court, New York County (Alice Schlesinger, J.), entered in two consolidated proceedings pursuant to CPLR article 78, which had, insofar as appealed from as limited by the briefs, (1) granted the petition of The 60 East 12th Street Tenants' Association and Jeffrey Schanback to the extent of annulling so much of the determination of respondent New York State Division of Housing and Community Renewal (DHCR), dated August 15, 2013, which effectively granted in part and denied in part the application of respondent 12 Broadway Realty LLC for a rent increase based on a claimed major capital improvement (MCI) involving the resurfacing of exterior walls of its apartment building; and (2) remanded to DHCR with conditions precluding it from reconsidering that MCI issue. The modification consisted of permitting DHCR on remand to address respondent 12 Broadway Realty LLC's application for an MCI rent increase based on resurfacing work consistent with the Appellate Division decision. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as modified by this Court, properly made?"

In two consolidated CPLR article 78 proceedings arising from several orders issued by respondent New York State Division of Housing and Community Renewal relating to respondent owner's 2007 application for a claimed MCI rent increase based on the resurfacing of exterior walls of its apartment building, the Appellate Division determined that Supreme Court erred in finding that respondent owner failed to exhaust its administrative remedies. Notwithstanding that respondent owner filed a request for reconsideration rather than a petition for administrative review (PAR) from DHCR's initial 2009 order denying the application, it undisputedly filed a timely PAR from the 2013 order challenged in the article 78 proceedings.

The Appellate Division further determined that Supreme Court should not have effectively annulled DHCR's reconsideration of the MCI issue and precluded it on remand from resolving the discrepancy between its 1995 and 1998 orders as to the nature of previous work performed on the building which justified the 1995 grant of an MCI rent increase to respondent owner's predecessor, since DHCR had the authority to apply its expertise to the question of respondent owner's entitlement to a subsequent MCI rent increase, and DHCR's several orders were so inconsistent and unclear as to constitute an irregularity in a vital matter.

The Appellate Division further determined that, in light of the inconsistency between the 1995 and 1998 orders, Supreme Court erred in finding that respondent owner was collaterally estopped by the 1995 order. However, upon remand, the Appellate Division directed that DHCR must be limited to the facts and evidence previously submitted, except under the narrow circumstances in which a party submits certain facts or evidence which it establishes could not reasonably have been offered or included in the prior administrative proceedings.

Matter of 60 E. 12th St. Tenants' Assn. v New York State Div. of Hous. & Community Renewal, 134 AD3d 586, affirmed.

HEADNOTE

Landlord and Tenant — Rent Regulation — Major Capital Improvement Rent Increase — Appropriate Remand to Division of Housing and Community Renewal

The Appellate Division did not err in permitting respondent New York State Division of Housing and Community Renewal to address on remand the application of respondent owner for a claimed major capital improvement rent increase based on resurfacing work consistent with the Appellate Division decision.

APPEARANCES OF COUNSEL

Collins, Dobkin & Miller LLP, New York City (*Seth A. Miller* of counsel), for appellants.

New York State Division of Housing and Community Renewal, New York City (*Jack Kuttner* and *Mark F. Palomino* of counsel), for New York State Division of Housing and Community Renewal, respondent.

Rosenberg & Estis, P.C., New York City (*Jeffrey Turkel* of counsel), for 12 Broadway Realty LLC, respondent.

The Urban Justice Center, New York City (*Garrett Wright* of counsel), for The Urban Justice Center, amicus curiae.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. The Appellate Division did not err in permitting respondent New York State Division of Housing and Community Renewal to address on remand the application of respondent 12 Broadway Realty LLC for a claimed major capital improvement rent increase based on resurfacing work consistent with the Appellate Division decision.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[60 NE3d 1200, 38 NYS3d 834]

JOSEPH BENNETT, as Guardian of JAMES BENNETT, an Incapacitated Person, Appellant, et al., Plaintiff, v MICHAEL HUCKE et al., Defendants, and ALAN KIRK et al., Respondents.

Decided August 30, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered September 16, 2015. The Appellate Division order, insofar as appealed from, affirmed so much of an order of the Supreme Court, Suffolk County (Hector D. LaSalle, J.; op 2013 NY Slip Op 34059[U] [2013]), as had granted that branch of the motion of defendants Alan Kirk and Alan H. Kirk, Inc., which was for summary judgment dismissing the complaint insofar as asserted against them.

The Appellate Division determined that defendants Alan Kirk and Alan H. Kirk, Inc. established their prima facie entitlement to judgment as a matter of law dismissing the causes of action alleging their violations of Labor Law §§ 240 (1) and 241 (6) by submitting evidence that neither of them was a general contractor or an agent of an owner or general contractor with the authority to supervise and control the work of the injured worker, and that plaintiff, in opposition, failed to raise a triable issue of fact. Furthermore, the Appellate Division determined that, with respect to the Labor Law § 200 cause of action, defendants Alan Kirk and Alan H. Kirk, Inc.

established, *prima facie*, both that they did not create or have actual or constructive notice of the condition which allegedly caused the injury to the injured worker and did not have the authority to supervise or control the means and methods of his work, and that plaintiff, in opposition, failed to raise a triable issue of fact.

Bennett v Hucke, 131 AD3d 993, affirmed.

HEADNOTE

Labor — Safe Place to Work — General Contractor Liability

In an action for damages arising from work-related injuries, the order of the Appellate Division, insofar as appealed from, determining that Supreme Court properly granted that branch of the motion of defendants-respondents for summary judgment dismissing the complaint insofar as asserted against them, was affirmed. Plaintiff failed to raise a triable issue of fact whether defendants-respondents were subject to general contractor liability.

APPEARANCES OF COUNSEL

Gathman & Bennett LLP, Huntington (*James Edward Gathman, Jr.* of counsel), for appellant.

Mazzara & Small, P.C., Bohemia (*Timothy F. Mazzara* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, affirmed, with costs. Plaintiff failed to raise a triable issue of fact whether defendants-respondents Alan Kirk et al. are subject to general contractor liability for when James Bennett was injured.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[60 NE3d 1200, 38 NYS3d 834]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v WILLIAM SOSA, Respondent.

Decided September 20, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 7, 2015. The Appellate Divi-

sion (1) reversed, on the law, a judgment of the Supreme Court, Bronx County (Ralph A. Fabrizio, J.), which had convicted defendant, upon his plea of guilty, of operating a motor vehicle while ability impaired; (2) vacated the guilty plea; and (3) dismissed the accusatory instrument in the interest of justice.

People v Sosa, 128 AD3d 443, reversed.

HEADNOTE

Crimes — Plea of Guilty — Sufficiency of Allocution

The order of the Appellate Division, which had reversed a judgment of the Supreme Court convicting defendant, upon his plea of guilty, of operating a motor vehicle while ability impaired, vacated the guilty plea, and dismissed the accusatory instrument in the interest of justice, was reversed and the Supreme Court judgment reinstated. The totality of the circumstances established the voluntariness of the plea, where the record evidenced that defendant was aware that he had the right to a trial, had the benefit of his counsel's efforts and guidance, spoke with counsel, and chose to forgo trial in favor of entering a guilty plea.

APPEARANCES OF COUNSEL

Darcel D. Clark, District Attorney, Bronx (*William Terrell, III*, of counsel), for appellant.

Seymour W. James, Jr., *The Legal Aid Society*, New York City (*Jeffrey Dellheim* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the judgment of Supreme Court reinstated. The record here evidences that defendant was aware that he had the right to a trial, had the benefit of his counsel's efforts and guidance, spoke with counsel, and chose to forgo trial in favor of entering a guilty plea. Therefore, the totality of the circumstances establish the voluntariness of the plea (*People v Conceicao*, 26 NY3d 375, 382-384 [2015]).

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and judgment of Supreme Court, Bronx County, reinstated, in a memorandum.

[61 NE3d 506, 39 NYS3d 107]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
BOOKMAN, Appellant.

Decided September 13, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered September 30, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (James P. Griffin, J.), which had convicted defendant, upon his plea of guilty, of attempted criminal possession of a weapon in the second degree. The appeal to the Appellate Division brought up for review an order of that Supreme Court (Gregory L. Lasak, J.), which had denied, after a hearing, that branch of defendant's omnibus motion which was to suppress physical evidence.

Defendant was arrested after a police officer, having observed an ornamental sandal on a string and a necklace hanging from the rearview mirror of a vehicle in which defendant was a passenger, stopped the vehicle and saw a "cloudy" plastic bag in a cupholder in the center console which he believed to contain cocaine residue. A search of the vehicle's trunk revealed a loaded handgun. Supreme Court denied defendant's suppression motion. The Appellate Division concluded that Supreme Court properly denied defendant's suppression motion because the officer had reasonable cause to believe that the sandal was hung "in such a manner as to obstruct or interfere with the view of the operator through the windshield" (Vehicle and Traffic Law § 375 [30]), and therefore the stop of defendant's vehicle was not improper.

People v Bookman, 131 AD3d 1258, affirmed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Mixed Questions of Law and Fact

In the prosecution of defendant for criminally possessing a loaded handgun discovered after a search of the trunk of a vehicle in which defendant was a passenger, the lower courts' determinations on defendant's suppression motion, which involved mixed questions of law and fact, had support in the record and, thus, were beyond further review by the Court of Appeals.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Paul S. Laisure* and *Barry Stendig* of counsel), for appellant.

Richard A. Brown, District Attorney, Kew Gardens (Antara D. Kanth of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed. The lower courts' determinations on the suppression motion, which involve mixed questions of law and fact, have support in the record and, thus, are beyond our further review.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT

(September 1, 2016 through September 30, 2016)

Ivies, Matter of, v Kron	App Div, 2d Dept: 2016 NY Slip Op 75813(U)	9/21/16
Suzanne QQ., Matter of, v Ben RR.	3d Dept: 138 AD3d 1210	9/21/16

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(September 1, 2016 through September 30, 2016)

People v Abdallah	2d Dept: 140 AD3d 975 (Kings)	denied 9/12/16 (Stein, J.)
People v Abdul-Hakim	2d Dept: 141 AD3d 535 (Kings)	denied 9/22/16 (Garcia, J.)
People v Acevedo	1st Dept: 140 AD3d 494 (NY)	denied 9/30/16 (Abdus-Salaam, J.)
People v Allen	4th Dept: 140 AD3d 1674 (Monroe)	denied 9/13/16 (Garcia, J.)
People v Alvarado	2d Dept: 139 AD3d 1077 (Westchester)	denied 9/7/16 (Stein, J.)
People v Andujar	App Term, 1st Dept: 52 Misc 3d 57 (NY)	denied 9/26/16 (Abdus-Salaam, J.)
People v Angel R.R.	App Term, 2d Dept, 9th & 10th Jud Dists: 52 Misc 3d 84 (Suffolk)	denied 9/8/16 (Stein, J.)
People v Aragon	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 52 Misc 3d 136(A) (Queens)	denied 9/20/16 (Garcia, J.)
People v Arps	1st Dept: 140 AD3d 455 (NY)	denied 9/23/16 (Garcia, J.)

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People v Arroyo	App Div, 1st Dept: 2016 NY Slip Op 62558(U) (NY)	denied reconsideration 9/21/16 (DiFiore, Ch. J.)
People v Avelino	2d Dept: 141 AD3d 601 (Kings)	denied 9/26/16 (Fahey, J.)
People v Barnes	1st Dept: 140 AD3d 443 (Bronx)	denied 9/26/16 (Pigott, J.)
People v Bibeau	3d Dept: 140 AD3d 1530 (Clinton)	denied 9/30/16 (Abdus-Salaam, J.)
People v Blunt	1st Dept: 140 AD3d 669 (NY)	denied 9/8/16 (Stein, J.)
People v Bowen	App Div, 4th Dept, 5/19/16 (Monroe)	dismissed 9/26/16 (Pigott, J.)
People v Boyd	4th Dept: 141 AD3d 1110 (Monroe)	denied 9/12/16 (DiFiore, Ch. J.)
People v Boykin	App Div, 2d Dept: 2016 NY Slip Op 76773(U) (Orange)	dismissed 9/29/16 (Fahey, J.)
People v Brown (David)	4th Dept: 140 AD3d 1682 (Onondaga)	denied 9/30/16 (Abdus-Salaam, J.) (Appeal No. 1)
People v Brown (David)	4th Dept: 140 AD3d 1683 (Onondaga)	denied 9/30/16 (Abdus-Salaam, J.) (Appeal No. 2)
People v Bunce	2d Dept: 141 AD3d 536 (Suffolk)	denied 9/30/16 (Abdus-Salaam, J.)
People v Busano	2d Dept: 141 AD3d 538 (Kings)	denied 9/29/16 (Stein, J.)
People v Bush	App Div, 2d Dept: 2016 NY Slip Op 64348(U) (Kings)	denied reconsideration 9/26/16 (Fahey, J.)
People v Butler	4th Dept: 140 AD3d 1610 (Monroe)	denied 9/7/16 (DiFiore, Ch. J.)
People v Carmel	4th Dept: 138 AD3d 1448 (Monroe)	denied 9/13/16 (Garcia, J.)
People v Carter	3d Dept: 140 AD3d 1394 (St. Lawrence)	denied 9/26/16 (Pigott, J.)
People v Castano	App Term, 1st Dept: 48 Misc 3d 127(A) (Bronx)	denied 9/2/16 (Fahey, J.)
People v Cehfus	4th Dept: 140 AD3d 1644 (Onondaga)	denied* 9/1/16 (DiFiore, Ch. J.)
People v Cerroni	4th Dept: 141 AD3d 1114 (Monroe)	denied 9/20/16 (Garcia, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Prindle* (129 AD3d 1506 [4th Dept 2015], *lv granted* 26 NY3d 1091 [2015]), *People v Wright* (134 AD3d 1059 [2d Dept 2015], *lv granted* 27 NY3d 1009 [2016]), and *People v Garvin* (130 AD3d 644 [2d Dept 2015], *lv granted* 26 NY3d 1094 [2015]).

People v Chant	4th Dept: 140 AD3d 1645 (Chautauqua)	denied 9/7/16 (Stein, J.)
People v Cochran	3d Dept: 140 AD3d 1198 (Albany)	denied 9/26/16 (Abdus-Salaam, J.)
People v Cole	2d Dept: 140 AD3d 1183 (Kings)	denied 9/26/16 (Pigott, J.)
People v Columna	1st Dept: 140 AD3d 580 (NY)	denied 9/23/16 (Garcia, J.)
People v Corra	4th Dept: 141 AD3d 1175 (Niagara)	denied 9/20/16 (Garcia, J.)
People v Crockett	1st Dept: 140 AD3d 576 (NY)	denied 9/6/16 (Stein, J.)
People v Cruz	2d Dept: 137 AD3d 1158 (Nassau)	denied 9/8/16 (Stein, J.)
People v Culkin	4th Dept: 141 AD3d 1114 (Erie)	denied 9/6/16 (DiFiore, Ch. J.)
People v Cwalinski	2d Dept: 140 AD3d 1185 (Suffolk)	denied 9/20/16 (Garcia, J.)
People v Daniels	2d Dept: 140 AD3d 1083 (Kings)	denied 9/29/16 (Fahey, J.)
People v Davis (Clayton)	2d Dept: 141 AD3d 675 (Queens)	denied 9/12/16 (Stein, J.)
People v Davis (Lloyd)	2d Dept: 139 AD3d 966 (Queens)	denied 9/6/16 (Rivera, J.)
People v Dean	App Div, 4th Dept, 6/1/16 (Ontario)	dismissed 9/19/16 (Garcia, J.)
People v Desgrosiellier	4th Dept: 140 AD3d 1675 (Niagara)	denied 9/6/16 (Stein, J.)
People v Diaz	App Term, 1st Dept: 51 Misc 3d 146(A) (Bronx)	denied 9/30/16 (Abdus-Salaam, J.)
People v Diop	App Term, 1st Dept: 51 Misc 3d 152(A) (NY)	denied 9/26/16 (Fahey, J.)
People v Duren	App Div, 2d Dept: 2016 NY Slip Op 80383(U) (Nassau)	dismissed 9/30/16 (DiFiore, Ch. J.)
People v E	3d Dept: 140 AD3d 1198 (Albany)	denied 9/26/16 (Abdus-Salaam, J.)
People v E-Murder	3d Dept: 140 AD3d 1198 (Albany)	denied 9/26/16 (Abdus-Salaam, J.)
People v Ennis	1st Dept: 139 AD3d 505 (NY)	denied 9/13/16 (Garcia, J.)
People v Faulks	4th Dept: 140 AD3d 1610 (Monroe)	denied 9/7/16 (DiFiore, Ch. J.)
People v Garcia (Frank)	App Div, 4th Dept, 5/17/16 (Ontario)	dismissed 9/19/16 (Abdus-Salaam, J.)
People v Garcia (Rolando)	1st Dept: 140 AD3d 480 (Bronx)	denied 9/26/16 (Pigott, J.)
People v Goldman	3d Dept: 139 AD3d 1111 (Albany)	denied 9/26/16 (Fahey, J.)

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People v Graves	App Div, 2d Dept: 2015 NY Slip Op 91972(U) (Kings)	denied reconsideration 9/6/16 (Stein, J.)
People v Green (Avery)	App Div, 2d Dept: 2016 NY Slip Op 77878(U) (Dutchess)	dismissed 9/21/16 (DiFiore, Ch. J.)
People v Green (Bryant)	1st Dept: 140 AD3d 616 (NY)	denied 9/8/16 (Stein, J.)
People v Green (Maurice)	County Ct, 6/30/16 (Erie)	denied 9/30/16 (Abdus-Salaam, J.)
People v Hand	1st Dept: 140 AD3d 636 (NY)	denied 9/26/16 (Fahey, J.)
People v Harleston	1st Dept: 139 AD3d 412 (NY)	denied 9/12/16 (Stein, J.)
People v Harris	4th Dept: 141 AD3d 1121 (Monroe)	denied 9/26/16 (Abdus-Salaam, J.)
People v Hernandez	3d Dept: 140 AD3d 1521 (Sullivan)	denied 9/6/16 (Rivera, J.)
People v Herrera	2d Dept: 138 AD3d 1141 (Orange)	denied 9/12/16 (Stein, J.)
People v Heywood	1st Dept: 138 AD3d 607 (Bronx)	denied 9/12/16 (Stein, J.)
People v Hill	2d Dept: 141 AD3d 675 (Kings)	denied 9/6/16 (Stein, J.)
People v Hixon	4th Dept: 138 AD3d 1496 (Niagara)	denied 9/6/16 (Stein, J.)
People v Jennings	4th Dept: 140 AD3d 1705 (Monroe)	denied 9/6/16 (Stein, J.)
People v Johnston	4th Dept: 138 AD3d 1417 (Ontario)	denied 9/20/16 (Garcia, J.)
People v Jones (Harold)	1st Dept: 140 AD3d 541 (NY)	denied 9/26/16 (Fahey, J.)
People v Jones (Jamie)	App Div, 1st Dept: 2015 NY Slip Op 62546(U) (NY)	denied 9/21/16 (Garcia, J.)
People v Jones (Lamont)	App Div, 1st Dept: 2015 NY Slip Op 62546(U) (NY)	denied 9/21/16 (Garcia, J.)
People v Jones (Vernon)	App Div, 3d Dept: 2016 NY Slip Op 74760(U) (Rensselaer)	denied 9/30/16 (Abdus-Salaam, J.)
People v Kaye	2d Dept: 137 AD3d 938 (Kings)	denied 9/19/16 (Stein, J.)
People v Kiselyov	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 52 Misc 3d 140(A) (Kings)	denied 9/29/16 (DiFiore, Ch. J.)
People v Koiki	2d Dept: 140 AD3d 980 (Kings)	denied 9/26/16 (Fahey, J.)
People v Lifrieri	App Div, 2d Dept: 2016 NY Slip Op 74299(U) (Kings)	dismissed 9/2/16 (Fahey, J.)
People v Ligammari	4th Dept: 140 AD3d 1631 (Monroe)	denied 9/30/16 (Abdus-Salaam, J.)

People v Lipson	4th Dept: 139 AD3d 1383 (Orleans)	denied 9/8/16 (Stein, J.)
People v Littlejohn	1st Dept: 139 AD3d 612 (NY)	denied 9/2/16 (Fahey, J.)
People v Lobaton	3d Dept: 140 AD3d 1534 (Ulster)	denied 9/29/16 (Fahey, J.)
People v Lopez	App Div, 1st Dept: 2015 NY Slip Op 88736(U) (Bronx)	dismissed 9/19/16 (Garcia, J.)
People v MacFarlane	2d Dept: 140 AD3d 1089 (Suffolk)	denied 9/6/16 (Rivera, J.)
People v Madison	2d Dept: 140 AD3d 793 (Suffolk)	denied 9/2/16 (Fahey, J.)
People v Martin	3d Dept: 136 AD3d 1218 (Albany)	denied 9/20/16 (Garcia, J.)
People v Martinaj	App Div, 1st Dept: 2016 NY Slip Op 60144(U) (NY)	denied reconsideration 9/6/16 (Stein, J.)
People v Martinez	1st Dept: 141 AD3d 429 (NY)	denied 9/26/16 (Fahey, J.)
People v Massey	4th Dept: 140 AD3d 1736 (Erie)	denied 9/22/16 (Garcia, J.)
People v Maxwell	App Div, 2d Dept: 2016 NY Slip Op 69100(U) (Westchester)	denied reconsideration 9/6/16 (Stein, J.)
People v McCants	County Ct, 3/14/16 (Monroe)	denied 9/12/16 (Stein, J.)
People v McCullough	4th Dept: 141 AD3d 1125 (Monroe)	denied 9/12/16 (Stein, J.)
People v McDaniel	2d Dept: 141 AD3d 544 (Kings)	denied 9/29/16 (DiFiore, Ch. J.)
People v McVay	2d Dept: 140 AD3d 1090 (Suffolk)	denied 9/12/16 (DiFiore, Ch. J.)
People v Meadow	4th Dept: 140 AD3d 1596 (Onondaga)	denied reconsideration 9/19/16 (Stein, J.)
People v Medina	App Div, 1st Dept: 2016 NY Slip Op 71757(U) (NY)	denied 9/7/16 (Stein, J.)
People v Moore	2d Dept: 140 AD3d 1091 (Kings)	denied 9/28/16 (Rivera, J.)
People v Morales	1st Dept: 137 AD3d 576 (Bronx)	denied 9/19/16 (Garcia, J.)
People v Morren	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 52 Misc 3d 132(A) (Queens)	denied 9/6/16 (Stein, J.)
People v Mosley	4th Dept: 141 AD3d 1102 (Monroe)	denied 9/6/16 (Rivera, J.)
People v Negrin	2d Dept: 140 AD3d 1192 (Kings)	denied 9/28/16 (Rivera, J.)
People v Nelson	1st Dept: 139 AD3d 436 (NY)	denied 9/2/16 (Fahey, J.)

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People v Newsome (Michael)	4th Dept: 140 AD3d 1695 (Wayne)	denied 9/30/16 (DiFiore, Ch. J.) (Appeal No. 1)
People v Newsome (Michael)	4th Dept: 140 AD3d 1696 (Wayne)	denied 9/30/16 (DiFiore, Ch. J.) (Appeal No. 2)
People v Noble	App Term, 1st Dept: 51 Misc 3d 147(A) (NY)	denied 9/22/16 (Garcia, J.)
People v Nunez	App Div, 2d Dept: 2016 NY Slip Op 76433(U) (Queens)	dismissed 9/19/16 (Abdus-Salaam, J.)
People v Ortiz	1st Dept: 140 AD3d 631 (Bronx)	denied 9/2/16 (Fahey, J.)
People v Owens	2d Dept: 141 AD3d 675 (Kings)	denied 9/6/16 (Rivera, J.)
People v Patron	2d Dept: 141 AD3d 545 (Kings)	denied 9/26/16 (Abdus-Salaam, J.)
People v Paul	4th Dept: 139 AD3d 1383 (Orleans)	denied 9/8/16 (Stein, J.)
People v Pops	3d Dept: 137 AD3d 1323 (Albany)	denied 9/26/16 (Fahey, J.)
People v Prince	2d Dept: 136 AD3d 844 (Kings)	denied 9/26/16 (Fahey, J.)
People v Ragen	2d Dept: 140 AD3d 1092 (Nassau)	denied 9/30/16 (Abdus-Salaam, J.)
People v Ramirez	1st Dept: 140 AD3d 545 (NY)	denied 9/12/16 (Stein, J.)
People v Ramos	App Div, 3d Dept: 2016 NY Slip Op 73432(U) (Montgomery)	denied 9/1/16 (Garcia, J.)
People v Raymond	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 51 Misc 3d 149(A) (Kings)	denied 9/21/16 (Garcia, J.)
People v Redd	2d Dept: 141 AD3d 546 (Queens)	withdrawn 9/27/16 (Abdus-Salaam, J.)
People v Richards	2d Dept: 140 AD3d 989 (Kings)	denied 9/30/16 (Abdus-Salaam, J.)
People v Richardson	App Div, 3d Dept: 2016 NY Slip Op 76188(U) (Rensselaer)	dismissed 9/19/16 (Garcia, J.)
People v Rimmen	4th Dept: 140 AD3d 1714 (Niagara)	denied 9/30/16 (Abdus-Salaam, J.)
People v Rios	1st Dept: 139 AD3d 620 (NY)	denied 9/12/16 (Stein, J.)
People v Robinson (Christopher)	2d Dept: 138 AD3d 764 (Nassau)	denied 9/26/16 (Fahey, J.)
People v Robinson (Steven)	4th Dept: 140 AD3d 1655 (Monroe)	denied 9/21/16 (Garcia, J.)

People v Rodriguez	2d Dept: 139 AD3d 883 (Queens)	denied 9/8/16 (Stein, J.)
People v Samaroo	2d Dept: 137 AD3d 1308 (Queens)	denied 9/21/16 (Pigott, J.)
People v Saunders	County Ct, 5/18/16 (Erie)	denied 9/26/16 (Pigott, J.)
People v Schumaker	4th Dept: 136 AD3d 1369 (Erie)	denied reconsideration 9/19/16 (Garcia, J.)
People v Scott	1st Dept: 140 AD3d 617 (NY)	denied 9/22/16 (Garcia, J.)
People v Shannon	3d Dept: 139 AD3d 1250 (Chemung)	denied 9/20/16 (Garcia, J.)
People v Showell	App Term, 1st Dept: 52 Misc 3d 131(A) (NY)	denied 9/30/16 (DiFiore, Ch. J.)
People v Simonovichyus	App Term, 1st Dept: 51 Misc 3d 153(A) (NY)	denied 9/26/16 (Fahey, J.)
People v Smith (Henry)	3d Dept: 137 AD3d 1323 (Albany)	denied 9/26/16 (Fahey, J.)
People v Smith (Leroy)	4th Dept: 140 AD3d 1699 (Onondaga)	granted 9/6/16 (DiFiore, Ch. J.)
People v Snype	2d Dept: 141 AD3d 737 (Orange)	denied 9/8/16 (Stein, J.)
People v Sommers	3d Dept: 140 AD3d 1537 (Montgomery)	denied 9/30/16 (Abdus-Salaam, J.)
People v Soto	4th Dept: 141 AD3d 1088 (Monroe)	denied 9/30/16 (Abdus-Salaam, J.)
People v Spears	4th Dept: 140 AD3d 1629 (Monroe)	denied 9/29/16 (DiFiore, Ch. J.)
People v Stegeman	2d Dept: 139 AD3d 1092 (Dutchess)	denied 9/30/16 (Fahey, J.)
People v Thomas	4th Dept: 136 AD3d 1390 (Erie)	denied reconsideration 9/12/16 (DiFiore, Ch. J.)
People v Thompson (Antwan)	App Div, 2d Dept: 2016 NY Slip Op 75830(U) (Kings)	dismissed 9/6/16 (Stein, J.)
People v Thompson (Garnell)	2d Dept: 141 AD3d 551 (Kings)	denied 9/20/16 (Garcia, J.)
People v Tomeno	4th Dept: 141 AD3d 1120 (Monroe)	denied 9/26/16 (Abdus-Salaam, J.)
People v Torres (Adan)	1st Dept: 140 AD3d 478 (NY)	denied 9/21/16 (Garcia, J.)
People v Torres (Carlos)	1st Dept: 140 AD3d 534 (NY)	denied 9/8/16 (Stein, J.)
People v Triplett	App Div, 4th Dept, 6/28/16 (Erie)	dismissed 9/21/16 (DiFiore, Ch. J.)

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People v Tyler	4th Dept: 140 AD3d 1694 (Monroe)	denied 9/30/16 (Abdus-Salaam, J.)
People v Villanueva	2d Dept: 140 AD3d 990 (Kings)	denied 9/26/16 (Fahey, J.)
People v Wallace (Eric)	1st Dept: 140 AD3d 672 (NY)	denied 9/26/16 (Fahey, J.)
People v Wallace (Erik)	1st Dept: 140 AD3d 672 (NY)	denied 9/26/16 (Fahey, J.)
People v Wallace (Shelby)	4th Dept: 141 AD3d 1115 (Erie)	denied 9/20/16 (Garcia, J.)
People v Weathington	4th Dept: 141 AD3d 1173 (Erie)	denied 9/12/16 (DiFiore, Ch. J.) (Appeal No. 2)
People v Webster	2d Dept: 140 AD3d 1196 (Kings)	denied 9/26/16 (Fahey, J.)
People v Whetstone	2d Dept: 136 AD3d 662 (Queens)	denied 9/6/16 (Stein, J.)
People v White	1st Dept: 141 AD3d 463 (NY)	denied 9/26/16 (Abdus-Salaam, J.)
People v Whitty	2d Dept: 140 AD3d 802 (Suffolk)	denied 9/12/16 (Stein, J.)
People v William A.	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 52 Misc 3d 133(A) (Queens)	denied 9/26/16 (Fahey, J.)
People v Williams (Cammesoa)	4th Dept: 140 AD3d 1749 (Niagara)	denied 9/26/16 (Abdus-Salaam, J.)
People v Williams (Kevin)	3d Dept: 140 AD3d 1535 (Chemung)	withdrawn 9/27/16 (Abdus-Salaam, J.)
People v Wiz	2d Dept: 139 AD3d 1092 (Dutchess)	denied 9/30/16 (Fahey, J.)
People v Young	2d Dept: 141 AD3d 551 (Kings)	denied 9/2/16 (Fahey, J.)
People v Zalevsky	2d Dept: 137 AD3d 1173 (Kings)	denied reconsideration 9/7/16 (Stein, J.)
People v Zimba	2d Dept: 140 AD3d 1098 (Westchester)	denied 9/30/16 (Abdus-Salaam, J.)

**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL
Decisions of Appellate Division Justices ***

(September 1, 2016 through September 30, 2016)

People v Evans	1st Dept: 141 AD3d 120 (NY)	granted 9/15/16 (Tom, J.)
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* Includes only applications that were granted.

People v Freeman	4th Dept: 141 AD3d 1164 (Monroe)	granted 9/16/16 (Whalen, P.J.)
People v Smith (Dwight)	1st Dept: 143 AD3d 31 (Bronx)	granted 9/29/16 (Kapnick, J.)

MANINDER BHUGRA, Appellant, v MASSACHUSETTS CASUALTY
INSURANCE COMPANY et al., Respondents.

Decided October 20, 2016

Reported below, 2015 NY Slip Op 86106(U).

Appeal dismissed, without costs, by the Court of Appeals,
sua sponte, upon the ground that it does not lie (*see* NY Const,
art VI, § 3 [b]; CPLR 5601).

In the Matter of CITY OF NEW YORK et al., Appellants, v NEW
YORK STATE NURSES ASSOCIATION et al., Respondents.

Submitted September 19, 2016; decided October 20, 2016

Reported below, 130 AD3d 28.

Motion by New York State Public Employment Relations
Board for leave to file a brief amicus curiae on the appeal
herein granted and the proposed brief is accepted as filed. Two
copies of the brief must be served and an original and nine cop-
ies filed within seven days.

CONTACT CHIROPRACTIC, P.C., as Assignee of Girtha Butler,
Respondent, v NEW YORK CITY TRANSIT AUTHORITY, Appel-
lant.

Submitted September 26, 2016; decided October 20, 2016

Reported below, 135 AD3d 804.

Motion by City of New York for leave to file a letter brief
amicus curiae on the appeal herein granted and the proposed
letter brief is accepted as filed. One copy of the letter brief
must be served and an original and two copies filed within
seven days.

In the Matter of AMY R. GURVEY (Admitted as AMY REBECCA WEISSBROD), an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted June 6, 2016; decided October 20, 2016

Reported below, 2016 NY Slip Op 71048(U).

Motion, insofar as it seeks leave to appeal from so much of the April 21, 2016 Appellate Division order as denied appellant's motion to compel the Departmental Disciplinary Committee for the First Judicial Department to make certain files available to her, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of such order does not finally determine an action or proceeding within the meaning of the Constitution.

Judge ABDUS-SALAAM taking no part.

In the Matter of AMY R. GURVEY (Admitted as AMY REBECCA WEISSBROD), an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted July 25, 2016; decided October 20, 2016

Reported below, 102 AD3d 197; 2016 NY Slip Op 71048(U).

Motion, insofar as it seeks reargument of this Court's June 9, 2016 order on appellant's motion for leave to appeal, denied [*see* 27 NY3d 1052 (2016)]; motion, insofar as it seeks reconsideration etc. of this Court's March 26, 2013 dismissal order (*see* 20 NY3d 1085 [2013]), dismissed upon the ground that it does not lie, appellant having previously moved for reconsideration of such order (*see* 21 NY3d 968 [2013]; Rules of Ct of Appeals [22 NYCRR] § 500.24 [e]).

Judge ABDUS-SALAAM taking no part.

MAGEN DAVID OF UNION SQUARE et al., Plaintiffs, and THE SIXTEENTH STREET SYNAGOGUE, Appellant, v 3 WEST 16TH STREET, LLC, Respondent. (And a Third-Party Action.)

Submitted June 27, 2016; decided October 20, 2016

Reported below, 132 AD3d 503.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of RAYMOND NEWCOMB et al., Appellants, v
MIDDLE COUNTRY CENTRAL SCHOOL DISTRICT, Respondent.

Submitted October 11, 2016; decided October 20, 2016

Reported below, 128 AD3d 701.

Motion by New York State Trial Lawyers Association for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

NEW YORK STATE UNITED TEACHERS, by its President, Karen E. Magee, et al., Appellants, v STATE OF NEW YORK et al., Respondents.

Decided October 20, 2016

Reported below, 140 AD3d 90.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

PATROLMEN'S BENEVOLENT ASSOCIATION OF THE CITY OF NEW YORK, INC., et al., Appellants, v CITY OF NEW YORK et al., Respondents.

Decided October 20, 2016

Reported below, 142 AD3d 53.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH BRIDGEFORTH, Appellant.

Submitted October 17, 2016; decided October 20, 2016

Reported below, 119 AD3d 600.

Motion by Fred T. Korematsu Center for Law and Equality et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALBERT EDWARD, Appellant.

Submitted September 26, 2016; decided October 20, 2016

Reported below, 51 Misc 3d 36.

Motion for assignment of counsel granted and Seymour W. James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARY ANNE GRADY FLORES, Appellant.

Submitted September 19, 2016; decided October 20, 2016

Motion, pursuant to CPL 460.60 (3), to extend the time for argument or submission of the appeal and to continue the stay granted and stay continued until determination of the appeal.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MARLO S. HELMS, Respondent.

Submitted October 3, 2016; decided October 20, 2016

Reported below, 141 AD3d 1138.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL JOHNSON, Appellant.

Submitted October 3, 2016; decided October 20, 2016

Reported below, 139 AD3d 967.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BERNELL JONES, Appellant.

Submitted October 17, 2016; decided October 20, 2016

Reported below, 2016 NY Slip Op 73176(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT LUNAN, Appellant.

Submitted October 17, 2016; decided October 20, 2016

Reported below, 141 AD3d 947.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LEROY SAVAGE SMITH, Appellant.

Submitted October 3, 2016; decided October 20, 2016

Reported below, 140 AD3d 1699.

Motion for assignment of counsel granted and Philip Rothchild, Esq., Hiscock Legal Aid Society, 351 South Warren Street, Syracuse, New York 13202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DASZELL TAYLOR, Appellant.

Submitted September 19, 2016; decided October 20, 2016

Reported below, 140 AD3d 1738.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RONALD ACK-
RIDGE, Appellant, v WARDEN DIAZ, Respondent.

Decided October 20, 2016

Reported below, 2016 NY Slip Op 78140(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge DiFIORE taking no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. TERRELL TAYLOR,
Appellant, v S. DOLCE, Superintendent of Orleans Cor-
rectional Facility, Respondent.

Decided October 20, 2016

Reported below, 140 AD3d 1716.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MASAO YO-
NAMINE, Appellant, v WILLIAM J. CONNOLLY, Superinten-
dent, Fishkill Correctional Facility, Respondent.

Submitted August 8, 2016; decided October 20, 2016

Reported below, 140 AD3d 1098.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

ANTHONY TURTURRO, an Infant, by His Mother and Natural
Guardian, ELIDA TURTURRO, et al., Respondents, v CITY OF
NEW YORK, Appellant, and LOUIS PASCARELLA et al., Re-
spondents.

Submitted October 17, 2016; decided October 20, 2016

Reported below, 127 AD3d 732.

Motion by International Municipal Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

FRED SIMCHA WANG, Appellant, v LSUC et al., Respondents, et al., Defendants.

Decided October 20, 2016

Reported below, 2016 NY Slip Op 79492(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of FOSTER WILLIAMS, Appellant, v DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Submitted September 12, 2016; decided October 20, 2016

Reported below, 136 AD3d 147.

Motion to strike denied.

[63 NE3d 68, 40 NYS3d 348]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LARRY BROWN, Appellant.

Decided October 20, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 9, 2015. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Patricia M. Nuñez, J., at diversion proceeding; Lewis Bart Stone, J., at plea and sentencing), which had convicted defendant, upon his plea of guilty, of criminal possession of stolen property in the third degree and sentenced him to a term of $2\frac{1}{3}$ to 7 years' imprisonment.

People v Brown, 127 AD3d 498, affirmed.

HEADNOTE

Crimes — Sentence — Lawful Prison Term

Defendant's request for resentencing as a second felony offender, made for the first time on direct appeal, failed, without prejudice to him moving pursuant to CPL 440.20 for resentencing, where the record did not establish that his status as a first felony offender was erroneous and that, thus, his sentence was illegal as a matter of law.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Claudia B. Flores* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*John T. Hughes* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant's claims regarding the voluntariness of his plea lack merit, and the Appellate Division properly affirmed the trial court's denial of defendant's motion to withdraw his guilty plea.

Additionally, defendant was sentenced as a first felony offender to a lawful prison term, $2\frac{1}{3}$ to 7 years, for such an offender. Defendant's new argument on this appeal—contrary to his assertion to the plea court—that his status as a first felony offender is erroneous; that, thus, his sentence is illegal as a matter of law; and that he must be resentenced as a second felony offender, is not established on this record. Accordingly, his request for resentencing, made for the first time on this direct appeal, fails, without prejudice to defendant, if he be so advised, moving pursuant to CPL 440.20 for resentencing.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROY S.
KANGAS, Appellant.

Argued September 14, 2016; decided October 20, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Oneida County Court (Michael L. Dwyer, J.) dated February 25, 2015. The County Court affirmed a judgment of the City Court of Rome, Oneida County (Daniel C. Wilson, J.), which had convicted defendant, upon a jury verdict, of driving while intoxicated.

HEADNOTE

Crimes — Evidence — Certification of Reproduced Documents — Record of Breath Test Simulator Solution Testing Originally Created in Electronic Form

In defendant's prosecution for driving while intoxicated in which the trial court admitted into evidence a record of testing of the simulator solution used during the breath test administered to defendant which did not include a verification pursuant to CPLR 4539 (b) showing that the record could not be tampered with, County Court correctly held on appeal that compliance with CPLR 4539 (b) was not required because the record was originally created in electronic form and that the applicable statute was CPLR 4518 (a), which provides that an "electronic record . . . shall be admissible in a tangible exhibit that is a true and accurate representation of such electronic record." CPLR 4539 (b) requires authentication when "[a] reproduction [is] created by any process which stores an image of any writing, entry, print or representation." CPLR 4539 (a), in turn, allows "reproduction[s]" made "in the regular course of business" to be admissible as the original. Thus, CPLR 4539 (b) applies only when a document that originally existed in hard copy form is scanned to store a digital "image" of the hard copy document, and then a "reproduction" of the digital image is printed in the original course of business. Inasmuch as the record of simulator solution testing was created electronically in the first instance, and was not scanned to create an "image" of a hard copy document, the certification did not need to comply with CPLR 4539 (b). Moreover, the record of simulator solution testing and records pertaining to the maintenance and calibration of the breath test instrument were properly admitted based upon the attached state agency certifications. The trial court also relied on the state agency certifications when admitting the documents into evidence, and therefore County Court did not violate CPL 470.15 (1) in concluding that the records were admissible based on those certifications.

APPEARANCES OF COUNSEL

Leonard & Curley, PLLC, Rome (*Mark C. Curley* of counsel),
for appellant.

Scott D. McNamara, District Attorney, Utica (*Steven G. Cox*
of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of County Court should be affirmed.

During a jury trial on charges of driving while intoxicated, defendant objected to the admission into evidence of the People's exhibit containing a record of testing of the simulator solution used during the breath test that the police administered to defendant. Defendant objected on the ground that the certifications contained within the exhibit did not include a verification to show that the record could not be tampered with pursuant to CPLR 4539 (b). The trial court admitted the exhibit into evidence over defendant's objection.

On appeal, County Court correctly held that CPLR 4539 (b) does not apply to documents, such as the record of simulator solution testing, that were originally created in electronic form. Subdivision (b), which was added to CPLR 4539 in 1996 (*see* L 1996, ch 27, § 1), requires an authentication "by competent testimony or affidavit" to include information about "the manner or method by which tampering or degradation of the reproduction is prevented" when "[a] reproduction [is] created by any process which *stores an image* of any writing, entry, print or representation" (CPLR 4539 [b] [emphasis added]). CPLR 4539 (a), in turn, allows "reproduction[s]" made "in the regular course of business" to be admissible as the original. Thus, CPLR 4539 (b) applies only when a document that originally existed in hard copy form is scanned to store a digital "image" of the hard copy document, and then a "reproduction" of the digital image is printed in the ordinary course of business (*see* CPLR 4539 [a], [b]; *see generally* *People v Rath*, 41 Misc 3d 869, 872-880 [Nassau Dist Ct 2013]; Vincent C. Alexander, Practice Commentaries, McKinney's Cons Laws of NY, Book 7B, CPLR 4539 at 752-754 [2007 ed]). Inasmuch as the record of simulator solution testing was created electronically in the first instance, and was not scanned to create an "image" of a hard copy document, County Court properly concluded that the certification need not comply with CPLR 4539 (b).

County Court correctly held that the applicable statute is CPLR 4518 (a), which was amended in 2002 (*see* L 2002, ch 136, § 1) to provide that an "electronic record . . . shall be admissible in a tangible exhibit that is a true and accurate representation of such electronic record" (CPLR 4518 [a]). The statute further provides that the court "*may* consider the

method or manner by which the electronic record was stored, maintained or retrieved in determining whether the exhibit is a true and accurate representation of such electronic record,” but “[a]ll other circumstances of the making of the memorandum or record . . . may be proved to affect its weight,” and “shall not affect its admissibility” (*id.* [emphasis added]).

The 2002 amendment to CPLR 4518 (a) was adopted by the legislature upon the recommendation of the Chief Administrative Judge’s Advisory Committee on Civil Practice specifically because the Committee and the legislature concluded that CPLR 4539 (b) had no application to documents originally created in electronic form.

“CPLR 4539, which deals with reproductions such as carbon copies of photocopies, is not an adequate vehicle for providing for the introduction of exhibits derived from electronic records. This is because CPLR 4539 requires that the reproduction itself have been created in the ordinary course of business. It is anticipated that reliable recompilations of electronic records often would not have been created in the ordinary course of business. CPLR 4539(b), in dealing with reproductions through processes which store an image, and which processes do not permit alterations, deletions or changes without leaving a record of such additions, does not generally address database records and could impose technical impediments to admissibility based on difficulty and proof of the protections against undetectable alteration. The 1996 legislation that added subdivision (b) ensures that an electronic image of a document may be introduced into evidence in the same manner as the original document, and allows for paper intensive industries to safely dispose of hard copy and archive only optically-scanned images. However, the 1996 legislation does not deal with technologies that record information other than through an image, and also such legislation could have the unintended effect of restricting the admissibility of electronic records not stored with the technology described in the legislation” (Senate Mem in Support of L 2002, ch 136, 2002 McKinney’s Session Laws of NY at 1763; *see also Rath*, 41 Misc 3d at 876-880; Vincent C. Alexander, Practice Commentaries, McKinney’s

Cons Laws of NY, Book 7B, CPLR C4518:4A at 454-455 [2007 ed]).

Contrary to defendant's further contention, County Court properly held that the record of simulator solution testing and the records pertaining to the maintenance and calibration of the breath test instrument were admissible based upon the attached state agency certifications, and County Court did not err in disregarding the inaccurate certifications submitted by the Oneida County Sheriff's Office with respect to those records. The trial court also relied upon the state agency certifications when admitting the documents into evidence, and therefore County Court did not violate CPL 470.15 (1) in concluding that the records were admissible based on those certifications (*see People v Nicholson*, 26 NY3d 813, 825 [2016]). Finally, we reject defendant's contention that the state agency certifications attached to the records of maintenance and calibration of the breath test instrument did not comply with CPLR 4518 (c).

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, in a memorandum.

[63 NE3d 1132, 41 NYS3d 188]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v IQUAN WIGGS, Respondent.

Decided October 20, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 1, 2015. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Queens County (Daniel Lewis, J.), which had convicted defendant, upon a jury verdict, of robbery in the second degree and menacing in the third degree; and (2) ordered a new trial.

People v Wiggs, 130 AD3d 659, reversed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review — Mode of Proceedings Error — Meaningful Notice of Jury Notes

In defendant's robbery prosecution, the trial court's failure to provide a response to the jury's outstanding request for a readback of testimony before

accepting the verdict did not constitute a mode of proceedings error, since counsel had meaningful notice of the jury notes. Where the trial court has read the precise content of the jury note into the record in the presence of counsel, defendant and the jury, the trial court has complied with its core responsibility to give counsel meaningful notice of the jury's notes, and the court's failure to discuss the note with counsel before recalling the jury is not a mode of proceedings error. Furthermore, where counsel has meaningful notice of the content of a jury note and of the trial court's response, or lack thereof, to that note, the court's alleged violation of the meaningful response requirement does not constitute a mode of proceedings error, and counsel is required to preserve any claim of error for appellate review. Here, the trial court complied with its responsibility to provide counsel with meaningful notice of the jury's notes by reading the notes verbatim into the record in the presence of counsel, defendant and the jury. Counsel was therefore required to object to preserve any claim of error for review by the Court of Appeals. Although the trial court's procedure may have been error, it was not a mode of proceedings error, and the Court of Appeals had no jurisdiction to review it.

APPEARANCES OF COUNSEL

Richard A. Brown, District Attorney, Kew Gardens (Deborah E. Wassel of counsel), for appellant.

Lynn W.L. Fahey, Appellate Advocates, New York City (David P. Greenberg of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to that Court for consideration of the facts and issues raised but not determined on the appeal to that Court.

Where the trial court “has read the precise content of the [jury] note into the record in the presence of counsel, defendant, and the jury,” the trial court has “complied with its core responsibility to give counsel meaningful notice of the jury’s notes,” and “the court’s failure to discuss the note with counsel before recalling the jury is not a mode of proceedings error” (*People v Nealon*, 26 NY3d 152, 160-162 [2015]). Furthermore,

“where counsel has meaningful notice of the content of a jury note and of the trial court’s response, or lack thereof, to that note, the court’s alleged violation of the meaningful response requirement does not constitute a mode of proceedings error, and counsel is required to preserve any claim of error for appellate review” (*People v Mack*, 27 NY3d 534, 537 [2016], *rearg denied* 28 NY3d 944 [2016]).

Here, the trial court complied with its responsibility to provide counsel with meaningful notice of the jury's notes by reading the notes verbatim into the record in the presence of counsel, defendant, and the jury (*see Nealon*, 26 NY3d at 160-162). Inasmuch as counsel had meaningful notice of the jury notes, the trial court's failure to provide a response to the jury's outstanding request for a readback of testimony before accepting the verdict does not constitute a mode of proceedings error (*see Mack*, 27 NY3d at 537). Counsel was required to object to preserve any claim of error for this Court's review. "Although the court's procedure here may have been error, it was not a mode of proceedings error, and we have no jurisdiction to review it" (*id.* at 544).

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, Second Department, for consideration of the facts and issues raised but not determined on the appeal to that Court, in a memorandum.

[63 NE3d 1152, 41 NYS3d 208]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES M. ROSHIA, JR., Appellant.

Decided October 20, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered November 19, 2015. The Appellate Division affirmed a judgment of the St. Lawrence County Court (Kathleen Martin Rogers, J.), which had convicted defendant, upon his plea of guilty, of criminal sexual act in the first degree.

People v Roshia, 133 AD3d 1029, affirmed.

HEADNOTE

Crimes — Disclosure — Court Order to Provide Buccal Swab

County Court did not err in granting the People's application directing defendant to provide a buccal swab for testing where defendant was indicted by

a grand jury, a sexual assault evidence kit was taken from the victim, and its order directing defendant to provide a DNA sample was authorized by statute (CPL 240.40 [2] [b] [v]).

APPEARANCES OF COUNSEL

Albert F. Lawrence, Greenfield Center, for appellant.

Alexander Lesyk, *Special Prosecutor*, Norwood, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Defendant was indicted by a grand jury, a sexual assault evidence kit was taken from the victim, and County Court's order directing defendant to provide a DNA sample was authorized by statute (CPL 240.40 [2] [b] [v]). Accordingly, County Court did not err in granting the People's application directing defendant to provide a buccal swab for testing.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[65 NE3d 673, 42 NYS3d 644]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LOUIS SPEAKS, Appellant.

Argued September 8, 2016; decided October 20, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered January 14, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (John G. Ingram, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree (two counts) and robbery in the second degree (two counts). The appeal to the Appellate Division brought up for review the denial, after a hearing, of that branch of defendant's omnibus motion which was to suppress identification testimony.

People v Speaks, 124 AD3d 689, affirmed.

HEADNOTES

Crimes — Evidence — Detective’s Testimony About Nontestifying Witness’s Description of Perpetrators — Background Information

1. In a robbery prosecution, the trial court did not abuse its discretion in allowing a detective’s testimony about a description of the robbers given by a nontestifying witness as background information to explain why the police were able to capture relevant surveillance footage. The testimony—which was accompanied by a curative instruction explaining that it was not admitted for its truth—consisted of a generic description of the robbers that was cumulative of nonhearsay descriptions provided by other trial witnesses. It was also consistent with the visual depiction of the robbers seen in a surveillance video.

Crimes — Right to Counsel — Effective Representation — Failure to Object to Prosecutor’s Comments during Summation

2. Defense counsel’s failure to object to various comments made by the prosecutor during summation did not deprive defendant of the effective assistance of counsel where throughout the course of the trial, defense counsel, demonstrating his familiarity with the relevant law and the particular facts of the case, vigorously advocated for defendant, made proper objections and appropriate motions, competently cross-examined witnesses, and presented a cogent defense case. As to the prosecutor’s arguments in summation, defense counsel objected to the arguments about defendant’s medical condition and then moved for a mistrial on that ground at the end of summation. The other challenged arguments were either fair comment on the evidence, within the bounds of permissible rhetorical argument, or appropriate response to arguments made in defendant’s summation. The prosecutor’s comments were not so far afield from acceptable argument that there was no apparent strategic explanation for defense counsel’s silence.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (Nao Terai of counsel), for appellant.

Eric Gonzalez, Acting District Attorney, Brooklyn (Lori Glachman, Leonard Joblove and Victor Barall of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

[1] Defendant was convicted, following a jury trial, of two counts of robbery in the first degree and two counts of robbery in the second degree. On appeal, defendant argues that the trial court abused its discretion as a matter of law in permitting a detective to testify about descriptions of the robbers given by one testifying witness and one nontestifying witness. All but one of defendant’s challenges to this testimony are unpreserved for our review because defense counsel only lodged a single-word “hearsay” objection at trial (*see People v Gray*, 86 NY2d 10, 19 [1995]). As to the preserved hearsay challenge to

the testimony about the nontestifying witness's description, that claim is meritless. The testimony—which was accompanied by a curative instruction explaining that it was not admitted for its truth—consisted of a generic description of the robbers that was cumulative of nonhearsay descriptions provided by other trial witnesses. It was also consistent with the visual depiction of the robbers seen in a surveillance video. Under these circumstances, the trial court did not abuse its discretion in allowing the testimony as background information to explain why the police were able to capture relevant surveillance footage (see *People v Tosca*, 98 NY2d 660, 661 [2002]).

[2] Defendant also argues that defense counsel's failure to object to various comments made by the prosecutor during summation deprived him of effective assistance of counsel. A defendant receives effective assistance of counsel "[s]o long as the evidence, the law, and the circumstances of a particular case, viewed in totality and as of the time of the representation, reveal that the attorney provided meaningful representation" (*People v Baldi*, 54 NY2d 137, 147 [1981]). Here, defendant's claim of ineffective assistance of counsel ignores the entirety of the representation defendant received at trial and, further, is not supported on this record.

Throughout the course of the trial, defense counsel, demonstrating his familiarity with the relevant law and the particular facts of the case, vigorously advocated for defendant, made proper objections and appropriate motions, competently cross-examined witnesses, and presented a cogent defense case. As to the prosecutor's arguments in summation, defense counsel objected to the arguments about defendant's medical condition and then moved for a mistrial on this ground at the end of summation. The other challenged arguments were either fair comment on the evidence, within the bounds of permissible rhetorical argument, or appropriate response to arguments made in defendant's summation (see *People v Ashwal*, 39 NY2d 105, 109-110 [1976]). This is not a case where the prosecutor's comments were so "far afield from acceptable argument" that "there [was] no apparent strategic explanation for defense counsel's silence," thereby depriving defendant of meaningful representation (*People v Wright*, 25 NY3d 769, 780 [2015]). In sum, defendant received effective assistance of counsel.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, in a memorandum.

[63 NE3d 1152, 41 NYS3d 208]

In the Matter of DIANE MENDEZ, Respondent, v New York City
DEPARTMENT OF EDUCATION et al., Appellants.

Decided October 25, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 20, 2015. The Appellate Division order, insofar as appealed from, modified, on the law, a judgment of the Supreme Court, New York County (Geoffrey D. Wright, J.; op 2013 NY Slip Op 34073[U] [2013]), entered in a proceeding pursuant to CPLR article 78, which had (1) denied petitioner's motion for a judgment annulling respondents' determination to terminate her probationary employment, annulling two unsatisfactory ratings (U-ratings) for summer 2011 and the 2011-2012 school year, and ordering her reinstatement to her probationary teaching position; and (2) granted respondents' cross motion to dismiss the petition for failure to state a cause of action. The modification consisted of annulling petitioner's termination, annulling the summer 2011 U-rating, and remanding the matter to respondent New York City Department of Education for completion of its final review and recommendation consistent with the Appellate Division's memorandum. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as modified by this Court, properly made?"

The Appellate Division determined that petitioner probationary teacher's U-rating for the summer of 2011, based on an incident where she was found to have engaged in a loud argument with another teacher in front of students, lacked a rational basis and was arbitrary and capricious. Furthermore, the Appellate Division found that, although a probationary employee may be discharged for any or no reason at all in the absence of a showing that the dismissal was in bad faith, for a constitutionally impermissible purpose or in violation of law, petitioner established a deficiency in the review process to terminate her employment that was not merely technical, but undermined the integrity and fairness of the process, given the failure to establish a rational basis for the summer 2011 U-rating.

Matter of Mendez v New York City Dept. of Educ., 132 AD3d 533, reversed.

HEADNOTE**Schools — Teachers — Termination of Probationary Teacher — Judicial Review**

In a CPLR article 78 proceeding, an order of the Appellate Division, which insofar as appealed from annulled the determination to terminate petitioner's probationary employment, was reversed, and so much of the petition as sought to annul that determination was dismissed. Petitioner did not establish that the termination of her probationary employment was for a constitutionally impermissible purpose, violative of a statute, or done in bad faith.

APPEARANCES OF COUNSEL

Zachary W. Carter, Corporation Counsel, New York City (*Emma Grunberg, Richard Dearing and Fay Ng* of counsel), for appellants.

Respondent precluded.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from annulling the determination to terminate petitioner's probationary employment, reversed, without costs, so much of the petition as sought to annul that determination dismissed, and certified question answered in the negative. Petitioner did not establish that the termination of her probationary employment "was for a constitutionally impermissible purpose, violative of a statute, or done in bad faith" (*Matter of Frasier v Board of Educ. of City School Dist. of City of N.Y.*, 71 NY2d 763, 765 [1988]).

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[63 NE3d 1148, 41 NYS3d 204]

RAYMOND PINK et al., Respondents, v ROME YOUTH HOCKEY ASSOCIATION, INC., Appellant, et al., Defendants.

Argued September 14, 2016; decided October 25, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered February 6, 2015. The Appellate

Division order, insofar as appealed from, affirmed so much of an order of the Supreme Court, Oneida County (Patrick F. MacRae, J.), as had denied the portion of the motion by defendants Rome Youth Hockey Association, Inc. and Whitestown Youth Hockey Association, Inc. for summary judgment as to defendant Rome Youth Hockey Association, Inc. The following question was certified by the Appellate Division: “Was the order of this Court entered February 6, 2015, properly made?”

Pink v Ricci, 125 AD3d 1376, reversed.

HEADNOTE

Negligence — Foreseeability — Criminal Assault on Spectator by Another Spectator at Hockey Game

In a personal injury action arising from a criminal assault on plaintiff spectator by another spectator at the conclusion of a youth hockey game, defendant youth hockey association which leased the arena where the game was held was entitled to summary judgment since the criminal assault was not a reasonably foreseeable result of any failure to take preventive measures. While defendant owed a duty to protect spectators from foreseeable criminal conduct, the scope of that duty was defined by the likelihood that the aggressive behavior would lead to a criminal assault. Defendant took measures to address player and spectator conduct, and the behavior of the fans, however inappropriate, did not create the risk that failure to eject any specific spectator would result in a criminal assault, particularly since such an assault had never happened before. Furthermore, defendant's alleged failure to enforce the zero tolerance policy of its national governing organization by ejecting spectators using “obscene, racial or vulgar language” did not constitute independent evidence of negligence. The violation of an organization's internal rules is not negligence in and of itself, and where an internal policy exceeds the standard of ordinary care, it cannot serve as a basis for imposing liability. Nor did the policy demonstrate that defendant was on notice of the likelihood of criminal assaults since a general awareness of incidents nationwide did not establish foreseeability here.

APPEARANCES OF COUNSEL

Roemer Wallens Gold & Mineaux LLP, Albany (*Matthew J. Kelly* and *Amanda Davis Twinam* of counsel), for appellant.

Conway & Kirby, PLLC, Latham (*Andrew W. Kirby* of counsel), for respondents.

Pacific Legal Foundation, Sacramento, California (*Theodore Hadzi-Antich* and *Deborah J. La Fetra* of counsel), for Pacific Legal Foundation, amicus curiae.

Powers & Santola, LLP, Albany (*Michael J. Hutter* of counsel), and *Mitchell Proner, New York State Academy of Trial Lawyers*, Albany, for New York State Academy of Trial Lawyers, amicus curiae.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, defendant Rome Youth Hockey Association, Inc.'s motion for summary judgment dismissing the complaint as against it granted and the certified question answered in the negative.

Defendant Rome Youth Hockey Association (hereinafter defendant) is a nonprofit community sports organization fully operated by volunteers. In November 2006, defendant rented a local arena owned by the City of Rome to host a hockey tournament for 13-year-old players. Approximately 50-75 spectators attended the game between Rome and Whitestown. Both teams belonged to their respective youth hockey associations and both associations were part of USA Hockey, the national governing organization.

During the game, several on-ice fights broke out between the players, who received penalties and in some cases were ejected from the game. The referee also ejected the Whitestown coach for throwing an object onto the ice. The spectators, mostly family members of the players, engaged in yelling and name calling.

The game concluded without any physical altercation in the stands. After the game was over, two female spectators got into a fight in the stands and a melee quickly ensued as several others, including plaintiff Raymond Pink, stepped in to break up the fight. Matthew Ricci, the brother of one of the two female spectators involved in the fight, struck plaintiff causing him to sustain a head injury. Ricci subsequently pleaded guilty to criminal assault. The two female spectators pleaded guilty to disorderly conduct.

Plaintiffs Raymond Pink and Michelle Pink* commenced this action against defendant, the Whitestown Youth Hockey Association (WYHA), the City of Rome, Ricci, and others involved in the melee. The complaint alleged, in relevant part, that defendant owed a duty to protect plaintiff from criminal assault. Plaintiff's verified bill of particulars further alleged that defendant was negligent in failing to enforce the USA Hockey's "Zero Tolerance" policy. The policy, after noting that assaults occur at hockey games, required on-ice officials to seek

* Plaintiff Michelle Pink's sole cause of action is for loss of consortium. All references to "plaintiff" hereinafter are to plaintiff, Raymond Pink.

to remove spectators from the game for use of obscene or vulgar language or for threatening or using physical violence.

Defendant moved for summary judgment arguing that it did not have a duty to protect plaintiff from a random assault where there was no history of violence or physical confrontation. Supreme Court denied the motion noting that the crux of plaintiff's claim was that the tensions between the spectators essentially put defendant on notice of the need to enforce the Zero Tolerance policy. The court held that by failing to enforce the policy, defendant "may have violated a duty [it] assumed." The court also held Ricci's actions did not absolve defendant of liability. Plaintiffs subsequently settled with the City of Rome, Ricci, and several other individual defendants.

The Appellate Division, with one Justice dissenting, modified the judgment on the law and granted summary judgment in favor of WYHA, concluding that it did not owe plaintiff a duty of care since, unlike defendant, WYHA had not leased the arena. The Appellate Division affirmed the judgment as modified (125 AD3d 1376 [2015]). The Court concluded that there were issues of fact as to whether defendant's duty to plaintiff "included the duty to protect plaintiffs from Ricci's conduct . . . and, given the hostile environment in the arena before the fight . . . [as to] whether [defendant] knew or should have known of the likelihood of the fight" (125 AD3d at 1377 [citations omitted]). The Court ultimately held that "a trier of fact should determine whether [defendant] had a duty to intercede and protect plaintiff" (*id.* [citations omitted]).

The dissent would have concluded that defendant did not owe a duty to protect plaintiff from Ricci's assault (*id.* at 1378 [Lindley, J., dissenting]). The dissent noted that "given the absence of prior fights among spectators at [Rome] youth hockey games, it was not foreseeable that plaintiff would be assaulted by another spectator, and, thus, [defendant] had no duty to protect him from that unanticipated harm" (*id.* at 1379). The Appellate Division granted defendant's motion for leave to appeal and certified for our review the question of whether the order denying defendant summary judgment was proper (126 AD3d 1430 [2015]).

"[T]he definition of the existence and scope of an alleged tortfeasor's duty is usually a legal, policy-laden declaration reserved for Judges" (*Palka v Servicemaster Mgt. Servs. Corp.*, 83 NY2d 579, 585 [1994]). With respect to landowners and leaseholders, there is a "duty to control the conduct of third

persons on their premises when they have the opportunity to control such persons and are reasonably aware of the need for such control” (*D’Amico v Christie*, 71 NY2d 76, 85 [1987]). That duty includes “minimiz[ing] foreseeable dangers on their property” (*Maheshwari v City of New York*, 2 NY3d 288, 294 [2004]), including “foreseeable criminal conduct” (*Burgos v Aqueduct Realty Corp.*, 92 NY2d 544, 548 [1998]).

We have recognized, however, “foreseeability and duty are not identical concepts” (*Maheshwari*, 2 NY3d at 294). “Foreseeability merely determines the scope of the duty once the duty is determined to exist” (*id.*). Accordingly, the scope of a duty “is defined by past experience and the ‘likelihood of conduct on the part of third persons . . . which is likely to endanger the safety of the visitor’ ” (*id.*, quoting *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507, 519 [1980] [citation omitted]), and “is limited to risks of harm that are reasonably foreseeable” (*Sanchez v State of New York*, 99 NY2d 247, 253 [2002]).

Defendant was entitled to summary judgment. On this record, the criminal assault on plaintiff was not a reasonably foreseeable result of any failure to take preventive measures. While defendant owed a duty to protect spectators from foreseeable criminal conduct, the scope of that duty is defined by the likelihood that the aggressive behavior would lead to a criminal assault. Defendant took measures to address player and spectator conduct. The behavior of the fans, however inappropriate, certainly did not create the risk that failure to eject any specific spectator would result in a criminal assault, particularly since such an assault had never happened before (*see Maheshwari*, 2 NY3d at 294; *Sanchez*, 99 NY2d at 252).

Plaintiff argues that defendant’s failure to enforce the Zero Tolerance policy by ejecting spectators constitutes independent evidence of negligence. The policy provides that “[t]he on-ice Official” will remove spectators using “obscene, racial or vulgar language” from the game. However, the “[v]iolation of a[n] [organization]’s internal rules is not negligence in and of itself” (*Sherman v Robinson*, 80 NY2d 483, 489 n 3 [1992]), and where an internal policy exceeds “the standard of ordinary care,” it “cannot serve as a basis for imposing liability” (*Gilson v Metropolitan Opera*, 5 NY3d 574, 577 [2005]). Nor did the policy demonstrate that defendant was on notice of the likelihood of criminal assaults since a “general awareness” of incidents nationwide does not establish foreseeability here (*Haire v Bonelli*, 107 AD3d 1204, 1206 [3d Dept 2013]). Accordingly, we

find it unnecessary to address defendant's remaining arguments for summary judgment.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and GARCIA concur; Judge FAHEY taking no part.

Order, insofar as appealed from, reversed, with costs, defendant Rome Youth Hockey Association, Inc.'s motion for summary judgment dismissing the complaint as against it granted and certified question answered in the negative, in a memorandum.

[64 NE3d 274, 41 NYS3d 454]

EVELYN RIVERA, as Administratrix of the Estate of WILBUR RODRIGUEZ, Deceased, Appellant, v MONTEFIORE MEDICAL CENTER, Respondent.

Argued September 7, 2016; decided October 20, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 4, 2014. The Appellate Division order, insofar as appealed from, affirmed an order of the Supreme Court, Bronx County (Sharon A.M. Aarons, J.; op 2012 NY Slip Op 33671[U] [2012]), which, to the extent appealed from as limited by the briefs, had denied plaintiff's cross motion to strike the testimony of defendant's expert that the cause of the decedent's death was sudden cardiac arrest and to set aside the award of \$0 for conscious pain and suffering. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of the Supreme Court, properly made?"

Rivera v Montefiore Med. Ctr., 123 AD3d 424, affirmed.

HEADNOTE

Disclosure — Scope of Disclosure — Deficient Response to Expert Disclosure Statement — Timeliness of Objection

The trial court did not abuse its discretion as a matter of law in denying as untimely plaintiff's mid-trial motion to preclude the testimony of defendant's expert on the ground that defendant's CPLR 3101 (d) disclosure statement was deficient. CPLR 3101 (d) (1) (i) requires each party to identify its expected expert witnesses "and [to] disclose in reasonable detail the subject matter on which each expert is expected to testify, . . . the qualifications of

each expert witness and a summary of the grounds for each expert's opinion." A determination regarding whether to preclude a party from introducing testimony of an expert witness at trial based on the party's failure to comply with the statute is left to the sound discretion of the court. Assuming defendant's disclosure was deficient, such deficiency was readily apparent; the disclosure identified "causation" as a subject matter but did not provide any indication of a theory or basis for the expert's opinion. Moreover, the trial court's ruling did not endorse the sufficiency of the statement but instead addressed the motion's timeliness. The lower courts were entitled to determine, based on the facts and circumstances of this particular case, that the time to challenge the statement's content had passed because the basis of the objection was readily apparent from the face of the disclosure statement and could have been raised—and potentially cured—before trial.

APPEARANCES OF COUNSEL

Sullivan Papain Block McGrath & Cannavo P.C., New York City (*Brian J. Shoot* and *Clifford Argintar* of counsel), for appellant.

Shaub Ahmuty Citrin & Spratt, LLP, Lake Success (*Christopher Simone* and *Gerard S. Rath* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed, with costs, and the certified question answered in the affirmative.

The issue on this appeal is whether the trial court abused its discretion as a matter of law in denying as untimely plaintiff's motion to preclude the testimony of defendant's expert on the grounds that the CPLR 3101 (d) disclosure statement was deficient. We hold that it did not.

Decedent entered defendant's hospital facility with symptoms of pneumonia and died early the next morning after being admitted to an area of the hospital that lacked continuous monitoring of patients' vital signs. The autopsy report identified the cause of death as bronchopneumonia complicated by diabetes. Plaintiff, decedent's mother, brought this action.

In preparation for trial, defendant timely served a CPLR 3101 (d) expert disclosure statement on plaintiff. The statement in relevant part informed plaintiff that the expert would testify "on the issue of causation" and "as to the possible causes of the decedent's injuries and contributing factors." Plaintiff's sole objection before trial was that the statement did not provide the dates of the expert's medical residency, and defendant cured this omission.

At trial, although the hospital treating physician testified that decedent's death was caused in part by pneumonia, on

cross-examination he stated that he believed decedent instead died from acute cardiac arrhythmia. Plaintiff's expert also testified that decedent's death was caused in part by pneumonia, but acknowledged that a cardiac event was a possible cause of death on cross-examination. Plaintiff moved to preclude defendant's expert from giving "any testimony . . . regarding any possible causes of the decedent's death" on the grounds that the disclosure statement did "not include any reasonable detail whatsoever as to what possible causes" led to decedent's death. Plaintiff did not seek an adjournment. The trial court denied the application as untimely. Defendant's expert then testified that he disagreed with plaintiff's expert and the autopsy report regarding the cause of death, that decedent's vital signs instead showed no indication of worsening respiration, that decedent's other health issues increased his risk for cardiac problems, and that the cause of death was sudden, lethal cardiac arrhythmia. In defense counsel's closing statement, he argued that decedent's cause of death was "sudden lethal cardiac arrhythmia."

The jury found defendant liable based on the failure to place decedent in an area of the hospital with continuous monitoring and awarded plaintiff damages. Plaintiff moved under CPLR 4404 (a) for an order striking all testimony regarding cardiac arrhythmia as the cause of death and setting aside the \$0 award for conscious pain and suffering, arguing that the expert disclosure statement failed to include the theory that decedent died of cardiac arrhythmia and so the disclosure was deficient. The trial court again denied the motion as "untimely made at the time of trial." (2012 NY Slip Op 33671[U], *4 [2012].)

The Appellate Division affirmed the order, holding that plaintiff failed to timely object to the lack of specificity in the expert disclosure statement and that plaintiff was not justified in assuming that the defense expert's testimony would comport with the autopsy report's conclusion (123 AD3d 424 [1st Dept 2014]). The Appellate Division held that where plaintiff's own experts acknowledged that sudden cardiac arrhythmia was a possibility based on decedent's medical history and condition, and where evidence in the record supported this theory, the testimony need not be stricken as an unfair surprise. One Justice dissented and the Appellate Division granted leave to appeal (*see* CPLR 5602 [b]).

CPLR 3101 (d) (1) (i) requires each party to "identify each person whom the party expects to call as an expert witness at trial and [to] disclose in reasonable detail the subject matter

on which each expert is expected to testify, . . . the qualifications of each expert witness and a summary of the grounds for each expert's opinion." It was within the trial court's discretion to deny plaintiff's motion to preclude (see *People v Carroll*, 95 NY2d 375, 385 [2000]). Trial courts possess broad discretion in their supervision of expert disclosure under CPLR 3101 (d) (1) (see *Bernardis v Town of Islip*, 95 AD3d 1050, 1050 [2d Dept 2012]). "A determination regarding whether to preclude a party from introducing the testimony of an expert witness at trial based on the party's failure to comply with CPLR 3101 (d) (1) (i) is left to the sound discretion of the court" (*McGlaulin v Wadhwa*, 265 AD2d 534, 534 [2d Dept 1999]; see also *Deandino v New York City Tr. Auth.*, 105 AD3d 801, 803 [2d Dept 2013]; but see *Saldivar v I.J. White Corp.*, 46 AD3d 660, 661 [2d Dept 2007]).

Plaintiff made her motion mid-trial immediately prior to the expert's testimony. Plaintiff argues that at the time of the expert exchange, she had no reason to object to the disclosure statement because the statement gave no indication that defendant would challenge plaintiff's theory of decedent's cause of death. Assuming defendant's disclosure was deficient, such deficiency was readily apparent; the disclosure identified "causation" as a subject matter but did not provide any indication of a theory or basis for the expert's opinion. This is not analogous to a situation in which a party's disclosure was misleading or the trial testimony was inconsistent with the disclosure. Rather, the issue here was insufficiency.

The trial court's ruling did not endorse the sufficiency of the statement but instead addressed the motion's timeliness. The lower courts were entitled to determine, based on the facts and circumstances of this particular case, that the time to challenge the statement's content had passed because the basis of the objection was readily apparent from the face of the disclosure statement and could have been raised—and potentially cured—before trial. Accordingly, there was no abuse of discretion as a matter of law.

Lastly, plaintiff's claim that the testimony regarding cardiac arrhythmia should have been excluded as speculative must also be rejected because the challenged theory was premised on ample evidence in the record.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order, insofar as appealed from, affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

[64 NE3d 957, 41 NYS3d 728]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RONEL JOSEPH, Appellant.

Argued September 14, 2016; decided October 25, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 13, 2015. The Appellate Division affirmed a judgment, as amended, of the Supreme Court, New York County (Laura A. Ward, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree, burglary in the third degree, attempted escape in the second degree and resisting arrest.

People v Joseph, 124 AD3d 437, modified.

HEADNOTE

Crimes — Burglary — Burglary of Dwelling — Intrusion into Basement Inaccessible to and Remote from Residences

The evidence presented in defendant's prosecution for entering, without permission, the basement of a deli located on the ground floor of a seven-story building with six floors of residential apartments above it and no access from the basement to the residential units was legally insufficient to support his conviction for burglary in the second degree (Penal Law § 140.25 [2]), as the basement did not constitute a "dwelling" within the meaning of Penal Law § 140.00 (3). The increased penalty for burglary of a dwelling was designed to prevent "midnight terror" and the danger to human life, growing out of the attempt to defend property from depredation. Given the isolation of the basement itself from the rest of the building, as well as the noncontiguous relationship of the basement to the residential units of the building, defendant did not come, nor could he have readily come, near to the residences. Therefore, under the narrow circumstances of this case, application of the general rule as to what constitutes a dwelling in a mixed residential and commercial building within the meaning of Penal Law § 140.00 (2) was not warranted. The deli basement was inaccessible to the residential apartments because defendant could not go anywhere into the building from the basement. The basement was also remote from the apartments given that it was not used by the residents for any purposes and that there was no proof of any relationship between that space and the residents. There was no close contiguity between the basement and the dwellings, and the special dangers inherent in the burglary of a dwelling thus did not exist.

APPEARANCES OF COUNSEL

Richard M. Greenberg, Office of the Appellate Defender, New York City (Eunice C. Lee of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Diane N. Princ and Christopher P. Marinelli of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be modified by vacating the conviction on the count of burglary in the second degree, dismissing that count in the indictment, and remitting to Supreme Court for resentencing, and as so modified, affirmed.

On the evening of June 28, 2010, defendant entered the basement of the Greenleaf Deli in Manhattan. The deli was located on the ground floor of a seven-story building, with six floors of residential apartments above it. The basement, which was only accessible through two cellar doors located on the public sidewalk adjacent to the deli, was used to store deli merchandise. There was no access from the basement to any part of the residential units of the building, or to the deli itself. The apartment residents did not have access to the basement and only deli employees were permitted to enter the basement. An employee observed defendant on the deli's surveillance monitor enter the open doors to the deli basement and walk around the basement with a flashlight. The employee went outside, closed and locked the basement doors and called 911. The police arrived, asked defendant to climb out of the basement, and, after a struggle, arrested him.

Defendant was charged, by indictment, with one count each of burglary in the second degree (Penal Law § 140.25 [2]), burglary in the third degree (Penal Law § 140.20), resisting arrest (Penal Law § 205.30) and attempted escape in the second degree (Penal Law §§ 110.00, 205.10 [2]). At trial, at the close of the People's case, and again after defendant testified, defense counsel moved to dismiss the burglary charges, arguing, among other things, that the deli basement was not a "dwelling" for purposes of second-degree burglary because there was no testimony that one could get into the building or into the deli from the basement. The trial court denied the motions. A jury convicted defendant on all charges. He was sentenced as a second violent felony offender to an aggregate prison term of

seven years to be followed by five years of postrelease supervision.

A majority of the Appellate Division affirmed, rejecting defendant's argument that his conviction for second-degree burglary should be vacated (124 AD3d 437 [2015]). The majority relied on this Court's decision in *People v McCray* (23 NY3d 621 [2014]), where we reaffirmed the common-law rule established in *Quinn v People* (71 NY 561 [1878]):

“[I]f a building contains a dwelling, a burglary committed in any part of that building is the burglary of a dwelling; but an exception exists where the building is large and the crime is committed in a place so remote and inaccessible from the living quarters that the special dangers inherent in the burglary of a dwelling do not exist” (23 NY3d at 624).

The majority rejected defendant's argument that the exception to the general rule applied, reasoning that although the inaccessibility requirement appeared to have been met, the exception was inapplicable because the building was not large. The dissent concluded that the exception applied and that there had not been a burglary of a dwelling because the basement was “entirely sealed off and inaccessible from the residences above” (124 AD3d at 440-441). The dissent disagreed with the majority that the exception recognized in *McCray* only applied to “large” buildings, and instead, concluded that, “[w]hile a building's size may inform the determination as to whether the residential elements were accessible, size per se is not a dispositive factor” (*id.* at 441).

Burglary in the third degree is committed when a person “knowingly enters or remains unlawfully in a building with intent to commit a crime therein” (Penal Law § 140.20). Penal Law § 140.25 (2) elevates third-degree burglary to second-degree burglary when “[t]he building is a dwelling.” A dwelling is “a building which is usually occupied by a person lodging therein at night” (Penal Law § 140.00 [3]). “Where a building consists of two or more units separately secured or occupied, each unit shall be deemed both a separate building in itself and a part of the main building” (Penal Law § 140.00 [2]). This Court explained in *People v Quattlebaum* (91 NY2d 744 [1998]) that the increased penalty for burglary of a dwelling was designed to prevent “midnight terror” and the “danger to human life, growing out of the attempt to defend property from

depredation” (91 NY2d at 747, quoting *Quinn*). Of note, in 1981, the legislature eliminated any nighttime element for burglary of a dwelling (L 1981, ch 361). In *McCray*, this Court pointed out that a “burglary of a dwelling is a more serious crime than other burglaries [because] an intrusion into a home, or an overnight lodging, is both more frightening and more likely to end in violence” (23 NY3d at 627). “[T]hese dangers are created in significant degree when the crime is committed ‘in close contiguity’ with a ‘place of repose’ even though the place of the burglary and the sleeping quarters are not instantly accessible to each other” (*id.* at 627, quoting *Quinn*). But this Court observed in *McCray* that the legislature had not authorized “a conviction for burglary of a dwelling where the burglar neither comes nor readily can come near to anyone’s living quarters” (*McCray* at 628). In this case, given the isolation of the basement itself from the rest of the building, as well as the noncontiguous relationship of the basement to the residential units of the building, defendant did not come, nor could he have readily come, near to the residences.

In *McCray*, where the burglaries had occurred in a hotel and connected museum, we noted that in large buildings, situations can arise in which applying the general rule—that burglary of a partly residential building is burglary of a dwelling even if the burglar enters only the nonresidential part—does not make sense. However, contrary to the People’s argument, *McCray* did not impose a requirement that a building must be “large” in order for the exception to apply. The size of the building may be a factor when considering whether the residential units of the building are remote and inaccessible, but a building being a “large” size, especially given the subjective nature of the word “large,” is not a dispositive factor.

Under the narrow circumstances of this case, application of the general rule as to what constitutes a dwelling in a mixed residential and commercial building within the meaning of Penal Law § 140.00 (2) is not warranted. Defendant, from a public sidewalk, entered the open cellar doors into a basement that was both entirely disconnected from the building and completely inaccessible to the residences in that building. The basement was not contiguous to any residential units. Notably, in *Quinn*, where this Court upheld the burglary conviction although there was no internal access between the shop which the burglar entered and the living quarters in the building, there was a yard accessible from the shop, and the living

quarters could be reached by going into the yard and then up stairs (71 NY at 565). Thus, although there was no “internal communication” (*id.* at 573) between the store and the living quarters, Quinn’s act of breaking into the store was “likely to cause alarm and to lead to personal violence and so endanger human life” (*id.*). In contrast, here, the deli basement was both inaccessible to, and remote from, the residential apartments. It was inaccessible because defendant could not go anywhere into the building from the basement. He could not reach the deli or the apartments. All that he could reach from the basement was the public sidewalk. The basement was remote given that it was not used by the residents for any purposes and that there was no proof of any relationship between that space and the residents. In sum, there was no “close contiguity” (*Quinn* at 567) between the basement and the dwellings. Under these facts, “the special dangers inherent in the burglary of a dwelling do not exist” (*McCray* at 624).

Upon consideration of the evidence in this case, we conclude that the evidence was legally insufficient to support defendant’s conviction of burglary in the second degree. Defendant’s further contention that the evidence was legally insufficient to support his conviction for burglary in the third degree is without merit.

Stein, J. (dissenting). I would affirm defendant’s conviction for burglary in the second degree. The basement that defendant illegally entered was part of a dwelling and, although the residential portions of the building were inaccessible from the basement, they were not remote. Thus, the judicially-created exception to Penal Law § 140.00 (2) is inapplicable here, and the statutory definition of a dwelling should prevail.

A person commits burglary in the second degree when he or she “knowingly enters or remains unlawfully in a building with intent to commit a crime therein” and “[t]he building is a dwelling” (Penal Law § 140.25 [2]). The principal element in dispute in the instant case is whether the basement at issue is a dwelling.* The statute defines a dwelling as “a building which is usually occupied by a person lodging therein at night” (Penal Law § 140.00 [3]). The statute also provides that “[w]here a

* Defendant also argues that the People failed to prove his intent to commit a crime in the basement, but that argument is unpersuasive (see *People v Samuels*, 99 NY2d 20, 24 [2002]; *People v Cabey*, 85 NY2d 417, 421-422 [1995]).

building consists of two or more units separately secured or occupied, each unit shall be deemed both a separate building in itself and a part of the main building” (Penal Law § 140.00 [2]). As noted by the majority, the building at issue here contains a basement, a deli on the first floor, and six floors of separately-occupied residential apartments above the deli. The apartments are clearly dwellings. Therefore, strictly applying the statute to the facts here, every part of the building—including the basement—is considered part of a dwelling (*see* Penal Law § 140.00 [2], [3]).

In 1878, this Court explained that the statutory definition of a dwelling, as related to the crime of burglary, differed from the common-law definition because the statute did not include outbuildings such as barns within the meaning of dwelling, even if they were enclosed within the same fenced yard as a residence (*see Quinn v People*, 71 NY 561, 570-572 [1878]). However, the statutory definition of a dwelling included all rooms “under the same roof and within the same four walls” as sleeping quarters, even if those other rooms were used for business purposes (*id.* at 573). When interpreting the burglary statute, we divined the legislature’s intent to include such rooms as part of a dwelling—even if there was no internal connection to the residential portion of the building—as being premised on the likelihood that breaking into any part of the same structure may be likely to “rouse the occupant of the sleeping-room, and draw him forth to an encounter, and liability to death or injury, in defense of his goods” (*id.* at 572). Thus, we explained that the

“essence of the crime of burglary at common law is the midnight terror excited, and the liability created by it of danger to human life, growing out of the attempt to defend property from depredation. It is plain that both of these may arise, when the place entered is in close contiguity with the place of the owner’s repose, though the former has no relation to the latter by reason of domestic use or adaptation” (*id.* at 567).

Under the facts of *Quinn*, breaking into a shop on the first floor of a building constituted burglary of a dwelling because the second floor contained sleeping quarters, even though there was no internal communication between the two floors and the occupants of the second floor had to go outside, descend an external staircase, and enter an exterior door to reach the first

floor shop. Although we found burglary of a dwelling in that case, in an effort to “ward off misapprehension” or a fear that the statutory definition could be applied too broadly, the Court acknowledged that there may be situations in which, for purposes of the crime of burglary, the residential portion of a building that also contained multiple businesses may be deemed severed from the business portion due to the large size of the building and the lack of any internal connection between the living quarters and the businesses (*see id.* at 573).

This Court did not have occasion to address this judicially-created exception for the next 136 years. However, two years ago, in *People v McCray* (23 NY3d 621 [2014]), we reaffirmed both the general rule and the exception established in *Quinn*, holding that

“[g]enerally, if a building contains a dwelling, a burglary committed in any part of that building is the burglary of a dwelling; but an exception exists where the building is large and the crime is committed in a place so remote and inaccessible from the living quarters that the special dangers inherent in the burglary of a dwelling do not exist” (*McCray*, 23 NY3d at 624).

Despite the passage of many years since our decision in *Quinn*, we reiterated in *McCray* the enduring purpose of treating burglary of a dwelling as a more serious crime, specifically that “an intrusion into a home . . . is both more frightening and more likely to end in violence” (*id.* at 627; *see People v Barney*, 99 NY2d 367, 370 [2003]). We further noted that “these dangers are created in significant degree when the crime is committed ‘in close contiguity’ with a ‘place of repose’ even though the place of the burglary and the sleeping quarters are not instantly accessible to each other” (*McCray*, 23 NY3d at 627). As an example, we described a store owner in his bedroom becoming aware of a burglar in the shop downstairs as a situation raising the special dangers inherent in the burglary of a dwelling that justify treating the crime as more serious than the burglary of a building in which no one lives (*see id.*).

In *McCray*, we also accepted the continued viability of the exception created in *Quinn*, which placed a “common sense limitation on a literal reading of a statute” for buildings where “applying the four walls and a roof rule would stretch the statute beyond its purpose” (*id.* at 628). To illustrate the exception, we asked the reader to “imagine a skyscraper” containing

mainly stores and offices, “with a few apartments *remote and inaccessible* from the commercial space” (*id.* at 627 [emphasis added]). We recognized that, in such a situation, breaking into one of the commercial spaces may create virtually no risk that the apartment residents would even be conscious of the burglar’s presence, such that the purposes of the statute would not be served and its application would be unfair (*see id.*).

The actual building at issue in *McCray* was a large, modern Manhattan building containing numerous businesses, including Madame Tussaud’s Wax Museum and a Hilton Hotel. Because the hotel constituted a dwelling, we concluded that the defendant could be guilty of two counts of burglarizing a dwelling where he broke into a locker room for hotel employees, and into the museum. We reasoned that, even though these areas were several floors away from guest rooms where people slept, an internal stairwell provided access between the floors on which the guest rooms, the locker room, and the museum were located (*see id.* at 630). Significantly, to reach the locker room, the burglar had entered the stairwell by passing through the 16th floor, which was adjacent to the 17th floor where guest rooms were located. We had “little hesitation in concluding that the risks inherent in burglary of a dwelling—the ‘night terror’ and the danger of violence that we spoke of in *Quinn*—are present when a burglar comes this near to rooms in which people are sleeping” (*id.*). Although it was a closer call on the burglary of the museum, which was much farther from the guest rooms, we found that it constituted burglary of a dwelling because the burglar likely gained access through the aforementioned stairwell (*see id.*). Though the floors of the museum that the defendant entered were not physically close to the hotel’s guest rooms, we noted that proximity and ease of access were “at least equally important” factors (*id.*). Thus, this Court clearly stated that, for the exception to apply, the burglarized portion of the building must be both remote and inaccessible to the sleeping quarters (*see id.* at 624, 630).

Despite use of the word “large” in both *Quinn* and *McCray* to describe buildings subject to the exception, I agree with the majority that a building’s size, per se, is not dispositive but, instead, constitutes a factor to consider when determining whether the residential portion of the building is so remote and inaccessible as to eliminate the dangers inherent in burglaries of dwellings. However, I cannot agree with the majority’s conclusion that applying the general rule is unwar-

ranted here, such that the exception applies and the basement cannot be considered a dwelling under *Quinn* and *McCray*.

In my view, the majority errs in overlooking the fact that what our cases call “the general rule” is based on a literal reading of the statute itself. As a result, the majority too broadly applies an exception that this Court created; such an exception should be narrowly applied because it circumvents the plain language used by the legislature (see e.g. *Matter of Gomez v Stout*, 13 NY3d 182, 187 [2009]; *Solow Mgt. Corp. v Tanger*, 10 NY3d 326, 330-331 [2008]). Although the exception to the statutory language was judicially created many years ago, this Court has only addressed it twice (including the case in which it was created). Both times, we found that it was inapplicable. Until today, neither this Court nor any other appellate court in this state has ever found that the exception to the statute applied to the facts of any particular case presented to it.

As noted, *McCray* made clear that the exception requires the burglarized portion of the building to be *both* “remote and inaccessible” to the residential portion (*McCray*, 23 NY3d at 624 [emphasis added]). Indeed, we stated that proximity and ease of access were each important factors (see *id.* at 630). In *McCray*, we did not apply the exception because, although the sleeping quarters were fairly remote from the museum, they were accessible by a common stairwell (see *id.*). We did not apply the exception in *Quinn* because, although the living quarters were inaccessible due to the lack of an internal connection, they were one floor above the burglarized shop, rendering them not remote (see *Quinn*, 71 NY at 565). Hence, in each case in which we have considered the exception, we declined to apply it where only one of the two criteria was present.

Here, it is undisputed that the apartments are not directly accessible from the basement. The point of contention is the remoteness factor. The criteria of remoteness addresses distance or proximity (see Black’s Law Dictionary 1487 [10th ed 2014], remote [(f)ar removed or separated in time, space, or relation]). The majority concludes that the basement was remote because the residents do not use it and have no “relationship” to that area (majority mem at 1007). That conclusion conflates remoteness with inaccessibility and fails to separately consider the remoteness or proximity of the two portions of the building, as required by our precedent. It also relies on the use to which the nonresidential area is put, which is not a factor in itself and is distinct from the question of remoteness.

Though lacking accessibility, the basement is not remote from the apartments. The basement is a mere two stories below the nearest apartment. In each of our prior cases, we found that a distance of one story was not remote (*see McCray*, 23 NY3d at 630; *Quinn*, 71 NY at 565-566, 573). We have never held that direct contiguity is required to preclude remoteness, and I cannot conclude that one additional story tips the balance. Moreover, the entrance doors to the basement are on the street level, just one story below the nearest apartment. A tenant in a second-floor apartment could easily experience “night terror” if he or she became aware that someone was breaking into or burglarizing the basement just a short distance below. That situation is similar to our example in *McCray* of a hotel guest hearing a burglar in a coffee shop across the hall (*see McCray*, 23 NY3d at 627). Likewise, if the occupant of a second-floor apartment was the owner of the deli here—similar to the example in *McCray* of a shop owner/tenant—that person might be likely to confront the burglar to protect his or her property, creating the possibility of violence and danger to human life which the statute was designed to deter (*see id.* at 627; *see also Barney*, 99 NY2d at 370; *Quinn*, 71 NY at 567, 572).

The majority is not only applying the exception for the first time, but it is doing so in a factual situation that—despite the majority’s claim that its holding is limited to the “narrow circumstances of this case” (majority mem at 1006)—invites the broad application of the exception to numerous ordinary buildings, that is, buildings with a commercial space on the ground floor, storage in a basement beneath the business, and residential units in the upper stories. The building here consists of eight stories (including the basement), of which six contain apartments. That means that approximately 75% of the building is residential. This is a far cry from the example we imagined in *McCray*, which consisted of a mainly commercial skyscraper containing a few apartments a great distance from the building’s stores and offices (*see McCray*, 23 NY3d at 627).

Application of the general rule here is consistent with the purpose of the statute, and the majority’s holding constitutes an unreasonable expansion of the exception to that rule. Rather than limiting the exception to cases in which “applying the four walls and a roof rule would stretch the statute beyond its purpose” (*id.* at 628), the majority’s application of the judicially-created exception here has stretched the exception beyond its

limits, causing it to swallow the general rule as set forth by the legislature in the statute. Because the basement in this primarily-residential building was not so remote from the living quarters as to eliminate the special dangers inherent in the burglary of a dwelling, I would affirm defendant's conviction of burglary in the second degree.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Fahey and Garcia concur; Judge Stein dissents and votes to affirm, in an opinion.

Order modified by vacating the conviction on the count of burglary in the second degree, dismissing that count in the indictment, and remitting to Supreme Court, New York County, for resentencing, and, as so modified, affirmed, in a memorandum.

[64 NE3d 276, 41 NYS3d 456]

In the Matter of YOGA VIDA NYC, INC., Appellant. COMMISSIONER OF LABOR, Respondent.

Argued September 6, 2016; decided October 25, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered July 31, 2014. The Appellate Division affirmed a decision of the Unemployment Insurance Appeal Board which had (1) reversed a decision of an administrative law judge overruling a determination of the Commissioner of Labor holding appellant liable for additional unemployment insurance contributions, effective October 1, 2009, based on remuneration paid to yoga instructors as employees; (2) overruled appellant's objection that the yoga instructors were independent contractors; and (3) sustained the Commissioner of Labor's initial determination.

Matter of Yoga Vida NYC, Inc. (Commissioner of Labor), 119 AD3d 1314, reversed.

HEADNOTE

Unemployment Insurance — Employee or Independent Contractor — Non-Staff Instructors at Yoga Studio

An order of the Appellate Division which affirmed a decision of the Unemployment Insurance Appeal Board holding appellant yoga studio liable

for additional unemployment insurance contributions upon the ground that its non-staff instructors were employees was reversed, since the Board's determination that appellant exercised sufficient direction, supervision and control over the instructors to demonstrate an employment relationship was unsupported by substantial evidence. The non-staff instructors made their own schedules and chose how they were paid. Unlike staff instructors, they were paid only if a certain number of students attended their classes, had no restrictions on where they could teach, and were not required to attend meetings or receive training. Proof of incidental control, including that appellant inquired if the instructors had proper licenses, published the master schedule on its website, and provided the space for the classes, did not support the conclusion that the instructors were employees. Nor did evidence that appellant generally determined what fee was charged and collected the fee directly from the students, and provided substitute instructors for non-staff instructors supply sufficient indicia of control. Furthermore, appellant's receipt of feedback about the instructors from the students did not support the Board's conclusion, since the requirement that the work be done properly is a condition just as readily required of an independent contractor as of an employee and not conclusive as to either.

APPEARANCES OF COUNSEL

Astrachan Gunst Thomas, P.C., Baltimore, Maryland (*Elizabeth A. Harlan*, of the Maryland bar, admitted pro hac vice, *James B. Astrachan*, of the Maryland bar, admitted pro hac vice, and *Christopher J. Lyon*, of the Maryland bar, admitted pro hac vice, of counsel) and *Lightman Law Firm LLC*, New York City (*Douglas M. Lightman* of counsel), for appellant.

Eric T. Schneiderman, Attorney General, New York City (*Valerie Figueredo*, *Barbara D. Underwood* and *Steven C. Wu* of counsel), for respondent.

Seymour W. James, Jr., *The Legal Aid Society*, New York City (*Richard Blum*, *Adriene Holder* and *Karen Cacace* of counsel), for The Legal Aid Society, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the matter remitted to that Court with directions to remand to respondent for further proceedings in accordance with this memorandum.

Yoga Vida NYC, Inc. operates a yoga studio in Manhattan. It offers classes taught by both staff instructors and non-staff instructors, and classifies the latter as independent contractors. In May 2010, the Commissioner of Labor issued a determination that Yoga Vida was liable for additional unemployment contributions, effective October 1, 2009, based on its finding that the non-staff instructors are employees.

Yoga Vida disputed that determination. A hearing was held before an administrative law judge (ALJ), who sustained Yoga Vida's objection, concluded that the non-staff instructors are independent contractors and overruled the determination. The Commissioner appealed the ALJ's decision to the Unemployment Insurance Appeal Board. The Board overruled Yoga Vida's objection, reversed the decision of the ALJ, and sustained the Commissioner's initial determination that Yoga Vida is liable for additional unemployment contributions. Yoga Vida appealed to the Appellate Division, which affirmed the determination of the Appeal Board, holding that "[o]verall, despite the existence of evidence that could result in a contrary result, the record contains substantial evidence to support the Board's decision that Yoga Vida had sufficient control over the instructors' work, thereby allowing for a finding of an employer-employee relationship" (119 AD3d 1314, 1315 [3d Dept 2014]).

"[S]ubstantial evidence consists of proof within the whole record of such quality and quantity as to generate conviction in and persuade a fair and detached fact finder that, from that proof as a premise, a conclusion or ultimate fact may be extracted reasonably—probatively and logically" (*300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176, 181 [1978]). Here, because the record as a whole does not demonstrate "that the employer exercises control over the results produced . . . [and] the means used to achieve the results" (*Matter of Hertz Corp. [Commissioner of Labor]*, 2 NY3d 733, 735 [2004] [citation omitted]), the Board's determination that the company exercised sufficient direction, supervision and control over the instructors to demonstrate an employment relationship is unsupported by substantial evidence.

The non-staff instructors make their own schedules and choose how they are paid (either hourly or on a percentage basis). Unlike staff instructors, who are paid regardless of whether anyone attends a class, the non-staff instructors are paid only if a certain number of students attend their classes. Additionally, in contrast to the staff instructors, who cannot work for competitor studios within certain geographical areas, the studio does not place any restrictions on where the non-staff teachers can teach, and the instructors are free to inform Yoga Vida students of classes they will teach at other locations so the students can follow them to another studio. Furthermore, only staff instructors, as distinct from non-staff instructors, are required to attend meetings or receive training.

The proof of incidental control relied upon by the Board, including that Yoga Vida inquired if the instructors had proper licenses, published the master schedule on its website, and provided the space for the classes, does not support the conclusion that the instructors are employees. Similarly, in this context, the evidence cited by the dissent, including that Yoga Vida generally determines what fee is charged and collects the fee directly from the students, and provides a substitute instructor if the non-staff instructor is unable to teach a class and cannot find a substitute, does not supply sufficient indicia of control over the instructors. Furthermore, that Yoga Vida received feedback about the instructors from the students does not support the Board's conclusion. "The requirement that the work be done properly is a condition just as readily required of an independent contractor as of an employee and not conclusive as to either" (*Matter of Hertz Corp.*, 2 NY3d at 735 [internal quotation marks and citation omitted]).

FAHEY, J. (dissenting). I disagree with the majority's conclusion that the determination of the Unemployment Insurance Appeal Board is not supported by substantial evidence. Whether an employer-employee relationship exists "necessarily is a question of fact" (*Matter of Villa Maria Inst. of Music [Ross]*, 54 NY2d 691, 692 [1981]; see *Matter of Di Martino [Buffalo Courier Express Co.—Ross]*, 59 NY2d 638, 641 [1983]). The Board must determine whether the employer exercised control over the results produced or the means used to achieve the results, with control over the means being more important (see *Matter of Empire State Towing & Recovery Assn., Inc. [Commissioner of Labor]*, 15 NY3d 433, 437 [2010]). Nevertheless, "no one factor is determinative" (*Matter of Concourse Ophthalmology Assoc. [Roberts]*, 60 NY2d 734, 736 [1983]). We have stated that "the determination of the appeal board, if supported by substantial evidence on the record as a whole, is beyond further judicial review *even though there is evidence in the record that would have supported a contrary conclusion*" (*id.* [emphasis added]; see *Matter of MNORX, Inc. [Ross]*, 46 NY2d 985, 986 [1979]).

The majority relies on the evidence in the record supporting a determination that Yoga Vida's non-staff yoga instructors were independent contractors in concluding that the substantial evidence standard was not met (see majority mem at 1015). Yet the majority ignores the evidence in the record that does support the Board's determination that the non-staff instruc-

tors were employees. For example, there is evidence in the record that Yoga Vida generally recruits its clients, determines what fee to charge for its classes, and collects that fee directly from the students attending the classes. Once Yoga Vida determines the class schedule and posts that schedule on its website, the non-staff yoga instructors are not free to unilaterally alter the time or length of the class, the type of class taught, or the difficulty level, and it is Yoga Vida that sets which classes will be taught and when. The non-staff instructors are responsible for finding a suitable substitute instructor if they are unable to teach their scheduled class, and if the non-staff instructor cannot find a suitable replacement, Yoga Vida will provide its own substitute. Non-staff instructors are required to notify Yoga Vida of any substitution so that it can update its schedule, and Yoga Vida considers whether a non-staff instructor frequently has a substitute teach his or her class in determining whether to continue its relationship with that instructor. Furthermore, although non-staff instructors are free to tell their students about other locations at which they teach, Yoga Vida considers whether a non-staff instructor has advertised for a class directly conflicting with a Yoga Vida class in determining whether to continue its relationship with that instructor.

In summary, the majority has examined the evidence before the Board and concluded that the evidence weighs more heavily in favor of a conclusion that the non-staff instructors are independent contractors. It is the role of the Board, however, and not this Court, to weigh the factual evidence and arrive at a conclusion (*see Villa Maria Inst. of Music*, 54 NY2d at 693; *MNORX, Inc.*, 46 NY2d at 986). If the evidence “reasonably supports the [B]oard’s choice, we may not interpose our judgment to reach a contrary conclusion” (*MNORX, Inc.*, 46 NY2d at 986). We have described substantial evidence as “[m]ore than seeming or imaginary” but “less than a preponderance of the evidence” (*300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176, 180 [1978]). We have further stated that a “practical test” for determining whether substantial evidence exists is to “measur[e] the evidence against the standard of sufficiency such as to require a court to submit it as a question of fact to a jury” (*id.* at 181).

Here, the evidence reasonably supports the Board’s conclusion that the non-staff instructors are Yoga Vida’s employees, “even though there is evidence in the record that would have supported a contrary conclusion” (*Concourse Ophthalmology*

Assoc., 60 NY2d at 736). In interposing its own judgment for that of the Board, the majority has disregarded the substantial evidence standard of review and erroneously denied the non-staff instructors employment benefits to which the Board determined they were entitled. I respectfully dissent.

Chief Judge DiFiore and Judges Pigott, Abdus-Salaam and Garcia concur; Judge Fahey dissents and votes to affirm in an opinion in which Judge Rivera concurs; Judge Stein taking no part.

Order reversed, with costs, and matter remitted to the Appellate Division, Third Department, with directions to remand to respondent Commissioner of Labor for further proceedings in accordance with the memorandum herein.

[65 NE3d 62, 42 NYS3d 91]

UTICA MUTUAL INSURANCE COMPANY, as Subrogee of Harris Berenson et al., Appellant, v STYLE MANAGEMENT ASSOCIATES CORP. et al., Respondents, et al., Defendants.

Argued September 13, 2016; decided October 27, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered February 11, 2015. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Nassau County (Denise Sher, J.; op 2012 NY Slip Op 33868[U] [2012]), which had denied the motion of defendants Style Management Associates Corp., Style Management Corp. and Yosi Sason, also known as Yosef Sason, for summary judgment dismissing the complaint insofar as asserted against them; and (2) granted the motion. The following question was certified by the Appellate Division: “Was the decision and order of this Court dated February 11, 2015, properly made?”

Utica Mut. Ins. Co. v Style Mgt. Assoc. Corp., 125 AD3d 759, reversed.

HEADNOTE

Judgments — Summary Judgment — Collective Negligence of Contractors on Home Renovation Project — Relationship between Contractors

In an action to recover for property damage resulting from fires that experts determined were caused by the installation of wood floors during a home renovation project, the moving defendants, whose name was listed as the contractor on the building permit application and permit, were not entitled to summary judgment as a matter of law, since triable issues of fact existed as to the nature of their relationship with the nonmoving defendant, an unlicensed contractor involved in the project, as well as their authority to control the project. The moving defendants' role in the project was allegedly more than the mere listing of their name on the building permit and the completion of some minor carpentry work. The nonmoving defendant testified that he paid the moving defendants to obtain the permit to cover the entire renovation project, including the installation of wood floors, that they had engaged in similar arrangements on other projects, and that the moving defendants threatened to withdraw the permit if he did not supply additional funds for the job. Furthermore, the moving defendants submitted their own certificate of liability insurance for the project, contractor's license, and workers' compensation information. Thus, whether the nonmoving defendant and the moving defendants were partners, a joint venture, or in an agency relationship such that the moving defendants would be liable for the damage that occurred as a result of the flooring work was a question for a trier of fact.

APPEARANCES OF COUNSEL

Abrams, Gorelick, Friedman & Jacobson, LLP, New York City (*Chris Christofides* of counsel), for appellant.

Farber Brocks & Zane L.L.P., Garden City (*Tracy L. Frankel* and *Braden H. Farber* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, the motion of defendants Style Management Associates Corp., Style Management Corp. and Yosi Sason for summary judgment dismissing the complaint denied and the certified question answered in the negative.

The issue on this appeal is whether defendants Style Management Associates Corp., Style Management Corp. and Yosi Sason (Style defendants or Style) are entitled to summary judgment as a matter of law. Viewing the facts in the light most favorable to the nonmoving party, triable issues of fact exist as to the nature of the relationship between the moving defendants and the unlicensed contractor involved in the renovation project—defendant Zak Baruch (*see Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012]). Therefore, we hold

that the Style defendants are not entitled to summary judgment.

Specifically, Style's role in the home renovation project was allegedly more than the mere listing of Style's name on the building permit and the completion of some minor carpentry work, as Sason testified. Baruch testified that he paid Style, a licensed contractor, to obtain the building permit to cover the entire renovation project, including the installation of wood floors—the same work that experts determined caused the fires and resulting property damage. According to Baruch, he and Style had engaged in similar arrangements on other projects. The permit application, signed by the homeowner, identified Style as the contractor and included floor installation in the work to be performed. In addition to Style being named on the permit application and permit, Style submitted its own certificate of liability insurance for the project, contractor's license, and workers' compensation information. Baruch further testified that Sason demanded (and received) additional funds because the job was bigger than Sason had anticipated. According to Baruch, Sason threatened to withdraw the permit if Baruch did not supply the additional funds, requiring Baruch to discontinue the work.

The conflicting accounts of Baruch and Sason, and the documentary evidence submitted in conjunction with the building permit, raise triable issues of fact as to the relationship between the defendants, as well as Style's authority to control the project. A trier of fact should be permitted to determine whether Baruch and Style/Sason were partners, a joint venture, or in an agency relationship such that the Style defendants would be liable for the damage that occurred as a result of the flooring work.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

Order reversed, with costs, motion of defendants Style Management Associates Corp., Style Management Corp. and Yosi Sason for summary judgment dismissing the complaint denied and certified question answered in the negative, in a memorandum.

CHIANIS & ANDERSON ARCHITECTS, PLLC, Respondent, v COURT-
ERBACK DEVELOPMENT COMPANY, LLC, et al., Appellants, et
al., Defendant.

Submitted July 18, 2016; decided October 27, 2016

Reported below, 140 AD3d 1286.

Motion, insofar as R2 Development Company, LLC seeks leave to appeal from so much of the Appellate Division order as affirmed so much of the Supreme Court judgment as against it, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the Appellate Division order from which leave to appeal is sought does not finally determine the action as to the remaining parties within the meaning of the Constitution.

In the Matter of COUNTY OF CAYUGA, Appellant, v NIRAV R.
SHAH, Commissioner, New York State Department of
Health, et al., Respondents.

Submitted August 3, 2015; decided October 27, 2016

Reported below, 129 AD3d 1503.

Motion for leave to appeal denied on the ground that an appeal lies as of right (CPLR 5601 [b] [1]).

Judges STEIN and FAHEY taking no part.

In the Matter of COUNTY OF CHAUTAUQUA, Appellant, v NIRAV
R. SHAH, as Commissioner of the New York State Department of Health, et al., Respondents.

Submitted May 4, 2015; decided October 27, 2016

Reported below, 126 AD3d 1317.

Motion for leave to appeal denied on the ground that an appeal lies as of right (CPLR 5601 [b] [1]).

Judges STEIN and FAHEY taking no part.

In the Matter of COUNTY OF GENESEE, Appellant, v NIRAV R.
SHAH, M.D., M.P.H., Commissioner, New York State
Department of Health, et al., Respondents.

Submitted May 26, 2015; decided October 27, 2016

Reported below, 128 AD3d 1380.

Motion for leave to appeal denied on the ground that an appeal lies as of right (CPLR 5601 [b] [1]).

Judges STEIN and FAHEY taking no part.

In the Matter of COUNTY OF JEFFERSON, Appellant, v NIRAV R. SHAH, as Commissioner of the New York State Department of Health, et al., Respondents. (Appeal No. 2.)

Submitted May 4, 2015; decided October 27, 2016

Reported below, 126 AD3d 1322.

Motion for leave to appeal denied on the ground that an appeal lies as of right (CPLR 5601 [b] [1]).

Judges STEIN and FAHEY taking no part.

In the Matter of COUNTY OF MONROE, Appellant, v NIRAV R. SHAH, Commissioner, New York State Department of Health, et al., Respondents.

Submitted August 3, 2015; decided October 27, 2016

Reported below, 129 AD3d 1505.

Motion for leave to appeal denied on the ground that an appeal lies as of right (CPLR 5601 [b] [1]).

Judges STEIN and FAHEY taking no part.

In the Matter of COUNTY OF ONEIDA, Appellant, v NIRAV R. SHAH, M.D., M.P.H., Commissioner, New York State Department of Health, et al., Respondents.

Submitted May 26, 2015; decided October 27, 2016

Reported below, 128 AD3d 1381.

Motion for leave to appeal denied on the ground that an appeal lies as of right (CPLR 5601 [b] [1]).

Judges STEIN and FAHEY taking no part.

LESLEY DRAZEK, Appellant, v VITAL TRANSPORTATION, INC., Respondent.

Submitted July 25, 2016; decided October 27, 2016

Reported below, 135 AD3d 898; 2016 NY Slip Op 69883(U).

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 27 NY3d 1015 (2016)]. Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

FINANCIAL SERVICES VEHICLE TRUST, Plaintiff, v ANDRE H. SAAD, Defendant/Third-Party Plaintiff-Appellant. GOVERNMENT EMPLOYEES INSURANCE COMPANY et al., Third-Party Defendants-Respondents, et al., Third-Party Defendants.

Submitted July 11, 2016; decided October 27, 2016

Reported below, 137 AD3d 849.

Motion, insofar as it seeks leave to appeal as against Government Employees Insurance Company, dismissed upon the ground that as to it the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

JOHNATHAN JOHNSON, Appellant, v CYNTHIA NEIDL, Respondent.

Submitted August 22, 2016; decided October 27, 2016

Reported below, 130 AD3d 1110.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of LIZZETTE MORALES, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Submitted October 11, 2016; decided October 27, 2016

Reported below, 132 AD3d 581.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

TATIANA NERONI, Appellant, v JONATHAN S. FOLLENDER et al.,
Respondents.

Submitted August 15, 2016; decided October 27, 2016

Reported below, 137 AD3d 1336.

Motion for reargument denied [*see* 27 NY3d 1147 (2016)].

Judges STEIN and FAHEY taking no part.

PARAMOUNT LEASEHOLD, L.P., Respondent, v 43RD STREET DELI,
INC., Doing Business as BELLA VITA PIZZERIA, Appellant.

Submitted August 8, 2016; decided October 27, 2016

Reported below, 136 AD3d 563.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed so much of the Supreme Court order as denied the application to compel arbitration, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the order does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIE
SINGLETON, Appellant.

Submitted August 22, 2016; decided October 27, 2016

Reported below, 2016 NY Slip Op 74618(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

WEYDMAN ELECTRIC, INC., Appellant, v JOINT SCHOOLS CON-
STRUCTION BOARD et al., Respondents.

Submitted August 1, 2016; decided October 27, 2016

Reported below, 140 AD3d 1605.

MEMORANDA

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Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(October 1, 2016 through October 31, 2016)

Woods, Matter of, v State Univ. of N.Y. 3d Dept: 139 AD3d 1322 10/18/16

APPEALS WITHDRAWN AND DISCONTINUED

(October 1, 2016 through October 31, 2016)

People v Petke 3d Dept: 125 AD3d 1103 10/3/16

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(October 1, 2016 through October 31, 2016)

People v Adams	2d Dept: 140 AD3d 1179 (Queens)	denied 10/4/16 (Pigott, J.)
People v Alcares	3d Dept: 141 AD3d 943 (Columbia)	denied 10/31/16 (Pigott, J.)
People v Al Haideri	3d Dept: 141 AD3d 742 (Albany)	denied 10/11/16 (Pigott, J.)
People v Alleyne	2d Dept: 142 AD3d 509 (Kings)	denied 10/12/16 (Rivera, J.)
People v Anderson	2d Dept: 142 AD3d 509 (Kings)	denied 10/31/16 (Pigott, J.)
People v Arrington	App Div, 3d Dept, 5/16/16 (Albany)	dismissed 10/26/16 (Rivera, J.)
People v Aviles	2d Dept: 142 AD3d 671 (Suffolk)	denied 10/17/16 (Stein, J.)
People v Baker	1st Dept: 139 AD3d 591 (Bronx)	denied 10/24/16 (Fahey, J.)
People v Bazemore	2d Dept: 142 AD3d 555 (Queens)	denied 10/12/16 (Rivera, J.)
People v Bediako	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 52 Misc 3d 140(A) (Kings)	denied 10/11/16 (DiFiore, Ch. J.)
People v Bernardini	2d Dept: 142 AD3d 671 (Westchester)	denied 10/31/16 (Pigott, J.)
People v Bey	2d Dept: 140 AD3d 1079 (Queens)	denied 10/20/16 (Stein, J.)

People v Black	4th Dept: 137 AD3d 1679 (Onondaga)	denied reconsideration 10/4/16 (Pigott, J.)
People v Bolling	4th Dept: 141 AD3d 1176 (Monroe)	denied 10/10/16 (Rivera, J.)
People v Bonds	2d Dept: 140 AD3d 897 (Queens)	denied 10/11/16 (Garcia, J.)
People v Booker	3d Dept: 141 AD3d 834 (Tompkins)	denied 10/27/16 (Abdus-Salaam, J.)
People v Bowen	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 2016 NY Slip Op 51657(U) (Kings)	denied 10/27/16 (Pigott, J.)
People v Boyd	4th Dept: 137 AD3d 1615 (Onondaga)	denied 10/12/16 (Rivera, J.)
People v Brodus	App Div, 3d Dept: 2016 NY Slip Op 70576(U) (Broome)	denied 10/18/16 (DiFiore, Ch. J.)
People v Brooks	4th Dept: 139 AD3d 1391 (Steuben)	denied 10/12/16 (Rivera, J.)
People v Brown (Curtis)	4th Dept: 140 AD3d 1740 (Onondaga)	denied 10/11/16 (Garcia, J.)
People v Brown (Eddie)	2d Dept: 141 AD3d 535 (Kings)	denied 10/4/16 (Pigott, J.)
People v Brown (Everton)	App Div, 1st Dept: 2015 NY Slip Op 78085(U) (Bronx)	dismissed 10/26/16 (Rivera, J.)
People v Busch	County Ct, 6/29/16 (Washington)	denied 10/4/16 (Pigott, J.)
People v Butler	1st Dept: 140 AD3d 472 (Bronx)	denied 10/11/16 (Garcia, J.)
People v Byfield	App Div, 1st Dept: 2016 NY Slip Op 77571(U) (Bronx)	dismissed 10/11/16 (Stein, J.)
People v Carr	4th Dept: 141 AD3d 1124 (Erie)	denied 10/3/16 (Garcia, J.)
People v Ceruti	2d Dept: 142 AD3d 558 (Queens)	denied 10/11/16 (Stein, J.)
People v Chambers	2d Dept: 142 AD3d 672 (Kings)	denied 10/20/16 (Stein, J.)
People v Chander	2d Dept: 140 AD3d 1181 (Queens)	denied 10/27/16 (Abdus-Salaam, J.)
People v Chestnut	2d Dept: 142 AD3d 559 (Queens)	denied 10/11/16 (Pigott, J.)
People v Clark	3d Dept: 142 AD3d 723 (Schenectady)	denied 10/27/16 (Pigott, J.)
People v Clarke	App Div, 2d Dept: 2016 NY Slip Op 76774(U) (Queens)	dismissed 10/12/16 (Garcia, J.)
People v Collins	2d Dept: 141 AD3d 729 (Queens)	denied 10/27/16 (Abdus-Salaam, J.)

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People v Constantopoulos	3d Dept: 141 AD3d 942 (Schenectady)	denied 10/27/16 (Abdus-Salaam, J.)
People v Constantopoulos	3d Dept: 141 AD3d 942 (Schenectady)	denied 10/27/16 (Abdus-Salaam, J.)
People v Cross	App Term, 2d Dept, 9th & 10th Jud Dists: 52 Misc 3d 133(A) (Nassau)	denied 10/12/16 (Rivera, J.)
People v Cruz (Michael)	2d Dept: 141 AD3d 601 (Kings)	denied 10/27/16 (Abdus-Salaam, J.)
People v Cruz (Ruben)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 52 Misc 3d 81 (Kings)	denied 10/11/16 (Garcia, J.)
People v Custodio	2d Dept: 141 AD3d 730 (Queens)	denied 10/11/16 (Garcia, J.)
People v Davis	2d Dept: 141 AD3d 542 (Nassau)	denied 10/12/16 (Rivera, J.)
People v Degroat	2d Dept: 140 AD3d 1185 (Orange)	denied 10/17/16 (Garcia, J.)
People v Dixon	2d Dept: 138 AD3d 1016 (Queens)	denied reconsideration 10/4/16 (Pigott, J.)
People v Douglas	App Div, 1st Dept: 2016 NY Slip Op 75724(U) (Bronx)	denied 10/27/16 (Abdus-Salaam, J.)
People v Drennan	App Div, 4th Dept, 8/11/16 (Wayne)	dismissed 10/11/16 (Stein, J.)
People v Edwin L.	2d Dept: 142 AD3d 718 (Queens)	denied 10/31/16 (Stein, J.)
People v Ennis	4th Dept: 141 AD3d 1124 (Jefferson)	denied 10/12/16 (Rivera, J.)
People v Faircloth	App Div, 4th Dept: 2016 NY Slip Op 81322(U) (Cattaraugus)	dismissed 10/24/16 (Stein, J.)
People v Farmer	4th Dept: 136 AD3d 1410 (Onondaga)	denied 10/11/16 (Garcia, J.)
People v Feliciano	4th Dept: 140 AD3d 1776 (Monroe)	denied 10/4/16 (Pigott, J.)
People v Fleming	1st Dept: 141 AD3d 408 (Bronx)	denied 10/11/16 (Garcia, J.)
People v Forty	3d Dept: 141 AD3d 942 (Schenectady)	denied 10/27/16 (Abdus-Salaam, J.)
People v Friedman	App Div, 2d Dept: 2016 NY Slip Op 75588(U) (Queens)	dismissed 10/12/16 (Garcia, J.)
People v Gentile	App Div, 2d Dept: 2016 NY Slip Op 77877(U) (Queens)	dismissed 10/11/16 (Fahey, J.)
People v Gerathy	2d Dept: 140 AD3d 1088 (Dutchess)	denied 10/4/16 (Pigott, J.)

People v Gil	2d Dept: 141 AD3d 543 (Suffolk)	denied 10/4/16 (Pigott, J.)
People v Gilford	1st Dept: 140 AD3d 547 (NY)	denied 10/11/16 (Garcia, J.)
People v Gonzalez (David)	2d Dept: 142 AD3d 717 (Kings)	denied 10/21/16 (Garcia, J.)
People v Gonzalez (Romualdo)	App Div, 1st Dept: 2011 NY Slip Op 91566(U) (NY)	denied 10/11/16 (Pigott, J.)
People v Gonzalez (Romualdo)	App Div, 1st Dept: 2011 NY Slip Op 91567(U) (NY)	dismissed 10/11/16 (Pigott, J.)
People v Graves	2d Dept: 142 AD3d 559 (Kings)	denied 10/11/16 (Garcia, J.)
People v Green	2d Dept: 141 AD3d 544 (Queens)	denied 10/4/16 (Pigott, J.)
People v Greenleaf	App Div, 3d Dept: 2016 NY Slip Op 81574(U) (Broome)	denied 10/11/16 (Fahey, J.)
People v Hamilton	App Div, 2d Dept: 2016 NY Slip Op 83131(U) (Kings)	dismissed 10/27/16 (Rivera, J.)
People v Harris (Eric)	4th Dept: 138 AD3d 1513 (Seneca)	denied 10/11/16 (Garcia, J.)
People v Harris (Fred)	App Div, 2d Dept: 2016 NY Slip Op 80387(U) (Kings)	dismissed 10/27/16 (Abdus-Salaam, J.)
People v Harwood	3d Dept: 139 AD3d 1186 (Schenectady)	denied 10/24/16 (Garcia, J.)
People v Hollenquest	2d Dept: 139 AD3d 873 (Queens)	denied 10/17/16 (Garcia, J.)
People v Huffman	4th Dept: 140 AD3d 1780 (Erie)	denied 10/4/16 (Pigott, J.)
People v Izzo	App Div, 3d Dept: 2016 NY Slip Op 78513(U) (Franklin)	denied 10/24/16 (Fahey, J.)
People v James (Andrew)	App Div, 2d Dept: 2016 NY Slip Op 81925(U) (Kings)	dismissed 10/26/16 (Rivera, J.)
People v James (Antonio)	4th Dept: 141 AD3d 1113 (Monroe)	denied 10/4/16 (Pigott, J.)
People v Johnson (Howard)	4th Dept: 140 AD3d 1630 (Monroe)	denied 10/4/16 (Pigott, J.)
People v Johnson (Laquin)	2d Dept: 140 AD3d 1188 (Westchester)	denied 10/4/16 (Pigott, J.)
People v Johnson (Matthew)	App Div, 3d Dept: 2016 NY Slip Op 68277(U) (Tompkins)	denied 10/11/16 (Fahey, J.)
People v Johnston	3d Dept: 140 AD3d 1528 (Franklin)	denied 10/27/16 (Abdus-Salaam, J.)
People v Kerce	4th Dept: 140 AD3d 1659 (Onondaga)	denied 10/4/16 (Pigott, J.)

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People v King	App Div, 3d Dept, 5/5/16 (Schoharie)	dismissed 10/24/16 (Fahey, J.)
People v Kordish	2d Dept: 140 AD3d 981 (Queens)	denied 10/27/16 (Abdus-Salaam, J.)
People v Latorres	App Div, 1st Dept: 2016 NY Slip Op 79483(U) (NY)	denied 10/11/16 (DiFiore, Ch. J.)
People v Lawrence	4th Dept: 141 AD3d 1079 (Erie)	denied 10/11/16 (Garcia, J.)
People v Leverich	2d Dept: 140 AD3d 901 (Dutchess)	denied 10/4/16 (Pigott, J.)
People v Lewis (Gil)	1st Dept: 139 AD3d 571 (NY)	denied reconsideration 10/19/16 (Rivera, J.)
People v Lewis (L.A.)	1st Dept: 139 AD3d 546 (NY)	denied 10/11/16 (Garcia, J.)
People v Lewis (Michael)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 52 Misc 3d 134(A) (Kings)	denied 10/24/16 (Fahey, J.)
People v Lewis (Robert)	4th Dept: 140 AD3d 1593 (Steuben)	denied 10/11/16 (Garcia, J.)
People v MacKenzie	2d Dept: 132 AD3d 908 (Nassau)	denied reconsideration 10/27/16 (Abdus-Salaam, J.)
People v Maldonado	3d Dept: 140 AD3d 1530 (Albany)	denied 10/11/16 (Fahey, J.)
People v Mandela	3d Dept: 142 AD3d 81 (Ulster)	denied 10/11/16 (Rivera, J.)
People v Marino	2d Dept: 135 AD3d 877 (Queens)	denied reconsideration 10/24/16 (Stein, J.)
People v Marrow	App Term, 2d Dept, 9th & 10th Jud Dists: 52 Misc 3d 136(A) (Westchester)	denied 10/4/16 (Pigott, J.)
People v Martinez	1st Dept: 140 AD3d 624 (NY)	denied 10/11/16 (Garcia, J.)
People v McElroy	2d Dept: 139 AD3d 982 (Kings)	denied 10/3/16 (Garcia, J.)
People v Mejia	2d Dept: 142 AD3d 628 (Suffolk)	denied 10/24/16 (Fahey, J.)
People v Melendez	2d Dept: 138 AD3d 758 (Suffolk)	denied 10/11/16 (Garcia, J.)
People v Mendez	2d Dept: 142 AD3d 510 (Kings)	denied 10/17/16 (Stein, J.)
People v Menner	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 53 Misc 3d 52 (Kings)	denied 10/11/16 (Garcia, J.)
People v Mingo	1st Dept: 141 AD3d 423 (NY)	denied 10/4/16 (Pigott, J.)

People v Mitchell	App Div, 2d Dept: 2016 NY Slip Op 79479(U) (Suffolk)	dismissed 10/27/16 (Pigott, J.)
People v Mohamed	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 53 Misc 3d 14 (Kings)	denied 10/12/16 (Rivera, J.)
People v Monroe	1st Dept: 141 AD3d 421 (Bronx)	denied 10/20/16 (Stein, J.)
People v Nadal	App Div, 2d Dept: 2016 NY Slip Op 80390(U) (Westchester)	dismissed 10/24/16 (Fahey, J.)
People v Ortiz	App Div, 1st Dept: 2016 NY Slip Op 76034(U) (NY)	dismissed 10/27/16 (Pigott, J.)
People v Oviedo	2d Dept: 139 AD3d 1091 (Westchester)	denied 10/24/16 (Fahey, J.)
People v Palladino	2d Dept: 140 AD3d 1194 (Suffolk)	denied 10/4/16 (Pigott, J.)
People v Parker	4th Dept: 133 AD3d 1300 (Monroe)	denied reconsideration 10/27/16 (Abdus-Salaam, J.)
People v Pasternak	2d Dept: 141 AD3d 544 (Kings)	denied 10/11/16 (Garcia, J.)
People v Patterson	App Div, 2d Dept: 2016 NY Slip Op 74300(U) (Suffolk)	dismissed 10/11/16 (Stein, J.)
People v Perez	2d Dept: 140 AD3d 799 (Westchester)	denied 10/12/16 (Rivera, J.)
People v Pleasant	App Div, 1st Dept: 2016 NY Slip Op 78033(U) (NY)	dismissed 10/24/16 (DiFiore, Ch. J.)
People v Policastro	2d Dept: 142 AD3d 679 (Kings)	denied 10/24/16 (Fahey, J.)
People v Porter	2d Dept: 138 AD3d 1148 (Queens)	denied 10/12/16 (Rivera, J.)
People v Reed	1st Dept: 137 AD3d 438 (NY)	denied reconsideration 10/11/16 (Pigott, J.)
People v Ressay (Alex)	3d Dept: 141 AD3d 839 (Montgomery)	denied 10/27/16 (Abdus-Salaam, J.)
People v Ressay (Pedro)	3d Dept: 141 AD3d 839 (Montgomery)	denied 10/27/16 (Abdus-Salaam, J.)
People v Riley-Khan	County Ct, 7/15/16 (Ontario)	denied 10/19/16 (Stein, J.)
People v Rinker	4th Dept: 141 AD3d 1177 (Allegany)	denied 10/12/16 (Rivera, J.)
People v Rivera	2d Dept: 142 AD3d 629 (Suffolk)	denied 10/11/16 (Stein, J.)

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People v Rounds	4th Dept: 140 AD3d 1657 (Lewis)	denied 10/27/16 (Rivera, J.)
People v Russell	County Ct, 6/29/16 (Washington)	denied 10/4/16 (Pigott, J.)
People v St. Pierre	3d Dept: 141 AD3d 958 (Clinton)	denied 10/11/16 (Fahey, J.)
People v Sams	2d Dept: 140 AD3d 1195 (Kings)	denied 10/27/16 (Abdus-Salaam, J.)
People v Sanchez	App Div, 1st Dept: 2016 NY Slip Op 79527(U) (Bronx)	denied 10/12/16 (DiFiore, Ch. J.)
People v Sandoval	2d Dept: 141 AD3d 621 (Queens)	denied 10/25/16 (Garcia, J.)
People v Santiago	4th Dept: 141 AD3d 1111 (Monroe)	denied 10/4/16 (Pigott, J.)
People v Santos	1st Dept: 140 AD3d 499 (NY)	denied 10/4/16 (Pigott, J.)
People v Simmons	App Div, 4th Dept, 6/25/16 (Onondaga)	dismissed 10/4/16 (Pigott, J.)
People v Slater	2d Dept: 141 AD3d 677 (Dutchess)	denied 10/11/16 (Pigott, J.)
People v Smith	1st Dept: 139 AD3d 131 (NY)	denied 10/11/16 (Garcia, J.)
People v Spasoff	App Term, 2d Dept, 9th & 10th Jud Dists: 52 Misc 3d 134(A) (Westchester)	denied 10/4/16 (Pigott, J.)
People v Stanley	App Div, 3d Dept: 2013 NY Slip Op 92197(U) (Albany)	dismissed 10/11/16 (Rivera, J.)
People v Stevens	4th Dept: 140 AD3d 1706 (Wayne)	denied 10/4/16 (Pigott, J.)
People v Stress	2d Dept: 141 AD3d 677 (Dutchess)	denied 10/11/16 (Pigott, J.)
People v Terborg	App Div, 4th Dept: 2015 NY Slip Op 74317(U) (Monroe)	denied reconsideration 10/11/16 (Rivera, J.)
People v Thorpe	3d Dept: 141 AD3d 927 (Washington)	denied 10/27/16 (Pigott, J.)
People v Tucker	App Term, 1st Dept: 52 Misc 3d 144(A) (NY)	denied 10/31/16 (Stein, J.)
People v Turner	2d Dept: 142 AD3d 680 (Queens)	denied 10/17/16 (Garcia, J.)
People v Tusa	2d Dept: 142 AD3d 680 (Suffolk)	denied 10/19/16 (Rivera, J.)
People v Urbanski	County Ct, 7/18/16 (Erie)	denied 10/20/16 (Stein, J.)
People v Urena	App Div, 2d Dept: 2016 NY Slip Op 80155(U) (Queens)	dismissed 10/12/16 (Garcia, J.)
People v Vinzant	2d Dept: 142 AD3d 720 (Suffolk)	denied 10/26/16 (Rivera, J.)

People v Williams (Christopher)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 52 Misc 3d 141(A) (Kings)	denied 10/27/16 (Rivera, J.)
People v Williams (DeAndre)	App Div, 2d Dept: 2016 NY Slip Op 73385(U) (Westchester)	denied reconsideration 10/11/16 (Rivera, J.)
People v Williams (Harry)	4th Dept: 141 AD3d 1109 (Monroe)	denied 10/12/16 (Rivera, J.)
People v Williams (Isiah)	App Div, 4th Dept: 2016 NY Slip Op 74620(U) (Monroe)	denied reconsideration 10/27/16 (Abdus-Salaam, J.)
People v Williams (Isiah)	App Div, 4th Dept: 2016 NY Slip Op 74620(U) (Monroe)	denied reconsideration 10/27/16 (Abdus-Salaam, J.)
People v Williams (Isiah)	App Div, 4th Dept: 2016 NY Slip Op 74620(U) (Ontario)	denied reconsideration 10/27/16 (Abdus-Salaam, J.)
People v Williams (Isiah)	App Div, 4th Dept: 2016 NY Slip Op 74620(U) (Monroe)	denied reconsideration 10/27/16 (Abdus-Salaam, J.)
People v Wingate (Blake)	App Div, 2d Dept: 2016 NY Slip Op 77699(U) (Queens)	denied 10/17/16 (Garcia, J.)
People v Wingate (Terry)	2d Dept: 142 AD3d 630 (Kings)	denied 10/19/16 (Rivera, J.)
People v Wrenn	App Term, 2d Dept, 9th & 10th Jud Dists: 52 Misc 3d 141(A) (Nassau)	denied 10/11/16 (Pigott, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices *

(October 1, 2016 through October 31, 2016)

People v Peguero-Sanchez	2d Dept: 141 AD3d 608 (Suffolk)	granted 10/17/16 (Austin, J.)
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[65 NE3d 698, 42 NYS3d 668]

GEORGE NEWMAN et al., Appellants, v RCPI LANDMARK PROPERTIES, LLC, et al., Respondents.

Argued October 18, 2016; decided November 17, 2016

* Includes only applications that were granted.

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 29, 2015. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Eileen A. Rakower, J.), which had denied defendants' motion for summary judgment dismissing the complaint; (2) granted the motion; and (3) directed the Clerk to enter judgment accordingly.

Newman v RCPI Landmark Props., LLC, 124 AD3d 551, reversed.

HEADNOTE**Negligence — Proximate Cause — Triable Question Precluding Summary Judgment**

In an action to recover for injuries incurred by plaintiff when he descended from a loading dock, defendants' motion for summary judgment dismissing the complaint was denied where defendants' own submissions did not establish as a matter of law that their alleged negligence was not a proximate cause of the accident, but left open the possibility that some negligence on their part contributed to the injuries incurred, and that there was a causal link between that alleged negligence and plaintiff's fall.

APPEARANCES OF COUNSEL

Napoli Shkolnik PLLC, New York City (*Annie E. Causey* and *Joseph P. Napoli* of counsel), for appellants.

Ahmuty, Demers & McManus, Albertson (*Glenn A. Kaminska* and *Nicholas M. Cardascia* of counsel), for respondents.

Margaret G. Klein, *Defense Association of New York, Inc.*, New York City (*Andrew Zajac*, *Dawn C. DeSimone*, *Rona L. Platt*, *Brendan T. Fitzpatrick* and *Jonathan T. Uejio* of counsel), and *McGaw, Alventosa & Zajac*, Jericho, for Defense Association of New York, Inc., amicus curiae.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, with costs, and defendants' motion for summary judgment dismissing the complaint denied.

This is an ordinary negligence case. Questions regarding proximate cause generally are for a trier of fact (*see Derdiarian v Felix Contr. Corp.*, 51 NY2d 308, 315 [1980], *rearg denied* 52 NY2d 784 [1980]). Defendants' own submissions do not establish as a matter of law that their alleged negligence was

not a proximate cause of the accident (*see generally Zuckerman v City of New York*, 49 NY2d 557, 562 [1980]). Viewed “ ‘in the light most favorable to [plaintiffs,] the non-moving part[ies]’ ” (*Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012], quoting *Ortiz v Varsity Holdings, LLC*, 18 NY3d 335, 339 [2011]), those submissions leave open the possibility that some negligence on defendants’ part contributed to the injuries incurred by George Newman (plaintiff) when he descended from the loading dock in question, and that there is a causal link between that alleged negligence and plaintiff’s fall.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order reversed, with costs, and defendants’ motion for summary judgment dismissing the complaint denied, in a memorandum.

[65 NE3d 705, 42 NYS3d 676]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EUGENE FRANCIS, Appellant.

Decided November 17, 2016

SUMMARY

APPEAL, by permission of Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered October 21, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Westchester County (Robert A. Neary, J.), which had convicted defendant, upon his plea of guilty, of attempted burglary in the first degree.

Supreme Court initially granted defendant’s motion to dismiss the indictment in which he was charged with multiple criminal offenses arising from two separate incidents on the ground that his statutory right to a speedy trial had been violated. However, on the following day, Supreme Court issued an amended decision and order denying the motion with respect to counts seven, eight and nine of the indictment, as the criminal conduct underlying those counts was the subject of a second, separate felony complaint, and there was no evidence of a speedy trial violation with respect to those counts. The Appellate Division concluded that since the hearing court could have entertained a timely motion for leave to reargue to

correct its initial order, it properly exercised its inherent authority to correct the error in that order a day after it was issued, without awaiting the making of such a motion by the People. As such, a valid indictment was pending at the time of defendant's plea, and his plea of guilty was not jurisdictionally defective.

People v Francis, 132 AD3d 893, affirmed.

HEADNOTE

Crimes — Indictment — Jurisdiction to Correct Erroneous Dismissal

Supreme Court had jurisdiction over defendant's criminal prosecution when it corrected an error in a decision issued one day prior based on an objective fact and thereby reinstated certain counts of defendant's indictment. Accordingly, there was no basis to disturb the judgment entered upon defendant's guilty plea.

APPEARANCES OF COUNSEL

Andrew W. Sayegh, Yonkers, for appellant.

James A. McCarty, Acting District Attorney, White Plains (*Laurie Sapakoff* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Supreme Court had jurisdiction over the case when it corrected an error in a decision issued one day prior based on an objective fact and thereby reinstated certain counts of defendant's indictment. Accordingly, there is no basis to disturb the judgment entered upon defendant's guilty plea.

Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur; Chief Judge DiFIORE taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[65 NE3d 696, 42 NYS3d 667]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN GAYDEN, Appellant.

Argued October 14, 2016; decided November 17, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme

Court in the Fourth Judicial Department, entered March 27, 2015. The Appellate Division affirmed a judgment of the Monroe County Court (Vincent M. Dinolfo, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the second degree (two counts) and criminal possession of a weapon in the third degree.

People v Gayden, 126 AD3d 1518, affirmed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Mixed Question of Law and Fact — Reasonable Suspicion to Pursue Defendant

In defendant's prosecution for criminally possessing a handgun which fell from his waist when he fled from a police officer, the issue of whether the officer had reasonable suspicion to pursue defendant was a mixed question of law and fact, limiting review by the Court of Appeals. Because there was record support for the determination of the lower courts, it was affirmed.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (*David R. Juergens* of counsel), for appellant.

Sandra Doorley, District Attorney, Rochester (*Daniel Gross* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

On June 11, 2010, police were dispatched to Ellison Street in Rochester, after an anonymous caller informed a 911 operator that two black males were walking back and forth in the area of Ellison Street and Webster Avenue carrying silver colored guns on their waists. One individual was described as wearing a white T-shirt with red letters. The other was wearing a black T-shirt.

Two uniformed police officers, each driving a marked patrol car, responded to a radio dispatch concerning the 911 call. The first officer to arrive observed two black males walking side-by-side on the Ellison Street sidewalk between Webster Avenue and Bay Street. One male had a black T-shirt and the other male wore a two-toned blue jacket, over what appeared to the officer to be a light-colored T-shirt. The officer parked his vehicle and approached the men on foot. As soon as they saw the officer, one man fled into a backyard and the other man, defendant, continued to walk southbound on Ellison Street. The officer pursued the fleeing man with his gun drawn and

observed the man hide what was later discovered to be a handgun underneath a pile of leaves.

When the second officer arrived at the scene, he observed the fleeing man run into the backyard with the first officer running after him and defendant walking down Ellison Street. No one else was in the area. As the second officer parked and exited his vehicle, defendant yelled an expletive and fled. The officer gave chase and observed a handgun fall from defendant's waist.

County Court denied defendant's motion to suppress the gun. The Appellate Division affirmed, finding the second officer had "a founded suspicion that criminal activity was afoot, justifying his initial common-law inquiry of defendant" (126 AD3d 1518, 1518 [4th Dept 2015]). The Court explained that defendant's flight upon seeing the second officer exit his vehicle provided the officer with the requisite reasonable suspicion of criminal activity to warrant his pursuit of defendant, and the fact that defendant dropped the gun during the pursuit gave rise to probable cause to arrest (*id.* at 1518-1519).

The issue of whether the second officer had reasonable suspicion to pursue defendant is a mixed question of law and fact, limiting our review (*see People v Moore*, 6 NY3d 496, 500-501 [2006]). Because there is record support for the determination of the lower courts, we affirm (*see People v Pines*, 99 NY2d 525, 527 [2002]; *compare Moore*, 6 NY3d 496 [2006]).

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, in a memorandum.

[65 NE3d 699, 42 NYS3d 669]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EARL JONES, Appellant.

Argued October 19, 2016; decided November 21, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 14, 2015. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Juan M. Merchan, J.), which had convicted defendant, upon a jury verdict, of burglary in the third degree and criminal trespass in the third degree.

People v Jones, 127 AD3d 517, affirmed.

HEADNOTE**Crimes — Evidence — Present Sense Impression**

In a prosecution stemming from a police officer's observations of defendant as he unlawfully entered a delivery truck and a building under construction while carrying a tile cutter and duffel bag, the hearsay statement of an unidentified woman who was standing nearby when the officer reached the back of the vehicle—"Did you see he was trying to get into the back of the truck? Are you going to get him?"—was properly admitted as a present sense impression. Under the present sense impression exception to the hearsay rule, spontaneous descriptions of events made substantially contemporaneously with the observations may be admitted if the descriptions are sufficiently corroborated by other evidence. Here, the woman's statement was made to the officer immediately after the event she described and before she had an opportunity for studied reflection, and the officer's own observations sufficiently corroborated her description.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (Jody Ratner of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Jared Wolkowitz and Patricia Curran of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed.

A plainclothes police officer observed defendant, who was carrying a tile cutter and green duffel bag, pulling on the lock of a door to a construction site. The officer decided to follow defendant and observed him enter the open driver's side door of a FedEx delivery truck that was parked on the street. The officer saw defendant rummage through the front compartment of the truck and then walk around to the back, where packages were stored. The officer testified that, from his vantage point, he could see a portion of defendant's leg as he stood for a few seconds at the back of the truck. Just as the officer began to approach, defendant walked away. When the officer reached the back of the vehicle, an unidentified woman who was standing nearby asked: "Did you see he was trying to get into the back of the truck? Are you going to get him?" Soon thereafter, the officer observed defendant emerge from a building that was under construction a few blocks away. Defendant was still carrying the tile cutter and duffel bag when the officer confronted him and placed him under arrest.

Before trial, the prosecutor sought to admit the hearsay statement made by the unidentified woman as either an "excited utterance" or "present sense impression." Defense

counsel opposed the motion, but Supreme Court ruled that the statement was admissible under either exception to the hearsay rule. The jury found defendant guilty of burglary in the third degree for unlawfully entering the FedEx truck with the intent to steal and criminal trespass in the third degree for unlawfully entering the building under construction. Defendant appealed, and the Appellate Division affirmed (127 AD3d 517 [1st Dept 2015]).

Defendant's principal argument on appeal is that the trial court erred in admitting the hearsay statement of the unidentified woman. We hold that the statement was properly admitted as a present sense impression. That exception to the hearsay rule allows the admission of "spontaneous descriptions of events made substantially contemporaneously with the observations . . . if the descriptions are sufficiently corroborated by other evidence" (*People v Brown*, 80 NY2d 729, 734 [1993]). Here, the woman's statement was made to the officer immediately after the event she described and before she had an opportunity for studied reflection. The officer's own observations sufficiently corroborated her description to allow its admission at trial (*see id.* at 736-737).

Because the woman's statement was admissible as a present sense impression, we need not address whether it was also admissible as an excited utterance. Defendant's remaining challenge to the statement on Confrontation Clause grounds is unpreserved for our review, and his argument with respect to the legal sufficiency of the verdict lacks merit.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, in a memorandum.

[65 NE3d 1275, 43 NYS3d 240]

THE BANK OF NEW YORK MELLON, Solely as Securities Administrator for J.P. MORGAN MORTGAGE ACQUISITION TRUST 2006-WMC4, Respondent, v WMC MORTGAGE, LLC, Defendant, and J.P. MORGAN MORTGAGE ACQUISITION CORPORATION et al., Appellants.

Decided October 25, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 1, 2015. The Appellate Division affirmed an order of the Supreme Court, New York County (Shirley Werner Kornreich, J.; op 41 Misc 3d 1230[A], 2013 NY Slip Op 51934[U] [2013]), which had, insofar as appealed from as limited by the briefs, denied the motion of defendants J.P. Morgan Mortgage Acquisition Corporation and JPMorgan Chase Bank, N.A. pursuant to CPLR 3211 (a) (1) and (7) to dismiss the third and fourth causes of action and so much of the seventh cause of action as was based on breach of defendant J.P. Morgan Mortgage Acquisition Corporation's warranties. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by . . . this Court, properly made?"

Defendant, in connection with a residential mortgage backed securitization that it arranged and sponsored, made a representation and warranty in a pooling and servicing agreement providing that "[w]ith respect to the period from [the] Whole Loan Sale Date to and including the Closing Date," the information in the mortgage loan schedule and loan tape was correct. The Appellate Division determined that the warranty unambiguously provided that if false information was on the mortgage loan schedule and loan tape before the whole loan sale date, it constituted a breach of defendant's warranties as long as it remained on the mortgage loan schedule or loan tape during the warranty period, i.e., defendant warranted against the existence of any material misstatement during the warranty period, no matter when the misstatements first appeared on the mortgage loan schedule or loan tape. Furthermore, the Appellate Division determined that, because defendant was warranting the veracity of information that, by definition, could not change after the origination date, the warranty was not merely a bring-down or gap warranty.

Bank of N.Y. Mellon v WMC Mtge., LLC, 136 AD3d 1, affirmed.

HEADNOTE**Contracts — Construction — Warranty in Pooling and Servicing Agreement**

In an action arising from a residential mortgage backed securitization, an Appellate Division order which affirmed so much of a Supreme Court order denying defendants' motion, insofar as it sought to dismiss plaintiff's third

and fourth causes of action and so much of the seventh cause of action as was based on breach of defendant sponsor's warranties, was affirmed.

APPEARANCES OF COUNSEL

Sullivan & Cromwell LLP, New York City (*Darrell S. Caffasso*, *Robert A. Sacks* and *Brent J. McIntosh* of counsel), for appellants.

Holwell Shuster & Goldberg LLP, New York City (*Michael S. Shuster*, *Dwight A. Healy* and *Scott M. Danner* of counsel), for respondent.

Securities Industry and Financial Markets Association, Washington, D.C. (*Kevin M. Carroll* of counsel), and *Stroock & Stroock & Lavan LLP*, New York City (*Michael C. Keats* and *David J. Kahne* of counsel), for Securities Industry and Financial Markets Association, amicus curiae.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. The motion of defendants-appellants, insofar as it sought to dismiss plaintiff's third and fourth causes of action and so much of the seventh cause of action as is based on breach of J.P. Morgan Mortgage Acquisition Corporation's warranties, was properly denied.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[65 NE3d 678, 42 NYS3d 649]

In the Matter of JOEL R. BRANDES, a Disbarred Attorney, Appellant.

Argued September 8, 2016; decided November 1, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 3, 2015. The Appellate Division denied respondent's motion for reinstatement to the bar as an attorney and counselor-at-law.

Matter of Brandes, 2015 NY Slip Op 81096(U), affirmed.

HEADNOTE**Attorney and Client — Reinstatement — Denial — Unauthorized Practice of Law during Disbarment Period**

The Appellate Division did not abuse its discretion in denying respondent disbarred attorney's third reinstatement application upon finding that respondent had engaged in the unauthorized practice of law during the period of his disbarment when he provided paralegal services over the Internet. There was record support for the Court's decision based on its findings that respondent would speak to an attorney over the telephone or by email, rendering legal advice or an opinion about the legal problems of a particular client, and that he contracted to draft briefs and other litigation papers for attorneys, all in violation of Judiciary Law § 478.

APPEARANCES OF COUNSEL

McDonough & McDonough, LLP, Garden City (*Chris G. McDonough* of counsel), for appellant.

Mitchell T. Borkowsky, Hauppauge (*Robert H. Cabbie* of counsel), for New York State Grievance Committee for the Tenth Judicial District, respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, without costs.

Under the Judiciary Law, "the appellate division of the supreme court in each department is authorized to censure, suspend from practice or remove from office any attorney . . . who is guilty of professional misconduct . . . or any conduct prejudicial to the administration of justice" (Judiciary Law § 90 [2]). In 2002, the Appellate Division, Second Department disbarred Joel R. Brandes. In its disbarment order, the Court directed Brandes to

"desist and refrain from (1) practicing law in any form, either as principal or as agent, clerk, or employee of another, (2) appearing as an attorney or counselor-at-law before any court, judge, justice, board, commission, or other public authority, (3) giving to another an opinion as to the law or its application or any advice in relation thereto, and (4) holding himself out in any way as an attorney and counselor-at-law" (*Matter of Brandes*, 292 AD2d 129, 137 [2d Dept 2002], *lv denied* 99 NY2d 506 [2003]).

After the seven year period imposed by the Rules of the Appellate Division, Brandes applied for reinstatement three times,

and all of his applications were denied. This appeal concerns the denial of his third application.

Just as the Appellate Division has control over an attorney's disbarment, it too has control over an attorney's reinstatement. In the Second Department, "[a]n application for reinstatement may be granted by the court only upon a showing . . . by clear and convincing evidence that [the attorney] has fully complied with the provisions of the order disbarring or suspending him or her . . . and that he or she possesses the character and general fitness to practice law" (former Rules of App Div, 2d Dept [22 NYCRR] § 691.11 [c] [1]). Here, the Court found that Brandes "engaged in the unauthorized practice of law during the period of his disbarment when he provided paralegal services via the Internet" (*Matter of Brandes*, 2015 NY Slip Op 81096[U] [2015]). Specifically, the Court found that Brandes would speak to an attorney over the telephone or by email, rendering legal advice or an opinion about the legal problems of a particular client, and that he contracted to draft briefs and other litigation papers for attorneys, all in violation of Judiciary Law § 478.

Because "[t]he Appellate Division is the fact finder on issues of character and fitness and its discretion is inclusive" (*Matter of Anonymous*, 79 NY2d 782, 783 [1991]), our standard of review is limited to whether the Second Department abused its discretion. Here, because there was record support for the Court's decision, there was no abuse of discretion in denying the reinstatement application.

Chief Judge DiFiore and Judges Pigott, Abdus-Salaam, Fahy and Garcia concur; Judges Rivera and Stein taking no part.

Order affirmed, without costs, in a memorandum.

AFTERMATH RESTORATION, INC., Plaintiff, v NEW YORK CENTRAL
MUTUAL FIRE INSURANCE COMPANY et al., Respondents,
and DAVID DALE, Appellant.

Submitted August 29, 2016; decided November 1, 2016

Reported below, 141 AD3d 1124; 138 AD3d 1491.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judges PIGOTT and FAHEY taking no part.

CENTRAL NATIONAL BANK, CANAJOHARIE, Respondent, v SCOTTY'S AUTO SALES, INC., Defendant, and ELAINE AMIDON, Appellant.

Submitted August 22, 2016; decided November 1, 2016

Reported below, 138 AD3d 1263.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

YEHUDA DEUTSCH, as Administrator of the Estate of JESIE DEUTSCH, Deceased, Appellant, v CHESKEL GRUNWALD et al., Respondents.

Submitted August 29, 2016; decided November 1, 2016

Reported below, 138 AD3d 915.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NEW YORK STATE ELECTRIC & GAS CORPORATION, Appellant, v COUNTY OF CHEMUNG et al., Respondents.

Submitted August 15, 2016; decided November 1, 2016

Reported below, 137 AD3d 1550.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICKEY GAMBLE, Appellant.

Submitted August 22, 2016; decided November 1, 2016

Reported below, 141 AD3d 1119.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the Appellate Division order entered in this proceeding commenced in City Court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* JAMES PEARCE,
Appellant, *v* STEWART ECKERT, Respondent.

Submitted August 22, 2016; decided November 1, 2016

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

Judges PIGOTT and FAHEY taking no part.

RICHARD RONKESE, Respondent, *v* TILCON NEW YORK, INC., Appellant, *et al.*, Defendants.

Submitted August 1, 2016; decided November 1, 2016

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of TERRY SANDERS, Appellant, *v* ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted July 11, 2016; decided November 1, 2016

Reported below, 128 AD3d 1156.

Motion for reargument *etc.* denied [*see* 27 NY3d 1064 (2016)].

In the Matter of TERRY SANDERS, Appellant, *v* ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted August 22, 2016; decided November 1, 2016

Reported below, 2016 NY Slip Op 62610(U).

Motion for reargument *etc.* denied [*see* 27 NY3d 1064 (2016)].

SETH MITCHELL, CFA, Appellant, v NEW YORK UNIVERSITY et al., Respondents.

Submitted August 22, 2016; decided November 1, 2016

Reported below, 2016 NY Slip Op 80172(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief etc. dismissed as academic.

SHERILYN F. VAN ORDEN, Appellant, v RICHARD E. VAN ORDEN, Respondent.

Submitted July 25, 2016; decided November 1, 2016

Reported below, 140 AD3d 1282.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge STEIN taking no part.

[65 NE3d 1280, 43 NYS3d 245]

MIRIAM LEVY OATES, as Administratrix of the Estate of RACHEL LEVY, Deceased, et al., Respondents, v NEW YORK CITY TRANSIT AUTHORITY, Appellant, et al., Defendants.

Decided November 17, 2016

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 12, 2016. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, Bronx County (Norma Ruiz, J.), entered upon a jury verdict in favor of plaintiffs, which had awarded plaintiffs \$300,000 for decedent Rachel Levy's conscious pain and suffering; \$150,000 for plaintiff Hadassah Levy's past loss of custodial services, and \$400,000 for her future loss of custodial services (over a 10-year period); and \$100,000 for plaintiff Miriam Levy Oates's future loss of nurture, care and guidance (over a five-year period).

Plaintiffs' decedent was found dead under one of defendant New York City Transit Authority's buses. While the bus driver had no explanation for how her body came to be there, the Appellate Division determined that plaintiffs' evidence, including DNA evidence matching samples recovered from the bus, was sufficient to support the jury's finding that the bus driver was negligent in operating the bus. In particular, plaintiffs showed that decedent's body had been crushed by the bus at such an angle that the bus driver, pulling out of the bus stop, should have, with the proper use of his senses, seen decedent. The Appellate Division further determined that plaintiffs' uncontroverted expert testimony that decedent was conscious and in pain for two to five seconds after being hit by the bus supported the jury's finding that decedent sustained conscious pain and suffering prior to her death.

Oates v New York City Tr. Auth., 138 AD3d 470, affirmed.

HEADNOTE

Motor Vehicles — Injuries to Pedestrians

In an action arising from the death of plaintiff's decedent, the Appellate Division correctly determined that legally sufficient evidence supported the jury's findings of negligence and entitlement to damages for decedent's conscious pain and suffering.

APPEARANCES OF COUNSEL

Lawrence Heisler, MTA New York City Transit, Brooklyn, for appellant.

Law Offices of Rosemarie Arnold, New York City (*Paige R. Butler* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. The Appellate Division correctly determined that legally sufficient evidence supported the jury's findings of negligence and entitlement to damages for decedent's conscious pain and suffering.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLINTON
JOHNSON, Appellant.

Decided November 17, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 23, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Onondaga County (John J. Brunetti, J.), which had convicted defendant, upon his plea of guilty, of attempted criminal possession of a weapon in the third degree.

People v Johnson, 134 AD3d 1388, affirmed.

HEADNOTE

Crimes — Timeliness of Prosecution — Due Process — Preindictment Delay

In defendant's prosecution for criminally possessing a weapon and related crimes, there was record support for the conclusion that the nearly 4½ year delay between the crime and the indictment did not deprive defendant of his due process right to prompt prosecution. This was not a circumstance where a lengthy and unjustifiable delay in commencing the prosecution required dismissal even though no actual prejudice to defendant was shown.

APPEARANCES OF COUNSEL

Philip Rothschild, Hiscock Legal Aid Society, Syracuse (*Evan Hannay* of counsel), for appellant.

William J. Fitzpatrick, District Attorney, Syracuse (*James P. Maxwell* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. There is record support for the conclusion that the nearly 4½ year delay between the crime and the indictment “did not deprive defendant of his due process right to prompt prosecution” (*People v Velez*, 22 NY3d 970, 972 [2013]). This is not a circumstance where “a lengthy and unjustifiable delay in commencing the prosecution . . . require[s] dismissal even though no actual prejudice to the defendant is shown” (*People v Singer*, 44 NY2d 241, 253-254 [1978]).

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

AMERICAN ECONOMY INSURANCE COMPANY et al., Respondents, v
STATE OF NEW YORK et al., Appellants.

Submitted November 7, 2016; decided November 17, 2016

Reported below, 139 AD3d 138.

Motion by American Insurance Association et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of IBRAHIM DONMEZ, Appellant, v NEW YORK CITY
DEPARTMENT OF CONSUMER AFFAIRS et al., Respondents.

Decided November 17, 2016

Reported below, 139 AD3d 595.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of IBRAHIM DONMEZ, Appellant, v NEW YORK CITY
DEPARTMENT OF CONSUMER AFFAIRS et al., Respondents.

Decided November 17, 2016

Reported below, 139 AD3d 596; 2015 NY Slip Op 91560(U).

Appeal, insofar as taken from the Appellate Division order confirming the determination of respondent New York City Department of Consumer Affairs, denying the petition, and dismissing the proceeding, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal, insofar as taken from the Appellate Division order resolving the motion to enlarge the record, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of FRANK G., Appellant, v RENEE P-F. et al.,
Respondents. (Proceeding No. 1.)

In the Matter of RENEE P-F., Respondent, v FRANK G., Appel-
lant. (Proceeding No. 2.)

In the Matter of JOSEPH P., Respondent, v FRANK G., Appellant.
(Proceeding No. 3.)

Submitted October 24, 2016; decided November 17, 2016

Reported below, 2016 NY Slip Op 86992(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceedings within the meaning of the Constitution. Mo-
tion for a stay dismissed as academic.

DAVID FRIEDMAN, Appellant, v THE HEBREW HOME FOR THE AGED
AT RIVERDALE, Respondent.

Submitted July 5, 2016; decided November 17, 2016

Reported below, 131 AD3d 421.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution (*see Kushlin*
v Bialer, 26 NY2d 748 [1970]).

DAVID FRIEDMAN, Appellant, v THE HEBREW HOME FOR THE AGED
AT RIVERDALE, Respondent.

Submitted July 25, 2016; decided November 17, 2016

Reported below, 131 AD3d 421.

Motion by New Yorkers for Patient & Family Empowerment
et al. for leave to appear amici curiae on the motion for leave
to appeal herein granted and the brief is accepted as filed.

DAVID FRIEDMAN, Appellant, v THE HEBREW HOME FOR THE AGED
AT RIVERDALE, Respondent.

Submitted July 25, 2016; decided November 17, 2016

Reported below, 131 AD3d 421.

Motion by New York State Trial Lawyers Association for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of JOHN A. LAVENDER, II, Appellant, v ZONING BOARD OF APPEALS OF THE TOWN OF BOLTON et al., Respondents.

Decided November 17, 2016

Reported below, 141 AD3d 970.

Appeal, insofar as taken from that part of the Appellate Division order affirming the June 2013 Supreme Court judgment, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the remaining portion of the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution.

RHONDA LEWIS et al., Appellants, v ROBERT JUTKOWITZ et al., Defendants, and WILLIAM GAEL et al., Respondents.

Submitted July 25, 2016; decided November 17, 2016

Reported below, 136 AD3d 875.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Paglia v Agrawal*, 69 NY2d 946 [1987]).

SHELLEY MIZRAHI-SROUR, Respondent, v ALBERT SROUR, Appellant.

Submitted June 6, 2016; decided November 17, 2016

Reported below, 138 AD3d 801.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICHOLAS BROOKS, Appellant.

Submitted November 7, 2016; decided November 17, 2016

Reported below, 134 AD3d 574.

Motion for poor person relief, for the purpose requested, denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AARON M. MARTINEZ, Appellant.

Submitted November 14, 2016; decided November 17, 2016

Reported below, 141 AD3d 1007.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v HAROLD L. PETKE, Respondent.

Submitted October 24, 2016; decided November 17, 2016

Reported below, 125 AD3d 1103.

Motion for assignment of counsel granted and Richard V. Manning, Esq., 10 Cassidy Road, P.O. Box 273, Parishville, New York 13672 assigned as counsel to the respondent nunc pro tunc on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL E. PRINDLE, Appellant.

Submitted October 31, 2016; decided November 17, 2016

Reported below, 129 AD3d 1506.

Motion by Legal Aid Society for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DWIGHT SMITH, Respondent.

Submitted October 31, 2016; decided November 17, 2016

Reported below, 143 AD3d 31.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DIANE WORD, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DIANE WORD, Respondent.

Decided November 17, 2016

Reported below, 260 AD2d 196.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies from the order entered in this criminal proceeding (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. FRANK MONTE, Appellant, v WARDEN MAXSOLAINE MINGO, et al., Respondents.

Submitted August 1, 2016; decided November 17, 2016

Reported below, 2016 NY Slip Op 65867(U).

Motion for reargument denied [*see* 27 NY3d 1079 (2016)].

In the Matter of MARTIN J. SAWMA, Appellant, v THOMAS P. DINAPOLI, as State Comptroller, Respondent.

Decided November 17, 2016

Reported below, 139 AD3d 1273; 2016 NY Slip Op 82263(U).

Appeal, insofar as taken from the August 2016 Appellate Division order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the proceeding within the meaning of the

Constitution; appeal, insofar as taken from the May 2016 Appellate Division order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

[65 NE3d 1286, 43 NYS3d 251]

JUSTIN NAZARIO, Respondent, v 222 BROADWAY, LLC, et al., Respondents. 222 BROADWAY, LLC, et al., Third-Party Plaintiffs-Respondents, v KNIGHT ELECTRICAL SERVICES CORP., Third-Party Defendant-Appellant. (And Other Third-Party Actions.)

Decided November 21, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 14, 2016. The Appellate Division order, insofar as appealed from, modified, on the law, an order of the Supreme Court, New York County (Geoffrey D. Wright, J.; op 2014 NY Slip Op 30857[U] [2014]), which had (1) denied plaintiff's motion for partial summary judgment on his Labor Law §§ 240 (1) and 241 (6) claims; (2) upon a search of the record, dismissed those claims; and (3) granted defendants' motions for summary judgment on their contractual indemnification claims against third-party defendant. The modification consisted of (1) reinstating the Labor Law § 240 (1) claim; (2) granting plaintiff's motion for partial summary judgment on that claim; and (3) denying defendant 222 Broadway, LLC's motion for summary judgment on its contractual indemnification claim. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of the Supreme Court, properly made?"

Nazario v 222 Broadway, LLC, 135 AD3d 506, modified.

HEADNOTE

Labor — Safe Place to Work — Fall from Ladder — Summary Judgment

Plaintiff, who fell from an A-frame ladder after receiving an electrical shock, was not entitled to partial summary judgment on the issue of liability on his Labor Law § 240 (1) claim, where questions of fact existed as to

whether the ladder failed to provide proper protection, and whether he should have been provided with additional safety devices.

APPEARANCES OF COUNSEL

O'Connor Redd LLP, Port Chester (*Amy L. Fenno* of counsel), for third-party defendant-appellant.

Arye, Lustig & Sassower, P.C., New York City (*D. Carl Lustig, III* of counsel), for Justin Nazario, respondent.

Lawrence, Worden, Rainis & Bard, P.C., Melville (*Leslie McHugh* of counsel), for 222 Broadway, LLC, and another, respondents/third-party plaintiffs-respondents.

Cerussi & Spring, White Plains (*Thomas F. Cerussi* of counsel), for Lime Energy Co., respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be modified, without costs, by denying plaintiff's motion for partial summary judgment on the issue of liability on his Labor Law § 240 (1) claim and remitting the case to the Appellate Division for consideration of the issues raised but not determined on the appeal to that Court, and, as so modified, affirmed, and the certified question should be answered in the negative.

Plaintiff is not entitled to summary judgment under Labor Law § 240 (1). While using an A-frame ladder, plaintiff fell after receiving an electrical shock. Questions of fact exist as to whether the ladder failed to provide proper protection, and whether plaintiff should have been provided with additional safety devices (*see Blake v Neighborhood Hous. Servs. of N.Y. City*, 1 NY3d 280, 287 [2003]; *Barreto v Metropolitan Transp. Auth.*, 25 NY3d 426 [2015], *rearg denied* 25 NY3d 1211 [2015]). Defendants Lime Energy Co. and Jones Lang LaSalle Americas, Inc. were properly granted summary judgment on their contractual indemnification claims against Knight Electrical Services Corp.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, modified, without costs, by denying plaintiff's motion for partial summary judgment on the issue of liability on his Labor Law § 240 (1) claim and remitting the case to the Appellate Division, First Department, for consideration of is-

sues raised but not determined on the appeal to that Court, and, as so modified, affirmed, and certified question answered in the negative, in a memorandum.

[65 NE3d 1272, 43 NYS3d 237]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
RODOLFO HERNANDEZ, Appellant.

Argued November 15, 2016; decided December 15, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 15, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Richmond County (Stephen J. Rooney, J.), which had convicted defendant, upon a jury verdict, of sexual abuse in the first degree and endangering the welfare of a child.

People v Hernandez, 127 AD3d 991, affirmed.

HEADNOTE

Crimes — Evidence — Excited Utterances — Statements by Child Victim Made within Half Hour of Sexual Abuse

In defendant's prosecution for sexually abusing a three-year-old girl on the bus he drove, the trial court properly admitted into evidence as excited utterances the child's statements to her mother and father made shortly after the abuse occurred, as the surrounding circumstances reasonably justified the conclusion that the child's remarks were not made under the impetus of studied reflection. The excited utterance exception to the hearsay rule permits a court to admit an out-of-court statement made in response to a startling or upsetting event, if the circumstances surrounding the statement reveal that it was made while the declarant was under the stress of excitement and lacked the reflective capacity essential for fabrication. The evidence established that the child was in a highly emotional state when she first stepped off the bus and that she continued to cry inconsolably as she uttered the phrase "Senor Bus" to her mother and father at home and made a licking gesture with her tongue. Those statements were made within a half hour of the startling event, while the child was still under the stress of excitement. The child repeated the same phrase and gesture to her parents three hours later at a hospital and also pulled her mother's hand to the child's genital area. Even if the stress of excitement had sufficiently abated by the time the child made her later statements at the hospital, any error in their admission was harmless. Evidence at trial provided overwhelming proof of defendant's guilt, and there was no significant probability that the jury would have reached a different conclusion if the hearsay statements from the hospital had been excluded.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (Anna Pervukhin of counsel), for appellant.

Michael E. McMahon, District Attorney, Staten Island (Anne Grady and Morrie I. Kleinbart of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was convicted, after a jury trial, of one count each of sexual abuse in the first degree and endangering the welfare of a child for sexually touching a three-year-old girl on the bus defendant drove. On appeal, he argues that the trial court erred in allowing the child's mother and father to testify about certain statements the child made to them shortly after the alleged abuse occurred and then several hours later at a hospital, both under the excited utterance exception to the hearsay rule.

That exception permits a court to admit an out-of-court statement made in response to a startling or upsetting event, if the circumstances surrounding the statement reveal that it was made while the declarant was under the stress of excitement and "lack[ed] the reflective capacity essential for fabrication" (see *People v Johnson*, 1 NY3d 302, 306 [2003]). The decision to admit hearsay as an excited utterance is left to the sound judgment of the trial court, which must consider, among other things, the nature of the startling event, the amount of time between the event and the statement, and the activities of the declarant in the interim (see *People v Edwards*, 47 NY2d 493, 497 [1979]). "Above all, the decisive factor is whether the surrounding circumstances reasonably justify the conclusion that the remarks were not made under the impetus of studied reflection" (*id.*).

We discern no error in the admission of the child's initial statements to her mother and father as excited utterances. The evidence established that the child was in a highly emotional state when she first stepped off the bus and that she continued to cry inconsolably as she uttered the phrase "Señor Bus" to her mother and father at home and made a licking gesture with her tongue. Those statements were made within a half hour of the startling event, while the child was still under the stress of excitement, and therefore were properly admitted at trial (see *People v Brown*, 70 NY2d 513, 518 [1987]).

The child repeated the same phrase and gesture to her parents three hours later at a hospital and also pulled her

mother's hand to the child's genital area. Even accepting defendant's contention that the stress of excitement had sufficiently abated by the time the child made those later statements, any error in their admission was harmless (*see People v Crimmins*, 36 NY2d 230, 241-242 [1975]).* Forensic testing confirmed the presence of defendant's DNA in the child's underwear, and the bus matron provided unrefuted testimony that defendant had altered his bus route in such a way that the child was alone with defendant for approximately 30 minutes on the day of the incident. Additionally, the child's mother testified that the child ran into the house screaming and crying as soon as she got off the bus, and that the child's underwear had been pulled down and were bunched up inside the leg of her pants. The emergency room doctor found redness and a sore on the child's genital area that he believed were the result of external trauma, i.e., touching.

This and other evidence at trial provided overwhelming proof of defendant's guilt, and there was no significant probability that the jury would have reached a different conclusion if the hearsay statements from the hospital had been excluded (*see Kello*, 96 NY2d at 743-744).

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, in a memorandum.

In the Matter of ADVANCED THERAPY, OT, PT, SLP, PSYCHOLOGIST, REGISTERED PROFESSIONAL NURSE (RN), PLLC, Appellant, v NEW YORK STATE EDUCATION DEPARTMENT, Respondent.

Submitted August 15, 2016; decided October 25, 2016

Reported below, 140 AD3d 1367.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

* Because defendant did not object to the admission of the child's statements on constitutional grounds, the proper standard of harmless error analysis is that of nonconstitutional trial error—i.e., “whether (1) proof of guilt was overwhelming; and (2) there was no significant probability that the jury would have acquitted had the proscribed evidence not been introduced” (*People v Kello*, 96 NY2d 740, 744 [2001]).

ANDREW BIAGLOW et al., Appellants-Respondents, v ELITE PROPERTY HOLDINGS, LLC, et al., Respondents-Appellants, et al., Defendant.

Submitted August 8, 2016; decided October 25, 2016

Reported below, 140 AD3d 814.

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of JEFFREY GAWRYS, Appellant. MEDICAL DELIVERY SERVICES, Respondent; COMMISSIONER OF LABOR, Respondent.

Submitted July 11, 2016; decided October 25, 2016

Reported below, 140 AD3d 1363.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

INDUS PVR LLC, Respondent, v MAA-SHARDA, INC., Appellant, ROSHAN HOSPITALITY, INC., et al., Defendants. (Appeal No. 1.)

INDUS PVR LLC, Respondent, v MAA-SHARDA, INC., Appellant, ROSHAN HOSPITALITY, INC., et al., Defendants. (Appeal No. 3.)

Submitted August 1, 2016; decided October 25, 2016

Reported below, 140 AD3d 1666, 1668.

Motion, insofar as it seeks leave to appeal from the Appellate Division order affirming the Supreme Court judgment, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of 111-35 75TH AVE. OWNERS CORP., Respondent, v SARAH HENDRIX, Appellant, et al., Respondents.

Submitted August 1, 2016; decided October 25, 2016

Reported below, 2016 NY Slip Op 60739(U).

Motion for reargument of motion for leave to appeal denied [see 27 NY3d 1053 (2016)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OLIVER BERRY, Also Known as CHRIS TUCKER, Appellant.

Submitted July 25, 2016; decided October 25, 2016

Reported below, 110 AD3d 1002.

Motion for reargument dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [see 27 NY3d 10 (2016)].

In the Matter of CHRISTIAN URENA, Appellant, v ANTHONY ANNUCCI, Respondent.

Submitted August 1, 2016; decided October 25, 2016

Reported below, 134 AD3d 727.

Motion for reargument of motion for leave to appeal denied [see 27 NY3d 907 (2016)].

[66 NE3d 663, 43 NYS3d 793]

DAVID PULLMAN, Appellant, v DAVID A. SILVERMAN, M.D., et al., Respondents.

Argued September 13, 2016; decided November 1, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 26, 2015. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Joan B. Lobis, J.; op 2012 NY Slip Op 32242[U] [2012]), which had dismissed the complaint as to defendant David A. Silverman, M.D. The following question was certified by the Appellate Division: “Was the order of this Court, which, *inter alia*, affirmed the judgment of the Supreme Court, properly made?”

Pullman v Silverman, 125 AD3d 562, reversed.

HEADNOTE

Judgments — Summary Judgment — Medical Malpractice — Contraindicated Prescription

In a medical malpractice action alleging that plaintiff's atrioventricular (AV) heart block resulted from defendant doctor's negligent administration of the combination of Lipitor and azithromycin, defendant was not entitled to summary judgment on the issue of proximate cause. Defendant's expert proffered only conclusory assertions unsupported by any medical research that defendant's actions in prescribing both drugs concurrently did not proximately cause plaintiff's AV heart block, which did not adequately address plaintiff's allegations that the concurrent Lipitor and azithromycin prescriptions caused his injuries. By ignoring the possible effect of the azithromycin prescription, alone or in conjunction with Lipitor, defendant's expert failed to tender sufficient evidence to demonstrate the absence of any material issues of fact as to proximate causation.

APPEARANCES OF COUNSEL

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (*Brian J. Isaac* and *Michael H. Zhu* of counsel), and *Napoli Bern Ripka Shkolnik LLP* for appellant.

Aaronson Rappaport Feinstein & Deutsch, LLP, New York City (*Elliott J. Zucker* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, defendant David A. Silverman, M.D.'s motion for summary judgment denied, and the certified question answered in the negative.

In this medical malpractice action, plaintiff alleged that defendant's negligent administration of Lipitor and his negligent administration of the combination of Lipitor and azithromycin caused him to have a cardiac arrhythmia, which progressed to third-degree atrioventricular (AV) heart block necessitating the placement of a permanent pacemaker. Specifically, in his bill of particulars, plaintiff alleged in part that Dr. Silverman committed medical malpractice: "in negligently prescribing Lipitor," "in negligently prescribing Azithromycin," and "in negligently failing to consider the possible adverse drug interactions in a patient on both Lipitor and Azithromycin." Accordingly, as set forth in that bill of particulars, plaintiff alleged his AV heart block resulted from the negligent administration of the combination of Lipitor and azithromycin, and that taking both drugs concurrently proximately caused plaintiff's injuries. Plaintiff did not, as suggested by the dissent, exclusively claim "in his bill of particulars that defendant

‘exacerbated [p]laintiff’s adverse reaction to Lipitor by prescribing . . . Azithromycin.’ ”

Defendant moved for summary judgment solely on the issue of proximate cause and submitted a medical expert affidavit in support of his motion.* While defendant’s expert characterized plaintiff’s allegations of malpractice as “center[ed] around an alleged contraindicated prescription by Dr. Silverman to plaintiff of Lipitor separately and/or in conjunction with Azithromycin,” it was clear from plaintiff’s bill of particulars—despite defendant’s somewhat confusing use of “and/or”—that the combination of both drugs established one basis for the claimed negligence. However, defendant’s expert failed to address the effect of azithromycin administration alone or in conjunction with Lipitor. To the contrary, defendant’s expert affidavit addressed azithromycin only in conclusory statements unsupported by any reference to medical research.

In opposition, plaintiff and his experts asserted, *inter alia*, that defendant’s expert’s affidavit did not adequately address the concurrent azithromycin prescription and did not cite to any medical research in support of his conclusions about the combined effect. Accordingly, plaintiff argued, defendant failed as a matter of law to eliminate all triable issues of fact regarding whether the combined effect of the drugs could have proximately caused plaintiff’s eventual heart block.

It is well settled that “the proponent of a summary judgment motion must make a *prima facie* showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact” (*Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]). Failure to make such *prima facie* “showing requires denial of the motion, regardless of the sufficiency of the opposing papers” (*Winegrad v New York Univ. Med. Ctr.*, 64 NY2d 851, 853 [1985]). Establishing entitlement to summary judgment as a matter of law requires the defendant to “rebut[] with factual proof plaintiff’s claim of malpractice” (*Alvarez*, 68 NY2d at 325). “[B]are conclusory assertions . . . with no factual relationship to the alleged injury” are insufficient to “establish that the cause of action has no merit so as to entitle defendant[] to summary judgment” (*Winegrad*, 64 NY2d at 853).

* The issue of the proper medical malpractice summary judgment standard discussed in the concurrence is not before this Court, it was not briefed by the parties, and we do not address it.

Here, defendant's expert proffered only conclusory assertions unsupported by any medical research that defendant's actions in prescribing both drugs concurrently did not proximately cause plaintiff's AV heart block. These conclusory statements did not adequately address plaintiff's allegations that the concurrent Lipitor and azithromycin prescriptions caused plaintiff's injuries. By ignoring the possible effect of the azithromycin prescription, defendant's expert failed to "tender[] sufficient evidence to demonstrate the absence of any material issues of fact" (*Alvarez*, 68 NY2d at 324) as to proximate causation and, as a result, defendant was not entitled to summary judgment. Because defendant failed to meet his prima facie burden, it is unnecessary to review the sufficiency of the plaintiff's opposition papers (*Winegrad*, 64 NY2d at 853).

FAHEY, J. (concurring). Although I join the majority's memorandum decision, I write separately to note that the Court takes no position on whether the Appellate Division correctly stated the standard governing the shifting of burden in a medical malpractice summary judgment motion. This issue was raised by the parties in their briefs, but not thoroughly discussed.

According to the decision below, if a defendant in a medical malpractice action establishes prima facie entitlement to summary judgment, by a showing *either* that he or she did not depart from good and accepted medical practice *or* that any departure did not proximately cause the plaintiff's injuries, plaintiff is required to rebut defendant's prima facie showing "with medical evidence that defendant departed from accepted medical practice *and* that such departure was a proximate cause of the injuries alleged" (*Pullman v Silverman*, 125 AD3d 562, 562 [1st Dept 2015] [emphasis added]). While this statement reflects First Department jurisprudence (*see e.g. Kristal R. v Nichter*, 115 AD3d 409, 411-412 [1st Dept 2014]; *Bacani v Rosenberg*, 74 AD3d 500, 501-502 [1st Dept 2010], *lv denied* 15 NY3d 708 [2010]), the Second Department has held since 2011 that if "a defendant physician, in support of a motion for summary judgment, demonstrates only that he or she did not depart from the relevant standard of care, there is no requirement that the plaintiff address the element of proximate cause in addition to the element of departure" (*Stukas v Streiter*, 83 AD3d 18, 24-25 [2d Dept 2011], disavowing *Amsler v Verrilli*, 119 AD2d 786 [2d Dept 1986]; *see also e.g. Ahmed v Pannone*, 116 AD3d 802, 805-806 [2d Dept 2014], *lv dismissed* 25 NY3d

964 [2015]; *Makinen v Torelli*, 106 AD3d 782, 783-784 [2d Dept 2013]). Rather, plaintiff “need only raise a triable issue of fact with respect to the element of the cause of action or theory of nonliability that is the subject of the moving party’s prima facie showing” (*Stukas*, 83 AD3d at 24). In short, there is an Appellate Division split. The other Departments of the Appellate Division side with the First (see e.g. *Bagley v Rochester Gen. Hosp.*, 124 AD3d 1272, 1273-1274 [4th Dept 2015]; *Longtemps v Oliva*, 110 AD3d 1316, 1317-1318 [3d Dept 2013]).

The *Stukas* Court explained the Second Department’s rationale as follows:

“In the context of any motion for summary judgment, a party’s prima facie showing of entitlement to judgment as a matter of law shifts the burden to the nonmoving party, not to prove his or her entire case, as he or she will have the burden of doing at trial, but merely to raise a triable issue of fact with respect to the elements or theories established by the moving party. There is no valid reason for adopting a different rule in medical malpractice cases.” (*Stukas*, 83 AD3d at 25.)

The Second Department reasoned that the contrary rule, requiring the nonmoving party to raise a triable issue of fact with respect to an element upon which the moving party has not made a prima facie showing, is

“incompatible with the maxim that the moving party’s evidence must be viewed in the light most favorable to the nonmoving party, as well as the general principle that summary judgment is considered a drastic remedy which should only be employed when there is no doubt as to the absence of triable issues of fact. It is neither logical nor fair to require the nonmoving plaintiff, who has previously alleged in the pleadings that the defendant’s departure was a proximate cause of the claimed injuries, to come forward with evidence addressing an element that was never raised by the moving defendant. To require a plaintiff to address both departure and causation in opposing a defendant physician’s prima facie showing as to departure only, conflates these two distinct elements, which have always been treated separately in our jurisprudence involving medical malpractice and negligence in general” (*id.* at 30).

As the *Stukas* Court noted (*see id.* at 23-24), the focus on specific rebuttal of a claim in the Second Department's analysis is supported by our language in *Alvarez v Prospect Hosp.* (68 NY2d 320 [1986]). There we wrote that

“[i]n a medical malpractice action, a plaintiff, in opposition to a defendant physician's summary judgment motion, must submit evidentiary facts or materials *to rebut the prima facie showing by the defendant physician* that he [or she] was not negligent in treating plaintiff so as to demonstrate the existence of a triable issue of fact” (*id.* at 324 [emphasis added]).

By contrast, opinions repeating the First Department's standard largely do so without citation to Court of Appeals precedent. *Amsler v Verrilli* (119 AD2d 786 [2d Dept 1986]), which was expressly disavowed in *Stukas*, cited *Zuckerman v City of New York* (49 NY2d 557 [1980]), but that decision held that

“where the moving party has demonstrated its entitlement to summary judgment, the party opposing the motion must demonstrate *by admissible evidence* the existence of a factual issue requiring a trial of the action or tender an acceptable excuse for his failure so to do, and the submission of a hearsay affirmation by counsel alone does not satisfy this requirement” (*Zuckerman*, 49 NY2d at 560 [emphasis added]).

Zuckerman did not speak to the burden-shifting issue that divides the Appellate Division.*

The present appeal does not give the Court an opportunity to decide whether *Stukas* properly describes the law of medical malpractice summary judgment in New York. First, *Pullman* is not a case in which the Appellate Division required plaintiff to show a triable issue of fact with respect to an element on which it found defendant made no *prima facie* showing. Second, this

* This Court appears to have applied the *Stukas* standard in our memorandum decision *Orsi v Haralabatos* (20 NY3d 1079 [2013]), in which defendants, through expert affidavits, met their burden on good and accepted medical practice, but failed to address proximate causation. Holding that plaintiff raised a triable issue of fact as to departure from good and accepted medical practice, we denied so much of defendants' motion as sought summary judgment dismissing the medical malpractice cause of action against them. We did *not* require plaintiff to raise a triable issue of fact as to proximate causation as well, in order to withstand summary judgment.

Court holds that defendant failed to meet his burden, so that no burden-shifting is needed. The fact that I am joining the majority does not indicate my opinion on the resolution of the split among the Appellate Division Departments on this issue.

STEIN, J. (dissenting). I would affirm the order of the Appellate Division. Plaintiff's allegations of malpractice "center[ed] around an alleged contraindicated prescription by Dr. Silverman to plaintiff of Lipitor separately and/or in conjunction with Azithromycin." As the majority recognizes, plaintiff claims that "defendant's negligent administration of Lipitor and his negligent administration of the combination of Lipitor and azithromycin" caused his injuries (majority mem at 1061). The nature of this claim can be more fully understood when read in light of plaintiff's more specific explanation in his bill of particulars that defendant "exacerbated [p]laintiff's adverse reaction to Lipitor by prescribing the concurrent administration of Azithromycin."

In my view, defendant met his burden of establishing prima facie entitlement to summary judgment. That is, "[a] *fair reading* of the [expert affidavit], [and] hospital records . . . compel the conclusion that no material triable issues of fact exist as to the claims of malpractice asserted against the defendant in the amended complaint as amplified by the bill of particulars" (*Alvarez v Prospect Hosp.*, 68 NY2d 320, 325 [1986] [emphasis added]). The affidavit of defendant's expert explains that no epidemiological studies even link Lipitor or other statins to plaintiff's injury and that an isolated case report—which, as the expert noted, cannot demonstrate causation (*see Cornell v 360 W. 51st St. Realty, LLC*, 22 NY3d 762, 783 [2014])—showing that Lipitor, in combination with drugs other than azithromycin, caused a type of myopathy was not relevant because plaintiff's medical records revealed that he did not have myopathy. The expert affidavit sufficiently demonstrated, for purposes of making a prima facie case, that plaintiff had no pertinent adverse reaction to Lipitor that could have been exacerbated by the prescription of azithromycin, which was the basis of plaintiff's claim that the combination of drugs injured him. Contrary to the majority's conclusion, the expert was not required to further "address the effect of azithromycin administration alone or in conjunction with Lipitor" (majority mem at 1062), which is the converse of plaintiff's claim, as opposed to his actual claim.

With defendant having made a prima facie showing, the burden shifted to plaintiff to raise a triable issue of fact.

Inasmuch as there is simply too great of an analytical gap between the data relied upon by plaintiff's experts and their conclusion that Lipitor, alone or in conjunction with azithromycin, caused plaintiff's injuries, defendant's motion for summary judgment was properly granted (*see Cornell*, 22 NY3d at 781).

Chief Judge DiFIORE and Judges PIGOTT, FAHEY and GARCIA concur; Judge FAHEY in a separate concurring opinion; Judge STEIN dissents and votes to affirm in an opinion in which Judges RIVERA and ABDUS-SALAAM concur.

Order reversed, with costs, defendant David A. Silverman, M.D.'s motion for summary judgment denied, and certified question answered in the negative, in a memorandum.

RAMANDEEP BADWAL, Respondent, v AVTAR S. BADWAL, Appellant.

Submitted September 19, 2016; decided November 22, 2016

Reported below, 2016 NY Slip Op 80863(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

In the Matter of DOUGLAS E. JOHNSON, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted October 11, 2016; decided November 22, 2016

Reported below, 139 AD3d 1271.

Motion for reconsideration of this Court's September 13, 2016 dismissal order denied [*see* 28 NY3d 946 (2016)].

BETTY L. KIMMEL, Respondent, v STATE OF NEW YORK et al., Appellants.

Decided November 22, 2016

Reported below, 115 AD3d 1323.

Reargument ordered and case set down for argument at a future session of the Court.

Chief Judge DiFIORE and Judges RIVERA, ABDUS-SALAAM, STEIN and GARCIA concur.

Judges PiGOTT and FAHEY taking no part.

In the Matter of DEATRICK MARSHALL, Appellant, v ANTHONY ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Submitted September 26, 2016; decided November 22, 2016

Reported below, 140 AD3d 1625.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

PATRICK QUINTAVALLE, Respondent, v NESTOR PEREZ, III, et al., Appellants.

Submitted September 19, 2016; decided November 22, 2016

Reported below, 139 AD3d 182.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MATTHEW J. RYAN, Appellant, et al., Plaintiff, v POWERS & SANTOLA, LLP, et al., Respondents.

Submitted August 22, 2016; decided November 22, 2016

Reported below, 2016 NY Slip Op 78515(U); 2016 NY Slip Op 72733(U).

On the Court's own motion, appeal, insofar as taken from the June 2016 Appellate Division order, dismissed, without costs, upon the ground that such order does not finally determine the action within the meaning of the Constitution; appeal, insofar as also deemed taken (*see* CPLR 5512) from so much of the April 2016 Appellate Division order as finally determined the action, dismissing appellant's appeal to that Court from the May 2015 Supreme Court order dismissing his complaint, dismissed, without costs, upon the ground that no

substantial constitutional question is directly involved. Motion, insofar as it seeks leave to appeal from the June 2016 Appellate Division order, dismissed, upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion, insofar as also deemed to be seeking leave to appeal (*see* CPLR 5512) from so much of the April 2016 Appellate Division order as finally determined the action, dismissing appellant's appeal to that Court from the May 2015 Supreme Court order dismissing his complaint, denied. Motion for poor person relief dismissed as academic.

MOHAMMAD SAIDIN, Appellant, v SAM NEGRON et al., Respondents.

Submitted September 26, 2016; decided November 22, 2016

Reported below, 2016 NY Slip Op 82034(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

CAROLINE SWOBODA et al., Respondents, v ADRIAN PHILIP FONTANETTA et al., Respondents, and DAY-OP CENTER OF LONG ISLAND, INC., Appellant.

Submitted September 12, 2016; decided November 22, 2016

Reported below, 131 AD3d 1042.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of INJAH UNIQUE TAFARI, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted September 19, 2016; decided November 22, 2016

Reported below, 2016 NY Slip Op 82264(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ELAINE WARD, Appellant, v CITY OF NEW YORK
et al., Respondents.

Submitted September 12, 2016; decided November 22, 2016

Reported below, 138 AD3d 629.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

APPEALS WITHDRAWN AND DISCONTINUED

(November 1, 2016 through November 30, 2016)

South Tower Residential Bd. of Mgrs. of Time Warner Ctr. Condominium v Ann Holdings, LLC	1st Dept: 127 AD3d 485	11/29/16
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(November 1, 2016 through November 30, 2016)

People v Alcivar	1st Dept: 140 AD3d 425 (NY)	denied 11/3/16 (Fahey, J.)
People v Alejandro	1st Dept: 142 AD3d 876 (NY)	denied 11/28/16 (Rivera, J.)
People v Almodovar	1st Dept: 142 AD3d 916 (Bronx)	denied 11/28/16 (Garcia, J.)
People v Alnutt	App Div, 3d Dept: 2016 NY Slip Op 83627(U) (Fulton)	denied 11/1/16 (Fahey, J.)
People v Anlyan	2d Dept: 142 AD3d 670 (Nassau)	denied 11/30/16 (Fahey, J.)
People v Antoine	2d Dept: 131 AD3d 1178 (Kings)	denied reconsideration 11/29/16 (Abdus-Salaam, J.)
People v Arias	1st Dept: 142 AD3d 874 (NY)	denied 11/30/16 (DiFiore, Ch. J.)
People v Arnold	2d Dept: 139 AD3d 748 (Kings)	denied 11/22/16 (Garcia, J.)
People v Ayala	2d Dept: 142 AD3d 1095 (Queens)	denied 11/29/16 (Abdus-Salaam, J.)
People v Baker	County Ct, 9/12/16 (Monroe)	denied 11/22/16 (Pigott, J.)
People v Bastien	2d Dept: 142 AD3d 1183 (Queens)	denied 11/22/16 (Pigott, J.)

MEMORANDA

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People v Beardslee	County Ct, 8/5/16 (Monroe)	denied 11/21/16 (Stein, J.)
People v Black	3d Dept: 141 AD3d 828 (Albany)	denied 11/4/16 (Abdus-Salaam, J.)
People v Blond	App Div, 3d Dept: 2016 NY Slip Op 68278(U) (Schenectady)	denied reconsideration 11/29/16 (Abdus-Salaam, J.)
People v Blount	App Div, 3d Dept: 2016 NY Slip Op 82924(U) (Albany)	denied 11/28/16 (Fahey, J.)
People v Bowie	App Div, 2d Dept: 2016 NY Slip Op 66644(U) (Orange)	denied reconsideration 11/1/16 (Abdus-Salaam, J.)
People v Boyd	4th Dept: 141 AD3d 1124 (Oneida)	denied 11/23/16 (DiFiore, Ch. J.)
People v Bruno	2d Dept: 139 AD3d 751 (Kings)	denied 11/4/16 (Rivera, J.)
People v Burlingame	App Div, 4th Dept, 8/16/16 (Chautauqua)	dismissed 11/9/16 (DiFiore, Ch. J.)
People v Bush	2d Dept: 132 AD3d 691 (Westchester)	denied 11/1/16 (Pigott, J.)
People v Caballero	2d Dept: 137 AD3d 929 (Queens)	denied reconsideration 11/1/16 (Fahey, J.)
People v Calinda	2d Dept: 142 AD3d 1183 (Queens)	denied 11/14/16 (DiFiore, Ch. J.)
People v Campbell	2d Dept: 142 AD3d 623 (Orange)	denied 11/21/16 (Stein, J.)
People v Capers	App Term, 1st Dept: 53 Misc 3d 126(A) (Bronx)	denied 11/28/16 (Garcia, J.)
People v Cedeno	App Div, 4th Dept, 9/15/16 (Monroe)	dismissed 11/29/16 (DiFiore, Ch. J.)
People v Colon	2d Dept: 142 AD3d 1100 (Kings)	denied 11/21/16 (Stein, J.)
People v Cramer	County Ct, 9/23/16 (Erie)	denied 11/23/16 (DiFiore, Ch. J.)
People v Cruz	App Div, 2d Dept: 2016 NY Slip Op 80940(U) (Kings)	dismissed 11/2/16 (Garcia, J.)
People v Culkin	4th Dept: 141 AD3d 1114 (Erie)	denied reconsideration 11/23/16 (DiFiore, Ch. J.)
People v Curley	1st Dept: 142 AD3d 889 (Bronx)	denied 11/28/16 (Garcia, J.)
People v Dawkins	2d Dept: 142 AD3d 672 (Queens)	denied 11/8/16 (Garcia, J.)

People v Dean	App Div, 4th Dept, 6/1/16 (Ontario)	denied reconsideration 11/28/16 (Garcia, J.)
People v DeJesus	App Term, 1st Dept: 52 Misc 3d 138(A) (Bronx)	denied 11/21/16 (Stein, J.)
People v Dennis	2d Dept: 141 AD3d 730 (Kings)	denied 11/22/16 (Fahey, J.)
People v Dorn	2d Dept: 140 AD3d 898 (Suffolk)	denied 11/14/16 (Garcia, J.)
People v Dove	App Div, 2d Dept: 2016 NY Slip Op 85483(U) (Kings)	dismissed 11/28/16 (Fahey, J.)
People v Drinkwine	2d Dept: 142 AD3d 1103 (Queens)	denied 11/30/16 (Fahey, J.)
People v Dumbuya	1st Dept: 142 AD3d 922 (NY)	denied 11/28/16 (Rivera, J.)
People v English	2d Dept: 142 AD3d 1103 (Queens)	denied 11/17/16 (Stein, J.)
People v Epakchi	App Term, 2d Dept, 9th & 10th Jud Dists: 52 Misc 3d 134(A) (Suffolk)	granted 11/30/16 (DiFiore, Ch. J.)
People v Flores	2d Dept: 140 AD3d 1085 (Queens)	denied 11/23/16 (DiFiore, Ch. J.)
People v Fogel	App Div, 2d Dept: 2016 NY Slip Op 81847(U) (Queens)	dismissed 11/10/16 (Abdus-Salaam, J.)
People v Fuentes	4th Dept: 140 AD3d 1656 (Onondaga)	denied 11/14/16 (Garcia, J.)
People v Gibson	4th Dept: 140 AD3d 1786 (Niagara)	denied 11/23/16 (DiFiore, Ch. J.)
People v Glover	App Div, 2d Dept: 2016 NY Slip Op 81181(U) (Queens)	dismissed 11/8/16 (Garcia, J.)
People v Godfrey	2d Dept: 142 AD3d 1184 (Kings)	denied 11/30/16 (Fahey, J.)
People v Green	3d Dept: 141 AD3d 1036 (Albany)	denied 11/16/16 (Rivera, J.)
People v Hakkenberg	3d Dept: 142 AD3d 1251 (Albany)	denied 11/23/16 (DiFiore, Ch. J.)
People v Hecht	2d Dept: 142 AD3d 676 (Dutchess)	denied 11/21/16 (Stein, J.)
People v Hughes	App Div, 3d Dept: 2016 NY Slip Op 83626(U) (Albany)	denied 11/5/16 (Abdus-Salaam, J.)
People v Huling	1st Dept: 140 AD3d 665 (NY)	denied 11/15/16 (DiFiore, Ch. J.)
People v Iovino	2d Dept: 142 AD3d 561 (Richmond)	denied 11/1/16 (Fahey, J.)
People v Is	3d Dept: 141 AD3d 1032 (Albany)	denied 11/30/16 (DiFiore, Ch. J.)

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People v Ivy	App Div, 4th Dept, 9/7/16 (Erie)	dismissed 11/28/16 (Stein, J.)
People v Izaguirre	2d Dept: 141 AD3d 733 (Nassau)	denied 11/15/16 (Garcia, J.)
People v Johnson	App Div, 2d Dept: 2016 NY Slip Op 83132(U) (Kings)	dismissed 11/22/16 (Pigott, J.)
People v Jones (Anthony)	2d Dept: 142 AD3d 677 (Suffolk)	denied 11/29/16 (Abdus-Salaam, J.)
People v Jones (Devon)	App Div, 3d Dept: 2016 NY Slip Op 84507(U) (Ulster)	dismissed 11/18/16 (Stein, J.)
People v Jones (Ronell)	2d Dept: 142 AD3d 678 (Westchester)	denied 11/29/16 (Abdus-Salaam, J.)
People v Jones (Timothy)	4th Dept: 142 AD3d 1383 (Ontario)	denied 11/28/16 (Garcia, J.)
People v Joseph	2d Dept: 142 AD3d 627 (Westchester)	denied 11/21/16 (Pigott, J.)
People v Keitt	1st Dept: 141 AD3d 437 (Bronx)	denied 11/16/16 (Rivera, J.)
People v Ken	3d Dept: 138 AD3d 1233 (Albany)	denied reconsideration 11/21/16 (Pigott, J.)
People v Krebbeks	4th Dept: 140 AD3d 1785 (Livingston)	denied 11/22/16 (Garcia, J.)
People v Laroche	1st Dept: 142 AD3d 872 (NY)	denied 11/28/16 (Rivera, J.)
People v Laventure	2d Dept: 138 AD3d 1023 (Kings)	denied reconsideration 11/23/16 (DiFiore, Ch. J.)
People v Lawrence (James)	3d Dept: 141 AD3d 828 (Albany)	denied 11/4/16 (Abdus-Salaam, J.)
People v Lawrence (Robert)	App Div, 4th Dept, 8/16/16 (Erie)	dismissed 11/4/16 (Abdus-Salaam, J.)
People v Letizia	4th Dept: 141 AD3d 1129 (Erie)	denied 11/15/16 (Garcia, J.)
People v Lewis	3d Dept: 138 AD3d 1346 (Albany)	denied 11/17/16 (DiFiore, Ch. J.)
People v Lloyd	3d Dept: 142 AD3d 1250 (Schenectady)	denied 11/17/16 (DiFiore, Ch. J.)
People v Mack	2d Dept: 142 AD3d 1185 (Kings)	denied 11/17/16 (Stein, J.)
People v Macon	3d Dept: 142 AD3d 739 (Ulster)	denied 11/1/16 (Fahey, J.)
People v Mann	App Term, 1st Dept: 53 Misc 3d 128(A) (NY)	denied 11/30/16 (DiFiore, Ch. J.)

People v Martin (Ramon)	2d Dept: 141 AD3d 734 (Kings)	denied 11/8/16 (Garcia, J.)
People v Martin (Roman)	2d Dept: 141 AD3d 734 (Kings)	denied 11/8/16 (Garcia, J.)
People v McBride	1st Dept: 143 AD3d 408 (NY)	denied 11/28/16 (Rivera, J.)
People v Meran	1st Dept: 143 AD3d 423 (NY)	denied 11/21/16 (Stein, J.)
People v Mitchell	2d Dept: 142 AD3d 1185 (Queens)	denied 11/29/16 (Abdus-Salaam, J.)
People v Moore	2d Dept: 142 AD3d 1024 (Suffolk)	denied 11/21/16 (Stein, J.)
People v Morris	3d Dept: 140 AD3d 1472 (Albany)	denied 11/4/16 (Rivera, J.)
People v Mujahid	2d Dept: 142 AD3d 1185 (Kings)	denied 11/28/16 (Fahey, J.)
People v Nauheimer	4th Dept: 142 AD3d 760 (Monroe)	denied 11/29/16 (Abdus-Salaam, J.)
People v Negron	2d Dept: 142 AD3d 719 (Richmond)	denied 11/29/16 (Abdus-Salaam, J.)
People v Neree	2d Dept: 142 AD3d 1026 (Suffolk)	denied 11/28/16 (Garcia, J.)
People v Ockrey	2d Dept: 142 AD3d 511 (Kings)	denied 11/29/16 (DiFiore, Ch. J.)
People v Onikosi	1st Dept: 140 AD3d 516 (NY)	denied 11/22/16 (Fahey, J.)
People v Palmer	4th Dept: 142 AD3d 1381 (Monroe)	denied 11/30/16 (DiFiore, Ch. J.)
People v Paradiso	App Div, 3d Dept: 2016 NY Slip Op 82923(U) (Albany)	dismissed 11/1/16 (Pigott, J.)
People v Peart	3d Dept: 141 AD3d 939 (Albany)	denied 11/4/16 (Rivera, J.)
People v Petterson	2d Dept: 141 AD3d 676 (Queens)	denied 11/30/16 (Fahey, J.)
People v Pierre	2d Dept: 142 AD3d 566 (Nassau)	denied 11/23/16 (DiFiore, Ch. J.)
People v Porter	App Div, 1st Dept: 2015 NY Slip Op 91553(U) (NY)	denied reconsideration 11/5/16 (Abdus-Salaam, J.)
People v Powell	1st Dept: 140 AD3d 401 (Bronx)	denied 11/14/16 (DiFiore, Ch. J.)
People v Provet	App Term, 1st Dept: 52 Misc 3d 144(A) (NY)	denied 11/21/16 (Stein, J.)
People v Ragland	2d Dept: 136 AD3d 845 (Westchester)	denied 11/22/16 (Pigott, J.)
People v Ramos	3d Dept: 142 AD3d 737 (Montgomery)	denied 11/10/16 (Fahey, J.)

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People v Ramsaran	3d Dept: 141 AD3d 865 (Chenango)	granted 11/28/16 (Pigott, J.)
People v Rhodes	2d Dept: 142 AD3d 679 (Queens)	denied 11/21/16 (Stein, J.)
People v Rivenburgh	App Div, 3d Dept: 2016 NY Slip Op 63361(U) (Ulster)	dismissed 11/1/16 (Fahey, J.)
People v Rivera	2d Dept: 133 AD3d 894 (Nassau)	denied 11/28/16 (Rivera, J.)
People v Roberts (Kerri)	1st Dept: 138 AD3d 461 (NY)	denied 11/1/16 (Pigott, J.)
People v Roberts (Kerri)	1st Dept: 138 AD3d 461 (NY)	granted 11/1/16 (Pigott, J.)
People v Sanders	County Ct, 6/15/16 (Oneida)	denied 11/22/16 (Fahey, J.)
People v Segura	App Div, 2d Dept: 2016 NY Slip Op 79994(U) (Nassau)	dismissed 11/9/16 (DiFiore, Ch. J.)
People v Serrano	App Term, 2d Dept, 9th & 10th Jud Dists: 53 Misc 3d 67 (Suffolk)	withdrawn 11/30/16 (DiFiore, Ch. J.)
People v Sherrod	4th Dept: 136 AD3d 1353 (Erie)	denied reconsideration 11/22/16 (Garcia, J.)
People v Simmons	2d Dept: 136 AD3d 640 (Westchester)	denied 11/22/16 (Pigott, J.)
People v Spann	2d Dept: 142 AD3d 720 (Queens)	denied 11/21/16 (Pigott, J.)
People v Sposito	3d Dept: 140 AD3d 1308 (Albany)	granted 11/10/16 (Pigott, J.)
People v Stepney	App Div, 4th Dept, 8/31/16 (Onondaga)	dismissed 11/28/16 (Abdus-Salaam, J.)
People v Stokes	3d Dept: 141 AD3d 1032 (Albany)	denied 11/30/16 (DiFiore, Ch. J.)
People v Sylvester	App Term, 1st Dept: 52 Misc 3d 144(A) (NY)	denied 11/17/16 (DiFiore, Ch. J.)
People v Tai	App Div, 1st Dept: 2016 NY Slip Op 69509(U) (NY)	denied reconsideration 11/4/16 (Rivera, J.)
People v Tai Chi Chuan	App Div, 1st Dept: 2016 NY Slip Op 69509(U) (NY)	denied reconsideration 11/4/16 (Rivera, J.)
People v Taylor	1st Dept: 134 AD3d 508 (NY)	denied 11/1/16 (Pigott, J.)
People v Tedesco	4th Dept: 143 AD3d 1279 (Erie)	denied 11/23/16 (DiFiore, Ch. J.)
People v Tennessee	3d Dept: 142 AD3d 739 (Ulster)	denied 11/1/16 (Fahey, J.)

People v Thomas	2d Dept: 142 AD3d 511 (Kings)	denied 11/29/16 (DiFiore, Ch. J.)
People v Thompson	App Term, 1st Dept: 52 Misc 3d 145(A) (NY)	denied 11/23/16 (DiFiore, Ch. J.)
People v Uribe	2d Dept: 142 AD3d 680 (Queens)	denied 11/14/16 (DiFiore, Ch. J.)
People v Vanterpool	1st Dept: 142 AD3d 870 (NY)	denied 11/29/16 (DiFiore, Ch. J.)
People v Vasquez	1st Dept: 140 AD3d 571 (NY)	denied 11/8/16 (Garcia, J.)
People v Veliz	2d Dept: 142 AD3d 630 (Kings)	denied 11/23/16 (DiFiore, Ch. J.)
People v Victor	3d Dept: 139 AD3d 1102 (Chenango)	denied 11/10/16 (Garcia, J.)
People v Washington (Charles)	2d Dept: 134 AD3d 1137 (Kings)	denied 11/8/16 (Garcia, J.)
People v Washington (Jarelle)	2d Dept: 142 AD3d 1110 (Kings)	denied 11/23/16 (DiFiore, Ch. J.)
People v Weems (Solomon)	4th Dept: 141 AD3d 1119 (Monroe)	denied 11/23/16 (DiFiore, Ch. J.) (Appeal No. 1)
People v Weems (Solomon)	4th Dept: 141 AD3d 1121 (Monroe)	denied 11/23/16 (DiFiore, Ch. J.) (Appeal No. 2)
People v Welch	2d Dept: 142 AD3d 567 (Dutchess)	denied 11/1/16 (Pigott, J.)
People v Williams (DeAndre)	App Div, 2d Dept: 2016 NY Slip Op 85221(U) (Westchester)	dismissed 11/8/16 (Rivera, J.)
People v Williams (Jaerue)	2d Dept: 139 AD3d 885 (Westchester)	denied 11/22/16 (Fahey, J.)
People v Williams (Jojo)	County Ct, 8/2/16 (Cortland)	denied 11/29/16 (DiFiore, Ch. J.)
People v Williams (Kenneth)	3d Dept: 138 AD3d 1233 (Albany)	denied reconsideration 11/21/16 (Pigott, J.)
People v Williams (Nicklas)	3d Dept: 140 AD3d 1526 (Broome)	denied 11/22/16 (Garcia, J.)
People v Williams (Sean)	2d Dept: 139 AD3d 766 (Kings)	denied 11/14/16 (DiFiore, Ch. J.)
People v Woods	3d Dept: 141 AD3d 954 (Albany)	denied 11/8/16 (Garcia, J.)
People v Young	4th Dept: 139 AD3d 1360 (Monroe)	denied* 11/16/16 (Rivera, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Prindle* (129 AD3d 1506 [4th Dept 2015], *lv granted* 26 NY3d 1091 [2015]), *People v Garvin* (130 AD3d 644 [2d Dept 2015], *lv granted* 26 NY3d 1094 [2015]), and *People v Wright* (134 AD3d 1059 [2d Dept 2015], *lv granted* 27 NY3d 1009 [2016]).

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices ***

(November 1, 2016 through November 30, 2016)

People v Perez

1st Dept: 142 AD3d 410 (Bronx)

granted 11/29/16
(Gische, J.)

[66 NE3d 1084, 44 NYS3d 366]THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILSON
J. TARDI, Appellant.

Argued October 19, 2016; decided November 21, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 14, 2014. The Appellate Division affirmed a judgment of the Erie County Court (Michael L. D'Amico, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the second degree and petit larceny.

People v Tardi, 122 AD3d 1337, affirmed.

HEADNOTE**Crimes — Unlawful Search and Seizure — Towing Vehicle
Following Arrest**

Following defendant's arrest for shoplifting, the arresting police officers' exercise of their discretion to tow defendant's vehicle, which was parked in the same parking lot in which defendant had been arrested, in accordance with department policy was reasonable and lawful. The officers' decision to tow the vehicle was properly made in accordance with the "standard criteria" set forth in the police department's written policy, which limit an officer's discretion to tow a vehicle upon a driver's arrest to situations in which such action is necessary to ensure the safety of the vehicle and its contents and where releasing the vehicle to an owner or designee is not otherwise appropriate. Upon defendant's arrest, the vehicle would have been left unattended indefinitely in complainant's private parking lot, which had a history of vandalism, and complainant requested that the police remove the vehicle. The officers' decision to tow the vehicle was, therefore, consistent with a community caretaking function. Moreover, there was no indication that the officers suspected that they would discover evidence of further criminal activity in defendant's vehicle, or that they towed the vehicle for that purpose.

APPEARANCES OF COUNSEL

Phil Modrzynski, Buffalo, and *Thomas J. Eoannou*, Buffalo,
for appellant.

* Includes only applications that were granted.

Michael J. Flaherty, Jr., Acting District Attorney, Buffalo (Matthew B. Powers and Michael J. Hillery of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant contends that the towing and inventory search of his vehicle by law enforcement officers, following his arrest for shoplifting, was unconstitutional. Store security had observed defendant—who was known to them as a shoplifter from prior incidents—park a vehicle in their parking lot, and security personnel had specifically requested that the police officers tow the vehicle upon defendant’s arrest.

Here, the police officers’ decision to tow defendant’s vehicle, which was parked in the same parking lot in which defendant was arrested, was properly made in accordance with “standard criteria” set forth in the police department’s written policy (*Colorado v Bertine*, 479 US 367, 375 [1987]). Those criteria, among other things, limit an officer’s discretion to tow a vehicle upon a driver’s arrest to situations in which such action is necessary to ensure the safety of the vehicle and its contents and where releasing the vehicle to an owner or designee is not otherwise appropriate. Upon defendant’s arrest, the vehicle would have been left unattended indefinitely in the complainant’s private parking lot, which had a history of vandalism, and the complainant requested that the police remove the vehicle. In our view, the officers’ decision to tow the vehicle was, therefore, consistent with a community caretaking function (see *United States v Vladeff*, 630 Fed Appx 998, 1000-1001 [11th Cir 2015]; *United States v Moskovyan*, 618 Fed Appx 331, 331 [9th Cir 2015] [“Police acting in a community caretaking capacity may impound an arrestee’s vehicle when the vehicle, if left unattended, risks being vandalized or stolen”]; *United States v Arrocha*, 713 F3d 1159, 1163 [8th Cir 2013]; *United States v Ramos-Morales*, 981 F2d 625, 626-627 [1st Cir 1992]; *United States v Staller*, 616 F2d 1284, 1289-1290 [5th Cir 1980]). Moreover, there is no indication that the officers suspected that they would discover evidence of further criminal activity in defendant’s vehicle, or that they towed the vehicle for that purpose (see *Bertine*, 479 US at 376). Under these particular circumstances, the officers’ exercise of their discretion to tow defendant’s vehicle, in accordance with department

policy, was reasonable and lawful (*see id.* at 375 [the availability of less intrusive means does not render police action unreasonable]; *People v Walker*, 20 NY3d 122, 125 [2012] [law enforcement officials are not required, as a matter of constitutional law, to inquire as to whether an arrested individual can arrange for removal of a vehicle, or to contact the registered owner before impounding the vehicle]; *United States v Moore*, 655 Fed Appx 531, 532 [9th Cir 2016]; *see also South Dakota v Opperman*, 428 US 364, 368-369 [1976]).

Defendant's remaining argument, challenging the propriety of the inventory search of his vehicle, is unpreserved (*see People v John*, 27 NY3d 294, 303 [2016]; *People v Wallace*, 27 NY3d 1037, 1038 [2016]).

RIVERA, J. (dissenting). This case asks us to consider whether the warrantless impoundment and inventory search of defendant's vehicle upon his arrest for shoplifting comports with the Fourth Amendment. The undisputed facts establish that the vehicle's search and seizure were not attendant to defendant's arrest or a public safety interest. Defendant was not arrested while operating the vehicle, nor was he arrested for possession of a stolen car or violation of the vehicle and traffic laws. Furthermore, upon his arrest, the vehicle was parked unobtrusively and safely. On these facts, the tow and search of defendant's vehicle was unreasonable.

The police may impound a vehicle without a warrant “[i]n the interests of public safety and as part of what the [United States Supreme] Court has called community caretaking functions” (*South Dakota v Opperman*, 428 US 364, 368 [1976] [internal quotation marks and citation omitted]). Specifically, police may “remove and impound automobiles which violate parking ordinances and which thereby jeopardize both the public safety and the efficient movement of vehicular traffic” (*id.* at 369). However, in order to minimize the potential abuse of what is ostensibly a public safety exception to the Fourth Amendment—under which “automobiles are frequently taken into police custody” (*id.* at 368)—impoundment of a vehicle must be “completely unrelated to an ongoing criminal investigation” (*United States v Duguay*, 93 F3d 346, 352 [7th Cir 1996]). Thus, “[a]n officer cannot reasonably order an impoundment in situations where the location of the vehicle does not create any need for the police to protect the vehicle or to avoid a hazard to other drivers” (*Miranda v City of Cornelius*, 429 F3d 858, 866 [9th Cir 2005]; *see also United States v Pappas*,

735 F2d 1232, 1234 [10th Cir 1984] [impoundment improper where car parked on private property and there was “no need for the impound and inventory search” since “*Opperman* cannot be used to justify the automatic inventory of every car upon the arrest of its owner”]).

Supreme Court cases provide examples of the proper limits on the caretaking function. In *Opperman*, the Court upheld the inventory search and impoundment of an abandoned car where the owner “was not present to make other arrangements for the safekeeping of his belongings” (428 US at 375). In *Colorado v Bertine* (479 US 367 [1987]), cited by the majority (majority mem at 1078), the car at issue had been impounded upon the driver’s arrest for driving while under the influence of alcohol, and the car was effectively abandoned in the middle of the road after its driver was arrested while driving it. Both cases squarely implicated the public safety and the efficient flow of traffic, neither of which is at issue in defendant’s case.

Here, defendant was arrested outside the store from which he had allegedly shoplifted, in a separate location from where his car was parked, and the car was unrelated to the underlying arrest. Moreover, the car was registered to defendant’s mother, a fact of which officers would have become immediately aware upon checking the license plate. The car’s position in the parking lot, therefore, neither jeopardized the “efficient movement of vehicular traffic,” since the car was stationed in a parking lot not obstructing traffic, nor was it a threat to public safety, since it was not on the side of the road creating a hazard to other drivers. To the extent the majority concludes that defendant left his car “unattended” (majority mem at 1078), this was only insofar as any car is unattended when its driver parks and goes into a store, and as such cannot justify the warrantless search and seizure of a vehicle. Nor was the defendant’s car a “luxury” car (*United States v Moskovyan*, 618 Fed Appx 331, 331 [9th Cir 2015]) with an “appreciable risk of vandalism or theft” (*United States v Staller*, 616 F2d 1284, 1290 [5th Cir 1980]).

There is also no basis to conclude that defendant’s car was abandoned because, unlike in *Opperman* where the car was illegally parked overnight and collecting parking tickets over the course of many hours, defendant’s car had been in use just before his arrest and there is nothing in the record to suggest that the car would have remained in the lot indefinitely. Indeed, defendant’s mother, to whom the car was registered, or even defendant’s wife, could have come to retrieve the car.

Under these circumstances, there was no community caretaking justification for impounding defendant's car. Absent a legitimate seizure of the car, the warrantless search of its contents was also unconstitutional (*see People v Cantor*, 36 NY2d 106 [1975]).*

The Fourth Amendment cannot tolerate a practice of "impoundment upon arrest." The community caretaking function must actually mean community caretaking, and cannot authorize police officers to search cars that are neither a threat to public safety nor a problem for members of the public. By failing to recognize this, the majority's opinion undermines the Fourth Amendment's protection of individual privacy from the state. I cannot agree to such erosion of this fundamental constitutional guarantee against unwarranted and unreasonable police invasions, and so I would reverse the Appellate Division.

Chief Judge DiFIORE and Judges PIGOTT, ABDUS-SALAAM, STEIN and GARCIA concur; Judge RIVERA dissents in an opinion; Judge FAHEY taking no part.

Order affirmed, in a memorandum.

CITIMORTGAGE, INC., Respondent, v NEIL BASER et al., Appellants, et al., Defendants.

Submitted August 29, 2016; decided November 21, 2016

Reported below, 137 AD3d 735; 2016 NY Slip Op 79623(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

CITIMORTGAGE, INC., Respondent, v GEORGE DULGEROFF et al., Defendants. WEST FORK CAPITAL EQUITIES, LLC, Nonparty Appellant.

Submitted August 29, 2016; decided November 21, 2016

Reported below, 138 AD3d 419.

* Notably, even the local police procedure provided for inventory searches only upon legitimate, police-directed towing (Cheektowaga Police Department General Order O-5-8 [Towing and Impoundment] at 2).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided November 21, 2016

Reported below, 2014 NY Slip Op 91312(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Judge ABDUS-SALAAM taking no part.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted August 8, 2016; decided November 21, 2016

Reported below, 118 AD3d 678, 2015 NY Slip Op 88044(U), 2015 NY Slip Op 88045(U), 2015 NY Slip Op 88046(U), 2015 NY Slip Op 78404(U), 2015 NY Slip Op 78405(U), 2015 NY Slip Op 78406(U).

Motion for reargument denied [*see* 27 NY3d 1146 (2016)].

Judge ABDUS-SALAAM taking no part.

JOHN K. RENKE II, Respondent, v JOYCE KWIECINSKI, Appellant.

Submitted September 6, 2016; decided November 21, 2016

Reported below, 126 AD3d 961.

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* 22 NYCRR 500.24 [b]) [*see* 27 NY3d 1147 (2016)].

In the Matter of JOELLE SAVAS, Respondent, v DANIEL JOSEPH BRUEN, Appellant.

Submitted November 14, 2016; decided November 21, 2016

Reported below, 139 AD3d 736; 139 AD3d 737.

Motion, insofar as it seeks leave to appeal from the May 2016 Appellate Division order reversing the June 2015 Supreme Court order and remitting to Supreme Court for a hearing, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

DAVID SILVERMAN et al., Appellants, v GERALD A. DOELL, Respondent.

Submitted August 29, 2016; decided November 21, 2016

Reported below, 138 AD3d 1339.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MARC STARR, Appellant, v FUOCO GROUP LLP et al., Defendants, and EUREKA CAPITAL MARKETS, LLC, et al., Respondents.

Submitted August 29, 2016; decided November 21, 2016

Reported below, 137 AD3d 634.

Motion for leave to appeal dismissed upon the ground that the Appellate Division order sought to be appealed from does not finally determine the action within the meaning of the Constitution and the stipulation does not qualify as a final judgment within the meaning of CPLR 5602 (a) (1) (ii) to bring up for review the prior nonfinal Appellate Division order because it was entered into without prejudice.

MARC STARR, Appellant, v FUOCO GROUP LLP et al., Defendants, and EUREKA CAPITAL MARKETS, LLC, et al., Respondents.

Submitted September 12, 2016; decided November 21, 2016

Reported below, 137 AD3d 634.

Motion by Public Investors Arbitration Bar Association for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

[66 NE3d 1088, 44 NYS3d 370]

ACE FIRE UNDERWRITERS INSURANCE COMPANY, Care of
Sedgwick CMS, Appellant, v SPECIAL FUNDS CONSERVATION
COMMITTEE, Respondent.

Argued October 19, 2016; decided November 22, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 24, 2015. The Appellate Division affirmed an order of the Supreme Court, New York County (Debra A. James, J.), which had denied the petition for an order pursuant to Workers' Compensation Law § 29 (5) directing respondent to consent nunc pro tunc to settlement of the underlying personal injury action.

Ace Fire Underwriters Ins. Co. v Special Funds Conservation Comm., 125 AD3d 546, reversed.

HEADNOTE

Workers' Compensation — Third-Party Action — Consent to Settlement — Court Order to Compel Special Disability Fund's Consent Nunc Pro Tunc

Petitioner workers' compensation carrier, having approved the settlement of the injured employee's underlying third-party action without seeking the written approval of the Special Disability Fund (Fund), which was responsible for reimbursing petitioner for some of the benefits paid to the employee under Workers' Compensation Law § 15 (8) (d), was entitled to seek to obtain the Fund's consent from Supreme Court nunc pro tunc under Workers' Compensation Law § 29 (5). Under Workers' Compensation Law § 29 (1), if the injured employee elects to bring a third-party action, "the person, association, corporation or insurance carrier" that is liable for workers' compensation and medical expenses is entitled to a lien on the proceeds. If the third-party settlement is in an amount less than the benefits payable to the injured employee, it "shall be made only . . . with the written approval of the person, association, corporation, or insurance carrier liable to pay the same," but such written approval is not necessary if the employee obtains a compromise order from the court (Workers' Compensation Law § 29 [5]). The language in section 29 (1) establishing what entities may be deemed lienors is essentially identical to the language in section 29 (5) referring to the entities whose consent to settlement is required and, if not obtained, can be compelled upon application to the court. The parties did not dispute that the consent of the Fund to settlement of the employee's third-party action was required. Thus, there was no principled basis for concluding that the Fund's

consent was required as a lienor under one portion of the statute, but that the failure to obtain it could not be cured, as it could for other lienors, under the same statute.

APPEARANCES OF COUNSEL

Stewart, Greenblatt, Manning & Baez, Syosset (*Lisa Levine* of counsel), for appellant.

Steven M. Licht, Special Funds Conservation Committee, Albany (*Jill B. Singer* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the matter remitted to Supreme Court for further proceedings in accordance with this memorandum.

A Coca-Cola Bottling Company employee sustained a work-related injury in March 2007 and was awarded workers' compensation benefits. The benefits are payable by petitioner Ace Fire Underwriters Insurance Company, Coca-Cola's workers' compensation insurance carrier.

The employee was classified as having a permanent partial disability and the Workers' Compensation Board held that his claim was subject to Workers' Compensation Law § 15 (8). Under that provision, when an employee with a preexisting permanent physical injury sustains a compensable work-related injury that leads to a permanent disability significantly greater than that which would have resulted from the subsequent injury alone, the Special Disability Fund is responsible for reimbursing the workers' compensation carrier for all medical and compensation benefits payable after the first 260 weeks of disability (*see* Workers' Compensation Law § 15 [8] [d]). Section 15 (8) was intended to encourage employers to hire disabled employees (*see* Workers' Compensation Law § 15 [8] [a]).

Based on section 15 (8), the injured employee's workers' compensation benefits in this case were, to the extent payable after the first 260 weeks of disability, reimbursable by the Special Disability Fund. In addition to receiving workers' compensation benefits, the injured employee commenced a third-party personal injury action in Supreme Court. As relevant here, under Workers' Compensation Law § 29 (1), if the injured employee elects to bring a third-party action, "the person, association, corporation or insurance carrier" that is liable for workers' compensation and medical expenses is entitled

to “a lien on the proceeds of any recovery” in the third-party action, less reasonable and necessary expenses. The “recovery shall be deemed for the benefit of such . . . person, association, corporation or carrier,” to the extent of the amount payable by the lienor (Workers’ Compensation Law § 29 [1]).

The same statute further provides that, when the third-party settlement is in an amount less than the benefits payable to the injured employee, it “shall be made only . . . with the written approval of the person, association, corporation, or insurance carrier liable to pay the same” (Workers’ Compensation Law § 29 [5]). However, such written approval “need not be obtained if the employee . . . obtain[s] a compromise order from a justice of the court in which the third-party action was pending” (Workers’ Compensation Law § 29 [5]). In other words, although the employee must obtain the written approval of the workers’ compensation carrier prior to entering a settlement, the failure to do so can be cured by the court ordering the carrier’s consent to the personal injury settlement, *nunc pro tunc*. Notably, neither section 29 (5) nor section 15 (8) specifically requires the carrier to obtain the Special Disability Fund’s approval prior to agreeing to a third-party settlement.

Here, as required by section 29, the injured employee sought and obtained Ace Fire’s approval prior to entering the settlement of the third-party action. Ace Fire, however, did not seek the Special Disability Fund’s written approval prior to settlement. When Ace Fire sought the Special Disability Fund’s retroactive consent, the Fund refused, asserting that Ace Fire had forfeited its right to reimbursement. Ace Fire then commenced this proceeding asking Supreme Court to compel the Special Disability Fund’s consent *nunc pro tunc* under Workers’ Compensation Law § 29 (5).

We have repeatedly recognized “that a statute . . . must be construed as a whole and that its various sections must be considered together and with reference to each other” (*Matter of Shannon*, 25 NY3d 345, 351 [2015] [internal quotation marks and citations omitted]). The language in section 29 (1) establishing what entities may be deemed lienors is essentially identical to the language in section 29 (5) referring to the entities whose consent to settlement is required and, if not obtained, can be compelled upon application to the court—i.e., the “person, association, corporation, or insurance carrier liable to pay” compensation benefits. Here, the parties do not dispute that the consent of the Special Disability Fund to

settlement of the employee's third-party action was required. Thus, assuming, for purposes of this appeal, that the Special Disability Fund is a lienor whose consent to settlement is required under Workers' Compensation Law § 29 (1), we conclude that the carrier may seek to obtain the Fund's consent from Supreme Court nunc pro tunc under section 29 (5). There is no principled basis for concluding that the Special Disability Fund's consent is required as a lienor under one portion of the statute, but that the failure to obtain it cannot be cured, as it can for other lienors, under the same statute.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

Order reversed, with costs, and matter remitted to Supreme Court, New York County, for further proceedings in accordance with the memorandum herein.

[66 NE3d 1090, 44 NYS3d 372]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
CRISTIAN MORALES, Appellant.

Argued November 17, 2016; decided December 15, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, Ninth and Tenth Judicial Districts, entered August 10, 2015. The Appellate Term (1) granted the People's motion to dismiss defendant's appeal from a judgment of the District Court of Nassau County, First District (Valerie Alexander, J.), which had convicted defendant, upon a jury verdict, of operating a motor vehicle while intoxicated (two counts), speeding, making an improper or unsafe turn without signaling, and operating a motor vehicle with a broken glass windshield, and, upon his plea of guilty, of operating a motor vehicle without a license; and (2) dismissed the appeal without prejudice to defendant moving to reinstate the appeal should he return to the court's jurisdiction.

People v Morales, 2015 NY Slip Op 82166(U), reversed.

HEADNOTE

Crimes — Appeal — Dismissal of Direct Appeal Based on Defendant's Involuntary Deportation

The Appellate Term erred as a matter of law in dismissing defendant's direct appeal from his judgment of conviction on the ground that he had been

involuntarily deported following his conviction. Intermediate appellate courts are prohibited from dismissing pending direct appeals due to the defendant's involuntary deportation, regardless of the contentions raised by the defendant on appeal, and regardless of any causal relationship between the defendant's conviction and deportation.

APPEARANCES OF COUNSEL

Kent V. Moston, Legal Aid Society of Nassau County, Hempstead (Dori Cohen and Jeremy L. Goldberg of counsel), for appellant.

Madeline Singas, District Attorney, Mineola (Adam S. Charnoff, Tammy J. Smiley and Jason R. Richards of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Term should be reversed and the matter remitted to that court for further proceedings in accordance with this memorandum.

In October 2011, defendant was convicted, after a jury trial, of two counts of operating a motor vehicle while intoxicated and other related charges. After filing a notice of appeal and executing an affidavit in support of a motion seeking permission to proceed as a poor person, defendant was deported to Honduras in November 2011. In April 2015, almost 3½ years later, defendant's assigned appellate counsel filed a brief for defendant's direct appeal. Appellate counsel noted in the brief that they had proceeded with defendant's direct appeal "without his input," as they were "not in possession of any current contact information for [defendant]."

The People moved to dismiss the appeal on the ground that defendant was deported for a reason unrelated to his conviction and thus, a reversal would have no effect on his ability to return to the jurisdiction to obey the mandate of the court. The People further moved on the additional grounds that defendant had failed to communicate with his assigned appellate counsel during the prosecution of the appeal and his existence and whereabouts were unknown. Defense counsel opposed the People's motion to dismiss but did not offer any facts to rebut the People's claims that defendant had failed to communicate with his assigned appellate counsel and that his whereabouts were unknown.

The Appellate Term granted the People's motion and dismissed defendant's direct appeal "without prejudice to ap-

pellant moving to reinstate the appeal should he return to this court's jurisdiction" (2015 NY Slip Op 82166[U] [App Term, 2d Dept, 9th & 10th Jud Dists 2015]).

In its order dismissing defendant's appeal, the Appellate Term duly noted the People's reliance in their motion on *People v Serrano* (45 Misc 3d 69 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2014]). We recently reversed the intermediate appellate court's decision in *Serrano* and held "that [*People v Ventura*] [(17 NY3d 675 [2011])] prohibits intermediate appellate courts from dismissing pending direct appeals due to the defendant's involuntary deportation, regardless of the contentions raised by the defendant on appeal" (*People v Harrison [Serrano]*, 27 NY3d 281, 284 [2016]). We further explained that "[o]ur holding in *Ventura* did not depend upon any causal relationship between the defendant's conviction and deportation" (*id.* at 287).

Here, the Appellate Term erred as a matter of law insofar as it granted the People's motion to dismiss defendant's direct appeal from his judgment of conviction because he was involuntarily deported. This error requires reversal. We therefore remit the matter to the Appellate Term for its further consideration (*see* CPL 470.60 [1]).

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

Order reversed and case remitted to the Appellate Term, Ninth and Tenth Judicial Districts, for further proceedings in accordance with the memorandum herein.

[68 NE3d 42, 45 NYS3d 317]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NATALIO PASTOR, Appellant.

Decided December 15, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 11, 2016. The Appellate Division affirmed a judgment of the Supreme Court, Bronx

County (Denis J. Boyle, J.), which had convicted defendant, upon his plea of guilty, of assault in the second degree.

People v Pastor, 136 AD3d 493, affirmed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — Validity of Guilty Plea

1. Defendant's challenge to the validity of his guilty plea based on an alleged justification defense was unpreserved for review by the Court of Appeals, and the narrow exception to the preservation requirement did not apply since he had an opportunity to seek relief from the sentencing court by moving to withdraw his plea on that ground. Moreover, defendant said nothing during the plea colloquy or the sentencing proceeding that negated an element of the crime or raised the possibility of a justification defense.

Crimes — Appeal — Preservation of Issue for Review — Validity of Guilty Plea — Court's Failure to Advise Defendant of Deportation Consequences

2. Defendant's challenge to the validity of his guilty plea based on the alleged failure of the sentencing court to advise him of the immigration consequences of his plea was unpreserved for review by the Court of Appeals. Since the court informed defendant during the plea colloquy that if he was not a citizen, he could face deportation as a result of his guilty plea, he was informed before he pleaded guilty of that possibility, and if he was confused about that issue, he was obligated to move to withdraw his plea on that ground before the sentencing court. To the extent that defendant contended that his attorney misadvised him about the immigration consequences of his plea, defendant was required to raise that claim by way of a CPL 440.10 motion.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Robin Nichinsky* of counsel), for appellant.

Darcel D. Clark, District Attorney, Bronx (*Emily A. Aldridge* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

[1] Defendant's challenges to the validity of his guilty plea are unpreserved and unreviewable by this Court. Defendant had "an opportunity to seek relief from the sentencing court" by moving to withdraw his plea based on his alleged justification defense, and therefore the "narrow exception to the preservation requirement" does not apply (*People v Conceicao*, 26 NY3d 375, 381 [2015]). Defendant said nothing during the plea colloquy or the sentencing proceeding that negated an element of the crime or raised the possibility of a justification

defense, and therefore *People v Lopez* (71 NY2d 662, 666 [1988]) is inapplicable.

[2] Defendant's further contention that the court failed to advise him of the immigration consequences of his plea is also unpreserved for appellate review. The court informed defendant during the plea colloquy that if he was not a citizen, he could face deportation as a result of his guilty plea. Defendant therefore was informed before he pleaded guilty of the possibility that he could be deported as a result of his plea, and if he was confused about that issue, he was obligated to move to withdraw his plea on that ground before the sentencing court (see *People v Peque*, 22 NY3d 168, 182-183 [2013], *cert denied sub nom. Thomas v New York*, 574 US —, 135 S Ct 90 [2014]). To the extent defendant contends that his attorney misadvised him about the immigration consequences of his plea, defendant must raise that claim by way of a CPL 440.10 motion.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[68 NE3d 43, 45 NYS3d 318]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALFRED STEWART, Appellant.

Decided December 15, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 29, 2015. The Appellate Division affirmed judgments, as amended upon resentencing, of the Supreme Court, Bronx County (Martin Marcus, J.), which had convicted defendant, upon his pleas of guilty, of auto stripping in the second degree (two counts) and sentenced him to concurrent terms of 1¹/₃ to 4 years.

People v Stewart, 134 AD3d 645, reversed.

HEADNOTE**Crimes — Sentence — Waiver of Right to Appear at Resentencing for Felony Conviction Must be Express**

Defendant did not validly waive his right to be present at resentencing where there was no record of any form of express waiver by defendant himself, whether oral or in writing, nor could waiver or forfeiture of the right to be present be inferred from defendant's actions or inaction. A defendant who has been convicted of a felony may waive his or her right to be present at sentencing (*see* CPL 380.40 [1]), but must do so expressly. The same principle applies in resentencing.

APPEARANCES OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Ellen Dille* of counsel), for appellant.

Darcel D. Clark, District Attorney, Bronx (*Lori Ann Farrington* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed and the case remitted to Supreme Court for resentencing.

A defendant has the right to be present at all material stages of trial (*see People v Ciccio*, 47 NY2d 431, 436 [1979]), including sentencing (*see* CPL 380.40 [1]). We recently held that a defendant who has been convicted of a felony may waive his right to be present at sentencing, but must do so “expressly” (*People v Rossborough*, 27 NY3d 485, 488 [2016]). The same principle applies in resentencing. The People do not contend otherwise, but insist that an inmate who wishes to waive his right to be present at resentencing should not be required to convey that waiver by personal appearance in court, and that defendant properly waived his right to be present by having his counsel speak on his behalf. Here, however, there is no record of any form of express waiver by defendant himself, whether oral or in writing, and, thus, the issue raised by the People is not presented. Nor in this case can waiver or forfeiture of the right to be present be inferred from defendant's actions or inaction (*see generally People v Corley*, 67 NY2d 105, 109-110 [1986]; *People v Stroman*, 36 NY2d 939, 940 [1975]). Accordingly, defendant did not validly waive his right to be present.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order

reversed and case remitted to Supreme Court, Bronx County, for resentencing, in a memorandum.

[68 NE3d 83, 45 NYS3d 357]

RAFAEL BATISTA, Appellant, v MANHATTANVILLE COLLEGE et al.,
Respondents, et al., Defendant.

Decided December 20, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 21, 2016. The Appellate Division order, insofar as appealed from, modified, on the law, an order of the Supreme Court, Bronx County (Kenneth L. Thompson, Jr., J.; op 2014 NY Slip Op 33801[U] [2014]), which had, insofar as appealed from as limited by the briefs, granted plaintiff's motion for partial summary judgment on the issue of liability on his Labor Law § 240 (1) claim. The modification consisted of denying plaintiff's motion. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as modified by this . . . Court, properly made?"

The Appellate Division determined that the record precluded summary judgment on plaintiff injured worker's Labor Law § 240 (1) claim since issues of fact existed as to whether plaintiff disregarded instructions to use only pine planks for flooring on the scaffold he was constructing, or otherwise knew that only pine planks were to be used for flooring, and whether more pine planks were readily available to him. Moreover, the Appellate Division found that issues of fact existed as to whether plaintiff was responsible for checking the planks at the site for knots and whether he used one with a knot in it, which he should not have used, for flooring.

Batista v Manhattanville Coll., 138 AD3d 572, modified.

HEADNOTE

Labor — Safe Place to Work — Use of Pine Planks for Flooring on Scaffold — Sole Proximate Cause

Plaintiff injured worker's motion for partial summary judgment on the issue of liability on his Labor Law § 240 (1) claim against defendants was granted, where defendants failed to raise a triable issue of fact whether plaintiff was the sole proximate cause of his accident which arose from his construction of a scaffold.

APPEARANCES OF COUNSEL

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (*Brian J. Isaac* of counsel), for appellant.

Lewis Johs Avallone Aviles, LLP, Islandia (*Robert A. Lifson* of counsel), for Manhattanville College, respondent.

Burke, Conway, Loccisano & Dillon, White Plains (*Thomas J. Burke* and *Martin Galvin* of counsel), for TJR, Inc., respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order, insofar as appealed from, modified, without costs, by granting plaintiff's motion for partial summary judgment on the issue of liability on his Labor Law § 240 (1) claim against defendants Manhattanville College and TJR, Inc. and, as so modified, affirmed, and certified question answered in the negative. Defendants failed to raise a triable issue of fact whether the plaintiff was the sole proximate cause of his accident (*see Barreto v Metropolitan Transp. Auth.*, 25 NY3d 426, 433-434 [2015]).

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[68 NE3d 60, 45 NYS3d 335]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JEFFREY BRYANT, Respondent.

Decided December 20, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 1, 2016. The Appellate Division modified, as a matter of discretion in the interest of justice, a judgment of the Supreme Court, New York County (Gregory Carro, J.), which had convicted defendant, upon his plea of guilty, of grand larceny in the fourth degree (four counts), and sentenced him to four consecutive terms of 1 to 3 years. The modification consisted of directing that the sentence for the conviction under count three of the indictment be served concurrently with the other sentences. The Appellate Division affirmed the judgment as modified.

People v Bryant, 137 AD3d 401, reversed.

HEADNOTE

Crimes — Appeal — Waiver of Right to Appeal — Enforceability of Waiver of Right to Appeal — Sufficiency of Allocution

Defendant knowingly and intelligently waived his right to appeal where the trial court separately explained to him the panoply of rights normally forfeited upon a guilty plea, ensured that he understood those rights, had him allocute to the facts of the crimes, and turned to the waiver of appeal only after the allocution. During the oral colloquy defendant stated he understood that he was “waiving [his] right to appeal” and “that this conviction, or these convictions will be final, that a court will not review what we have done here.” Moreover, that verbal waiver was accompanied by a detailed written waiver which stated, among other things, that “the right to appeal is separate and distinct from other rights automatically forfeited upon a plea of guilty.”

APPEARANCES OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (*Joshua L. Haber* and *Hilary Hassler* of counsel), for appellant.

Robert S. Dean, Center for Appellate Litigation, New York City (*David J. Klem* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the judgment of Supreme Court reinstated.

In October 2013, defendant was arrested for his involvement in the theft of 15 luxury cars from parking garages across Manhattan. In May 2014, defendant pleaded guilty to four counts of grand larceny in the fourth degree in full satisfaction of the indictment against him. The court accepted the People’s offer of 1 to 3 years’ incarceration per count, to run consecutively, resulting in an aggregate term of 4 to 12 years’ incarceration.

As relevant to this appeal, at the plea proceeding, the court explained that, by pleading guilty, defendant would be waiving certain rights including: the right to go to trial, the right to cross-examine witnesses, the right to testify, and the right to remain silent. The judge then took defendant’s allocution of the crimes. Acknowledging the defense’s receipt of the detailed written waiver, the following colloquy occurred:

“THE COURT: All right. Sir, you understand that also as a part of this you are waiving your right to appeal. You understand that this conviction, or

these convictions will be final, that a court will not review what we have done here, other than some residual rights that remain?

“Do you understand that?”

“THE DEFENDANT: Yes.

“THE COURT: You have gone over that with your attorney?”

“THE DEFENDANT: Yes.

“THE COURT: There is a document entitled waiver of appeal. I see that you executed that document. Do you have any questions about it?”

“THE DEFENDANT: No.”

The Appellate Division, with one Justice dissenting, found that “defendant’s waiver of his right to appeal was invalid” (*People v Bryant*, 137 AD3d 401, 401 [2016]). We disagree.

The allocution in this case was similar in effect to the allocution this Court found sufficient in both *People v Nicholson* (6 NY3d 248 [2006]) and *People v Sanders* (25 NY3d 337 [2015]). Here, the court separately explained to defendant the panoply of rights normally forfeited upon a guilty plea. After ensuring that defendant understood those rights, the judge next had defendant allocute to the facts of the crimes. Only after the allocution did the court turn to the waiver of appeal. During the oral colloquy defendant stated he understood that he was “waiving [his] right to appeal” and “that this conviction, or these convictions will be final, that a court will not review what we have done here.” This verbal waiver was accompanied by a detailed written waiver which stated, among other things, that “the right to appeal is separate and distinct from other rights automatically forfeited upon a plea of guilty.” Thus, the record sufficiently demonstrates that defendant knowingly and intelligently waived his right to appeal.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and judgment of Supreme Court, New York County, reinstated, in a memorandum.

EMIL CHAMBLISS, Appellant, v UNIVERSITY GROUP MEDICAL ASSOCIATES et al., Respondents.

Submitted September 26, 2016; decided December 20, 2016

Reported below, 137 AD3d 1183.

Motion, insofar as it seeks leave to appeal as against defendants South Island Medical Associates and Dr. Mark Joseph, dismissed as untimely (*see* CPLR 5513 [b]), as the prior motion for leave to appeal made at the Appellate Division was untimely as to them (*see* Arthur Karger, Powers of the New York Court of Appeals § 12:3 at 436-437 [3d ed rev 2005]); motion, insofar as it seeks leave to appeal as against defendants University Group Medical Associates and Dr. Steven Siegel, dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DEBORAH ETZION, Appellant, v RAFAEL ETZION et al., Respondents.

Submitted September 19, 2016; decided December 20, 2016

Reported below, 138 AD3d 678.

Motion by Women's Bar Association of the State of New York for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of NANCY ANASTASIA GONOS, Appellant, v EMANUEL HADZIPETROS, Respondent.

Submitted October 11, 2016; decided December 20, 2016

Reported below, 138 AD3d 991.

Motion for reargument of motion for leave to appeal denied [*see* 27 NY3d 912 (2016)]. Motion for poor person relief dismissed as academic.

In the Matter of MICHAEL GRABELL, Appellant, v NEW YORK CITY POLICE DEPARTMENT, Respondent.

Submitted September 6, 2016; decided December 20, 2016

Reported below, 139 AD3d 477.

Motion by Reporters Committee for Freedom of the Press et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge FAHEY taking no part.

In the Matter of MICHAEL GRABELL, Appellant, v NEW YORK CITY POLICE DEPARTMENT, Respondent.

Submitted September 26, 2016; decided December 20, 2016

Reported below, 139 AD3d 477.

Motion by New York Civil Liberties Union et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge FAHEY taking no part.

JOHNATHAN JOHNSON, Appellant, v THERESA J. CASAL, Respondent.

Submitted October 17, 2016; decided December 20, 2016

Reported below, 2016 NY Slip Op 85806(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

JOHNATHAN JOHNSON, Appellant, v BRIAN CURTIS et al., Respondents.

Submitted October 17, 2016; decided December 20, 2016

Reported below, 2016 NY Slip Op 85807(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

JOHNATHAN JOHNSON, Appellant, v MAUREEN SIENKO et al., Respondents.

Submitted October 17, 2016; decided December 20, 2016

Reported below, 2016 NY Slip Op 85804(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

JOHNATHAN JOHNSON, Appellant, v WILLIAM K. SUTER et al.,
Respondents.

Submitted October 11, 2016; decided December 20, 2016

Reported below, 2016 NY Slip Op 85805(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

DONNA M. LATTUCA, Appellant, v JOHN M. LATTUCA, Respon-
dent.

Submitted August 8, 2016; decided December 20, 2016

Reported below, 129 AD3d 1683.

Motion for leave to appeal denied. The Court of Appeals takes this occasion to restate the rule that denial of a motion for leave to appeal is not equivalent to an affirmance and has no precedential value (*see Matter of Marchant v Mead-Morrison Mfg. Co.*, 252 NY 284, 297-298 [1929]).

DONNA M. LATTUCA, Appellant, v JOHN M. LATTUCA, Respon-
dent.

Submitted August 15, 2016; decided December 20, 2016

Reported below, 129 AD3d 1683.

Motion by National Center for Law and Economic Justice et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents,
et al., Defendants.

Submitted October 11, 2016; decided December 20, 2016

Reported below, 68 AD3d 497.

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 15 NY3d 707 (2010)]. Motion for poor person relief dismissed as academic.

Judge ABDUS-SALAAM taking no part.

NELLA MANKO, Appellant, v DANA MANNOR, et al., Respondents, et al., Defendants.

Submitted November 7, 2016; decided December 20, 2016

Reported below, 68 AD3d 497.

Motion for reconsideration of this Court's May 11, 2010 dismissal order dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 14 NY3d 880 (2010)]. Motion for poor person relief dismissed as academic.

Judge ABDUS-SALAAM taking no part.

COLLEEN F. MAYER, as Trustee on Behalf of ALANNA MAYER and Another, Appellant, v KRISTEN M. MAYER et al., Respondents, et al., Defendants.

Submitted September 26, 2016; decided December 20, 2016

Reported below, 142 AD3d 691.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of LIZZETTE MORALES, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Submitted December 12, 2016; decided December 20, 2016

Reported below, 132 AD3d 581.

Motion for reargument of motion for leave to appeal denied [*see* 28 NY3d 1023 (2016)].

In the Matter of PATRICIA A. and Others, Infants. NORMAN A. et al., Appellants; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted September 12, 2016; decided December 20, 2016

Reported below, 140 AD3d 618.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES BROWN, Appellant.

Submitted February 8, 2016; decided December 20, 2016

Reported below, 126 AD3d 516.

Motion to expand the record on appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DAN EVANS, Respondent.

Submitted November 21, 2016; decided December 20, 2016

Reported below, 141 AD3d 120.

Motion to dismiss the appeal granted and appeal dismissed upon the ground that the reversal by the Appellate Division was not on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal (CPL 450.90 [2] [a]).

STATE FARM AND CASUALTY COMPANY, Respondent, v JENNIFER GUZMAN et al., Defendants, and DULCE CABRERA, Appellant.

Submitted September 26, 2016; decided December 20, 2016

Reported below, 138 AD3d 503.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as resolved the appeal from the Supreme Court order denying reargument and renewal, dismissed upon the ground that such portions of the order do not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

MICHAEL C. WEIDNER, Respondent, v LISA FIX WEIDNER, Appellant.

Submitted September 26, 2016; decided December 20, 2016

Reported below, 136 AD3d 1425.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

AMTRUST-NP SFR VENTURE, LLC, Respondent, v JAMES VAZQUEZ, Also Known as JAMES VASQUEZ, Appellant, et al., Defendants.

Submitted October 24, 2016; decided December 22, 2016

Reported below, 140 AD3d 541.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BELTWAY CAPITAL, LLC, Respondent, v VIRGINIA GUTIERREZ et al., Defendants, and JAMES BIANCO et al., Appellants.

Submitted October 17, 2016; decided December 22, 2016

Reported below, 140 AD3d 998.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CONSOLIDATED MORTGAGE, LLC, Appellant, v WESTPORT GOLF INVESTORS, LLC, et al., Defendants, and JOHN F. HALL et al., Respondents. (And a Third-Party Action.)

Submitted October 31, 2016; decided December 22, 2016

Reported below, 141 AD3d 923.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of FRANK GARCIA, Appellant, v ANTHONY ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

In the Matter of FRANK GARCIA, Appellant, v ANTHONY ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Submitted October 31, 2016; decided December 22, 2016

Reported below, 2016 NY Slip Op 85097(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

MARITA E. HYMAN, Appellant, v ARTHUR SCHWARTZ et al.,
Respondents.

MARITA E. HYMAN, Appellant, v ARTHUR SCHWARTZ, Respon-
dent.

Submitted October 24, 2016; decided December 22, 2016

Reported below, 2016 NY Slip Op 74811(U); 2016 NY Slip Op 74812(U).

Motion for reargument of motion for leave to appeal denied
[see 28 NY3d 901 (2016)].

Judge STEIN taking no part.

JACK KELLY PARTNERS LLC, Respondent, v ELSA ZEGELSTEIN et
al., Appellants.

Submitted October 24, 2016; decided December 22, 2016

Reported below, 140 AD3d 79.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CONSTANTINE JACKSON, Appellant, v ANTHONY
ANNUCCI, Acting Commissioner, New York State Depart-
ment of Corrections and Community Supervision, Respon-
dent.

Submitted October 31, 2016; decided December 22, 2016

Reported below, 2016 NY Slip Op 80333(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge FAHEY taking no part.

LOCH SHELDRAKE BEACH AND TENNIS INC., Respondent, v HELEN AKULICH, Appellant.

Submitted October 17, 2016; decided December 22, 2016

Reported below, 141 AD3d 809.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MICHAEL B. OLIVER, Appellant, v BOARD OF ASSESSORS OF THE TOWNS OF CHAMPLAIN et al., Respondents.

Submitted October 17, 2016; decided December 22, 2016

Reported below, 2016 NY Slip Op 74764(U); 2016 NY Slip Op 47465(U); 2016 NY Slip Op 74766(U); 2016 NY Slip Op 74767(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NASEAN BONIE, Defendant. DINA SFORZA, a Representative of News 12 the Bronx, L.L.C., Nonparty Appellant.

Submitted November 7, 2016; decided December 22, 2016

Reported below, 141 AD3d 401.

Motion for reargument denied [*see* 28 NY3d 956 (2016)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEVIN JOHNSON, Appellant.

Submitted October 17, 2016; decided December 22, 2016

Reported below, 142 AD3d 1061.

Motion for leave to appeal dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JESSE LUSCOMB, Appellant, v SUSAN KICKBUSH, etc., Respondent.

Submitted November 14, 2016; decided December 22, 2016

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

TANAYSHA T. et al., Appellants, v CITY OF NEW YORK et al., Respondents, et al., Defendant.

Submitted October 17, 2016; decided December 22, 2016

Reported below, 130 AD3d 916.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of DAISY WRIGHT et al., Appellants, v JEWISH HOME LIFECARE, MANHATTAN, et al., Respondents. (Proceeding No. 1.)

In the Matter of FRIENDS OF P.S. 163, INC., Appellant, v JEWISH HOME LIFECARE, MANHATTAN, et al., Respondents. (Proceeding No. 2.)

Submitted November 14, 2016; decided December 22, 2016

Reported below, 2016 NY Slip Op 89616(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of JESSE FRIEDMAN, Appellant, v KATHLEEN M. RICE, as Nassau County District Attorney, Respondent.

Submitted December 19, 2016; decided January 5, 2017

Reported below, 134 AD3d 826.

Motion by National Association of Criminal Defense Lawyers et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of REGAN U. LALLY, Appellant, v RICHARD E. AEBLY, Respondent.

Submitted October 31, 2016; decided January 5, 2017

Reported below, 2016 NY Slip Op 85753(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OTIS BOONE, Appellant.

Submitted January 3, 2017; decided January 5, 2017

Reported below, 129 AD3d 1099.

Motion by Legal Aid Bureau of Buffalo, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DOUGLAS MCCAIN, Appellant.

Submitted January 3, 2017; decided January 5, 2017

Reported below, 50 Misc 3d 132(A), 2015 NY Slip Op 51939(U).

Motion for assignment of counsel granted and Seymour W. James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DIANE WORD, Appellant, v STATE OF NEW YORK et al., Respondents.

Decided January 5, 2017

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies from an order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

INJAH UNIQUE TAFARI, Also Known as RICHARDO ORLANDO
FOUST, Appellant, v LUCIEN LeCLAIRE et al., Respondents.

Submitted November 21, 2016; decided January 5, 2017

Reported below, 2016 NY Slip Op 85797(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of ANTHONY C.M. III. SCO FAMILY OF SERVICES,
Respondent; ANTHONY C.M., Also Known as ANTHONY M.
and Others, et al., Respondents. (Proceeding No. 1.)

In the Matter of DEMARCO M., Also Known as DEMARCO P. SCO
FAMILY OF SERVICES, Respondent; ANTHONY C.M., Also
Known as ANTHONY M. and Others, et al., Respondents.
(Proceeding No. 2.)

In the Matter of JUSTICE R.M., Also Known as JUSTICE M. and
Another. SCO FAMILY OF SERVICES, Respondent; ANTHONY
C.M., Also Known as ANTHONY M. and Others, Appellant,
et al., Respondents. (Proceeding No. 3.)

In the Matter of SAMANTHA V.M., Also Known as SAMANTHA M.
and Another. SCO FAMILY OF SERVICES, Respondent;
ANTHONY C.M., Also Known as ANTHONY M. and Others,
Appellant, et al., Respondents. (Proceeding No. 4.)

Submitted September 19, 2016; decided December 15, 2016

Reported below, 141 AD3d 718.

Motion for leave to appeal denied. Motion for a stay dismissed
as academic.

BEECHWOOD POB, LLC, Respondent, v RICHARD A. BRUMMELL,
Appellant, et al., Defendant.

Decided December 15, 2016

Reported below, 2016 NY Slip Op 79119(U).

Appeal dismissed, without costs, by the Court of Appeals,
sua sponte, upon the ground that the order appealed from does

not finally determine the action within the meaning of the Constitution.

JENNIFER CANGRO, Appellant, v MARY V. ROSADO, Respondent.

Decided December 15, 2016

Reported below, 2016 NY Slip Op 88141(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Judge ABDUS-SALAAM taking no part.

VERONIKA CHAUCA, Appellant, v JAMIL ABRAHAM et al., Respondents.

Decided December 15, 2016

See 841 F3d 86.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA.

In the Matter of CITY OF NEW YORK et al., Appellants, v NEW YORK STATE NURSES ASSOCIATION et al., Respondents.

Submitted November 28, 2016; decided December 15, 2016

Reported below, 130 AD3d 28.

Motion by Municipal Labor Committee for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

CONTACT CHIROPRACTIC, P.C., as Assignee of Girtha Butler,
Respondent, v NEW YORK CITY TRANSIT AUTHORITY, Appel-
lant.

Submitted December 12, 2016; decided December 15, 2016

Reported below, 135 AD3d 804.

Motion by American Transit Insurance Company for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed submission is accepted as filed. One copy of the submission must be served and an original and two copies filed within seven days.

In the Matter of JAMES DAVIS, Appellant, v ANTHONY J.
ANNUCCI, as Acting Commissioner of Corrections and Com-
munity Supervision, Respondent.

Decided December 15, 2016

Reported below, 140 AD3d 1432.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

KARINE GEVORKYAN et al., Appellants, v IRA JUDELSON, Respon-
dent.

Decided December 15, 2016

See 841 F3d 584.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

In the Matter of SYLVIA GOLUB, Deceased. NORMAN GOLUB,
Respondent; J. DAVID GOLUB, Appellant. (Matter No. 1.)

NORMAN GOLUB, Respondent v JERRY DAVID GOLUB, Appellant.
(Matter No. 2.)

Submitted December 5, 2016; decided December 15, 2016

Reported below, 2015 NY Slip Op 67154(U).

Motion for a stay and injunctive relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion because no appeal or motion for leave to appeal is pending before this Court (*see* CPLR 5519).

Chief Judge DiFIORE and Judge GARCIA taking no part.

RICHARD GROSSMAN, Respondent, v TCR, Also Known as THE
CLUB OF RIVERDALE, Appellant.

Decided December 15, 2016

Reported below, 142 AD3d 854.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JOSEPH P. and Others, Children Alleged to be
Permanently Neglected. EDWIN P., Appellant, et al.,
Respondent; NEW ALTERNATIVES FOR CHILDREN, INC., Re-
spondent.

Submitted November 7, 2016; decided December 15, 2016

Reported below, 143 AD3d 529.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

SIAN MALIAH-DUPASS, Respondent, v JAHIZ DUPASS, Appellant.

Submitted October 24, 2016; decided December 15, 2016

Reported below, 140 AD3d 832.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v LENOX HILL ANESTHESIOLOGY, PLLC, et al., Respondents.

Submitted November 7, 2016; decided December 15, 2016

Reported below, 2011 NY Slip Op 63512(U).

Motion for reconsideration of this Court's November 21, 2011 dismissal order dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 17 NY3d 933 (2011)].

Judge ABDUS-SALAAM taking no part.

In the Matter of NELLA MANKO, Appellant, et al., Petitioner, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, OFFICE OF RENT ADMINISTRATION, Respondent.

Submitted November 7, 2016; decided December 15, 2016

Reported below, 2011 NY Slip Op 63235(U).

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 17 NY3d 717 (2011)].

Judge ABDUS-SALAAM taking no part.

In the Matter of MELVIN M. MARIN, a Suspended Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Submitted September 12, 2016; decided December 15, 2016

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARRION B. FREEMAN, Appellant.

Submitted December 5, 2016; decided December 15, 2016

Reported below, 141 AD3d 1164.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JARED HERNANDEZ, Appellant.

Submitted November 28, 2016; decided December 15, 2016

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISMA MCGHEE, Also Known as Izzy, Appellant.

Submitted August 22, 2016; decided December 15, 2016

Reported below, 125 AD3d 537.

Motion for reargument denied [*see* 27 NY3d 652 (2016)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GABRIEL G. RODRIGUEZ, Appellant.

Submitted November 21, 2016; decided December 15, 2016

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

In the Matter of PAT SICA, Respondent, v THOMAS P. DiNAPOLI, as State Comptroller, Appellant.

Decided December 15, 2016

Reported below, 141 AD3d 799.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of STATE OF NEW YORK, Respondent, v NUSHAWN W., Appellant.

Submitted September 12, 2016; decided December 15, 2016

Reported below, 139 AD3d 1375.

Motion by The Center for HIV Law and Policy et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge FAHEY taking no part.

TOWN OF OYSTER BAY, Respondent, v RICHARD A. BRUMMELL, Appellant.

Decided December 15, 2016

Reported below, 2016 NY Slip Op 80615(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NORMAN WOODS et al., Respondents, v STATE UNIVERSITY OF NEW YORK et al., Appellants.

Submitted October 31, 2015; decided December 15, 2016

Reported below, 139 AD3d 1322.

Motion to vacate this Court's October 18, 2016 dismissal order granted.

XIU JIAN SUN, Appellant, v DICK BAILEY SERVICE, INC., et al., Respondents.

Decided December 15, 2016

Reported below, 143 AD3d 891.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

XIU JIAN SUN, Appellant, v BETTY LAM et al., Respondents.

Decided December 15, 2016

Reported below, 143 AD3d 891.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

[68 NE3d 90, 45 NYS3d 362]

ESTATE OF HELEN DEL TERZO et al., Respondents, v 33 FIFTH AVENUE OWNERS CORP., Appellant.

Decided December 20, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered February 11, 2016. The Appellate Division modified, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Ellen M. Coin, J.), which had declared that defendant's denial of plaintiffs' application to transfer shares allocated to a cooperative apartment and the proprietary lease appurtenant thereto from plaintiff Estate of Helen Del Terzo to plaintiffs Michael Del Terzo and Julius Robert Del Terzo constituted a breach of the lease, directed defendant to consent to the transfer, and awarded plaintiffs costs. The appeal to the Appellate Division brought up for review a prior order of that Supreme Court (op 2014 NY Slip Op 32534[U] [2014]), which had granted plaintiffs' motion for summary judgment on the first three causes of action, denied their motion for summary judgment on the fourth cause of action, and denied defendant's motion for summary judgment. The modification consisted of granting plaintiffs summary judgment on the fourth cause of action for attorneys' fees, and remanding the matter for a hearing with respect thereto. The Appellate Division affirmed the order and judgment as modified. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as modified by this Court, properly made?"

In an action for breach of a proprietary lease, the Appellate Division determined that defendant residential cooperative corporation unreasonably withheld its consent to the transfer of the lease and shares appurtenant to an apartment from plaintiff deceased lessee's estate to plaintiff deceased lessee's

two adult sons, in violation of a lease paragraph providing that “consent shall not be unreasonably withheld to an assignment of the lease and shares to a financially responsible member of the Lessee’s family.” As co-lessees, the sons were jointly and severally liable for any financial obligations pertaining to the apartment. Thus, the Appellate Division found that defendant’s reliance on one son’s financial qualifications alone as a reason to deny their joint transfer application was misplaced. Furthermore, the Appellate Division found that defendant’s concerns about the likelihood of an overcrowded apartment were speculative and did not form a “reasonable” basis for defendant to deny the application, and that the lease paragraph did not limit the application to only one family member and there was no prohibition in the lease against a “Lessee” being more than one person.

Estate of Del Terzo v 33 Fifth Ave. Owners Corp., 136 AD3d 486, affirmed.

HEADNOTE

Condominiums and Cooperatives — Proprietary Lease — Breach of Contractual Provision Relating to Transfer of Apartment

The Appellate Division did not err in holding that defendant residential cooperative corporation breached a paragraph of its proprietary lease by unreasonably withholding consent to transfer shares allocated to an apartment and the lease appurtenant thereto from plaintiff deceased lessee’s estate to plaintiff deceased lessee’s two adult sons.

APPEARANCES OF COUNSEL

Boyd Richards Parker & Colonnelli, P.L., New York City (*Bryan J. Mazzola* of counsel), for appellant.

Smith, Buss & Jacobs, LLP, Yonkers (*John J. Malley* and *Nancy Durand* of counsel), for respondents.

Gallet Dreyer & Berkey, LLP, New York City (*Marc J. Luxemburg* of counsel), for Council of New York Cooperatives and Condominiums, amicus curiae.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. The Appellate Division did not err in holding defendant 33 Fifth Avenue Owners Corp. breached paragraph 16 (b) of its proprietary lease by unreasonably withholding consent to transfer shares allocated to an apartment and the lease ap-

purtenant thereto from plaintiff Estate of Helen Del Terzo to plaintiffs Michael Del Terzo and Julius Robert Del Terzo. Defendant's remaining arguments are unavailing.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[68 NE3d 70, 45 NYS3d 345]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v BRANDON WARRINGTON, Respondent.

Argued November 16, 2016; decided December 22, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered July 30, 2015. The Appellate Division (1) reversed, on the law, a judgment of the Warren County Court (John S. Hall, Jr., J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, manslaughter in the second degree and endangering the welfare of a child, and (2) remitted the matter to Warren County Court for a new trial.

People v Warrington, 130 AD3d 1368, reversed.

HEADNOTES

Crimes — Jurors — Selection of Jury — Denial of For-Cause Challenge — Previously Articulated Bias

1. In a prosecution arising from the death of a five-year-old child, the trial court did not abuse its discretion by denying defendant's for-cause challenge to a prospective juror who articulated a bias during voir dire related to the age of the victim, based on her subsequent unequivocal assurances of impartiality during an examination by the court. CPL 270.20 (1) (b) provides that a party may challenge a potential juror for cause if the juror "has a state of mind that is likely to preclude him [or her] from rendering an impartial verdict based upon the evidence adduced at the trial." However, where a prospective juror unambiguously states that, despite preexisting opinions that might indicate bias, he or she will decide the case impartially and based on the evidence, the trial court has the discretion to deny a challenge for cause if it determines that the juror's promise to be impartial is credible. Under the circumstances here—including the trial court's direct reference to the questions it had asked of a different juror, which called to the subject juror's attention her previously stated bias—the trial court did not abuse its discretion. Viewing the prospective juror's statements in totality and in context, her assurances to the court adequately expressed her ability and willingness to adhere to her obligation to acquit defendant if the evidence required her to do so and established that she would render an

impartial verdict untainted by any aforementioned bias or sympathy. The CPL does not require any expurgatory oath or talismanic words to resolve doubt about a potential juror's ability to be fair.

Crimes — Appeal — Matters Reviewable — Remittal by Court of Appeals to Appellate Division — Alternative Challenges Not Previously Considered by Appellate Division

2. Where, on the People's appeal, the Court of Appeals reversed an Appellate Division order reversing defendant's judgment of conviction based on its determination that the Appellate Division erroneously concluded that the trial court was required to excuse a certain prospective juror for cause, the Court of Appeals was precluded from reviewing defendant's alternative challenge with respect to the legal sufficiency of the evidence. To credit defendant's alternative challenge, which was rejected by the Appellate Division, would be to afford him relief beyond that provided by the Appellate Division, that is, he would be entitled not just to the new trial ordered by the Appellate Division, but also to the reduction of the top count against him. Since the Appellate Division did not specifically address the balance of the alternative challenges defendant raised before the Appellate Division and reiterated before the Court of Appeals, the case was remitted to the Appellate Division so that it could pass upon the facts and those alternative contentions advanced by defendant for reversal (*see* CPL 470.40 [2] [b]).

APPEARANCES OF COUNSEL

Kathleen B. Hogan, District Attorney, Lake George (Jason M. Carusone and Emilee B. Davenport of counsel), for appellant.

Paul J. Connolly, Delmar, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, and the case remitted to the Appellate Division for consideration of the facts and issues raised but not determined on appeal to that Court.

We agree with the People that the Appellate Division erred in concluding that the trial court was required to excuse prospective juror No. 383 for cause (*see* 130 AD3d 1368, 1371 [3d Dept 2015]). During voir dire, defense counsel asked prospective jurors whether "[a]nybody [had] a problem with the fact [that the case involved] the death of a five year old child." Prospective juror No. 123 responded that he could not be impartial given the circumstances of this case, which prompted defense counsel to inquire whether any other jurors had similar feelings. On further questioning by defense counsel, prospective juror No. 383 said, "It's a five year old. I feel the same. Adult [defendant]. I can't do it." After that response, defense counsel asked whether the prospective jurors could agree that "[t]he burden is for the People to prove beyond a reasonable doubt that [defendant] did do it."

All of the prospective jurors, including prospective juror No. 383, answered that query in the affirmative. All of the prospective jurors then responded in the negative to defense counsel's subsequent question whether "anybody ha[d] a problem with that," and the matter turned to the issue whether any prospective juror would "have a problem finding the defendant not guilty if [the People did not] meet their burden." Prospective juror No. 383 answered, "I don't know."

Defense counsel did not follow up with those jurors, but the trial court subsequently attempted to rehabilitate prospective juror No. 123 through an exchange in which the court asked prospective juror No. 123 a series of questions focusing on that juror's previously stated partiality related to the victim's age, which questions included the query whether he could "be [a] fair and impartial . . . juror in this case" despite the fact that it involved the death of a child, allegedly at the hands of an adult. That prospective juror responded that he "would try," and through additional questions the court was unable to elicit an unequivocal assurance of impartiality from him.

The court's examination of prospective juror No. 383 yielded a different response. Immediately after finishing its examination of prospective juror No. 123, the court turned to juror No. 383. At the outset of its examination of that prospective juror, the court stressed that, as it had done with prospective juror No. 123, it would explore the issue whether prospective juror No. 383 could be fair and impartial if seated for trial. Specifically, and significantly, the court began its questioning of prospective juror No. 383 with the point that it had the "*same questions for [her]*" before initiating this exchange:

"THE COURT: . . . If the [People are] able to prove their case beyond a reasonable doubt, what would your fair and impartial verdict be?

"PROSPECTIVE JUROR NO. 383: Guilty if they prove it guilty.

"THE COURT: Okay. Now, let's say they bring in lots and lots of witnesses, lots of evidence, lots of DNA, lots of pictures and whatever, but you're not convinced beyond a reasonable doubt. Let's say you're pretty sure, I think maybe he did it but I have a reasonable doubt about this, then what does your verdict have to be?

"PROSPECTIVE JUROR NO. 383: I would have to

say not guilty, you know, if they can't do it to my satisfaction.

“THE COURT: Yes, exactly, and that's exactly the way it has to be. It's all up to your satisfaction. It has to be proved beyond a reasonable doubt as you see that and as I tell you what the law is. Would you have any problem with saying that the defendant is not guilty if they don't prove their case?

“PROSPECTIVE JUROR NO. 383: No, if [the prosecutor] doesn't have it, if she can't prove it.”

After briefly questioning prospective juror No. 132 regarding his ability to follow an instruction given by the court at the end of trial, the court returned to prospective juror No. 383:

“THE COURT: . . . Would you follow the law at the end of the case and listen to what they have to say if somebody, if you think somebody lied about something, you don't have to believe anything they say. On the other hand, you don't have to not believe anything they say. You can believe the parts you think are true but not believe the parts you think are not?

“PROSPECTIVE JUROR NO. 383: I was just going to say I'll listen to what they have to say and then I'll draw my own conclusion.

“THE COURT: Okay. Then you'll follow the law as I instruct you at the end of the case.

“PROSPECTIVE JUROR NO. 383: Yes.”

Afterwards, the court excused prospective juror No. 123 for cause. Although he agreed that prospective juror No. 383 “got rehabilitated,” defense counsel moved to dismiss that venire person for cause. The court denied that application, and defense counsel exhausted his peremptory challenges in removing her from the jury pool.

“CPL 270.20 (1) (b) provides that a party may challenge a potential juror for cause if the juror ‘has a state of mind that is likely to preclude him [or her] from rendering an impartial verdict based upon the evidence adduced at the trial’” (*People v Harris*, 19 NY3d 679, 685 [2012]). To that end, this Court has “consistently held that ‘a prospective juror whose statements raise a serious doubt regarding the ability to be impartial must be excused unless the juror states unequivocally on the record

that he or she can be fair and impartial’ ” (*Harris*, 19 NY3d at 685, quoting *People v Chambers*, 97 NY2d 417, 419 [2002]; see *People v Johnson*, 94 NY2d 600, 616 [2000]). Indeed,

“ ‘when potential jurors themselves say they question or doubt they can be fair in the case, Trial Judges should either elicit some unequivocal assurance of their ability to be impartial when that is appropriate, or excuse the juror when that is appropriate,’ since, in most cases, ‘[t]he worst the court will have done . . . is to have replaced one impartial juror with another impartial juror’ ” (*Harris*, 19 NY3d at 685, quoting *People v Johnson*, 17 NY3d 752, 753 [2011]).

As our precedent makes clear, a prospective juror must, first and foremost, in unequivocal terms, “expressly state that his [or her] prior state of mind concerning either the case or either of the parties will not influence [the] verdict” (*People v Biondo*, 41 NY2d 483, 485 [1977]; see *People v Blyden*, 55 NY2d 73, 78 [1982]; see *Johnson*, 94 NY2d at 612). This link between the juror’s previously articulated bias or state of mind and the ability to render an impartial verdict must be evident, because the very point of the unequivocal assurance of impartiality is to “allow[] a juror to ‘purge’ a previous opinion . . . by expressly declaring that he [or she] will not be influenced by [that] prior opinion” (*People v Torpey*, 63 NY2d 361, 368 [1984]). Thus, “where [a] prospective juror[] unambiguously state[s] that, *despite preexisting opinions* that might indicate bias, [he or she] will decide the case impartially and based on the evidence, the trial court has discretion to deny the challenge for cause if it determines that the juror’s promise to be impartial is credible” (*People v Arnold*, 96 NY2d 358, 363 [2001] [emphasis added]).

[1] Under the circumstances of this case—including the trial court’s direct reference to the questions it had asked of juror No. 123, which called to juror No. 383’s attention her previously stated bias—the trial court did not abuse its discretion by denying defendant’s for-cause challenge to the prospective juror based on her subsequent unequivocal assurances of impartiality (see generally *Arnold*, 96 NY2d at 362; *People v Williams*, 63 NY2d 882, 884-885 [1984]). Viewing prospective juror No. 383’s statements in totality and in context (see *Johnson*, 94 NY2d at 615), her assurances to the court adequately expressed her ability and willingness to adhere to her obliga-

tion to acquit defendant if the evidence required her to do so and established that she would render an impartial verdict untainted by any aforementioned bias or sympathy. “[T]he CPL . . . does not require any particular expurgatory oath or ‘talismanic’ words” to resolve doubt about a potential juror’s ability to be fair (*Arnold*, 96 NY2d at 362) and, here, the trial court had the discretion to deny defendant’s for-cause challenge to the prospective juror (*see generally People v Williams*, 63 NY2d 882, 884-885 [1984]).

[2] Operating under the theory that the Criminal Procedure Law allows us to consider alternative grounds for relief where, as here, an intermediate appellate court modifies or reverses a judgment of a criminal court, defendant advances four contentions of his own for our review on this appeal by the People. In that vein, defendant principally contends that the indictment should be dismissed because the evidence is legally insufficient to support the conviction.

However, to credit defendant’s alternative challenge with respect to the legal sufficiency of the evidence, which was rejected by the Appellate Division (130 AD3d at 1372), would be to afford him relief beyond that provided by the Appellate Division. That is, if we credited his challenge to the legal sufficiency of the evidence, then defendant would be entitled not just to the new trial ordered by the Appellate Division, but also to the reduction of the top count against him (*see generally People v Prindle*, 16 NY3d 768, 769 [2011]; *People v Dlugash*, 41 NY2d 725, 737-738 [1977]). “Inasmuch as the relief [defendant] seeks . . . goes beyond mere affirmance of the Appellate Division order and thus constitutes a request for affirmative relief, . . . we are precluded from reviewing” his challenge to the legal sufficiency of the evidence (*People v Acosta*, 80 NY2d 665, 674 [1993]; *see People v Carpenito*, 80 NY2d 65, 68 n [1992]; *People v Gamble*, 70 NY2d 885, 886 [1987]; Peter Preiser, Practice Commentaries, McKinney’s Cons Laws of NY, Book 11A, CPL 470.35 at 308-309 [2009 ed]; Arthur Karger, Powers of the New York Court of Appeals § 21:12 at 786 [3d ed rev 2005]).

Although it rejected his contention with respect to the legal sufficiency of the evidence, the Appellate Division did not specifically address the balance of the alternative challenges defendant raised before the Appellate Division and reiterates before this Court. Consequently, the case should be remitted to the Appellate Division so that it may pass upon the facts and

those alternative contentions advanced by defendant for reversal (*see* CPL 470.40 [2] [b]).

Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur; Chief Judge DiFIORE taking no part.

Order reversed and case remitted to the Appellate Division, Third Department, for consideration of the facts and issues raised but not determined on the appeal to that Court, in a memorandum.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(December 1, 2016 through December 31, 2016)

Liang-Houh Shieh, Matter of	App Div, 3d Dept, 11/2/16	12/8/16
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APPEALS WITHDRAWN AND DISCONTINUED

(December 1, 2016 through December 31, 2016)

People ex rel. Moore v Superintendent of Coxsackie Corr. Facility	Sup Ct, Greene County, 11/2/16	12/7/16
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(December 1, 2016 through December 31, 2016)

People v Abrahamsen	1st Dept: 143 AD3d 478 (NY)	denied 12/30/16 (Fahey, J.)
People v Agosto	1st Dept: 143 AD3d 418 (NY)	denied 12/7/16 (Stein, J.)
People v Alvaradoajcuc	2d Dept: 142 AD3d 1094 (Suffolk)	denied 12/7/16 (Abdus-Salaam, J.)
People v Anderson	County Ct, 7/20/16 (Wayne)	denied 12/2/16 (Garcia, J.)
People v Anton	App Div, 2d Dept: 2016 NY Slip Op 86578(U) (Kings)	dismissed 12/16/16 (Fahey, J.)
People v Antunez	1st Dept: 142 AD3d 869 (NY)	denied 12/20/16 (Garcia, J.)
People v Ashmeade	App Term, 1st Dept, 53 Misc 3d 132(A) (Bronx)	withdrawn 12/12/16 (Stein, J.)
People v Ayala	App Div, 2d Dept: 2016 NY Slip Op 86567(U) (Kings)	dismissed 12/19/16 (Rivera, J.)

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People v Barnes	4th Dept: 140 AD3d 1714 (Niagara)	denied 12/19/16 (Rivera, J.)
People v Beckham	2d Dept: 142 AD3d 556 (Queens)	denied 12/2/16 (Garcia, J.)
People v Bermejo	1st Dept: 143 AD3d 612 (Bronx)	denied 12/30/16 (Fahey, J.)
People v Bess	2d Dept: 142 AD3d 1098 (Kings)	denied 12/12/16 (Pigott, J.)
People v Bonilla	App Div, 2d Dept: 2016 NY Slip Op 86570(U) (Suffolk)	dismissed 12/13/16 (DiFiore, Ch. J.)
People v Bouknight	App Div, 2d Dept: 2016 NY Slip Op 88037(U) (Kings)	dismissed 12/19/16 (Rivera, J.)
People v Boyer	App Div, 3d Dept: 2016 NY Slip Op 87083(U) (Rensselaer)	dismissed 12/20/16 (Garcia, J.)
People v Brock	App Div, 1st Dept: 2016 NY Slip Op 74536(U) (NY)	dismissed 12/28/16 (Stein, J.)
People v Brown (Jeffrey)	1st Dept: 142 AD3d 769 (NY)	denied 12/19/16 (Rivera, J.)
People v Brown (Krystian)	4th Dept: 142 AD3d 1373 (Erie)	denied 12/27/16 (Rivera, J.)
People v Butler	App Div, 2d Dept: 2016 NY Slip Op 84683(U) (Westchester)	dismissed 12/10/16 (Garcia, J.)
People v Bynum	2d Dept: 142 AD3d 1183 (Kings)	denied 12/7/16 (Abdus-Salaam, J.)
People v Cahill	4th Dept: 142 AD3d 1400 (Onondaga)	denied 12/21/16 (DiFiore, Ch. J.)
People v Capellan	1st Dept: 142 AD3d 923 (NY)	denied 12/5/16 (Fahey, J.)
People v Christy	1st Dept: 143 AD3d 409 (NY)	denied 12/5/16 (Fahey, J.)
People v Cintron	1st Dept: 143 AD3d 623 (NY)	denied 12/19/16 (Rivera, J.)
People v Clark	App Term, 1st Dept: 53 Misc 3d 143(A) (NY)	denied 12/21/16 (DiFiore, Ch. J.)
People v Cruz	App Div, 3d Dept, 9/26/16 (Albany)	dismissed 12/7/16 (Stein, J.)
People v Diaz	4th Dept: 142 AD3d 1332 (Monroe)	denied 12/19/16 (Rivera, J.)
People v Dickson-Eason	3d Dept: 143 AD3d 1013 (Albany)	denied 12/20/16 (DiFiore, Ch. J.)
People v Drummond	2d Dept: 143 AD3d 836 (Kings)	denied 12/19/16 (Rivera, J.)
People v Faeth	App Div, 4th Dept: 2016 NY Slip Op 68866(U) (Wayne)	dismissed 12/7/16 (Garcia, J.)
People v Fernandez	1st Dept: 143 AD3d 505 (NY)	denied 12/7/16 (Stein, J.)

People v Fleming	1st Dept: 141 AD3d 408 (Bronx)	denied reconsideration 12/7/16 (Garcia, J.)
People v Flow	1st Dept: 143 AD3d 587 (NY)	denied 12/30/16 (DiFiore, Ch. J.)
People v Foster	2d Dept: 143 AD3d 736 (Suffolk)	denied 12/5/16 (Pigott, J.)
People v Furino	1st Dept: 142 AD3d 871 (NY)	denied 12/21/16 (Fahey, J.)
People v Geron	1st Dept: 143 AD3d 530 (NY)	denied 12/19/16 (Rivera, J.)
People v Gillespie	2d Dept: 142 AD3d 673 (Queens)	denied 12/2/16 (Garcia, J.)
People v Gjenasecse	App Div, 2d Dept: 2016 NY Slip Op 86578(U) (Kings)	dismissed 12/16/16 (Fahey, J.)
People v Gladden	1st Dept: 143 AD3d 426 (Bronx)	denied 12/8/16 (Fahey, J.)
People v Goodwin	2d Dept: 144 AD3d 843 (Kings)	denied 12/30/16 (DiFiore, Ch. J.)
People v Gough	2d Dept: 142 AD3d 673 (Queens)	denied 12/2/16 (Garcia, J.)
People v Grant	1st Dept: 143 AD3d 609 (Bronx)	denied 12/12/16 (Pigott, J.)
People v Gray	1st Dept: 143 AD3d 647 (Bronx)	denied 12/30/16 (DiFiore, Ch. J.)
People v Guzman	App Div, 2d Dept: 2016 NY Slip Op 86574(U) (Kings)	dismissed 12/12/16 (Stein, J.)
People v Hampton	4th Dept: 142 AD3d 1305 (Monroe)	denied 12/21/16 (DiFiore, Ch. J.)
People v Harden	App Div, 3d Dept: 2016 NY Slip Op 82317(U) (Albany)	dismissed 12/16/16 (Fahey, J.)
People v Harris (Cleophis)	4th Dept: 142 AD3d 1391 (Chautauqua)	denied 12/5/16 (Garcia, J.)
People v Harris (Dennis)	2d Dept: 143 AD3d 911 (Nassau)	denied 12/12/16 (Pigott, J.)
People v Harrison	2d Dept: 143 AD3d 842 (Queens)	denied 12/5/16 (Pigott, J.)
People v Horning	1st Dept: 143 AD3d 520 (NY)	dismissed 12/30/16 (Fahey, J.)
People v Houston	2d Dept: 143 AD3d 737 (Kings)	denied 12/30/16 (Fahey, J.)
People v Hunter	App Term, 1st Dept: 53 Misc 3d 143(A) (NY)	denied 12/19/16 (Rivera, J.)
People v Hutchings	4th Dept: 142 AD3d 1292 (Cayuga)	denied 12/7/16 (Abdus-Salaam, J.)

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People v Hutter	1st Dept: 143 AD3d 574 (NY)	denied 12/12/16 (Pigott, J.)
People v Ingram	2d Dept: 142 AD3d 676 (Westchester)	denied 12/19/16 (Rivera, J.)
People v James	4th Dept: 142 AD3d 1290 (Monroe)	denied 12/12/16 (Pigott, J.)
People v Johnson	App Div, 3d Dept: 2016 NY Slip Op 83653(U) (Columbia)	dismissed 12/5/16 (Fahey, J.)
People v Jordan	1st Dept: 143 AD3d 524 (NY)	denied 12/6/16 (Garcia, J.)
People v Katehis	App Div, 2d Dept: 2016 NY Slip Op 87470(U) (Kings)	dismissed 12/12/16 (Pigott, J.)
People v King Whiteblood	2d Dept: 142 AD3d 1187 (Dutchess)	denied 12/7/16 (Stein, J.)
People v Kinsler	1st Dept: 142 AD3d 926 (NY)	denied 12/21/16 (Fahey, J.)
People v Kraja	App Div, 2d Dept: 2016 NY Slip Op 86578(U) (Kings)	dismissed 12/16/16 (Fahey, J.)
People v Landestoy	App Term, 1st Dept: 53 Misc 3d 138(A) (NY)	denied 12/7/16 (Stein, J.)
People v Lasher	App Div, 3d Dept: 2016 NY Slip Op 86471(U) (Schenectady)	dismissed 12/6/16 (Garcia, J.)
People v Layne	1st Dept: 142 AD3d 769 (NY)	denied 12/19/16 (Rivera, J.)
People v Lebron	2d Dept: 140 AD3d 790 (Dutchess)	denied 12/12/16 (Pigott, J.)
People v Lee	2d Dept: 142 AD3d 1184 (Kings)	denied 12/6/16 (Garcia, J.)
People v Linguanti	2d Dept: 143 AD3d 740 (Orange)	denied 12/13/16 (DiFiore, Ch. J.)
People v Lunan	3d Dept: 141 AD3d 947 (Ulster)	denied 12/5/16 (Pigott, J.)
People v Marshall	2d Dept: 143 AD3d 842 (Kings)	denied 12/13/16 (DiFiore, Ch. J.)
People v Martinez (Edwin)	1st Dept: 143 AD3d 557 (Bronx)	denied 12/30/16 (DiFiore, Ch. J.)
People v Martinez (Gene)	2d Dept: 142 AD3d 718 (Kings)	denied 12/19/16 (Rivera, J.)
People v Matthews (Burgess)	4th Dept: 142 AD3d 1354 (Monroe)	denied 12/14/16 (Garcia, J.) (Appeal No. 1)
People v Matthews (Burgess)	4th Dept: 142 AD3d 1356 (Monroe)	denied 12/14/16 (Garcia, J.) (Appeal No. 2)
People v McCray	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 53 Misc 3d 19 (Kings)	denied 12/13/16 (Garcia, J.)
People v McDermott	App Div, 4th Dept, 10/24/16 (Oneida)	dismissed 12/28/16 (Rivera, J.)

People v Miranda	App Term, 1st Dept: 53 Misc 3d 138(A) (NY)	denied 12/16/16 (Fahey, J.)
People v Newton	4th Dept: 143 AD3d 1286 (Wyoming)	denied 12/5/16 (Pigott, J.)
People v Padilla	App Term, 1st Dept: 53 Misc 3d 138(A) (NY)	denied 12/27/16 (Rivera, J.)
People v Pagan	2d Dept: 142 AD3d 1186 (Kings)	denied 12/7/16 (Abdus-Salaam, J.)
People v Palladino	2d Dept: 140 AD3d 1194 (Suffolk)	denied reconsideration 12/5/16 (Pigott, J.)
People v Perkins	3d Dept: 140 AD3d 1401 (Albany)	denied 12/30/16 (Fahey, J.)
People v Peterson	App Term, 1st Dept: 53 Misc 3d 138(A) (Bronx)	denied 12/12/16 (Pigott, J.)
People v Pilorge	2d Dept: 142 AD3d 1186 (Nassau)	denied 12/13/16 (DiFiore, Ch. J.)
People v Pleasant	App Div, 1st Dept: 2016 NY Slip Op 78033(U) (NY)	denied reconsideration 12/30/16 (DiFiore, Ch. J.)
People v Quiroz	2d Dept: 142 AD3d 1108 (Queens)	denied 12/5/16 (Pigott, J.)
People v Rasheem-Coleman	1st Dept: 143 AD3d 585 (NY)	denied 12/20/16 (Stein, J.)
People v Redd	2d Dept: 142 AD3d 1186 (Suffolk)	denied 12/16/16 (Fahey, J.)
People v Renert	3d Dept: 143 AD3d 1016 (Otsego)	denied 12/30/16 (Fahey, J.)
People v Reyes	1st Dept: 143 AD3d 414 (NY)	denied 12/13/16 (Garcia, J.)
People v Richards	2d Dept: 142 AD3d 1187 (Kings)	denied 12/30/16 (Fahey, J.)
People v Rizzo	2d Dept: 142 AD3d 1187 (Dutchess)	denied 12/7/16 (Stein, J.)
People v Robinson (Angel)	2d Dept: 143 AD3d 744 (Suffolk)	denied 12/21/16 (Fahey, J.)
People v Robinson (Brandon)	4th Dept: 142 AD3d 1302 (Monroe)	denied 12/30/16 (DiFiore, Ch. J.)
People v Rodriguez	2d Dept: 142 AD3d 1189 (Suffolk)	denied 12/5/16 (Fahey, J.)
People v Rosario	2d Dept: 143 AD3d 1004 (Westchester)	denied 12/19/16 (Rivera, J.)
People v Rubin	2d Dept: 143 AD3d 846 (Suffolk)	denied 12/27/16 (Rivera, J.)
People v Rush (Basheem)	App Div, 2d Dept: 2016 NY Slip Op 84156(U) (Kings)	dismissed 12/5/16 (Pigott, J.)
People v Rush (Biggie)	App Div, 2d Dept: 2016 NY Slip Op 84156(U) (Kings)	dismissed 12/5/16 (Pigott, J.)

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People v Santiago (Alexander)	1st Dept: 143 AD3d 545 (Bronx)	denied 12/9/16 (Garcia, J.)
People v Santiago (Anibal)	4th Dept: 142 AD3d 1390 (Onondaga)	denied 12/12/16 (Pigott, J.)
People v Simmons	1st Dept: 142 AD3d 884 (Bronx)	denied 12/13/16 (Garcia, J.)
People v Smith	4th Dept: 140 AD3d 1774 (Monroe)	denied 12/5/16 (Stein, J.)
People v Spates	4th Dept: 142 AD3d 1389 (Erie)	denied 12/14/16 (Garcia, J.)
People v Stahl	3d Dept: 141 AD3d 962 (Essex)	denied 12/2/16 (Fahey, J.)
People v Stewart	2d Dept: 142 AD3d 629 (Queens)	denied 12/14/16 (Garcia, J.)
People v Stiles	2d Dept: 143 AD3d 747 (Kings)	denied 12/7/16 (Stein, J.)
People v Tavera	App Term, 1st Dept: 53 Misc 3d 137(A) (Bronx)	denied 12/16/16 (Fahey, J.)
People v Taylor	2d Dept: 132 AD3d 915 (Richmond)	denied 12/19/16 (Rivera, J.)
People v Teri W.	1st Dept: 142 AD3d 924 (NY)	granted 12/30/16 (DiFiore, Ch. J.)
People v Thibeault	App Div, 3d Dept: 2016 NY Slip Op 85827(U) (Cortland)	denied 12/21/16 (Fahey, J.)
People v Thomas (Christopher)	App Term, 1st Dept: 53 Misc 3d 137(A) (NY)	denied 12/9/16 (Garcia, J.)
People v Thomas (David)	2d Dept: 142 AD3d 1191 (Richmond)	denied 12/20/16 (Stein, J.)
People v Thompson (Antwan)	App Div, 2d Dept: 2016 NY Slip Op 87299(U) (Kings)	dismissed 12/30/16 (DiFiore, Ch. J.)
People v Thompson (Gregory)	1st Dept: 143 AD3d 430 (Bronx)	denied 12/20/16 (Stein, J.)
People v Turner	1st Dept: 143 AD3d 416 (NY)	denied 12/1/16 (Pigott, J.)
People v Tyler	4th Dept: 140 AD3d 1617 (Onondaga)	denied 12/19/16 (Rivera, J.)
People v Tyo	4th Dept: 140 AD3d 1697 (Oswego)	denied 12/19/16 (Stein, J.)
People v Valerio	2d Dept: 138 AD3d 1153 (Queens)	denied 12/8/16 (Fahey, J.)
People v Vernick- Chaikin	App Term, 2d Dept, 9th & 10th Jud Dists: 52 Misc 3d 143(A) (Suffolk)	denied 12/19/16 (Pigott, J.)
People v Watson	App Term, 1st Dept: 53 Misc 3d 127(A) (NY)	denied 12/19/16 (Rivera, J.)
People v Wattkis	1st Dept: 143 AD3d 500 (NY)	denied 12/8/16 (Fahey, J.)
People v Westwood	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 53 Misc 3d 74 (Queens)	denied 12/30/16 (Fahey, J.)
People v White (Jahmon)	App Term, 1st Dept: 53 Misc 3d 138(A) (Bronx)	denied 12/19/16 (Rivera, J.)

People v White (Jonathan)	3d Dept: 142 AD3d 1254 (Warren)	denied 12/30/16 (Fahey, J.)
People v Williams (Albert)	App Div, 1st Dept: 2014 NY Slip Op 79799(U) (NY)	dismissed 12/28/16 (Rivera, J.)
People v Williams (Keith)	4th Dept: 142 AD3d 1360 (Monroe)	denied 12/30/16 (DiFiore, Ch. J.)
People v Williams (Teon)	2d Dept: 143 AD3d 847 (Nassau)	denied 12/20/16 (Stein, J.)
People v Young	4th Dept: 143 AD3d 1242 (Monroe)	denied 12/20/16 (Garcia, J.)
People v Zapata	1st Dept: 143 AD3d 477 (NY)	denied 12/6/16 (Garcia, J.)

In the Matter of ANGELICA S. and Others, Infants. CYNTHIA C.,
Appellant; ABBOTT HOUSE, Respondent.

Submitted December 12, 2016; decided January 10, 2017

Reported below, 144 AD3d 484.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of MICHAEL H. CASSIDY, Appellant, v NEW YORK
STATE BOARD OF PAROLE, Respondent.

Submitted October 31, 2016; decided January 10, 2017

Reported below, 140 AD3d 953.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of MICHAEL H. CASSIDY, Appellant, v NEW YORK
STATE BOARD OF PAROLE, Respondent.

Submitted December 5, 2016; decided January 10, 2017

Reported below, 140 AD3d 953.

Motion by The Legal Aid Society for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

ROBERT J. CONGEL et al., as Members of the Executive Committee of, and on Behalf of POUGHKEEPSIE GALLERIA COMPANY, Respondents, v MARC A. MALFITANO, Appellant.

Submitted October 3, 2016; decided January 10, 2017

Reported below, 141 AD3d 64.

Motion for leave to appeal granted. Motion for a stay denied.

DAVID ANTHONY FERNANDEZ, Individually and as Executor of JANIS ANNE FERNANDEZ, Deceased, Appellant, v DAIMLER-CHRYSLER, AG., Respondent, et al., Defendants.

Decided January 10, 2017

Reported below, 143 AD3d 765.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge RIVERA taking no part.

GLOBAL REINSURANCE CORPORATION OF AMERICA, Successor in Interest to CONSTITUTION REINSURANCE CORPORATION, Respondent, v CENTURY INDEMNITY COMPANY, Successor in Interest to CCI INSURANCE COMPANY, Successor in Interest to INSURANCE COMPANY OF NORTH AMERICA, Appellant.

Decided January 10, 2017

See 843 F3d 120.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Chief Judge DiFiore and Judges Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

In the Matter of ISAIAH M. and Another, Neglected Children. FRANKLIN COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; NICOLE M., Appellant.

Submitted December 27, 2016; decided January 10, 2017

Reported below, 144 AD3d 1450.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

FRANK MAKI, Appellant, v BASSETT HEALTHCARE et al., Respondents.

Submitted September 12, 2016; decided January 10, 2017

Reported below, 141 AD3d 979.

On the Court's own motion, appeal, insofar as taken from that portion of the Appellate Division order that affirmed so much of Supreme Court's order as denied the motion for renewal and/or vacatur, dismissed, without costs, upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; appeal otherwise dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed so much of Supreme Court's order as denied the motion for renewal and/or vacatur, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of MELVIN M. MARIN, a Suspended Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Submitted December 19, 2016; decided January 10, 2017

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of MARION C.W. LISA K. et al., Appellants; JPMORGAN CHASE BANK, N.A., Respondent.

Submitted October 17, 2016; decided January 10, 2017

Reported below, 135 AD3d 777.

Motion, insofar as it seeks leave to appeal from those portions of the Appellate Division order as resolved the appeals from those parts of the orders of Supreme Court as denied motions for reargument or renewal, dismissed upon the ground that those portions of the order do not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

ANA GOMEZ, Respondent, v MICHAEL J. NOVAK et al., Appellants.

Submitted December 5, 2016; decided January 12, 2017

Reported below, 140 AD3d 831.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MAPFRE INSURANCE COMPANY OF NEW YORK, Respondent, v BALGOBIN MANOO, et al., Defendants, and ACTIVE CARE MEDICAL SUPPLY CORPORATION, Appellant.

Submitted January 9, 2017; decided January 12, 2017

Reported below, 140 AD3d 468.

Motion by Global Liberty Insurance Company of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

SARA MYERS et al., Appellants, v ERIC SCHNEIDERMAN, in His Official Capacity as Attorney General of the State of New York, Respondent, et al., Defendants.

Submitted January 9, 2017; decided January 12, 2017

Reported below, 140 AD3d 51.

Motion by Michael R. Aiello et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge DiFiore taking no part.

In the Matter of RALPH OYAGUE, Appellant, v CLINTON CORRECTIONAL FACILITY, Respondent.

Submitted December 12, 2016; decided January 12, 2017

Reported below, 2016 NY Slip Op 87822(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHAWN J. SIVERTSON, Appellant.

Decided January 12, 2017

Reported below, 129 AD3d 1467.

Reargument ordered and case set down for argument at a future session of the Court.

Concur: Chief Judge DiFiore and Judges RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MATTHEW A. SLOCUM, Respondent.

Submitted January 9, 2017; decided January 12, 2017

Reported below, 133 AD3d 972.

Motion by The Bronx Defenders et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of 381 SEARCH WARRANTS DIRECTED TO FACEBOOK, INC., Appellant. NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, Respondent. (And Another Proceeding.)

Submitted January 3, 2017; decided January 12, 2017

Reported below, 132 AD3d 11.

Motion by New York Civil Liberties Union et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge GARCIA taking no part.

In the Matter of 381 SEARCH WARRANTS DIRECTED TO FACEBOOK, INC., Appellant. NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, Respondent. (And Another Proceeding.)

Submitted January 9, 2017; decided January 12, 2017

Reported below, 132 AD3d 11.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge GARCIA taking no part.

In the Matter of 381 SEARCH WARRANTS DIRECTED TO FACEBOOK, INC., Appellant. NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, Respondent. (And Another Proceeding.)

Submitted January 9, 2017; decided January 12, 2017

Reported below, 132 AD3d 11.

Motion by Foursquare Labs, Inc., et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge GARCIA taking no part.

In the Matter of 381 SEARCH WARRANTS DIRECTED TO FACEBOOK, INC., Appellant. NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, Respondent. (And Another Proceeding.)

Submitted January 9, 2017; decided January 12, 2017

Reported below, 132 AD3d 11.

Motion by Brennan Center for Justice at NYU School of Law et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

Judge GARCIA taking no part.

In the Matter of 381 SEARCH WARRANTS DIRECTED TO FACEBOOK, INC., Appellant. NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, Respondent. (And Another Proceeding.)

Submitted January 9, 2017; decided January 12, 2017

Reported below, 132 AD3d 11.

Motion by Matthew L. Biben et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge GARCIA taking no part.

In the Matter of 381 SEARCH WARRANTS DIRECTED TO FACEBOOK, INC., Appellant. NEW YORK COUNTY DISTRICT ATTORNEY'S OFFICE, Respondent. (And Another Proceeding.)

Submitted January 9, 2017; decided January 12, 2017

Reported below, 132 AD3d 11.

Motion by Amazon.com, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge GARCIA taking no part.

In the Matter of ELAINE WARD, Appellant, v CITY OF NEW YORK
et al., Respondents.

Submitted December 19, 2016; decided January 12, 2017

Reported below, 138 AD3d 629.

Motion for reargument of motion for leave to appeal denied
[see 28 NY3d 1070].

[68 NE3d 1221, 46 NYS3d 491]

In the Matter of JEVON HENRY, Appellant, v BRIAN FISCHER, as
Commissioner of Corrections and Community Supervision,
Respondent.

Argued November 14, 2016; decided December 15, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered August 7, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Albany County (Patrick J. McGrath, J.), entered in a proceeding pursuant to CPLR article 78, which had dismissed petitioner's application to review a determination of respondent finding petitioner guilty of violating certain prison disciplinary rules.

Matter of Henry v Fischer, 120 AD3d 868, reversed.

HEADNOTE

Prisons and Prisoners — Discipline of Inmates — Preservation of Issue for Judicial Review — Denial of Requests for Documents and Witnesses

Petitioner inmate did not waive his challenges to the Hearing Officer's denial of petitioner's requests to present certain documents and witnesses during his prison disciplinary proceeding by failing to make specific objections at the hearing. An inmate charged with violating a prison regulation is entitled to due process protections which include a right to call witnesses and present documentary evidence in his or her defense when permitting him or her to do so will not be unduly hazardous to institutional safety or correctional goals. The record showed that petitioner plainly requested access to specific documents and witnesses, and the Hearing Officer denied some of those requests. In light of the denial of petitioner's requests, the courts below erred in determining that petitioner's failure to specifically object to the Hearing Officer's unfavorable rulings constituted a failure to preserve those rulings for judicial review.

APPEARANCES OF COUNSEL

Main Street Legal Services, Inc., Long Island City (*Donna H. Lee* of counsel), and *Cleary Gottlieb Steen & Hamilton LLP*, New York City (*David H. Herrington*, *Izukanne Emeagwali*, *Jessica Thompson* and *Bibeane Metsch* of counsel), for appellant.

Eric T. Schneiderman, Attorney General, Albany (*Marcus J. Mastracco*, *Barbara D. Underwood*, *Andrea Oser* and *Peter H. Schiff* of counsel), for respondent.

Karen Murtagh, *Prisoners' Legal Services of New York*, Albany (*James Bogin* of counsel), for Prisoners' Legal Services of New York, amicus curiae.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, without costs, and the matter remitted to the Supreme Court for further proceedings in accordance with this memorandum.

During his prison disciplinary proceeding, inmate Jevon Henry requested specific documents and witnesses, and the Hearing Officer denied some of those requests. Following a hearing, Henry was found guilty and a penalty was imposed of two years in a special housing unit. In a CPLR article 78 proceeding in which Henry sought judicial review of the denial of his requests for documents and witnesses, Supreme Court dismissed the petition on the ground that Henry had not preserved his claim that his requests had been improperly denied. The Appellate Division affirmed (120 AD3d 868 [3d Dept 2014]). We granted petitioner leave to appeal and now reverse, holding that Henry did preserve his claim.

Henry, an inmate at the Greene Correctional Facility in the custody of the Department of Corrections and Community Supervision, was charged with participating in a gang-related assault of another inmate. A tier III disciplinary hearing was held before a Commissioner's Hearing Officer. At the outset, the Hearing Officer advised Henry that he was entitled to call witnesses on his behalf and to present documentary evidence. The Hearing Officer also instructed Henry to promptly raise any procedural objections or claims so that they might be addressed during the hearing. Henry indicated that he understood his rights as explained to him and pleaded not guilty to all charges. Henry requested that he be provided with any "to/from" report and logbook entries relevant to the incident, as

well as the unusual incident report. Henry also requested testimony from two correction officers and several inmate witnesses.

At the hearing, an offender rehabilitation coordinator testified that confidential sources informed him that Henry had assaulted another inmate on April 22, 2012 with a sharp metal-type weapon. He further testified that his investigation led him to believe that the assault was gang-related and retaliatory. Prior to the presentation of his defense, Henry complained that he had not yet received the documents he had requested. The Hearing Officer denied Henry's requests for documents, on the basis that the unusual incident report did not name Henry, the "to/from" report was confidential, and the logbook had no description of the incident.

Three of the inmates requested by Henry testified on his behalf. One of the correction officers requested by Henry testified that he was vaguely familiar with the subject incident and that he had nothing of significance to recount. In response to Henry's questions, the correction officer testified that he did not know whether Henry was involved in the alleged assault. The Hearing Officer denied Henry's request to call the second correction officer on the ground that the testimony would be cumulative. Regarding one of the inmates Henry had requested, the Hearing Officer told Henry that the inmate refused to testify. Twice during the hearing, Henry stated that he was not involved in the alleged attack and that he objected "to the whole hearing."

Following the hearing, the Hearing Officer found Henry guilty and imposed two years in the special housing unit with attendant loss of privileges and good time. Henry filed an administrative appeal, arguing that he was denied requested documents, and that the Hearing Officer never provided an explanation for one inmate's refusal to testify. Following administrative affirmance of the disposition, Henry commenced a CPLR article 78 proceeding to challenge the determination. In lieu of an answer, respondent moved to dismiss the proceeding on the ground that Henry had failed to preserve the issues he sought to raise by proper objection at the hearing.

Supreme Court granted respondent's motion to dismiss, denied the petition, and dismissed the proceeding, holding that, because Henry had failed to object at the hearing to the denial of his requests for documents and witnesses, none of the issues were preserved for review. Henry appealed and the Ap-

pellate Division affirmed (120 AD3d 868 [3d Dept 2014]), holding that Henry's claims were unpreserved "due to his failure to specifically object at the hearing" (*id.* at 869).

An inmate charged with violating a prison regulation is entitled to due process protections which include a right "to call witnesses and present documentary evidence in his defense when permitting him to do so will not be unduly hazardous to institutional safety or correctional goals" (*Wolff v McDonnell*, 418 US 539, 566 [1974]; *Matter of Laureano v Kuhlmann*, 75 NY2d 141, 146 [1990]). Contrary to the conclusion of the Appellate Division, Henry cannot be deemed to have waived his challenges simply because he failed to make specific objections at the hearing.*

In sum, the record shows that Henry plainly requested access to specific documents and witnesses, and the Hearing Officer denied some of those requests. In light of the denial of Henry's requests, the courts below erred in determining that Henry's failure to specifically object to the Hearing Officer's unfavorable rulings constituted a failure to preserve those rulings for judicial review.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

Order reversed, without costs, and matter remitted to Supreme Court, Albany County, for further proceedings in accordance with the memorandum herein.

[69 NE3d 622, 46 NYS3d 835]

In the Matter of BRUCKNER REALTY LLC, Appellant, v JEANETTE CRUZ, Respondent.

Decided December 20, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 3, 2016. The Appellate Division affirmed an order of the Appellate Term of the Supreme Court in the First Judicial Department (op 46 Misc 3d 152[A], 2015 NY

* Respondent also argues that Henry failed to exhaust his administrative remedies. That was not the basis for the motion to dismiss and it is not reviewable on this appeal.

Slip Op 50319[U] [2015]), which had modified an order of the Civil Court of the City of New York, Bronx County (Joseph E. Capella, J.), granting petitioner's motion to dismiss respondent's defenses and for summary judgment of possession in a holdover summary proceeding. The modification consisted of denying the parts of petitioner's summary judgment motion that sought to dismiss respondent's second and third "affirmative defenses" and first and second "defenses" and for summary judgment of possession. The Appellate Term affirmed the order as modified. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of the Appellate Term, First Department, properly made?"

In a holdover summary proceeding seeking to recover possession of a garage space situated in the building premises in which respondent tenant's rent-stabilized apartment was located, the Appellate Division determined that petitioner landlord failed to establish *prima facie* that the space was not a required ancillary service, finding that the fact that the building had 142 dwelling units but space for only 56 cars was not determinative.

Matter of Bruckner Realty LLC v Cruz, 139 AD3d 413, affirmed.

HEADNOTE

Landlord and Tenant — Rent Regulation — Ancillary Service — Garage Space

In a holdover summary proceeding seeking to recover possession of a garage space situated in the building premises in which respondent tenant's rent-stabilized apartment was located, petitioner landlord failed to satisfy its burden on its motion for summary judgment of making a *prima facie* showing of entitlement to judgment as a matter of law.

APPEARANCES OF COUNSEL

Sontag & Hyman, P.C., Roslyn Heights (*Marc H. Hyman* of counsel), for appellant.

Jeanette Cruz, respondent pro se.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. Petitioner failed to satisfy its burden on its motion for summary judgment of making a *prima facie* showing of entitlement to judgment as a matter of law.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[70 NE3d 477, 47 NYS3d 726]

In the Matter of NORMAN WOODS et al., Respondents, v STATE UNIVERSITY OF NEW YORK et al., Appellants.

Decided February 14, 2017

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 26, 2016. The Appellate Division, with two Justices dissenting, reversed a judgment of the Supreme Court, Albany County (Thomas J. McNamara, J.), entered in a proceeding pursuant to CPLR article 78 and CPLR 7503, which had converted the proceeding into a proceeding pursuant to CPLR 7511 to confirm an arbitration award.

Petitioner, a former employee of respondent State University of New York and member of a bargaining unit represented by petitioner New York State Correctional Officers and Police Benevolent Association, Inc., commenced a proceeding seeking to compel arbitration pursuant to CPLR 7503, or, alternatively, to vacate and annul the June 2014 termination of his probationary employment pursuant to CPLR article 78. A one-year probationary period had been imposed upon petitioner for disciplinary charges, following an October 2013 arbitration held pursuant to the parties' collective bargaining agreement (CBA). The Supreme Court converted the proceeding to one seeking to confirm the October 2013 arbitration award pursuant to CPLR 7511 and directed the parties to seek clarification of that award.

The majority at the Appellate Division concluded that the CBA was ambiguous as to whether the parties agreed to arbitrate issues regarding the termination of probationary employees, and, therefore, that an arbitrator must decide whether it governed petitioner's dismissal from service, and that Supreme Court should have granted the petition to compel arbitration of the termination issue. The dissenting Appellate Division Justices concluded that the termination of petitioner's probationary employment could not reasonably be interpreted as a disciplinary action subject to arbitration under the terms

of the CBA. In any event, the dissenting Justices found that the employees referred to in the CBA's arbitration provision were limited to those who were "otherwise subject" to Civil Service Law §§ 75 and 76, which describe only employees who have completed a probationary period of employment. Since petitioner did not complete probation, the dissent found that the arbitration provision did not apply to him. The dissent further concluded that if the termination of petitioner's probation were to be viewed as invoking the protections of the CBA's arbitration provision, then the arbitrator in October 2013 would have imposed no penalty upon petitioner because he still would have the same rights to have his grievance arbitrated and his conduct judged by the provision's "just cause" standard, rendering the disciplinary penalty of probation meaningless.

Matter of Woods v State Univ. of N.Y., 139 AD3d 1322, reversed.

HEADNOTE

Arbitration — Collective Bargaining Agreement — Matters Arbitrable — Termination of Probationary Employee Placed on One-Year Probation as Disciplinary Penalty

In a proceeding pursuant to CPLR article 78 and CPLR 7503 challenging the termination of petitioner former state employee's probationary employment, an Appellate Division order which reversed a Supreme Court order converting the proceeding into one pursuant to CPLR 7511 to confirm an earlier arbitration award that had imposed upon petitioner the probationary period as a result of disciplinary charges, and directing the parties to seek clarification of that award, was reversed, for the reasons stated in the dissenting memorandum at the Appellate Division, and the matter remitted to the Appellate Division for consideration of issues raised but not determined on the appeal to that Court.

APPEARANCES OF COUNSEL

Eric T. Schneiderman, Attorney General, Albany (Julie M. Sheridan, Barbara D. Underwood and Andrew D. Bing of counsel), for appellants.

Lippes Mathias Wexler Friedman LLP, Albany (Thomas D. Latin of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, without costs, for the reasons stated in the dissenting memorandum of Justice Robert Rose (139 AD3d 1322, 1325 [2016]), and matter remitted to the Appellate Division, Third Department, for consideration of issues raised but not determined on the appeal to that Court.

Concur: Chief Judge DiFiore and Judges RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA; Judge WILSON taking no part.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(January 1, 2017 through January 31, 2017)

Wells Fargo Bank, NA v
Taschetta

App Div, 4th Dept: 2016
NY Slip Op 89811(U)

1/9/17

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(January 1, 2017 through January 31, 2017)

People v Acevado	1st Dept: 143 AD3d 549 (Bronx)	denied 1/4/17 (Stein, J.)
People v Acevedo	1st Dept: 143 AD3d 549 (Bronx)	denied 1/4/17 (Stein, J.)
People v Alcides P.	2d Dept: 144 AD3d 1178 (Kings)	denied 1/30/17 (Fahey, J.)
People v Alfred	4th Dept: 142 AD3d 1373 (Onondaga)	denied 1/3/17 (Rivera, J.)
People v Allen	4th Dept: 142 AD3d 1401 (Erie)	denied 1/23/17 (Garcia, J.)
People v Alvarez	1st Dept: 143 AD3d 543 (NY)	denied 1/16/17 (Rivera, J.)
People v Angeles	App Term, 1st Dept: 53 Misc 3d 143(A) (NY)	denied 1/23/17 (Garcia, J.)
People v Anonymous	1st Dept: 144 AD3d 595 (NY)	denied 1/26/17 (Garcia, J.)
People v Ashe	1st Dept: 142 AD3d 887 (NY)	denied 1/27/17 (DiFiore, Ch. J.)
People v Bacuetes	App Term, 1st Dept: 53 Misc 3d 128(A) (NY)	denied 1/4/17 (Garcia, J.)
People v Baez	1st Dept: 143 AD3d 474 (NY)	denied 1/17/17 (Fahey, J.)
People v Bartlett	1st Dept: 143 AD3d 571 (NY)	denied 1/11/17 (Fahey, J.)
People v Barto	4th Dept: 144 AD3d 1641 (Seneca)	denied 1/5/17 (Stein, J.)
People v Belton	2d Dept: 143 AD3d 835 (Kings)	denied 1/10/17 (Stein, J.)
People v Blanco	1st Dept: 143 AD3d 616 (NY)	denied 1/6/17 (Garcia, J.)

MEMORANDA

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People v Boland	2d Dept: 143 AD3d 909 (Queens)	denied 1/3/17 (Garcia, J.)
People v Bombard	4th Dept: 143 AD3d 1257 (Ontario)	denied 1/5/17 (Stein, J.)
People v Bouwens	App Div, 4th Dept, 10/4/16 (Ontario)	dismissed 1/26/17 (Garcia, J.)
People v Bowens	1st Dept: 143 AD3d 528 (NY)	denied 1/24/17 (Abdus-Salaam, J.)
People v Bridges	4th Dept: 144 AD3d 1582 (Erie)	denied 1/9/17 (Stein, J.)
People v Brimmage	1st Dept: 143 AD3d 624 (NY)	denied 1/19/17 (Abdus-Salaam, J.)
People v Brito	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 53 Misc 3d 130(A) (Kings)	denied 1/3/17 (Garcia, J.)
People v Brook	2d Dept: 143 AD3d 836 (Kings)	denied 1/19/17 (Abdus-Salaam, J.)
People v Bryant (Keith)	4th Dept: 144 AD3d 1523 (Monroe)	denied 1/4/17 (DiFiore, Ch. J.) (Appeal No. 1)
People v Bryant (Keith)	4th Dept: 144 AD3d 1530 (Monroe)	denied 1/4/17 (DiFiore, Ch. J.) (Appeal No. 2)
People v Burlingame	App Div, 4th Dept, 8/16/16 (Chautauqua)	denied reconsideration 1/20/17 (DiFiore, Ch. J.)
People v Cadet	3d Dept: 144 AD3d 1335 (Washington)	denied 1/18/17 (Fahey, J.)
People v Cardona	App Term, 1st Dept: 53 Misc 3d 137(A) (NY)	denied 1/24/17 (Garcia, J.)
People v Carducci	4th Dept: 143 AD3d 1260 (Erie)	denied 1/5/17 (Stein, J.)
People v Carrasquillo	4th Dept: 142 AD3d 1359 (Onondaga)	denied 1/6/17 (Garcia, J.)
People v Carrasquillo- Fuentes	4th Dept: 142 AD3d 1335 (Onondaga)	denied 1/6/17 (Garcia, J.)
People v Casolo	3d Dept: 142 AD3d 1247 (Albany)	denied 1/19/17 (Abdus-Salaam, J.)
People v Castro	1st Dept: 143 AD3d 514 (Bronx)	denied 1/16/17 (Rivera, J.)
People v Clark	4th Dept: 142 AD3d 1339 (Monroe)	denied 1/4/17 (DiFiore, Ch. J.)
People v Clarke	2d Dept: 144 AD3d 937 (Westchester)	denied 1/23/17 (Fahey, J.)
People v Coello	App Div, 1st Dept: 2016 NY Slip Op 88142(U) (Bronx)	denied 1/24/17 (Garcia, J.)
People v Colletta	2d Dept: 143 AD3d 908 (Queens)	denied 1/25/17 (Stein, J.)

People v Coney	1st Dept: 143 AD3d 490 (NY)	denied 1/24/17 (Garcia, J.)
People v Cook	3d Dept: 144 AD3d 1317 (Albany)	denied 1/30/17 (Fahey, J.)
People v Corona	1st Dept: 142 AD3d 889 (Bronx)	denied 1/3/17 (DiFiore, Ch. J.)
People v Crespo	1st Dept: 143 AD3d 412 (Bronx)	denied 1/30/17 (Abdus-Salaam, J.)
People v Cruz	App Term, 1st Dept: 53 Misc 3d 95 (Bronx)	denied 1/19/17 (Abdus-Salaam, J.)
People v Culkin	App Div, 4th Dept: 2016 NY Slip Op 88946(U) (Erie)	dismissed 1/6/17 (DiFiore, Ch. J.)
People v Dale	4th Dept: 142 AD3d 1287 (Erie)	denied 1/26/17 (Garcia, J.)
People v Darden	1st Dept: 142 AD3d 863 (NY)	denied 1/19/17 (Abdus-Salaam, J.)
People v Davis (Richard)	4th Dept: 142 AD3d 1387 (Monroe)	denied 1/19/17 (Abdus-Salaam, J.)
People v Davis (Rodney)	3d Dept: 144 AD3d 1188 (Schenectady)	denied 1/23/17 (Fahey, J.)
People v Davoy	4th Dept: 142 AD3d 1301 (Lewis)	denied 1/4/17 (DiFiore, Ch. J.)
People v Deale	1st Dept: 143 AD3d 621 (NY)	denied 1/6/17 (Garcia, J.)
People v Dermer	1st Dept: 140 AD3d 551 (NY)	denied 1/6/17 (Fahey, J.)
People v Echols	2d Dept: 144 AD3d 702 (Queens)	denied 1/4/17 (DiFiore, Ch. J.)
People v Elias	2d Dept: 143 AD3d 908 (Kings)	denied 1/23/17 (Garcia, J.)
People v Empey	3d Dept: 144 AD3d 1201 (St. Lawrence)	denied 1/30/17 (Fahey, J.)
People v Encarnacion	App Div, 4th Dept, 10/18/16 (Onondaga)	dismissed 1/9/17 (Stein, J.)
People v Ernst	4th Dept: 144 AD3d 1605 (Cayuga)	denied 1/4/17 (DiFiore, Ch. J.)
People v Esteban	1st Dept: 143 AD3d 515 (NY)	denied 1/30/17 (Abdus-Salaam, J.)
People v Evans	4th Dept: 142 AD3d 1291 (Erie)	denied 1/4/17 (Garcia, J.)
People v Ezell	1st Dept: 143 AD3d 551 (Bronx)	denied 1/18/17 (Fahey, J.)
People v Fernanand	1st Dept: 143 AD3d 653 (Bronx)	denied 1/16/17 (Rivera, J.)
People v Fisher (Brian)	4th Dept: 142 AD3d 1401 (Monroe)	denied 1/19/17 (Abdus-Salaam, J.)

MEMORANDA

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People v Fisher (Kevin)	1st Dept: 143 AD3d 623 (Bronx)	denied 1/19/17 (Abdus-Salaam, J.)
People v Forest	3d Dept: 141 AD3d 967 (Tompkins)	denied 1/17/17 (DiFiore, Ch. J.)
People v Galindo	1st Dept: 144 AD3d 578 (NY)	denied 1/18/17 (Fahey, J.)
People v Gambrell	1st Dept: 143 AD3d 653 (NY)	denied 1/4/17 (Stein, J.)
People v Ghost	4th Dept: 144 AD3d 1597 (Erie)	denied 1/31/17 (DiFiore, Ch. J.)
People v Gillegbower	1st Dept: 143 AD3d 479 (NY)	denied 1/16/17 (Rivera, J.)
People v Gonzalez	1st Dept: 144 AD3d 408 (NY)	denied 1/19/17 (Abdus-Salaam, J.)
People v Goss	4th Dept: 143 AD3d 1279 (Erie)	denied 1/3/17 (Rivera, J.)
People v Gray	2d Dept: 143 AD3d 909 (Queens)	denied 1/3/17 (Garcia, J.)
People v Grayson	App Div, 3d Dept: 2016 NY Slip Op 87176(U) (Albany)	denied 1/26/17 (Garcia, J.)
People v Green	4th Dept: 132 AD3d 1270 (Erie)	denied 1/19/17 (Abdus-Salaam, J.) (Appeal No. 2)
People v Griffin	2d Dept: 143 AD3d 1000 (Queens)	denied 1/3/17 (Rivera, J.)
People v Gumbs	1st Dept: 143 AD3d 403 (Bronx)	denied 1/18/17 (Fahey, J.)
People v Gunn	3d Dept: 144 AD3d 1193 (Albany)	denied 1/23/17 (Fahey, J.)
People v Hale	2d Dept: 143 AD3d 910 (Kings)	denied 1/17/17 (Fahey, J.)
People v Hall	4th Dept: 142 AD3d 1295 (Lewis)	denied 1/9/17 (Stein, J.)
People v Hamilton	App Div, 2d Dept: 2016 NY Slip Op 83131(U) (Kings)	denied reconsideration 1/10/17 (Rivera, J.)
People v Harris (Fred)	App Div, 2d Dept: 2016 NY Slip Op 80387(U) (Kings)	denied reconsideration 1/19/17 (Abdus-Salaam, J.)
People v Harris (Joseph)	3d Dept: 143 AD3d 1181 (Clinton)	denied 1/3/17 (Garcia, J.)
People v Hart	App Div, 3d Dept: 2016 NY Slip Op 91179(U) (Albany)	denied 1/31/17 (DiFiore, Ch. J.)
People v Heath (James)	App Div, 3d Dept: 2016 NY Slip Op 75491(U) (Tompkins)	dismissed 1/24/17 (Abdus-Salaam, J.)

People v Heath (James)	App Div, 3d Dept, 6/6/14 (Tompkins)	dismissed 1/24/17 (Abdus-Salaam, J.)
People v Henderson	2d Dept: 142 AD3d 1104 (Orange)	denied 1/19/17 (Abdus-Salaam, J.)
People v Hernandez	2d Dept: 140 AD3d 1187 (Queens)	denied 1/4/17 (Stein, J.)
People v Howell	1st Dept: 143 AD3d 470 (NY)	denied 1/9/17 (Stein, J.)
People v Hoppe	App Div, 3d Dept: 2016 NY Slip Op 87811(U) (Broome)	dismissed 1/17/17 (Fahey, J.)
People v Houston	4th Dept: 142 AD3d 1397 (Niagara)	denied 1/30/17 (Abdus-Salaam, J.)
People v Huggen	App Term, 1st Dept: 53 Misc 3d 137(A) (NY)	denied 1/11/17 (Stein, J.)
People v Huggins	App Term, 1st Dept: 53 Misc 3d 137(A) (NY)	denied 1/11/17 (Stein, J.)
People v Ikpemgbe	1st Dept: 144 AD3d 430 (NY)	denied 1/4/17 (Garcia, J.)
People v Illescas	2d Dept: 139 AD3d 873 (Westchester)	denied reconsideration 1/9/17 (Stein, J.)
People v Inoa	App Div, 1st Dept: 2016 NY Slip Op 88161(U) (NY)	denied 1/23/17 (Fahey, J.)
People v Ivy	App Div, 4th Dept, 9/7/16 (Erie)	denied reconsideration 1/18/17 (Stein, J.)
People v Jackson (Aaron)	4th Dept: 141 AD3d 1095 (Onondaga)	denied 1/5/17 (Stein, J.)
People v Jackson (Arron)	4th Dept: 141 AD3d 1095 (Onondaga)	denied 1/5/17 (Stein, J.)
People v Jackson (Sheree)	1st Dept: 143 AD3d 404 (Bronx)	denied 1/16/17 (Rivera, J.)
People v Jiminez	1st Dept: 143 AD3d 422 (NY)	denied 1/30/17 (Abdus-Salaam, J.)
People v Johnson (Chester)	App Div, 2d Dept: 2016 NY Slip Op 83132(U) (Kings)	denied reconsideration 1/20/17 (DiFiore, Ch. J.)
People v Johnson (Tyriek)	4th Dept: 143 AD3d 1284 (Orleans)	denied 1/4/17 (Garcia, J.)
People v Johnston	App Div, 4th Dept, 10/7/16 (Yates)	denied 1/4/17 (Garcia, J.)
People v Jones (Jennifer)	4th Dept: 142 AD3d 1318 (Cayuga)	denied 1/5/17 (Stein, J.)
People v Jones (Joseph)	1st Dept: 143 AD3d 578 (NY)	denied 1/19/17 (Abdus-Salaam, J.)

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People v Jones (Morris)	App Term, 1st Dept: 53 Misc 3d 143(A) (NY)	denied 1/19/17 (Abdus-Salaam, J.)
People v Jones (Nedra)	4th Dept: 144 AD3d 1590 (Erie)	denied 1/25/17 (Stein, J.)
People v Jones (Vernon)	App Div, 3d Dept: 2016 NY Slip Op 74760(U) (Rensselaer)	denied reconsideration 1/30/17 (Abdus-Salaam, J.)
People v Juan A.	2d Dept: 143 AD3d 908 (Queens)	denied 1/4/17 (Garcia, J.)
People v Justice	App Div, 4th Dept, 10/19/16 (Erie)	dismissed 1/23/17 (Garcia, J.)
People v Kamal	2d Dept: 144 AD3d 1055 (Suffolk)	denied 1/31/17 (DiFiore, Ch. J.)
People v King	1st Dept: 142 AD3d 917 (Bronx)	denied 1/9/17 (Stein, J.)
People v Kluss	4th Dept: 143 AD3d 1281 (Yates)	denied 1/5/17 (Stein, J.)
People v Knighton (James)	4th Dept: 144 AD3d 1594 (Onondaga)	denied 1/26/17 (Garcia, J.) (Appeal No. 1)
People v Knighton (James)	4th Dept: 144 AD3d 1595 (Onondaga)	denied 1/26/17 (Garcia, J.) (Appeal No. 2)
People v Lancaster	3d Dept: 143 AD3d 1046 (Broome)	denied 1/20/17 (Fahey, J.)
People v Land	4th Dept: 144 AD3d 1561 (Erie)	denied 1/26/17 (Garcia, J.)
People v Lawrence	App Term, 1st Dept: 53 Misc 3d 137(A) (NY)	denied 1/17/17 (Fahey, J.)
People v Leitzsey	1st Dept: 142 AD3d 918 (NY)	denied 1/9/17 (Stein, J.)
People v Lineberger	App Div, 1st Dept: 2015 NY Slip Op 74358(U) (NY)	denied 1/17/17 (Fahey, J.)
People v Maisonet	2d Dept: 144 AD3d 948 (Kings)	denied 1/10/17 (Stein, J.)
People v Major	3d Dept: 143 AD3d 1155 (Otsego)	denied 1/26/17 (Garcia, J.)
People v Manuel	1st Dept: 143 AD3d 473 (NY)	denied 1/18/17 (Fahey, J.)
People v Marku	1st Dept: 143 AD3d 576 (NY)	denied 1/16/17 (Rivera, J.)
People v Marrero	1st Dept: 143 AD3d 403 (Bronx)	denied 1/18/17 (Fahey, J.)
People v Martin (Dijon)	2d Dept: 144 AD3d 707 (Queens)	denied 1/9/17 (Stein, J.)
People v Martin (Gregory)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 52 Misc 3d 140(A) (Queens)	denied 1/4/17 (Stein, J.)
People v Martinez (Aaron)	3d Dept: 141 AD3d 1007 (Clinton)	denied 1/17/17 (Fahey, J.)

People v Martinez (Mitchell)	1st Dept: 143 AD3d 564 (Bronx)	denied 1/19/17 (Abdus-Salaam, J.)
People v Mason	1st Dept: 143 AD3d 569 (Bronx)	denied 1/3/17 (Garcia, J.)
People v Matos	1st Dept: 143 AD3d 507 (Bronx)	denied 1/4/17 (Stein, J.)
People v Maynard	App Div, 4th Dept, 10/7/16 (Cayuga)	denied 1/3/17 (Rivera, J.)
People v McClassling	1st Dept: 143 AD3d 528 (NY)	denied 1/24/17 (Abdus-Salaam, J.)
People v McKnight	3d Dept: 144 AD3d 1334 (Schenectady)	denied 1/24/17 (Garcia, J.)
People v McLean	1st Dept: 143 AD3d 538 (NY)	denied 1/16/17 (Rivera, J.)
People v McMurray	1st Dept: 143 AD3d 542 (NY)	denied 1/10/17 (DiFiore, Ch. J.)
People v Michel	2d Dept: 144 AD3d 948 (Kings)	denied 1/11/17 (Stein, J.)
People v Miranda (Enrique)	2d Dept: 144 AD3d 844 (Richmond)	denied 1/18/17 (Fahey, J.)
People v Miranda (Luis)	1st Dept: 143 AD3d 491 (NY)	denied 1/4/17 (Stein, J.)
People v Mohammed	3d Dept: 144 AD3d 1321 (Albany)	denied 1/11/17 (DiFiore, Ch. J.)
People v Moise	1st Dept: 144 AD3d 491 (NY)	denied 1/18/17 (Fahey, J.)
People v Morrow	2d Dept: 143 AD3d 919 (Kings)	denied 1/19/17 (Fahey, J.)
People v Murillo	1st Dept: 144 AD3d 450 (NY)	denied 1/23/17 (Garcia, J.)
People v Myers	2d Dept: 143 AD3d 843 (Suffolk)	denied 1/17/17 (Fahey, J.)
People v Nadal	App Div, 2d Dept: 2016 NY Slip Op 80390(U) (Westchester)	denied reconsideration 1/23/17 (Fahey, J.)
People v Nedlik	3d Dept: 144 AD3d 1324 (Broome)	denied 1/30/17 (Fahey, J.)
People v Nelson	1st Dept: 133 AD3d 536 (NY)	denied 1/11/17 (Stein, J.)
People v Norman	2d Dept: 142 AD3d 1107 (Queens)	denied 1/16/17 (Rivera, J.)
People v Nowell	1st Dept: 143 AD3d 510 (NY)	denied 1/16/17 (Rivera, J.)
People v O'Rourke	App Term, 2d Dept, 9th & 10th Jud Dists: 2016 NY Slip Op 93720(U) (Suffolk)	denied 1/30/17 (Fahey, J.)
People v Ortega	1st Dept: 144 AD3d 507 (Bronx)	denied 1/19/17 (DiFiore, Ch. J.)
People v Owens	4th Dept: 144 AD3d 1510 (Onondaga)	denied 1/25/17 (Stein, J.)

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People v Pace	4th Dept: 143 AD3d 1286 (Erie)	denied 1/5/17 (DiFiore, Ch. J.)
People v Page	4th Dept: 144 AD3d 1581 (Niagara)	denied 1/17/17 (Stein, J.)
People v Parker (Alfred)	4th Dept: 132 AD3d 1270 (Erie)	denied 1/19/17 (Abdus-Salaam, J.) (Appeal No. 2)
People v Parker (Devorn)	App Term, 1st Dept: 53 Misc 3d 128(A) (Bronx)	denied 1/16/17 (Rivera, J.)
People v Patel (Vinod)	App Div, 2d Dept: 2016 NY Slip Op 89517(U) (Queens)	dismissed 1/23/17 (Fahey, J.)
People v Patel (Vinod)	App Div, 2d Dept: 2016 NY Slip Op 91140(U) (Nassau)	dismissed 1/30/17 (Fahey, J.)
People v Peals	1st Dept: 143 AD3d 535 (NY)	denied 1/19/17 (Abdus-Salaam, J.)
People v Pendarvis	4th Dept: 143 AD3d 1275 (Erie)	denied 1/10/17 (Stein, J.)
People v Perez (Lawrence)	1st Dept: 142 AD3d 869 (Bronx)	denied 1/19/17 (Abdus-Salaam, J.)
People v Perez (Rudy)	1st Dept: 143 AD3d 530 (NY)	denied 1/4/17 (Stein, J.)
People v Perry	1st Dept: 144 AD3d 469 (Bronx)	denied 1/18/17 (Fahey, J.)
People v Phillips	App Term, 1st Dept: 53 Misc 3d 151(A) (NY)	denied 1/30/17 (Fahey, J.)
People v Pierce	4th Dept: 142 AD3d 1341 (Erie)	denied 1/19/17 (Abdus-Salaam, J.)
People v Pomaes (Jaime)	4th Dept: 142 AD3d 1386 (Monroe)	denied 1/19/17 (Abdus-Salaam, J.)
People v Pomaes (Jaimen)	4th Dept: 142 AD3d 1386 (Monroe)	denied 1/19/17 (Abdus-Salaam, J.)
People v Pryce	1st Dept: 143 AD3d 554 (NY)	denied 1/19/17 (Abdus-Salaam, J.)
People v Puig	1st Dept: 143 AD3d 588 (NY)	denied 1/19/17 (Abdus-Salaam, J.)
People v Ramos	1st Dept: 144 AD3d 576 (Bronx)	denied 1/19/17 (DiFiore, Ch. J.)
People v Randall	1st Dept: 143 AD3d 411 (NY)	denied 1/9/17 (Stein, J.)
People v Raska	County Ct, 10/3/16 (Rensselaer)	denied 1/5/17 (DiFiore, Ch. J.)
People v Rastaldo	1st Dept: 132 AD3d 455 (NY)	denied 1/9/17 (Stein, J.)
People v Reader (Jeffery)	2d Dept: 142 AD3d 1109 (Richmond)	denied 1/6/17 (Fahey, J.)

People v Reader (Jeffrey)	2d Dept: 142 AD3d 1109 (Richmond)	denied 1/6/17 (Fahey, J.)
People v Reyes (Casimiro)	2d Dept: 137 AD3d 1060 (Kings)	granted 1/25/17 (Garcia, J.)
People v Reyes (Manahan)	1st Dept: 142 AD3d 868 (NY)	denied 1/24/17 (Garcia, J.)
People v Reyes (Wendell)	1st Dept: 144 AD3d 463 (Bronx)	denied 1/11/17 (DiFiore, Ch. J.)
People v Rhymes	4th Dept: 142 AD3d 1400 (Monroe)	denied 1/24/17 (Garcia, J.)
People v Richardson (Dante)	4th Dept: 143 AD3d 1252 (Erie)	denied 1/3/17 (Garcia, J.)
People v Richardson (Thomas)	4th Dept: 142 AD3d 1318 (Monroe)	denied 1/19/17 (Stein, J.)
People v Rivera	App Div, 2d Dept: 2016 NY Slip Op 84155(U) (Kings)	dismissed 1/19/17 (Abdus-Salaam, J.)
People v Robtoy	3d Dept: 144 AD3d 1190 (Clinton)	denied 1/16/17 (Rivera, J.)
People v Rock	3d Dept: 144 AD3d 1188 (Schenectady)	denied 1/23/17 (Fahey, J.)
People v Rodriguez	1st Dept: 143 AD3d 497 (Bronx)	dismissed 1/4/17 (Stein, J.)
People v Rogers	4th Dept: 132 AD3d 1270 (Erie)	denied 1/19/17 (Abdus-Salaam, J.) (Appeal No. 2)
People v Roman	4th Dept: 144 AD3d 1523 (Onondaga)	denied 1/19/17 (DiFiore, Ch. J.)
People v Satlin	1st Dept: 142 AD3d 920 (NY)	denied 1/16/17 (Rivera, J.)
People v Scippio	3d Dept: 144 AD3d 1184 (Ulster)	denied 1/17/17 (Fahey, J.)
People v Scott	4th Dept: 144 AD3d 1597 (Erie)	denied 1/31/17 (DiFiore, Ch. J.)
People v Simmerman	1st Dept: 144 AD3d 425 (Bronx)	denied 1/19/17 (Abdus-Salaam, J.)
People v Smalls	App Div, 2d Dept: 2016 NY Slip Op 86585(U) (Westchester)	dismissed 1/19/17 (Abdus-Salaam, J.)
People v Smith (Melvin)	2d Dept: 142 AD3d 1027 (Nassau)	denied 1/19/17 (Abdus-Salaam, J.)
People v Smith (Ronnie)	1st Dept: 144 AD3d 471 (Bronx)	denied 1/17/17 (Fahey, J.)
People v Solomon	1st Dept: 144 AD3d 574 (NY)	denied 1/5/17 (Stein, J.)
People v Streeter	4th Dept: 144 AD3d 1544 (Niagara)	denied 1/26/17 (Garcia, J.) (Appeal No. 1)

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People v Swartele	County Ct, 12/16/15 (Yates)	denied 1/19/17 (Abdus-Salaam, J.)
People v Tavaréz	App Term, 1st Dept: 53 Misc 3d 151(A) (Bronx)	denied 1/23/17 (Fahey, J.)
People v Taylor (La-Meik)	3d Dept: 144 AD3d 1317 (Albany)	denied 1/30/17 (Fahey, J.)
People v Taylor (Terrell)	1st Dept: 142 AD3d 465 (NY)	denied 1/18/17 (Fahey, J.)
People v Terborg	App Div, 4th Dept: 2016 NY Slip Op 88959(U) (Monroe)	dismissed 1/18/17 (Stein, J.)
People v Terranova	2d Dept: 144 AD3d 952 (Richmond)	denied 1/18/17 (Fahey, J.)
People v Thomas	2d Dept: 143 AD3d 1006 (Queens)	denied 1/24/17 (Garcia, J.)
People v Thornton	3d Dept: 141 AD3d 936 (St. Lawrence)	denied 1/17/17 (Fahey, J.)
People v Turner (Myrrheleki)	1st Dept: 143 AD3d 566 (NY)	denied 1/17/17 (Fahey, J.)
People v Turner (Robert)	App Term, 2d Dept, 9th & 10th Jud Dists: 53 Misc 3d 130(A) (Nassau)	denied 1/17/17 (Stein, J.)
People v Urbina	2d Dept: 143 AD3d 924 (Westchester)	denied 1/17/17 (Fahey, J.)
People v Velez	1st Dept: 144 AD3d 493 (NY)	denied 1/17/17 (Fahey, J.)
People v Venable	2d Dept: 144 AD3d 713 (Kings)	denied 1/11/17 (Stein, J.)
People v Wade	1st Dept: 143 AD3d 470 (NY)	denied 1/9/17 (Stein, J.)
People v Waterman	App Div, 1st Dept: 2016 NY Slip Op 88587(U) (NY)	denied 1/23/17 (Fahey, J.)
People v Wenner	4th Dept: 143 AD3d 1268 (Monroe)	denied 1/30/17 (Abdus-Salaam, J.)
People v Williams (Isiah)	App Div, 4th Dept, 10/3/16 (Monroe)	dismissed 1/19/17 (Abdus-Salaam, J.)
People v Williams (Thomas)	1st Dept: 143 AD3d 403 (Bronx)	denied 1/18/17 (Fahey, J.)
People v Wilson (Shamduh)	2d Dept: 141 AD3d 737 (Kings)	denied 1/23/17 (DiFiore, Ch. J.)
People v Wilson (Verniel)	4th Dept: 144 AD3d 1500 (Monroe)	denied 1/26/17 (Garcia, J.)
People v Womack	3d Dept: 143 AD3d 1171 (Schenectady)	denied 1/24/17 (Garcia, J.)
People v Young	1st Dept: 144 AD3d 500 (NY)	denied 1/23/17 (Garcia, J.)
People v Yusuf	2d Dept: 142 AD3d 1029 (Nassau)	denied 1/4/17 (Stein, J.)
People v Zaffuto	2d Dept: 138 AD3d 1156 (Richmond)	denied 1/19/17 (Abdus-Salaam, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices ***

(January 1, 2017 through January 31, 2017)

People v Lee	1st Dept: 143 AD3d 626 (NY)	granted 1/12/17 (Gesmer, J.)
People v Smart	2d Dept: 142 AD3d 513 (Kings)	granted 1/6/17 (Chambers, J.)
People v Wiggins	1st Dept: 143 AD3d 451 (NY)	granted 1/3/17 (Moskowitz, J.)

[71 NE3d 555, 49 NYS3d 64]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
ZACHARY T. GUERIN, Appellant.

Submitted January 10, 2017; decided February 9, 2017

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Cattaraugus County Court (Ronald D. Ploetz, J.), dated May 30, 2014. The County Court affirmed a judgment of the Justice Court of the Town of Persia, Cattaraugus County (Arnold Andolsek, J.), which had convicted defendant, after a nonjury trial, of trespassing in violation of Environmental Conservation Law § 11-2113 (1).

HEADNOTE**Crimes — Appeal — Preservation of Issue for Review**

In the prosecution of defendant for trespassing on private property in violation of Environmental Conservation Law § 11-2113 (1), defendant's specific challenge that the People's evidence of the location of 32 compliant signs was deficient under the law, which requires that the property be posted with warning signs bearing the name and address of the property owner (ECL 11-2111 [2]), was not raised below and was therefore unpreserved and beyond review by the Court of Appeals. To the extent that defendant argued that evidence of one noncompliant sign undermined the People's case, that claim was also not within the Court of Appeals' powers of review (CPL 470.15 [5]).

APPEARANCES OF COUNSEL

Zachary T. Guerin, appellant pro se.

Lori P. Rieman, District Attorney, Little Valley (*William Preston Marshall* of counsel), and *Musacchio & Pyle, Esqs.*, Gowanda (*James A. Musacchio* of counsel), for respondent.

* Includes only applications that were granted.

OPINION OF THE COURT

MEMORANDUM.

The order of the County Court should be affirmed.

Defendant Zachary T. Guerin challenges his conviction for trespassing on private property in violation of Environmental Conservation Law § 11-2113 (1). The law requires that the property be posted with warning signs bearing the name and address of the property owner (ECL 11-2111 [2]). Since defendant did not raise below his specific challenge that the People's evidence of the location of 32 compliant signs is deficient, this claim is unpreserved and beyond our review (*see People v Hines*, 97 NY2d 56, 62 [2001]). To the extent defendant argues that evidence of one noncompliant sign undermined the People's case, the claim is similarly not within our powers of review (CPL 470.15 [5]; *People v Danielson*, 9 NY3d 342, 349 [2007]).

Chief Judge DiFIORE and Judges RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur; Judge WILSON taking no part.

Order affirmed, in a memorandum.

In the Matter of the Claim of HASSAN ALAMIN, Appellant, v
DOWN TOWN TAXI, INC., et al., Respondents. WORKERS'
COMPENSATION BOARD, Respondent.

Decided February 9, 2017

Reported below, 141 AD3d 975.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

Judge WILSON taking no part.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted December 12, 2016; decided February 9, 2017

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for poor person relief dismissed as academic.

Judge WILSON taking no part.

In the Matter of BROOKFORD, LLC, Appellant, v NEW YORK
STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL et
al., Respondents.

Submitted January 23, 2017; decided February 9, 2017

Reported below, 142 AD3d 433.

Motion by Rent Stabilization Association et al. for leave to
appear amici curiae on the appeal herein granted only to the
extent that the proposed submission is accepted as filed.

Judge WILSON taking no part.

In the Matter of REGINA FARAGE, Appellant, v YVONNE LEWIS et
al., Respondents.

Decided February 9, 2017

Reported below, 142 AD3d 706.

Appeal dismissed, without costs, by the Court of Appeals,
sua sponte, upon the ground that no substantial constitutional
question is directly involved.

Judge WILSON taking no part.

In the Matter of PATRICIA GILL, Appellant, v MERCY COLLEGE et
al., Respondents.

Submitted November 14, 2016; decided February 9, 2017

Reported below, 138 AD3d 423.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution. Motion
for ancillary relief dismissed as academic.

Judge WILSON taking no part.

In the Matter of PATRICIA GILL, Appellant, v NYACK COLLEGE et
al., Respondents.

Submitted December 19, 2016; decided February 9, 2017

Reported below, 2016 NY Slip Op 88847(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for ancillary relief dismissed as academic.

Judge WILSON taking no part.

In the Matter of DERRICK HARRIS, Appellant, v JAMES BURKE et al., Respondents.

Submitted December 19, 2016; decided February 9, 2017

Reported below, 144 AD3d 569.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

Judge WILSON taking no part.

SARA MYERS et al., Appellants, v ERIC SCHNEIDERMAN, in His Official Capacity as Attorney General of the State of New York, Respondent, et al., Defendants.

Submitted January 17, 2017; decided February 9, 2017

Reported below, 140 AD3d 51.

Motion by New York State Catholic Conference for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge DiFIORE and Judge WILSON taking no part.

SARA MYERS et al., Appellants, v ERIC SCHNEIDERMAN, in His Official Capacity as Attorney General of the State of New York, Respondent, et al., Defendants.

Submitted January 23, 2017; decided February 9, 2017

Reported below, 140 AD3d 51.

Motion by Not Dead Yet et al. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge DiFIORE and Judge WILSON taking no part.

HENRY NOLASCO, Plaintiff, v SOHO PLAZA CORP. et al., Defendants. SOHO PLAZA CORP. et al., Third-Party Appellants, v DIAMOND ERA CONSTRUCTION, INC., Third-Party Defendant, and JASON BIRNBAUM et al., Third-Party Respondents.

Submitted December 5, 2016; decided February 9, 2017

Reported below, 129 AD3d 924.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge WILSON taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER L. ANDERSON, Appellant.

Submitted February 6, 2017; decided February 9, 2017

Reported below, 2016 NY Slip Op 85793(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Judges STEIN and WILSON taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OTIS BOONE, Appellant.

Submitted February 6, 2017; decided February 9, 2017

Reported below, 129 AD3d 1099.

Motion by Brooklyn Defender Services et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge WILSON taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
GREGORY LEE, Appellant.

Submitted February 6, 2017; decided February 9, 2017

Reported below, 143 AD3d 626.

Motion for assignment of counsel granted and Rosemary Herbert, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

Judge WILSON taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v KERRI
ROBERTS, Respondent.

Submitted January 23, 2017; decided February 9, 2017

Reported below, 138 AD3d 461.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

Judge WILSON taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDREW
SMART, Appellant.

Submitted February 6, 2017; decided February 9, 2017

Reported below, 142 AD3d 513.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Judge WILSON taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
REGINALD WIGGINS, Appellant.

Submitted January 30, 2017; decided February 9, 2017

Reported below, 143 AD3d 451.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

Judge WILSON taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES K. WILSON, Appellant.

Submitted December 12, 2016; decided February 9, 2017

Reported below, 120 AD3d 1531.

Motion for reargument denied [*see* 28 NY3d 67 (2016)].

Judges FAHEY and WILSON taking no part.

In the Matter of SHAUNTRAY T. EVA W., Respondent; MARGARET T., Appellant.

Submitted November 14, 2016; decided February 9, 2017

Reported below, 2016 NY Slip Op 85474(U); 2016 NY Slip Op 85937(U).

Motion for leave to appeal dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511). Motion for poor person relief dismissed as academic.

Judge WILSON taking no part.

INJAH UNIQUE TAFARI, Also Known as RICHARDO ORLANDO FOUST, Appellant, v VIJAYKUMAR MANADALAYWALA et al., Respondents.

Submitted December 19, 2016; decided February 9, 2017

Reported below, 2016 NY Slip Op 85795(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge WILSON taking no part.

In the Matter of the Claim of JOSEPH A. TERRANOVA, JR., Appellant, v LEHR CONSTRUCTION Co. et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted January 23, 2017; decided February 9, 2017

Reported below, 139 AD3d 1309.

Motion by New York State Trial Lawyers Association for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

Judge WILSON taking no part.

In the Matter of the Claim of JOSEPH A. TERRANOVA, JR., Appellant, v LEHR CONSTRUCTION Co. et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted January 23, 2017; decided February 9, 2017

Reported below, 139 AD3d 1309.

Motion by Injured Workers' Bar Association for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

Judge WILSON taking no part.

In the Matter of WORLD TRADE CENTER LOWER MANHATTAN DISASTER SITE LITIGATION.

STANISLAW FALTYNOWICZ et al., Appellants, and STATE OF NEW YORK, Intervenor-Appellant, v BATTERY PARK CITY AUTHORITY et al., Respondents.

SANTIAGO ALVEAR, Appellant, and STATE OF NEW YORK, Intervenor-Appellant, v BATTERY PARK CITY AUTHORITY, Respondent.

PETER CURLEY et al., Appellants, and STATE OF NEW YORK, Intervenor-Appellant, v BATTERY PARK CITY AUTHORITY, Respondent.

Decided February 9, 2017

See 846 F3d 58.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

Taking no part: Judge Wilson.

[71 NE3d 939, 49 NYS3d 351]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
DARREN STATON, Appellant.

Decided February 16, 2017

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered April 27, 2016. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (John B. Latella, J.), which had convicted defendant, upon a jury verdict, of robbery in the second degree, assault in the second degree, and robbery in the third degree. The appeal to the Appellate Division brought up for review an order of that Supreme Court (Jeffrey D. Lebowitz, J.), which had denied, after a hearing, that branch of defendant's omnibus motion which was to suppress identification testimony.

People v Staton, 138 AD3d 1149, affirmed.

HEADNOTES

Crimes — Appeal — Matters Reviewable — Identification of Defendant

1. The Appellate Division's finding that the pretrial photo array that led to defendant's arrest was not unduly suggestive was supported by the record, and therefore beyond further review by the Court of Appeals, and, as a result, his contention that the photo array tainted the lineup after his arrest, to the extent that argument was preserved, was without merit.

Crimes — Right to Counsel — Effective Representation

2. Defendant's argument that he was denied the right to counsel was belied by the record, and he failed to demonstrate the absence of any strategic or legitimate explanation for counsel's silence and inaction at sentencing.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Bryan D. Kreykes* of counsel), for appellant.

Richard A. Brown, District Attorney, Kew Gardens (Merri Turk Lasky of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed.

[1, 2] Defendant Darren Staton appeals from an order of the Appellate Division, which affirmed Supreme Court's judgment and brings up for review denial of defendant's motion to suppress identification testimony and his subsequent conviction. Defendant argues that the pretrial photo array that led to his arrest was unduly suggestive because he appeared older than the fillers and was the only participant with salt-and-pepper hair. The Appellate Division's finding that the array was not unduly suggestive is supported by the record, and therefore beyond our further review (*People v Holley*, 26 NY3d 514, 524 [2015]). Consequently, defendant's contention that the photo array tainted the lineup after his arrest, to the extent this argument is preserved, is without merit. Additionally, defendant's argument that he was denied the right to counsel is belied by the record (*People v Caban*, 5 NY3d 143, 152 [2005]), and he has failed to demonstrate the absence of any strategic or legitimate explanation for counsel's silence and inaction at sentencing (*People v Wright*, 25 NY3d 769, 779 [2015]).

Chief Judge DiFiore and Judges Rivera, Abdus-Salaam, Stein, Fahey, Garcia and Wilson concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

RASHEED AL RUSHAID et al., Appellants, v PICTET & CIE et al.,
Respondents.

Submitted January 17, 2017; decided February 16, 2017

Reported below, 127 AD3d 610.

Motion for reargument denied [see 28 NY3d 316 (2016)].

Judge WILSON taking no part.

RASHEED AL RUSHAID et al., Appellants, v PICTET & CIE et al.,
Respondents.

Submitted January 23, 2017; decided February 16, 2017

Reported below, 127 AD3d 610.

Motion by Swiss Bankers Association et al. for leave to appear amicus curiae on the motion for reargument denied.

Judge WILSON taking no part.

AMERICAN ECONOMY INSURANCE COMPANY et al., Respondents, v
STATE OF NEW YORK et al., Appellants.

Submitted February 14, 2017; decided February 16, 2017

Reported below, 139 AD3d 138.

Motion by Electrical Employers Self-Insurance Safety Plan for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of JOEL R. BRANDES, a Disbarred Attorney, Appellant.

Submitted December 12, 2016; decided February 16, 2017

Reported below, 2015 NY Slip Op 81096(U).

Motion for reargument denied [*see* 28 NY3d 1041 (2016)].

Judges RIVERA and STEIN taking no part.

MICHAEL J. CARLSON, SR., Individually and as Administrator of the Estate of CLAUDIA D'AGOSTINO CARLSON, Deceased, and as Assignee of William Porter, Appellant, v AMERICAN INTERNATIONAL GROUP, INC., et al., Respondents.

Submitted February 14, 2017; decided February 16, 2017

Reported below, 130 AD3d 1477, 1479.

Motion by MVP Delivery & Logistics, Inc. for leave to appear amicus curiae on the appeal herein denied.

Judge FAHEY taking no part.

MICHAEL J. CARLSON, SR., Individually and as Administrator of the Estate of CLAUDIA D'AGOSTINO CARLSON, Deceased, and as Assignee of William Porter, Appellant, v AMERICAN INTERNATIONAL GROUP, INC., et al., Respondents.

Submitted February 14, 2017; decided February 16, 2017

Reported below, 130 AD3d 1477, 1479.

Motion by New York State Trial Lawyers Association for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

Judge FAHEY taking no part.

LESLEY DRAZEK, Appellant, v VITAL TRANSPORTATION, INC., Respondent.

Submitted January 9, 2017; decided February 16, 2017

Reported below, 135 AD3d 898; 2016 NY Slip Op 69883(U).

Motion for reargument of motion for leave to appeal denied [see 28 NY3d 1023 (2016)].

TRATHONY GRIFFIN et al., Appellants, v SIRVA, INC., et al., Respondents.

Submitted February 14, 2017; decided February 16, 2017

See 835 F3d 283.

Motion by National Association of Professional Background Screeners for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

TRATHONY GRIFFIN et al., Appellants, v SIRVA, INC., et al., Respondents.

Submitted February 14, 2017; decided February 16, 2017

See 835 F3d 283.

Motion by Legal Action Center et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Three cop-

ies of the brief must be served and an original and nine copies filed within seven days.

TRATHONY GRIFFIN et al., Appellants, v SIRVA, INC., et al.,
Respondents.

Submitted February 14, 2017; decided February 16, 2017

See 835 F3d 283.

Motion by Consumer Data Industry Association for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

TRATHONY GRIFFIN et al., Appellants, v SIRVA, INC., et al.,
Respondents.

Submitted February 14, 2017; decided February 16, 2017

See 835 F3d 283.

Motion by American Moving & Storage Association, Inc. for leave to file a brief amicus curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

TRATHONY GRIFFIN et al., Appellants, v SIRVA, INC., et al.,
Respondents.

Submitted February 14, 2017; decided February 16, 2017

See 835 F3d 283.

Motion by Eric M. Fink et al. for leave to appear amici curiae on consideration of the certified question herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

RUDOLF KATS, Doing Business as COLUMBIA CAPITAL CO.,
Respondent, v THROOP AND GATES, INC., Appellant, and
CAPITAL L. HOLDINGS, LLC, Intervenor-Respondent, et al.,
Defendants.

Submitted December 19, 2016; decided February 16, 2017

Reported below, 140 AD3d 832.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided February 16, 2017

Reported below, 2016 NY Slip Op 81149(U); 2016 NY Slip Op 69318(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution.

Judge ABDUS-SALAAM taking no part.

SHELLEY MIZRAHI-SROUR, Respondent, v ALBERT SROUR, Appellant.

Submitted January 3, 2017; decided February 16, 2017

Reported below, 138 AD3d 801.

Motion for reargument denied [*see* 28 NY3d 1051 (2016)]. Motion for poor person relief dismissed as academic.

Judge WILSON taking no part.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

LARAINÉ SWEBERG, Individually and as Executrix of IVAN SWEBERG, Deceased, Respondent, v ABB, INC., et al., Defendants, and CRANE CO., Appellant.

Submitted January 17, 2017; decided February 16, 2017

Reported below, 143 AD3d 483.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Whitfield v City of New York*, 90 NY2d 777, 780-781 [1997]).

NOMURA HOME EQUITY LOAN, INC., SERIES 2006-FM2, by HSBC Bank USA, National Association, Solely in its Capacity as Trustee, et al., Respondents, v NOMURA CREDIT & CAPITAL, INC., Appellant. (Action No. 1.)

NOMURA HOME EQUITY LOAN, INC., SERIES 2007-3, by HSBC Bank USA, National Association, Solely in its Capacity as Trustee, Respondent, v NOMURA CREDIT & CAPITAL, INC., Appellant. (Action No. 2.)

NOMURA ASSET ACCEPTANCE CORPORATION MORTGAGE PASS-THROUGH CERTIFICATES, SERIES 2006-AF 2, by HSBC Bank USA, National Association, as Trustee, Respondent, v NOMURA CREDIT & CAPITAL, INC., Appellant. (Action No. 3.)

NOMURA HOME EQUITY LOAN, INC., HOME EQUITY LOAN TRUST, SERIES 2007-2 by HSBC Bank USA, National Association, as Trustee, Respondent, v NOMURA CREDIT & CAPITAL, INC., Appellant. (Action No. 4.)

Submitted February 14, 2017; decided February 16, 2017

Reported below, 133 AD3d 96.

Motion by Securities Industry and Financial Markets Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

Chief Judge DiFiore and Judge Garcia taking no part.

NOMURA HOME EQUITY LOAN, INC., SERIES 2006-FM2, by HSBC Bank USA, National Association, Solely in its Capacity as Trustee, et al., Respondents, v NOMURA CREDIT & CAPITAL, INC., Appellant. (Action No. 1.)

NOMURA HOME EQUITY LOAN, INC., SERIES 2007-3, by HSBC Bank USA, National Association, Solely in its Capacity as Trustee, Respondent, v NOMURA CREDIT & CAPITAL, INC., Appellant. (Action No. 2.)

NOMURA ASSET ACCEPTANCE CORPORATION MORTGAGE PASS-THROUGH CERTIFICATES, SERIES 2006-AF 2, by HSBC Bank USA, National Association, as Trustee, Respondent, v NOMURA CREDIT & CAPITAL, INC., Appellant. (Action No. 3.)

NOMURA HOME EQUITY LOAN, INC., HOME EQUITY LOAN TRUST, SERIES 2007-2 by HSBC Bank USA, National Association, as Trustee, Respondent, v NOMURA CREDIT & CAPITAL, INC., Appellant. (Action No. 4.)

Submitted February 14, 2017; decided February 16, 2017

Reported below, 133 AD3d 96.

Motion by Sand Canyon Corporation for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

Chief Judge DiFiore and Judge Garcia taking no part.

In the Matter of FEDERICO ORTIZ, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Decided February 16, 2017

Reported below, 143 AD3d 1209.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. KENNETH GRATON, Appellant, v MICHAEL SPOSATO, Respondent.

Submitted January 17, 2017; decided February 16, 2017

Reported below, 2016 NY Slip Op 66660(U).

Motion for reargument of motion for leave to appeal denied [*see* 28 NY3d 907 (2016)]. Motion for poor person relief dismissed as academic.

Judge Wilson taking no part.

IVANA PERAICA, as Administratrix for the Estate of Ivo J. PERAICA, Deceased, et al., Respondents, v A.O. SMITH WATER PRODUCTS Co. et al., Defendants, and CRANE Co., Appellant.

Submitted January 3, 2017; decided February 16, 2017

Reported below, 143 AD3d 448.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Whitfield v City of New York*, 90 NY2d 777, 780-781 [1997]).

In the Matter of PLAINVIEW-OLD BETHPAGE CONGRESS OF TEACHERS et al., Respondents, v NEW YORK STATE HEALTH INSURANCE PLAN et al., Appellants, et al., Respondents.

Decided February 16, 2017

Reported below, 140 AD3d 1329.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of RICARDO T., JR. ORANGE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; RICARDO T., SR., Appellant, et al., Respondent.

Decided February 16, 2017

Reported below, 2016 NY Slip Op 66638(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of ROSLYN TEACHERS ASSOCIATION et al., Respondents, v NEW YORK STATE HEALTH INSURANCE PLAN et al., Appellants, et al., Respondents.

Decided February 16, 2017

Reported below, 140 AD3d 1332.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

MOHAMMAD SAIDIN, Appellant, v SAM NEGRON et al., Respondents.

Submitted January 3, 2017; decided February 16, 2017

Reported below, 2016 NY Slip Op 82034(U).

Motion for reargument of motion for leave to appeal denied [see 28 NY3d 1069 (2016)].

In the Matter of MARTIN J. SAWMA, Appellant, v THOMAS P. DiNAPOLI, as State Comptroller, Respondent.

Submitted January 9, 2017; decided February 16, 2017

Reported below, 139 AD3d 1273; 2016 NY Slip Op 82263(U).

Motion for reconsideration of this Court's November 17, 2016 dismissal order denied [*see* 28 NY3d 1053 (2016)].

Judge WILSON taking no part.

THEAPRIN PHARMACEUTICALS, INC., et al., Appellants, v JOSEPH D. CONWAY et al., Respondents.

Submitted January 9, 2017; decided February 16, 2017

Reported below, 137 AD3d 1254.

Motion for reargument of motion for leave to appeal denied [*see* 28 NY3d 909 (2016)].

Judge WILSON taking no part.

THEAPRIN PHARMACEUTICALS, INC., et al., Appellants, v JOSEPH D. CONWAY et al., Respondents, et al., Defendants.

Submitted January 9, 2017; decided February 16, 2017

Reported below, 137 AD3d 1256.

Motion for reargument of motion for leave to appeal denied [*see* 28 NY3d 909 (2016)].

Judge WILSON taking no part.

SHERILYN F. VAN ORDEN, Appellant, v RICHARD E. VAN ORDEN, Respondent.

Submitted November 28, 2016; decided February 16, 2017

Reported below, 140 AD3d 1282.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge STEIN taking no part.

ERIC WHITE et al., Appellants, v ERIC T. SCHNEIDERMAN, New York State Attorney General, in His Official Capacity, et al., Respondents.

Submitted December 19, 2016; decided February 16, 2017

Reported below, 140 AD3d 1636.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the dismissal of plaintiffs' motion for a preliminary injunction, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise granted.

Judge WILSON taking no part.

[71 NE3d 535, 49 NYS3d 44]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAFAEL THEN, Appellant.

Argued January 5, 2017; decided February 9, 2017

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 13, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Kenneth C. Holder, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree and robbery in the second degree.

People v Then, 128 AD3d 864, affirmed.

HEADNOTE

Crimes — Fair Trial — Appearance in Orange Correctional Pants during Jury Selection

Defendant, who was compelled to wear orange correctional pants for half a day of jury selection, was not denied his right to a fair trial where there was no evidence that the pants were visible to the jury and the clothing that was visible, a black knitted top, was clearly not identifiable as correctional garb. Outside the presence of prospective jurors, the trial court noted on the record that defendant was seated at the end of a very wide, long table, separated by one chair with his attorney at the opposite end of that chair, and the furthest away possible from the prospective jurors. Moreover, after the entire jury panel entered the courtroom, the prosecutor asked whether anybody noticed

something about the defendant, and the only response was from a prospective juror who noted, "He's in a wheelchair." Thus, the concerns that arise when a defendant is required to appear in a convict's attire were not implicated and the trial judge committed no error in allowing jury selection to proceed that day.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (Patricia Pazner of counsel), and Rafael Then, pro se, for Rafael Then, appellant.

Richard A. Brown, District Attorney, Kew Gardens (Joseph N. Ferdenzi, Robert J. Masters, and John M. Castellano of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

The issue on this appeal is whether defendant was denied a fair trial when, for half a day of jury selection, he was compelled to wear orange correctional pants. We hold that defendant was not denied his right to a fair trial because there is no evidence on this record that the correctional pants were visible to the jury.

Defendant was arrested while getting into a vehicle that had been stolen at gunpoint 12 days earlier and charged with first- and second-degree robbery. Before jury selection began, defendant, who was seated in a wheelchair, complained that he did not have his own clothing because he had not been able to contact his family and requested an adjournment from that day, a Thursday, to the following Monday. The trial judge noted that he understood defendant's concerns and would arrange for clothes to be delivered to the defendant, adjourned the proceedings until after lunch, but denied the request for a four-day adjournment. Following a lunch break, and outside the presence of prospective jurors, the trial court noted

"for the record that the defendant does appear, I observed when he came in he has the orange correctional pants on, however, he appears to be wearing a black knitted top and that the defendant is, I'm going to actually push the chair in a little closer under the table, but he is at the end of a long table that is very wide and separated by one chair and his attorney is on the opposite end of that chair, and this defendant is the furthest away possible

from the prospective jurors, from the jurors in the courtroom, and it's not likely that unless they strained that they would be able to see that he's wearing orange sweats.

"We're placing a call into the Department of Corrections so that they make sure that the defendant is wearing civilian clothes tomorrow."

Defense counsel requested an adjournment to the next day and the judge denied the request. The entire jury panel then entered the courtroom. When the prosecutor asked whether "[a]nybody when they came in here and looked in and the parties were introduced notice[d] something about the defendant," the only response was from a prospective juror who noted, "He's in a wheelchair." The prosecutor assured the panel that defendant's use of a wheelchair had nothing to do with the case and instructed the jury to put aside that fact. Six jurors were chosen.

The next day, defense counsel repeated his objection to the fact that half the jury was seated while defendant was in "Department of Corrections pants." The court noted that defendant was "dressed appropriately today." For the remainder of the trial, defendant wore a suit. After hearing testimony from the victim and the officer who arrested defendant, the jury found defendant guilty of first- and second-degree robbery.

Defendant appealed his conviction and the Appellate Division affirmed, holding that "the fact that the defendant wore prison pants for half a day of jury selection was not an error so egregious as to deprive the defendant of his right to a fair trial" (*People v Then*, 128 AD3d 864, 865 [2d Dept 2015]). A Judge of this Court granted leave to appeal (25 NY3d 1208 [2015]) and we now affirm.

Under the circumstances described here by the trial judge on the record, there is no merit to defendant's contention that he was denied a fair trial because he was compelled to appear before the jury in correctional garb. We have previously held that "to require [a defendant] to appear in convict's attire—a continuing visual communication to the jury—is to deny" the defendant the right to appear "with the dignity and the self-respect of a free and innocent" person (*People v Roman*, 35 NY2d 978, 979 [1975]), consistent with the Supreme Court's holding that "the State cannot, consistently with the Fourteenth Amendment, compel an accused to stand trial before a jury while dressed in identifiable prison clothes" (*Estelle v Wil-*

liams, 425 US 501, 512 [1976]). These concerns are not implicated here, however, where there is no evidence that defendant's orange correctional pants were visible to the jury and the clothing that was visible to the jury was clearly not identifiable as correctional garb (*cf. People v Harper*, 47 NY2d 857, 858 [1979]). Accordingly, the concerns articulated in *Estelle* and *Roman* do not apply and the trial judge committed no error in allowing jury selection to proceed that day. Because we find no error here, we do not address whether harmless error analysis applies when a defendant is compelled to stand trial before a jury dressed in identifiable prison clothes.

Defendant's remaining contention is unpreserved for our review.

Chief Judge DiFiore and Judges Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur; Judge Wilson taking no part.

Order affirmed, in a memorandum.

[71 NE3d 940, 49 NYS3d 352]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FERNANDO MALDONADO, Appellant.

Argued January 11, 2017; decided February 16, 2017

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered July 2, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Joseph K. McKay, J.), which had convicted defendant, upon a jury verdict, of grand larceny in the first degree, attempted grand larceny in the first degree and criminal possession of a forged instrument in the second degree.

The Appellate Division concluded that defendant's convictions for grand larceny in the first degree and criminal possession of a forged instrument in the second degree were supported by legally sufficient evidence establishing that defendant executed and filed a deed to an apartment building owned by a corporation, conveying ownership of the building to himself and the corporation, and that defendant signed the deed as the owner of the corporation, thereby falsely assuming the identity of the owner and ostensible maker of the deed. In addition, the

Appellate Division concluded that defendant's conviction for attempted grand larceny in the first degree was supported by legally sufficient evidence that defendant tried to obtain a loan secured by a mortgage on the building, and that the value of the loan exceeded \$1,000,000. The Appellate Division also held that, viewing the record as a whole, defendant was not deprived of the effective assistance of counsel.

People v Maldonado, 119 AD3d 610, reversed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation

The Appellate Division properly held that, to the extent preserved, defendant's legal sufficiency challenges to the trial record lacked merit. However, counsel's overall performance fell below the "meaningful representation" standard and defendant was entitled to a new trial.

APPEARANCES OF COUNSEL

White & Case LLP, New York City (*Louis O'Neill*, *Isaac Glassman*, *Eric Majchrzak* and *Romain Zamour* of counsel), and *Seymour W. James, Jr.*, *The Legal Aid Society*, New York City (*David Crow* and *Andrew Fine* of counsel), for appellant.

Eric Gonzalez, *Acting District Attorney*, Brooklyn (*Solomon Neubort*, *Leonard Joblove* and *Victor P. Barall* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

Following a jury trial, defendant was convicted of grand larceny in the first degree (Penal Law § 155.42); attempted grand larceny in the first degree (Penal Law §§ 110.00, 155.42); and criminal possession of a forged instrument in the second degree (Penal Law § 170.25).

Defendant appealed, arguing, among other things, that the evidence was legally insufficient to support his conviction on each count and that he was denied effective assistance of counsel. The Appellate Division unanimously affirmed defendant's convictions (*People v Maldonado*, 119 AD3d 610 [2d Dept 2014]).

We agree with the Appellate Division that, to the extent preserved, defendant's legal sufficiency challenges to this trial record lack merit. However, we hold that counsel's overall per-

formance fell below the “meaningful representation” standard and defendant is entitled to a new trial (*see People v Berroa*, 99 NY2d 134 [2002]; *see also People v Baldi*, 54 NY2d 137, 147 [1981]).

Chief Judge DiFiore and Judges Abdus-Salaam, Stein, Fahy and Garcia concur; Judge Rivera concurs in the result; Judge Wilson taking no part.

Order reversed and a new trial ordered, in a memorandum.

[71 NE3d 591, 49 NYS3d 97]

In the Matter of COUNTY OF BROOME, Respondent, v NIRAV R. SHAH, as Commissioner of Health, et al., Appellants.

Decided February 16, 2017

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered July 23, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Broome County (Jeffrey A. Tait, J.), entered in a combined proceeding pursuant to CPLR article 78 and action for declaratory judgment, which had partially granted petitioner’s application to, among other things, annul respondent Department of Health’s determination disallowing petitioner’s claims for certain Medicaid reimbursements.

A 2012 amendment (L 2012, ch 56, § 1, part D, § 61) to the Medicaid Cap Statute provided that no overburden reimbursement for social services district expenditures incurred prior to January 1, 2006 would be made for claims submitted on and after April 1, 2012. Based on the Appellate Division’s prior interpretation of the amendment as having imposed a statute of limitations which, upon the expiration of a six-month grace period beginning on November 26, 2014, barred the submission of claims for reimbursement of overburden expenses incurred by counties before 2006, petitioner county submitted claims for reimbursement of pre-2006 overburden expenses during the grace period, which respondent denied. Petitioner commenced a combined CPLR article 78 and declaratory judgment action seeking, among other things, an order annulling the determination denying its claims for reimbursement, compelling respondent to pay the claims and finding the 2012 amendment

unconstitutional on due process grounds. The Appellate Division affirmed a judgment of the Supreme Court which had granted petitioner's application to annul respondent's determination and directed respondent to pay the disputed claims, unless it could prove that any or all of such claims were inaccurate or illegitimate, as well as any remaining overburden expense reimbursements due to petitioner under Social Services Law § 368-a (1).

Matter of County of Broome v Shah, 130 AD3d 1347, reversed.

HEADNOTE

Health — Medicaid Reimbursement Payments — Medicaid Cap Statute — Constitutionality of Amendment Imposing Time Limit on Claims for Overburden Reimbursements

An order of the Appellate Division which affirmed a judgment of the Supreme Court granting petitioner county's application to annul respondent Department of Health's (DOH) determination denying its claims for reimbursement of pre-2006 overburden expenses, was reversed, the petition dismissed in its entirety, and a declaration made in favor of respondents DOH and the Commissioner of Health that section 61 of part D of section 1 of chapter 56 of the Laws of 2012 has not been shown to be unconstitutional.

APPEARANCES OF COUNSEL

Eric T. Schneiderman, Attorney General, Albany (*Victor Paladino*, *Barbara D. Underwood* and *Andrew D. Bing* of counsel), for appellants.

Respondent precluded.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, without costs, petition dismissed in its entirety, and a declaration made in favor of respondents Nirav R. Shah, as Commissioner of Health, et al. that section 61 of part D of section 1 of chapter 56 of the Laws of 2012 has not been shown to be unconstitutional (*see Matter of County of Chemung v Shah*, 28 NY3d 244 [2016]).

Concur: Chief Judge DiFiore and Judges Rivera, Abdus-Salaam, Garcia and Wilson. Taking no part: Judges Stein and Fahey.

ANTHONY BOTTOM, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 121214.)

Submitted December 19, 2016; decided February 14, 2017

Reported below, 142 AD3d 1314.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

Judge WILSON taking no part.

CENTRAL NATIONAL BANK, CANAJOHARIE, Respondent, v SCOTTY'S AUTO SALES, INC., Defendant, and ELAINE AMIDON, Appellant.

Submitted December 19, 2016; decided February 14, 2017

Reported below, 138 AD3d 1263.

Motion for reargument of motion for leave to appeal denied [see 28 NY3d 1044 (2016)].

Judge WILSON taking no part.

FRANK ANDERSON DAVIS, Appellant, v ORVA OMEGA DAVIS, Also Known as ORVA OMEGA ALEXANDER, Respondent.

Submitted December 19, 2016; decided February 14, 2017

Reported below, 144 AD3d 623.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge WILSON taking no part.

ANDREW KOLCHINS, Respondent, v EVOLUTION MARKETS, INC., Appellant.

Submitted December 27, 2016; decided February 14, 2017

Reported below, 128 AD3d 47.

Motion to dismiss appeal denied.

Judge WILSON taking no part.

JOSE R. LAGOS, Appellant, v PATSY S. FUCALE et al., Respondents.

Submitted December 12, 2016; decided February 14, 2017

Reported below, 139 AD3d 908; 2016 NY Slip Op 89178(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth.*, 65 AD3d 434 [2009], *lv dismissed* 14 NY3d 748 [2010]).

Judge WILSON taking no part.

LAW OFFICES OF THOMAS F. LIOTTI, LLC, et al., Appellants, v STATE OF NEW YORK et al., Respondents, et al., Defendant.

Submitted January 9, 2017; decided February 14, 2017

Reported below, 139 AD3d 812.

Motion for reargument of motion for leave to appeal denied [*see* 28 NY3d 908 (2016)].

Judge WILSON taking no part.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

CHARLES D. NORTH, as Executor of RALPH P. NORTH, Respondent, v AIR & LIQUID SYSTEMS CORPORATION, as Successor by Merger to BUFFALO PUMPS, INC., et al., Defendants, NATIONAL GRID GENERATION, LLC, Respondent, and O'CONNOR CONSTRUCTORS, INC., Appellant.

Submitted January 9, 2017; decided February 14, 2017

Reported below, 142 AD3d 408.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge WILSON taking no part.

In the Matter of ARIF NIZAMUDDEN, Appellant, v NEW YORK CITY TRANSIT AUTHORITY, Also Known as MTA NEW YORK CITY TRANSIT, Respondent.

Submitted December 19, 2016; decided February 14, 2017

Reported below, 140 AD3d 880.

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 28 NY3d 905 (2016)].

Judge WILSON taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MALCOLM ANDERSON, Appellant.

Submitted December 19, 2016; decided February 14, 2017

Reported below, 53 Misc 3d 144(A), 2016 NY Slip Op 51573(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

Judge WILSON taking no part.

In the Matter of JUSTO RICHARDS, Appellant, v NEW YORK STATE DIVISION OF PAROLE, Respondent.

Submitted December 27, 2016; decided February 14, 2017

Reported below, 2016 NY Slip Op 90574(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief etc. dismissed as academic.

Judge WILSON taking no part.

In the Matter of YAHAIIRA RIVERA, Appellant, v ELIZABETH R. BERLIN, Respondent, et al., Respondents.

Submitted December 5, 2016; decided February 14, 2017

Reported below, 141 AD3d 423.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge WILSON taking no part.

In the Matter of YAHAIIRA RIVERA, Appellant, v ELIZABETH R. BERLIN, Respondent, et al., Respondents.

Submitted December 12, 2016; decided February 14, 2017

Reported below, 141 AD3d 423.

Motion by The Legal Aid Society et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge WILSON taking no part.

In the Matter of WALTER J. ROACHE, Appellant, v ANN MARIE T. SULLIVAN, as Commissioner of Mental Health, Respondent.

Submitted December 19, 2016; decided February 14, 2017

Reported below, 2016 NY Slip Op 90572(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge WILSON taking no part.

GASPER A. TIRONE et al., Cotrustees of GASPER A. TIRONE AND ELAINE E. TIRONE TRUST, Respondents, v DEBORAH A. BUCZEK, Appellant, et al., Defendants.

Submitted December 12, 2016; decided February 14, 2017

Reported below, 142 AD3d 1310.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the

order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge WILSON taking no part.

ANTHONY TRIMBLE, SR., Appellant, et al., Claimant, v STATE OF NEW YORK, Respondent.

Submitted December 19, 2016; decided February 14, 2017

Reported below, 142 AD3d 1256.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

Judge WILSON taking no part.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2017 through February 28, 2017)

People v Ackerman	3d Dept: 141 AD3d 948 (Albany)	denied 2/23/17 (DiFiore, Ch. J.)
People v Ahrens (Larry)	3d Dept: 145 AD3d 1322 (Schenectady)	denied 2/15/17 (Garcia, J.)
People v Ahrens (Lawrence)	3d Dept: 145 AD3d 1322 (Schenectady)	denied 2/15/17 (Garcia, J.)
People v Alexis	1st Dept: 144 AD3d 584 (NY)	denied 2/21/17 (Garcia, J.)
People v Alphonso	2d Dept: 144 AD3d 1168 (Kings)	denied 2/21/17 (Garcia, J.)
People v Anderson (Darryl)	4th Dept: 144 AD3d 1657 (Erie)	denied 2/21/17 (Garcia, J.)
People v Anderson (Jon)	4th Dept: 144 AD3d 1614 (Erie)	denied 2/1/17 (Abdus-Salaam, J.)
People v Atkinson	App Div, 3d Dept: 2016 NY Slip Op 89825(U) (Tompkins)	denied 2/16/17 (Rivera, J.)
People v Ayala	App Div, 2d Dept: 2016 NY Slip Op 86567(U) (Kings)	denied reconsideration 2/16/17 (Rivera, J.)
People v Bailey	2d Dept: 142 AD3d 1096 (Kings)	denied 2/24/17 (Rivera, J.)
People v Baker	2d Dept: 139 AD3d 1078 (Westchester)	denied reconsideration 2/24/17 (Rivera, J.)

People v Barrientos	1st Dept: 145 AD3d 529 (NY)	denied 2/15/17 (Garcia, J.)
People v Beardsley	4th Dept: 142 AD3d 1285 (Chautauqua)	denied 2/16/17 (Stein, J.)
People v Bello	1st Dept: 143 AD3d 650 (NY)	denied 2/1/17 (Abdus-Salaam, J.)
People v Berridge	2d Dept: 144 AD3d 935 (Kings)	denied 2/23/17 (Stein, J.)
People v Black	2d Dept: 144 AD3d 935 (Queens)	denied 2/1/17 (Abdus-Salaam, J.)
People v Blond	3d Dept: 146 AD3d 1033 (Schenectady)	denied 2/28/17 (DiFiore, Ch. J.)
People v Bonilla	App Div, 2d Dept: 2016 NY Slip Op 86570(U) (Suffolk)	denied reconsideration 2/28/17 (DiFiore, Ch. J.)
People v Bouknight	App Div, 2d Dept: 2016 NY Slip Op 88037(U) (Kings)	denied reconsideration 2/16/17 (Rivera, J.)
People v Brazil	4th Dept: 144 AD3d 1616 (Oneida)	denied 2/21/17 (Garcia, J.)
People v Bruno	1st Dept: 144 AD3d 413 (Bronx)	denied 2/24/17 (Rivera, J.)
People v Brunson (Hakim)	1st Dept: 144 AD3d 586 (NY)	denied 2/14/17 (DiFiore, Ch. J.)
People v Brunson (Shakim)	1st Dept: 144 AD3d 586 (NY)	denied 2/14/17 (DiFiore, Ch. J.)
People v Cajigas	2d Dept: 144 AD3d 699 (Westchester)	denied 2/24/17 (Rivera, J.)
People v Cartagena	2d Dept: 126 AD3d 913 (Kings)	denied 2/28/17 (DiFiore, Ch. J.)
People v Casimay	1st Dept: 143 AD3d 586 (NY)	denied 2/14/17 (DiFiore, Ch. J.)
People v Castillo	1st Dept: 144 AD3d 594 (NY)	denied 2/24/17 (Rivera, J.)
People v Copes	4th Dept: 145 AD3d 1639 (Cayuga)	denied 2/15/17 (Garcia, J.)
People v Crawford	1st Dept: 143 AD3d 607 (Bronx)	denied 2/15/17 (Abdus-Salaam, J.)
People v Creel	County Ct, 11/14/16 (Ontario)	denied 2/16/17 (Rivera, J.)
People v Crispin	1st Dept: 145 AD3d 498 (NY)	denied 2/16/17 (Rivera, J.)
People v Crosby	App Div, 4th Dept: 2016 NY Slip Op 83582(U) (Erie)	denied 2/22/17 (Abdus-Salaam, J.)
People v Cruz	2d Dept: 144 AD3d 937 (Rockland)	denied 2/13/17 (Stein, J.)

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People v Cushman (Sarah)	4th Dept: 142 AD3d 1286 (Monroe)	denied 2/16/17 (Rivera, J.) (Appeal No. 1)
People v Cushman (Sarah)	4th Dept: 142 AD3d 1287 (Monroe)	denied 2/16/17 (Rivera, J.) (Appeal No. 2)
People v Cushman (Sarah)	4th Dept: 142 AD3d 1287 (Monroe)	denied 2/16/17 (Rivera, J.) (Appeal No. 3)
People v Dailey	4th Dept: 144 AD3d 1590 (Niagara)	denied 2/16/17 (Rivera, J.)
People v Daniels	3d Dept: 139 AD3d 1256 (Albany)	denied 2/16/17 (Rivera, J.)
People v Davis (Kenneth)	1st Dept: 145 AD3d 623 (NY)	denied 2/24/17 (Rivera, J.)
People v Davis (Marc)	4th Dept: 144 AD3d 1682 (Niagara)	denied 2/14/17 (DiFiore, Ch. J.)
People v Davis (Sean)	1st Dept: 144 AD3d 486 (NY)	denied 2/16/17 (Rivera, J.)
People v Degraffenreid	2d Dept: 144 AD3d 1051 (Orange)	denied 2/23/17 (Stein, J.)
People v Diaz	1st Dept: 143 AD3d 559 (NY)	denied 2/2/17 (Abdus-Salaam, J.)
People v Dickson	1st Dept: 143 AD3d 494 (NY)	denied 2/13/17 (Stein, J.)
People v Doe	1st Dept: 145 AD3d 529 (NY)	denied 2/15/17 (Garcia, J.)
People v Drake	App Div, 4th Dept: 2016 NY Slip Op 89799(U) (Erie)	denied 2/22/17 (Abdus-Salaam, J.)
People v Edwards	1st Dept: 144 AD3d 563 (NY)	denied 2/23/17 (Fahey, J.)
People v Eightcho	3d Dept: 141 AD3d 1013 (Schenectady)	denied 2/23/17 (DiFiore, Ch. J.)
People v Elliot	1st Dept: 144 AD3d 611 (Bronx)	denied 2/9/17 (DiFiore, Ch. J.)
People v Eriksen	3d Dept: 145 AD3d 1110 (Ulster)	denied 2/21/17 (Fahey, J.)
People v Espejo	2d Dept: 145 AD3d 1031 (Queens)	denied 2/21/17 (Stein, J.)
People v Espinal	2d Dept: 143 AD3d 999 (Queens)	denied 2/13/17 (Stein, J.)
People v Everett	2d Dept: 142 AD3d 717 (Dutchess)	denied 2/24/17 (Rivera, J.)
People v Femminella	1st Dept: 145 AD3d 441 (NY)	denied 2/7/17 (DiFiore, Ch. J.)
People v Fernandez	2d Dept: 144 AD3d 840 (Nassau)	denied 2/16/17 (Rivera, J.)
People v Ferreira	1st Dept: 144 AD3d 612 (Bronx)	denied 2/22/17 (Abdus-Salaam, J.)

People v Flores	1st Dept: 144 AD3d 540 (NY)	denied 2/16/17 (Rivera, J.)
People v Ford	4th Dept: 144 AD3d 1682 (Monroe)	denied 2/7/17 (DiFiore, Ch. J.)
People v Fowler	1st Dept: 145 AD3d 437 (Bronx)	denied 2/23/17 (DiFiore, Ch. J.)
People v Freeman	4th Dept: 144 AD3d 1581 (Ontario)	denied 2/28/17 (DiFiore, Ch. J.)
People v Friedman	App Div, 2d Dept: 2016 NY Slip Op 95317(U) (Queens)	dismissed 2/24/17 (Rivera, J.)
People v Fuller (Jeffrey)	2d Dept: 145 AD3d 1086 (Rockland)	denied 2/14/17 (Stein, J.)
People v Fuller (Paris)	1st Dept: 145 AD3d 641 (NY)	denied 2/24/17 (Rivera, J.)
People v Fulton	App Div, 4th Dept, 11/29/16 (Monroe)	dismissed 2/14/17 (DiFiore, Ch. J.)
People v Galarza	1st Dept: 127 AD3d 407 (Bronx)	denied 2/23/17 (Fahey, J.)
People v Garcia	4th Dept: 143 AD3d 1283 (Monroe)	denied 2/15/17 (Abdus-Salaam, J.)
People v German	4th Dept: 145 AD3d 1550 (Cayuga)	denied 2/28/17 (DiFiore, Ch. J.)
People v Giammichele	3d Dept: 144 AD3d 1320 (Ulster)	denied 2/9/17 (DiFiore, Ch. J.)
People v Gilbert	3d Dept: 145 AD3d 1196 (Albany)	denied 2/14/17 (DiFiore, Ch. J.)
People v Gilette	2d Dept: 145 AD3d 796 (Queens)	denied 2/9/17 (DiFiore, Ch. J.)
People v Golgoski	3d Dept: 145 AD3d 1195 (Ulster)	denied 2/23/17 (Fahey, J.)
People v Gomez	2d Dept: 137 AD3d 1161 (Dutchess)	denied 2/23/17 (Fahey, J.)
People v Gonzalez	2d Dept: 144 AD3d 841 (Nassau)	denied 2/1/17 (Abdus-Salaam, J.)
People v Gonyeau	4th Dept: 144 AD3d 1574 (Wayne)	denied 2/22/17 (Abdus-Salaam, J.)
People v Gonzalez	1st Dept: 145 AD3d 586 (NY)	denied 2/15/17 (Garcia, J.)
People v Goodwine	App Div, 2d Dept: 2016 NY Slip Op 83569(U) (Westchester)	denied 2/1/17 (Abdus-Salaam, J.)
People v Green	1st Dept: 144 AD3d 589 (NY)	denied 2/15/17 (Garcia, J.)
People v Griffith	3d Dept: 136 AD3d 1114 (Albany)	denied 2/21/17 (Fahey, J.)
People v Grohoske (Calvin)	App Div, 1st Dept: 148 AD3d 97 (NY)	denied 2/16/17 (Stein, J.)
People v Grohoske (Diann)	App Div, 1st Dept: 148 AD3d 97 (NY)	denied 2/16/17 (Stein, J.)

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People v Gurnsey	App Div, 4th Dept: 2016 NY Slip Op 92912(U) (Steuben)	dismissed 2/15/17 (Garcia, J.)
People v Hernandez (Jared)	County Ct, 9/20/16 (Montgomery)	denied 2/16/17 (Stein, J.)
People v Hernandez (Luis)	1st Dept: 144 AD3d 540 (NY)	denied 2/16/17 (Rivera, J.)
People v Hewitt	4th Dept: 144 AD3d 1607 (Niagara)	denied 2/13/17 (Stein, J.)
People v Hidalgo	2d Dept: 144 AD3d 704 (Westchester)	denied 2/15/17 (Garcia, J.)
People v Hindus	App Term, 1st Dept: 53 Misc 3d 128(A) (Bronx)	denied 2/16/17 (DiFiore, Ch. J.)
People v Ho	3d Dept: 141 AD3d 1013 (Schenectady)	denied 2/23/17 (DiFiore, Ch. J.)
People v Hoey	1st Dept: 145 AD3d 118 (NY)	denied 2/21/17 (Fahey, J.)
People v Hughes	App Div, 3d Dept, 11/28/16 (Albany)	dismissed 2/21/17 (Garcia, J.)
People v Hunter	4th Dept: 145 AD3d 1546 (Cayuga)	denied 2/23/17 (DiFiore, Ch. J.)
People v Jackson (Artie)	2d Dept: 144 AD3d 945 (Nassau)	denied 2/14/17 (DiFiore, Ch. J.)
People v Jackson (Robert)	App Term, 1st Dept: 53 Misc 3d 151(A) (Bronx)	denied 2/15/17 (Garcia, J.)
People v Jalloh	App Term, 1st Dept: 53 Misc 3d 148(A) (NY)	denied 2/21/17 (DiFiore, Ch. J.)
People v James	1st Dept: 144 AD3d 596 (NY)	denied 2/22/17 (Abdus-Salaam, J.)
People v Jenkins	App Term, 1st Dept: 53 Misc 3d 151(A) (NY)	denied 2/16/17 (Rivera, J.)
People v Johnson (Andre)	4th Dept: 145 AD3d 1527 (Erie)	denied 2/24/17 (Rivera, J.)
People v Johnson (Michael)	1st Dept: 143 AD3d 600 (NY)	denied 2/15/17 (DiFiore, Ch. J.)
People v Jones	App Div, 1st Dept: 2016 NY Slip Op 73176(U) (NY)	denied 2/28/17 (DiFiore, Ch. J.)
People v Kappen	2d Dept: 142 AD3d 1106 (Nassau)	denied 2/8/17 (Fahey, J.)
People v Kennedy	4th Dept: 145 AD3d 1577 (Monroe)	denied 2/23/17 (DiFiore, Ch. J.)
People v King	2d Dept: 144 AD3d 1176 (Queens)	denied 2/21/17 (Stein, J.)
People v Kitt	1st Dept: 145 AD3d 528 (NY)	denied 2/9/17 (Stein, J.)
People v Kwabena	2d Dept: 145 AD3d 1034 (Kings)	denied 2/23/17 (Fahey, J.)
People v Lamont	3d Dept: 144 AD3d 1330 (Rensselaer)	denied 2/23/17 (Fahey, J.)
People v Lester	3d Dept: 141 AD3d 951 (St. Lawrence)	denied 2/24/17 (Fahey, J.)

People v Letizia	4th Dept: 141 AD3d 1129 (Erie)	denied reconsideration 2/16/17 (Garcia, J.)
People v Lewis	3d Dept: 145 AD3d 1110 (Ulster)	denied 2/21/17 (Fahey, J.)
People v Liggins	1st Dept: 145 AD3d 444 (Bronx)	denied 2/10/17 (Stein, J.)
People v Louis	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 53 Misc 3d 153(A) (Queens)	denied 2/16/17 (Rivera, J.)
People v Lynn	4th Dept: 144 AD3d 1491 (Ontario)	denied 2/23/17 (Stein, J.)
People v Macaluso	2d Dept: 144 AD3d 947 (Suffolk)	denied 2/15/17 (Garcia, J.)
People v Magliocco	4th Dept: 144 AD3d 1545 (Genesee)	denied 2/21/17 (Garcia, J.)
People v Maldonado	2d Dept: 144 AD3d 706 (Kings)	denied 2/21/17 (DiFiore, Ch. J.)
People v Martinez	3d Dept: 144 AD3d 1326 (Essex)	denied 2/21/17 (DiFiore, Ch. J.)
People v Mason (Arthur)	4th Dept: 144 AD3d 1589 (Jefferson)	denied 2/21/17 (Garcia, J.) (Appeal No. 1)
People v Mason (Arthur)	4th Dept: 144 AD3d 1590 (Jefferson)	denied 2/21/17 (Garcia, J.) (Appeal No. 2)
People v Mayrant	1st Dept: 144 AD3d 572 (NY)	denied 2/15/17 (Stein, J.)
People v McClain	3d Dept: 145 AD3d 1192 (Albany)	denied 2/23/17 (Fahey, J.)
People v McCray	2d Dept: 145 AD3d 740 (Kings)	denied 2/23/17 (Fahey, J.)
People v McCullars	4th Dept: 144 AD3d 1616 (Onondaga)	denied 2/15/17 (Garcia, J.)
People v McGowan	App Div, 3d Dept: 2016 NY Slip Op 93219(U) (Albany)	dismissed 2/14/17 (DiFiore, Ch. J.)
People v McKeon	App Div, 4th Dept, 11/26/16 (Orleans)	dismissed 2/2/17 (Abdus-Salaam, J.)
People v Mena-Lopez	1st Dept: 144 AD3d 569 (Bronx)	denied 2/21/17 (Garcia, J.)
People v Michaux	2d Dept: 144 AD3d 843 (Westchester)	denied 2/16/17 (Rivera, J.)
People v Mills	4th Dept: 144 AD3d 1617 (Erie)	denied 2/15/17 (Garcia, J.)
People v Moncrieffe	1st Dept: 144 AD3d 496 (Bronx)	denied 2/16/17 (Rivera, J.)
People v Montanez	1st Dept: 144 AD3d 596 (NY)	denied 2/10/17 (Stein, J.)
People v Moody	1st Dept: 145 AD3d 572 (NY)	denied 2/28/17 (DiFiore, Ch. J.)

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People v Moore	4th Dept: 144 AD3d 1616 (Monroe)	denied 2/15/17 (Garcia, J.)
People v Morgado	2d Dept: 144 AD3d 709 (Westchester)	denied 2/8/17 (Garcia, J.)
People v Morgan	App Div, 3d Dept: 2016 NY Slip Op 93222(U) (Columbia)	dismissed 2/23/17 (Fahey, J.)
People v Mould	3d Dept: 143 AD3d 1186 (Saratoga)	denied 2/14/17 (DiFiore, Ch. J.)
People v Myles	App Div, 4th Dept, 11/17/16 (Onondaga)	dismissed 2/16/17 (Rivera, J.)
People v Nesmith	4th Dept: 144 AD3d 1508 (Monroe)	denied 2/23/17 (Stein, J.)
People v Newton	4th Dept: 144 AD3d 1617 (Monroe)	denied 2/14/17 (DiFiore, Ch. J.)
People v Nova	App Div, 1st Dept: 2016 NY Slip Op 79482(U) (NY)	denied 2/21/17 (Stein, J.)
People v Nwogu	App Div, 4th Dept, 11/28/16 (Erie)	dismissed 2/24/17 (Abdus-Salaam, J.)
People v Orta	1st Dept: 145 AD3d 634 (NY)	denied 2/10/17 (Stein, J.)
People v Ortiz	App Div, 1st Dept: 2016 NY Slip Op 82792(U) (NY)	dismissed 2/14/17 (DiFiore, Ch. J.)
People v Otunyo	1st Dept: 142 AD3d 865 (NY)	denied 2/14/17 (DiFiore, Ch. J.)
People v Pendleton	4th Dept: 144 AD3d 1521 (Niagara)	denied 2/22/17 (Abdus-Salaam, J.)
People v Perez	1st Dept: 144 AD3d 488 (NY)	denied 2/14/17 (DiFiore, Ch. J.)
People v Peterson	3d Dept: 145 AD3d 1322 (Schenectady)	denied 2/15/17 (Garcia, J.)
People v Pierre-Louis	App Term, 2d Dept, 9th & 10th Jud Dists: 53 Misc 3d 130(A) (Nassau)	denied 2/16/17 (Rivera, J.)
People v Pretty	3d Dept: 145 AD3d 1196 (Albany)	denied 2/14/17 (DiFiore, Ch. J.)
People v Ragguete	2d Dept: 144 AD3d 710 (Kings)	denied 2/22/17 (Abdus-Salaam, J.)
People v Ramos	1st Dept: 144 AD3d 554 (Bronx)	denied 2/16/17 (Rivera, J.)
People v Redfield	4th Dept: 144 AD3d 1548 (Monroe)	denied 2/23/17 (Stein, J.)
People v Richards	2d Dept: 144 AD3d 844 (Suffolk)	denied 2/22/17 (Abdus-Salaam, J.)
People v Ritorto	2d Dept: 144 AD3d 949 (Kings)	denied 2/1/17 (Abdus-Salaam, J.)
People v Rivera (Erick)	1st Dept: 144 AD3d 483 (NY)	denied 2/1/17 (Abdus-Salaam, J.)

People v Rivera (Jesus)	App Term, 1st Dept: 53 Misc 3d 150(A) (NY)	denied 2/22/17 (Abdus-Salaam, J.)
People v Rizzo	1st Dept: 144 AD3d 489 (NY)	denied 2/28/17 (Stein, J.)
People v Roberts (Cypress)	2d Dept: 145 AD3d 742 (Suffolk)	denied 2/23/17 (Stein, J.)
People v Roberts (Derrick)	2d Dept: 145 AD3d 742 (Suffolk)	denied 2/23/17 (Stein, J.)
People v Rodriguez (Edwin)	2d Dept: 144 AD3d 950 (Suffolk)	denied 2/16/17 (Rivera, J.)
People v Rodriguez (Edwin)	1st Dept: 144 AD3d 498 (NY)	denied 2/21/17 (Garcia, J.)
People v Rodriguez (Gabriel)	County Ct, 7/18/16 (Albany)	denied 2/21/17 (Garcia, J.)
People v Rodriguez (Jose)	1st Dept: 144 AD3d 554 (Bronx)	denied 2/16/17 (Rivera, J.)
People v Rodriguez (Ricardo)	1st Dept: 145 AD3d 529 (NY)	denied 2/21/17 (Garcia, J.)
People v Rolle	App Div, 1st Dept: 2016 NY Slip Op 90957(U) (NY)	denied 2/16/17 (Rivera, J.)
People v Ross	App Term, 1st Dept: 53 Misc 3d 143(A) (NY)	denied 2/22/17 (Abdus-Salaam, J.)
People v Ruiz (Randy)	1st Dept: 146 AD3d 417 (Bronx)	denied 2/21/17 (Stein, J.)
People v Ruiz (Vladimir)	1st Dept: 146 AD3d 417 (Bronx)	denied 2/21/17 (Stein, J.)
People v Rush (Basheem)	App Div, 2d Dept: 2016 NY Slip Op 84156(U) (Kings)	denied reconsideration 2/28/17 (DiFiore, Ch. J.)
People v Rush (Biggie)	App Div, 2d Dept: 2016 NY Slip Op 84156(U) (Kings)	denied reconsideration 2/28/17 (DiFiore, Ch. J.)
People v Sabater	2d Dept: 144 AD3d 950 (Westchester)	denied 2/23/17 (Fahey, J.)
People v Saddler (Jerry)	4th Dept: 144 AD3d 1520 (Cayuga)	denied 2/15/17 (Abdus-Salaam, J.) (Appeal No. 1)
People v Saddler (Jerry)	4th Dept: 144 AD3d 1526 (Cayuga)	denied 2/15/17 (Abdus-Salaam, J.) (Appeal No. 2)
People v Scott	2d Dept: 144 AD3d 846 (Kings)	denied 2/15/17 (Garcia, J.)
People v Sears	2d Dept: 144 AD3d 1056 (Richmond)	denied 2/16/17 (Rivera, J.)
People v Simmons	1st Dept: 145 AD3d 501 (NY)	denied 2/24/17 (DiFiore, Ch. J.)

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People v Simpson	App Term, 1st Dept: 53 Misc 3d 148(A) (NY)	denied 2/23/17 (Fahey, J.)
People v Smith	2d Dept: 143 AD3d 1005 (Nassau)	denied 2/14/17 (DiFiore, Ch. J.)
People v Spragion	App Div, 2d Dept: 2016 NY Slip Op 91144(U) (Kings)	dismissed 2/21/17 (Fahey, J.)
People v Steiniger	4th Dept: 142 AD3d 1320 (Steuben)	denied 2/3/17 (Fahey, J.)
People v Stevens	County Ct, 11/17/16 (Cortland)	denied 2/9/17 (DiFiore, Ch. J.)
People v Stroud	2d Dept: 144 AD3d 1056 (Kings)	denied 2/21/17 (DiFiore, Ch. J.)
People v Suazo	1st Dept: 144 AD3d 405 (NY)	denied 2/14/17 (DiFiore, Ch. J.)
People v Sumter	2d Dept: 145 AD3d 803 (Queens)	denied 2/21/17 (Fahey, J.)
People v Suruy	2d Dept: 144 AD3d 951 (Suffolk)	denied 2/22/17 (Abdus-Salaam, J.)
People v Telfair	2d Dept: 144 AD3d 712 (Kings)	denied 2/24/17 (Rivera, J.)
People v Terrance	4th Dept: 144 AD3d 1548 (Monroe)	denied 2/23/17 (Stein, J.)
People v Thompson	2d Dept: 143 AD3d 1007 (Suffolk)	denied 2/23/17 (Stein, J.)
People v Townsend	3d Dept: 144 AD3d 1196 (Broome)	denied 2/1/17 (Abdus-Salaam, J.)
People v Turner	2d Dept: 145 AD3d 745 (Kings)	denied 2/15/17 (Garcia, J.)
People v Tweedy	County Ct, 12/9/16 (Onondaga)	dismissed 2/24/17 (Rivera, J.)
People v Tyson	1st Dept: 144 AD3d 441 (NY)	denied 2/21/17 (Stein, J.)
People v Van Kleeck	App Div, 3d Dept: 2016 NY Slip Op 94546(U) (Sullivan)	dismissed 2/28/17 (DiFiore, Ch. J.)
People v Vasquez	App Div, 4th Dept, 12/12/16 (Ontario)	dismissed 2/21/17 (Stein, J.)
People v Velazquez	1st Dept: 143 AD3d 126 (NY)	denied 2/15/17 (Abdus-Salaam, J.)
People v Washington	4th Dept: 144 AD3d 1562 (Onondaga)	denied 2/13/17 (Stein, J.)
People v Watson	1st Dept: 144 AD3d 401 (NY)	denied 2/16/17 (Rivera, J.)
People v Wells	3d Dept: 141 AD3d 1013 (Schenectady)	denied 2/23/17 (DiFiore, Ch. J.)
People v Williams (Larry)	App Div, 4th Dept: 2016 NY Slip Op 92943(U) (Onondaga)	dismissed 2/15/17 (Stein, J.)
People v Williams (Mario)	4th Dept: 144 AD3d 1616 (Oneida)	denied 2/21/17 (Garcia, J.)

People v Wilson	App Div, 4th Dept, 11/27/16 (Niagara)	dismissed 2/24/17 (Abdus-Salaam, J.)
People v Zil	4th Dept: 144 AD3d 1616 (Oneida)	denied 2/21/17 (Garcia, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices ***

(February 1, 2017 through February 28, 2017)

People v Kuzdzal	4th Dept: 144 AD3d 1618 (Erie)	granted 2/16/17 (Peradotto, J.)
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ACCOUNTS AND ACCOUNTING.

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See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

ADMINISTRATIVE LAW.

RULE MAKING.

1. Challenge to Agency's Regulatory Construction.—Respondent New York State Department of State's determination that petitioners' application to renew their federal licenses to operate riverfront nuclear reactors did not fit within the grandfather exemptions of New York's Coastal Management Program (CMP) and was therefore subject to review for consistency with the CMP was rational. While the CMP is not a statute or regulation, it is a program authored and administered by respondent, and approved by the United States Secretary of Commerce, that sets forth enforceable statewide policies. As such, respondent's interpretation of that program was entitled to deference. The CMP lists the issuance of a license for a nuclear facility as a reviewable activity that requires the applicant to submit a federal consistency certification to the Department of State, but certain projects are exempt from that requirement. Regarding the first CMP exemption, for "those projects identified as grandfathered pursuant to [the] State Environmental [Q]uality Review Act (SEQRA)" (ECL art 8), the word "identified" was reasonably interpreted by respondent as implying an affirmative step, such as the placing on a list of projects deemed approved. As the exemption refers to SEQRA legislation specifically directing state agencies to create a list of projects deemed approved and not subject to SEQRA, respondent's interpretation gave effect to the plain language of the exemption. Further, respondent determined that the second CMP exemption applies to projects for which a SEQRA environmental impact statement had been prepared, and projects which preexisted, but would have otherwise been subject to, 19 NYCRR part 600, which relates only to state agencies' consistency review of their own actions and applies only to actions undertaken by state agencies. Because the licensing of petitioners' reactors did not involve a state agency reviewing its own actions, respondent rationally concluded that the exemption did not apply. *Matter of Entergy Nuclear Operations, Inc. v New York State Dept. of State*, 28 NY3d 279.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS.

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See BROKERS; INSURANCE; PRINCIPAL AND AGENT.

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See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

ANIMALS.

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1. Motorist Struck after Exiting Vehicle to Assist Calf — Proximate Cause.—In a negligence action arising after a calf owned by defendant farm escaped its

ANIMALS—Cont'd

enclosure and decedent, who exited her vehicle and entered the roadway to assist the animal, was struck and killed by a passing vehicle, it could not be said, as a matter of law, that defendant's alleged negligence merely furnished the occasion for the collision or that the accident did not flow from defendant's negligent conduct in permitting its calf to stray. Whether defendant's alleged negligence was a proximate cause of decedent's death—or whether decedent's intervening acts severed the causal connection—was thus a question for the factfinder. The very same risk that rendered negligent defendant's alleged failure to restrain or retrieve its farm animal—namely, that the wandering calf would enter a roadway and cause a collision—was, in fact, the risk that came to fruition. That defendant could not predict the exact manner in which the calf would cause injury to a motorist did not preclude liability because the general risk and character of injuries was foreseeable. Though decedent had apparently stopped her vehicle without striking the calf, the animal was still loose in the roadway and, under the circumstances, the danger and risk of an accident had not yet passed. A factfinder could reasonably conclude that decedent's actions in exiting her vehicle and entering the roadway were an entirely normal and foreseeable consequence of the situation created by defendant's alleged negligence. Accordingly, decedent's conduct could not, as a matter of law, be considered so extraordinary under the circumstances, not foreseeable in the normal course of events, or independent of or far removed from defendant's conduct that it broke the chain of causation. *Hain v Jamison*, 28 NY3d 524.

ANNULMENT OF MARRIAGE.

See MARRIAGE.

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See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

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1. Matters Arbitrable — Termination of Probationary Employee Placed on One-Year Probation as Disciplinary Penalty.—In a proceeding pursuant to CPLR article 78 and CPLR 7503 challenging the termination of petitioner former state employee's probationary employment, an Appellate Division order which reversed a Supreme Court order converting the proceeding into one pursuant to CPLR 7511 to confirm an earlier arbitration award that had imposed upon petitioner the probationary period as a result of disciplinary charges, and directing the parties to seek clarification of that award, was reversed, for the reasons stated in the dissenting memorandum at the Appellate Division, and the matter remitted to the Appellate Division for consideration of issues raised but not determined on the appeal to that Court. *Matter of Woods v State Univ. of N.Y.*, 28 NY3d 1140.

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See PROCEEDING AGAINST BODY OR OFFICER.

ASSIGNMENTS.**PURCHASE OF CLAIMS FOR PURPOSE OF BRINGING ACTION.**

1. Champerty — Safe Harbor Provision.—Plaintiff's champertous conduct in acquiring notes from nonparty assignor for the purpose of bringing litigation against defendants did not fall within the safe harbor provision of Judiciary Law § 489 (2), where plaintiff did not pay the purchase price or have a binding and bona fide obligation to pay the purchase price of the notes independent of the successful outcome of the lawsuit. Judiciary Law § 489 (2) exempts the purchase or assignment of notes or other securities from the restrictions of section 489 (1)

ASSIGNMENTS—Cont'd

when the notes or other securities “hav[e] an aggregate purchase price of at least [\$500,000].” Requiring that an actual payment of at least \$500,000 have been made for large-scale commercial transactions in New York’s debt-trading markets to fall within the safe harbor would be overly restrictive and hinder the legislative goal of market fluidity. Thus, the phrase “purchase price” in section 489 (2) is better understood as requiring a binding and bona fide obligation to pay \$500,000 or more for notes or other securities, which is satisfied by actual payment of at least \$500,000 or the transfer of financial value worth at least that amount in exchange for the notes or other securities. The sale and purchase agreement here was structured so that plaintiff did not have to pay the \$1,000,000 base purchase price unless the lawsuit was successful. The due date listed for the purchase price was artificial because failure to pay the purchase price by that date did not constitute a default or a breach of the agreement. Rather, the agreement permitted plaintiff to exercise the option to let the due date pass without consequence and deduct the purchase price from its share of any proceeds from the lawsuit. *Justinian Capital SPC v WestLB AG, N.Y. Branch*, 28 NY3d 160.

2. Champerty.—Plaintiff’s acquisition of notes from nonparty assignor, a German bank which received substantial support from the German government, was champertous as a matter of law, since the notes were acquired for the sole purpose of bringing litigation against defendants, German banks partly owned by the government, so the assignor could avoid any repercussions from filing a direct action against defendants. Judiciary Law § 489, New York’s champerty statute, restricts individuals and companies from purchasing or taking an assignment of notes or other securities “with the intent and for the purpose of bringing an action or proceeding thereon” (Judiciary Law § 489 [1]). Therefore, to constitute the offense of champerty the primary purpose of the purchase must be to enable one to bring a suit, and the intent to bring a suit must not be merely incidental and contingent. Here, the impetus for the assignment of the notes to plaintiff, a shell company with few or no assets, was the nonparty assignor’s desire to sue defendants for causing the notes’ decline in value and not be named as the plaintiff in the lawsuit. Plaintiff’s business plan, in turn, was acquiring investments that suffered major losses in order to sue on them, and it did so here within days after it was assigned the notes. There was no evidence that plaintiff’s acquisition of the notes was for any purpose other than the lawsuit it commenced almost immediately after acquiring the notes. The lawsuit was not merely an incidental or secondary purpose of the assignment, but its very essence. *Justinian Capital SPC v WestLB AG, N.Y. Branch*, 28 NY3d 160.

ATTORNEY AND CLIENT.**COMPENSATION.**

1. Fee-Sharing Agreement.—An attorney who agreed to provide assistance to the attorney of record in a construction site injury action, pursuant to a fee-sharing agreement providing that the attorney would be entitled to 12% of all attorneys’ fees for his services in preparing for and handling a scheduled mediation or, “[i]f the case does not resolve at the mediation, presently scheduled for May 20, 2013,” 40% of all attorneys’ fees “for preparing for trial and trying the case,” was entitled to 12% of the net attorneys’ fees, notwithstanding that the case was not resolved at the May 20 mediation, but was settled by an agreement via a May 31, 2013 telephone conversation between the mediator and the attorney. The first paragraph of the fee agreement stated that the attorney would “provide whatever services are needed . . . to prepare [the matter] for mediation and to handle the mediation” and that he would “receive twelve (12%) percent of all attorneys’ fees whenever the case is resolved.” No specific date or dates were mentioned for the mediation. Although the subsequent paragraph referenced the date of May 20, 2013, the agreement did not require that the mediation be concluded during a single-day session. Nor was the mediation limited to the specific date identified in the agreement. The use of commas around “presently scheduled for May 20, 2013” indicated that the date was descriptive and not intended to restrict the mediation

ATTORNEY AND CLIENT—Cont'd

to that date. Thus, the agreement plainly contemplated the fact that many mediation efforts require multiple sessions or follow-up conversations before settlement can be achieved. Moreover, the clear intent of the agreement's language stating, "[i]n the event this matter has to be tried, the total of all attorneys' fees to which [the attorney will be] entitled for all services set forth, including mediation, shall be forty (40%) percent of all attorneys' fees whenever the case is resolved," was that the 40% fee would be triggered only if the matter moved past mediation, which it did not. *Marin v Constitution Realty, LLC*, 28 NY3d 666.

DIVISION OF FEES.

2. Failure to Inform Clients About Employment of Other Lawyer.—Agreements for the division of attorneys' fees, under which the attorney of record initially engaged another attorney as cocounsel in an advisory role for an underlying construction site injury action that settled before trial, were enforceable, entitling the attorney to 20% of net attorneys' fees as indicated in the agreements, notwithstanding that neither the attorney of record nor the advisory attorney had informed the clients of the advisory attorney's involvement in violation of attorney ethics rules (former Code of Professional Responsibility DR 2-107 [a] [22 NYCRR 1200.12 (a)]; Rules of Professional Conduct [22 NYCRR 1200.0] rule 1.5 [g]). The attorney of record's failure to inform her clients of the advisory attorney's retention, while a serious ethical violation, did not allow her to avoid otherwise enforceable contracts. Both attorneys failed to inform the clients, the attorney of record led the advisory attorney to believe that the clients were informed and the clients themselves were not adversely affected by the ethical breach. *Marin v Constitution Realty, LLC*, 28 NY3d 666.

REINSTATEMENT.

3. Denial — Failure to Demonstrate Requisite Fitness and Character to Practice Law.—The Appellate Division did not abuse its discretion in denying petitioner disbarred attorney's motion for reinstatement to the practice of law based on its determination that petitioner did not demonstrate the requisite fitness and character. The record included evidence that petitioner, who had tendered his resignation in the midst of a disciplinary investigation into alleged escrow violations, failed to comply with the provisions of his disbarment order requiring him to comply with 22 NYCRR 691.10 (former Rules of App Div, 2d Dept [22 NYCRR] § 691.10). Under section 691.10 (b), a disbarred, suspended or resigned attorney may only be compensated on a quantum meruit basis for legal services rendered and disbursements incurred prior to his or her removal from the bar, and the amount and manner of payment must be fixed by the court. Here, the record reflected that while petitioner only received payment for legal fees and disbursements incurred prior to his disbarment, he did not obtain the required court orders until his error was uncovered by the subcommittee of the Committee on Character and Fitness. Moreover, petitioner provided a notice to his clients after he had tendered his resignation but before it was accepted, telling them that he was relocating and transferring his law practice to his son, and stating that they should "contact our office" or "contact us" to indicate if they would be continuing with his son or seeking new counsel. Even if, as petitioner averred, he did not have any clients at the time his resignation was accepted and therefore did not need to notify his "former" clients of his disbarment pursuant to section 691.10 (c) and (d), the notification that he did send could reasonably be considered misleading to the extent it implied that he was merely relocating and would remain involved in the practice. *Matter of Leo*, 28 NY3d 360.

4. Standard of Review.—The Court of Appeals' standard of review of the Appellate Division, Second Department's determination denying petitioner disbarred attorney's motion for reinstatement to the practice of law was limited to whether the Appellate Division abused its discretion. In seeking reinstatement in the Second Department, petitioner was required to show, by clear and convincing evidence, that he had fully complied with the provisions of the order disbarring or suspending him and that he possessed the character and general fitness to practice law (former Rules of App Div, 2d Dept [22 NYCRR] § 691.11 [c] [1]). The Appellate

ATTORNEY AND CLIENT—Cont'd

Division is the factfinder on issues of character and fitness, its discretion is inclusive, and it is best situated to assess an applicant's compliance with the applicable disbarment order and whether his or her subsequent conduct demonstrates the requisite character and fitness for readmission. *Matter of Leo*, 28 NY3d 360.

5. Denial — Unauthorized Practice of Law during Disbarment Period.—The Appellate Division did not abuse its discretion in denying respondent disbarred attorney's third reinstatement application upon finding that respondent had engaged in the unauthorized practice of law during the period of his disbarment when he provided paralegal services over the Internet. There was record support for the Court's decision based on its findings that respondent would speak to an attorney over the telephone or by email, rendering legal advice or an opinion about the legal problems of a particular client, and that he contracted to draft briefs and other litigation papers for attorneys, all in violation of Judiciary Law § 478. *Matter of Brandes*, 28 NY3d 1041.

BANKS AND BANKING.

See, also, **BILLS, NOTES AND CHECKS.**

BILLS, NOTES AND CHECKS.

See, also, **BANKS AND BANKING.**

CERTIORARI.

See **PROCEEDING AGAINST BODY OR OFFICER.**

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CIVIL SERVICE.

See, also, **ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS**, and other specific titles.

CLUBS.

See **ASSOCIATIONS.**

CONDEMNATION.

See **EMINENT DOMAIN.**

CONDOMINIUMS AND COOPERATIVES.

PROPRIETARY LEASE.

1. Breach of Contractual Provision Relating to Transfer of Apartment.—The Appellate Division did not err in holding that defendant residential cooperative corporation breached a paragraph of its proprietary lease by unreasonably withholding consent to transfer shares allocated to an apartment and the lease appurtenant thereto from plaintiff deceased lessee's estate to plaintiff deceased lessee's two adult sons. *Estate of Del Terzo v 33 Fifth Ave. Owners Corp.*, 28 NY3d 1114.

CONSTITUTIONAL LAW.

VALIDITY OF ORDINANCE.

1. Noise Control Ordinance Not Unconstitutionally Vague.—Syracuse Noise Control Ordinance (Revised General Ordinances of City of Syracuse) § 40-16 (b),

CONSTITUTIONAL LAW—Cont'd

which prohibits the creation of “unnecessary noise” emanating beyond 50 feet from a motor vehicle operated on a public highway, does not offend the constitutional void-for-vagueness doctrine of due process. The ordinance defines “unnecessary noise” based on an objective standard—specifically, “a reasonable person of normal sensibilities” (Syracuse Noise Control Ordinance § 40-3 [u]). Additionally, section 40-16 (b) is tailored to a specific context—limiting the prohibition to creating “unnecessary noise” by playing a radio or similar device that can be heard at least 50 feet away when being operated in a motor vehicle on a public highway. What is usual noise in the operation of a car radio or other sound production device has become common knowledge and any ordinary motorist should have no difficulty in ascertaining whether the noise in question violates the applicable standard. Accordingly, section 40-16 (b) is sufficiently definite to put a person on notice that playing music which can be heard over 50 feet from such person’s car on a public road, in a manner that would annoy or disturb a reasonable person of normal sensibilities, is forbidden conduct, and the objective standard affords police sufficiently clear standards for enforcement. *People v Stephens*, 28 NY3d 307.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

CONSTRUCTION.

1. Warranty in Pooling and Servicing Agreement.—In an action arising from a residential mortgage backed securitization, an Appellate Division order which affirmed so much of a Supreme Court order denying defendants’ motion, insofar as it sought to dismiss plaintiffs’ third and fourth causes of action and so much of the seventh cause of action as was based on breach of defendant sponsor’s warranties, was affirmed. *Bank of N.Y. Mellon v WMC Mtge., LLC*, 28 NY3d 1039.

FORMATION OF CONTRACT.

2. Auction Sale of Syndicated Loan.—Plaintiffs were entitled to summary judgment on their breach of contract claim against defendant bank arising from the auction sale of a syndicated loan, inasmuch as defendant’s acceptance of plaintiffs’ final bid to purchase the loan, together with the totality of the parties’ actions and communications, constituted an agreement to an enforceable contract with express material terms and post-formation requirements, and plaintiffs were unable to realize the increased valuation of the loan after defendant refused to transfer it. With respect to auctions, the general rule is that a seller’s acceptance of an auction bid forms a binding contract. While an auction can be conditional, it will not be deemed so absent explicit terms. Here, the Offering Memorandum stated that the bids were non-contingent final offers that, if accepted, required execution by the bidder of an included pre-negotiated asset sale agreement and payment of a deposit, and that the loans were subject only to those representations and warranties explicitly stated in the agreement. Thus, the terms of the sale were preset. When defendant accepted the offer it confirmed the bid in a correspondence setting forth material terms, including the sale price, the specific loan to be sold, the timing of the closing, and the manner of payment and wire transfer instructions. With respect to execution of the agreement, plaintiffs notified defendant that the included agreement was inappropriate for the transaction and provided an alternate form, which defendant agreed was preferred and worked on preparing while plaintiffs continued to provide documentation necessary for the closing. Plaintiffs were responsive to all of defendant’s requests, expressed eagerness to close the deal, took necessary steps, including securing approval of a credit agreement, and never implied an inability or unwillingness to turn over the deposit. Defendant’s language in an email, which stated that acceptance of the bid was “[s]ubject to mutual execution of an acceptable [agreement]” and tender of the deposit, did not provide the forthright, reasonable signal necessary to convey that it did not intend to be bound absent a writing. The signed writing and deposit were post-agreement requirements necessary for consummation of the transfer, as established by the continued

CONTRACTS—Cont'd

exchange of documents necessary to the asset transfer. *Stonehill Capital Mgt. LLC v Bank of the W.*, 28 NY3d 439.

CONTRIBUTION.**APPORTIONMENT OF LIABILITY AMONG JOINT TORTFEASORS.**

1. State as Nonparty Tortfeasor.—The factfinder in Supreme Court may not apportion fault to the State under CPLR 1601 (1) when a plaintiff claims that both the State and a private party are liable for noneconomic losses in a personal injury action. Accordingly, in plaintiffs' action seeking damages for injuries sustained when a branch fell from a tree on defendant's property bordering the state highway on which plaintiff was traveling and struck her vehicle, Supreme Court properly denied defendant's request for a jury charge directing the apportionment of liability between defendant and the State. Under CPLR 1601 (1), as long as a claimant in the Court of Claims could have commenced an action against a private tortfeasor in any court in the State of New York, then the tortfeasor's culpable conduct can be considered by the Court of Claims in determining the State's equitable share of the total liability. The statute does not, however, contain similar, express enabling language to allow apportionment against the State in a Supreme Court action. Moreover, CPLR 1601 (1) provides that a nonparty tortfeasor's relative culpability must not be considered in apportioning fault "if the claimant . . . with due diligence . . . was unable to obtain jurisdiction over such person in said action." The restriction on Supreme Court imposed by the doctrine of sovereign immunity is jurisdictional in nature. By its terms, the statute does not specify that the inability to obtain jurisdiction must have a particular cause, and interpreting the word "jurisdiction" as limited to "personal jurisdiction" effectively renders meaningless the phrase "in said action . . . or in a claim against the state" in CPLR 1601 (1). Moreover, if a defendant believes that it has been held liable in Supreme Court for what is actually the State's negligent conduct, the defendant can sue the State for contribution in the Court of Claims. *Artibee v Home Place Corp.*, 28 NY3d 739.

COPYRIGHTS AND LITERARY PROPERTY.**COMMON-LAW COPYRIGHT.**

1. Sound Recordings Made Prior to February 15, 1972 — Right of Public Performance.—New York common-law copyright does not recognize a right of public performance for creators of sound recordings made prior to February 15, 1972—the date sound recordings became protected from infringement under federal copyright law. Reproduction and performance have been treated as separate and distinct aspects of copyright, with the former based in common law and the latter based in statute. New York's common-law copyright protection has been held to prevent only the unauthorized reproduction of the copyrighted work, but permits a purchaser to use copies of sound recordings for their intended purposes, namely, to play them. Though parties do not lose their rights merely by failing to enforce them, the fact that holders of rights to sound recordings have taken no action whatsoever to assert common-law protection for at least the past four decades—when the absence of a comprehensive federal right of public performance for sound recordings was clear—supported a conclusion that artists and copyright holders did not believe such a right existed in the common law. Because the consequences of recognizing that right for the first time could be extensive and far-reaching, and there are many competing interests at stake, such recognition should be left to the legislature. The legislative branch is uniquely qualified, and imbued with the authority, to conduct the required balancing of interests and make the necessary policy choices. *Flo & Eddie, Inc. v Sirius XM Radio, Inc.*, 28 NY3d 583.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS.

COURT OF CLAIMS.

See STATE.

COURTS.**COURT OF APPEALS.**

1. Jurisdiction — Question of Law.—The Court of Appeals had jurisdiction over petitioner presentment agency's appeal from an order of the Appellate Division finding that the search that uncovered a weapon from respondent's shoe following his arrest was unreasonable, since the dissent at the Appellate Division was on a question of law. Although questions of the reasonableness of police conduct can rarely be resolved as a matter of law even when the facts are not in dispute, here, the majority and dissent did not disagree on facts or inferences material to the narrow issues before the Court of Appeals. Rather, the majority and dissent disagreed as to whether the search of respondent's shoes was justified, as a matter of law. *Matter of Jamal S.*, 28 NY3d 92.

JURISDICTION.

2. Long-Arm Jurisdiction — Due Process — Use of Correspondent Bank Account in New York.—In plaintiffs' action alleging that nondomiciliary bank defendants effected wire transfers of bribe money from construction project vendors to a New York correspondent bank account as part of a money laundering scheme that ultimately put the money in the hands of several of plaintiffs' employees, defendants had sufficient minimum contacts with New York such that exercise of personal jurisdiction over defendants pursuant to CPLR 302 (a) (1) complied with federal constitutional due process requirements. A nondomiciliary must have certain minimum contacts with the forum such that the maintenance of the suit does not offend traditional notions of fair play and substantial justice. The "minimum contacts" test has come to rest on whether a defendant's conduct and connection with the forum state are such that it should reasonably anticipate being haled into court there. Such minimum contacts exist where a defendant purposefully avails itself of the privilege of conducting activities within the forum state. Here, defendants' maintenance and repeated use of a New York correspondent bank account to achieve the wrong complained of satisfied the minimum contacts component of the due process inquiry. Moreover, while the parties were foreign nationals, the burden of litigation in New York was reduced by modern communication and transportation. Furthermore, the complaint implicated the fraudulent use of New York's banking system, an issue of great importance to the State, and New York courts provided plaintiffs a greater possibility of relief. *Rushaid v Pictet & Cie*, 28 NY3d 316.

3. Long-Arm Jurisdiction — Substantial Relationship between Business Transaction and Claim — Use of Correspondent Bank Account in New York.—In plaintiffs' action alleging that Geneva, Switzerland-based bank defendants effected wire transfers of bribe money from construction project vendors to a New York correspondent bank account as part of a money laundering scheme that ultimately put the money in the hands of several of plaintiffs' employees, defendants' transactions within New York were substantially related to plaintiffs' claims within the meaning of CPLR 302 (a) (1). Jurisdiction under CPLR 302 (a) (1) is proper even though the defendant never enters New York, so long as the defendant's activities in the state were purposeful and there is a substantial relationship between the transaction and the claim asserted. Thus, there must be an articulable nexus or substantial relationship between the business transaction and the claim asserted. Plaintiffs' claims depended on the assertions that defendants established the banking structure in New York and Geneva through which they orchestrated the money laundering part of the bribery/kickback scheme. Defendants served as the employees' bankers, without whom the employees could not launder and conceal the kickbacks and bribes. The complaint further alleged that defendants effected the transfers of money to the New York correspondent bank as part of the scheme that put the bribes/kickbacks in the hands of the employees. Such allegations were enough to show the minimum level of relatedness to the New York transactions. *Rushaid v Pictet & Cie*, 28 NY3d 316.

4. Long-Arm Jurisdiction — Transaction of Business in New York — Use of Correspondent Bank Account in New York.—In plaintiffs' action alleging that nondomiciliary bank defendants effected wire transfers of bribe money from

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construction project vendors to a New York correspondent bank account as part of a money laundering scheme that ultimately put the money in the hands of several of plaintiffs' employees, defendants' alleged correspondent banking activity was sufficient to establish a purposeful course of dealing, constituting the transaction of business in New York under CPLR 302 (a) (1). Jurisdiction under CPLR 302 (a) (1) is proper even though the defendant never enters New York, so long as the defendant's activities in the state were purposeful and there is a substantial relationship between the transaction and the claim asserted. Purposeful activities are those with which a defendant, through volitional acts, avails itself of the privilege of conducting activities within the forum state, thus invoking the benefits and protections of its laws. The amended complaint asserted that the New York correspondent account was used to wire bribes to defendants, an essential step in the money-laundering scheme. The fact that defendants chose New York, when other jurisdictions were available, made the New York connection volitional and not coincidental. The vendors' choice to deposit money in New York was part of defendants' design, and not a unilateral decision. Defendants were therefore actively engaged in a cycle of banking transactions wherein money went from the vendors to New York to defendants, and then to the employees. Thus, the correspondent account was crucial to a course of repeated banking activity. *Rushaid v Pictet & Cie*, 28 NY3d 316.

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See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

APPEAL.

1. Preservation of Issue for Review — Right to Speedy Trial.—Defendant's challenges to the People's claim, in opposition to defendant's motion to dismiss an indictment on the ground that he was denied his statutory right to a speedy trial, that certain days were excludable were preserved for appellate review, notwithstanding that he failed to raise them in a reply, as defendant was entitled to the hearing he had requested in his moving papers (CPL 210.45 [5] [c]). The court may deny a motion to dismiss an indictment without a hearing only if the People have "conclusively refuted" an allegation of fact essential to support the motion "by unquestionable documentary proof" (CPL 210.45 [5] [c]). While the People's opposition to defendant's motion sufficiently demonstrated that there was a factual dispute to be resolved at a hearing, it was inadequate to warrant summary denial, so defendant was entitled to the hearing he requested in the moving papers. Pursuant to CPL 470.05 (2), to present a preserved question of law, a party claiming error must raise their challenge at the time of trial or the court's ruling, or at any subsequent time when the trial court had an opportunity of effectively changing the same. In the absence of a hearing, a defendant's substantive arguments will be unpreserved where the defendant failed to otherwise raise them, for instance, in the defendant's initial submission or in a reply. However, a defendant's failure to reply is not fatal to his or her claim where, as here, the defendant properly requests and receives a hearing and, at that hearing, his or her arguments are raised and developed. *People v Allard*, 28 NY3d 41.

2. Preservation of Issue for Review — Inquiries Beyond Scope of Ruling Permitting Use of Defendant's Selective Silence in Spontaneous Statement to Police for Impeachment.—Defendant failed to preserve for appellate review any argument that the People went beyond the scope of the trial court's ruling permitting them to use defendant's selective silence, while making a spontaneous postdetention statement to police, to impeach his trial testimony that complainant had hit him on the head with a piece of wood by inquiring as to matters that preceded the altercation and would not have been unnatural omissions from the statement, as defense counsel did not object to any testimony on that basis. In any event, there was no significant probability that the result would have been different even if the

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court had denied the People's request to impeach defendant. The evidence was overwhelming and the content of defendant's spontaneous statement was already before the jury through the two conflicting versions as provided by the responding officer's testimony and defendant's direct testimony, thus allowing the jurors to draw their own conclusion as to credibility from the plainly inconsistent testimony. *People v Chery*, 28 NY3d 139.

3. Preservation of Issue for Review — Trial Court's Voir Dire Procedure.—Defendant failed to preserve for appellate review his challenge to the trial court's procedure of conducting its own voir dire of potential jurors before allowing each counsel five minutes to question them, where defense counsel did not object to the court's procedure during trial. The procedure was not a mode of proceedings error reviewable by the Court of Appeals in the absence of preservation, as it is incumbent on counsel to object to temporal limitations concerning voir dire. Further, the fact that a trial court has discretion concerning the scope of voir dire demonstrates that errors in that context do not go to the essential validity of the process thereby excusing preservation. *People v Brown*, 28 NY3d 392.

4. Preservation of Issue for Review — Mode of Proceedings Error.—Defendant's claim on appeal from his resentencing, which was identical to his original sentence, that the resentencing court, by failing to impose a lesser sentence than it originally imposed, necessarily considered improper criteria was unpreserved for appellate review and did not amount to a mode of proceedings error such that preservation was not required. The alleged error did not fall within the narrow exception to the preservation rule that is reserved for the most fundamental flaws. Nor did the resentencing court exceed its powers and impose a sentence that was illegal in a respect that was readily discernable from the trial record. *People v Flowers*, 28 NY3d 536.

5. Appellate Division Review Power.—In a criminal prosecution in which the trial court admitted evidence of unverified cell phone subscriber information for the nonhearsay purpose of showing that the particular cell phone was activated by someone who provided identifying information linked to defendant, thereby corroborating the victim's identification of defendant in a lineup, the Appellate Division did not exceed its authority under CPL 470.15 (1) when it affirmed that evidentiary ruling, as it did not rule that the subscriber information was admissible based upon a ground that was different from that on which the trial court relied. The Appellate Division explained that although the purchaser of the phone was not under a business duty to provide the pedigree information, that requirement of the business records exception to the hearsay rule did not apply, because the initial declaration was independently admissible as circumstantial evidence of defendant's identity as the purchaser. Both courts ultimately concluded that the subscriber information was not hearsay because it was not offered for the truth of the facts asserted in the statement. *People v Patterson*, 28 NY3d 544.

6. Preservation of Issue for Review — Meaningful Response to Jury Note.—In a murder prosecution in which defendant rejected a justification defense and the jury sent a note during deliberations inquiring whether the "intent to kill" was negated if the victim "initiated the struggle and [defendant] was acting defensively," defendant failed to preserve for appellate review his claim that the trial court, by not instructing the jury on the defense of justification, failed to meaningfully respond to the note. The trial court informed the parties that it would respond to the note by instructing the jurors that justification and self-defense were not issues before them, and defense counsel specifically objected to the court making any reference to self-defense or advising the jury that that issue was not before them. Where counsel has meaningful notice of the content of a jury note and of the trial court's response, or lack thereof, to that note, the court's alleged violation of the meaningful response requirement does not constitute a mode of proceedings error, and counsel is required to preserve any claim of error for appellate review. Here, counsel objected to the response precisely because the court mentioned justification and self-defense, not, as defendant argued on appeal, on the grounds that the court should have instructed the jury on the defense of justification. Thus, counsel did not preserve the specific objection raised on appeal. *People v Clark*, 28 NY3d 556.

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7. Preservation of Issue for Review — Cruel and Unusual Sentence.—Defendant failed to preserve for appellate review his claim that the sentence imposed on his convictions for three counts each of predatory sexual assault and criminal sexual act in the first degree, an aggregate term of 75 years to life, was “cruel and unusual” in violation of the US Constitution Eighth Amendment and NY Constitution, article I, § 5. Although defendant generally objected to the length of the sentence before the sentencing court, arguing that the sentence was draconian, he did not alert the court to his constitutional argument. Thus, the sentencing court was never given an opportunity to address any of the constitutional challenges defendant lodged with the Court of Appeals. Furthermore, the narrow exception to the preservation rule, where the illegality of a sentence can readily be discerned from the trial record, was inapplicable here. *People v Pena*, 28 NY3d 727.

8. Preservation of Issue for Review.—Defendant’s sole argument, concerning whether the trial court followed the proper procedure for permitting witnesses to testify anonymously, was unpreserved for review by the Court of Appeals. *People v Ricketts*, 28 NY3d 940.

9. Matters Reviewable — Mixed Questions of Law and Fact.—In the prosecution of defendant for criminally possessing a loaded handgun discovered after a search of the trunk of a vehicle in which defendant was a passenger, the lower courts’ determinations on defendant’s suppression motion, which involved mixed questions of law and fact, had support in the record and, thus, were beyond further review by the Court of Appeals. *People v Bookman*, 28 NY3d 967.

10. Preservation of Issue for Review — Mode of Proceedings Error — Meaningful Notice of Jury Notes.—In defendant’s robbery prosecution, the trial court’s failure to provide a response to the jury’s outstanding request for a readback of testimony before accepting the verdict did not constitute a mode of proceedings error, since counsel had meaningful notice of the jury notes. Where the trial court has read the precise content of the jury note into the record in the presence of counsel, defendant and the jury, the trial court has complied with its core responsibility to give counsel meaningful notice of the jury’s notes, and the court’s failure to discuss the note with counsel before recalling the jury is not a mode of proceedings error. Furthermore, where counsel has meaningful notice of the content of a jury note and of the trial court’s response, or lack thereof, to that note, the court’s alleged violation of the meaningful response requirement does not constitute a mode of proceedings error, and counsel is required to preserve any claim of error for appellate review. Here, the trial court complied with its responsibility to provide counsel with meaningful notice of the jury’s notes by reading the notes verbatim into the record in the presence of counsel, defendant and the jury. Counsel was therefore required to object to preserve any claim of error for review by the Court of Appeals. Although the trial court’s procedure may have been error, it was not a mode of proceedings error, and the Court of Appeals had no jurisdiction to review it. *People v Wiggs*, 28 NY3d 987.

11. Matters Reviewable — Mixed Question of Law and Fact — Reasonable Suspicion to Pursue Defendant.—In defendant’s prosecution for criminally possessing a handgun which fell from his waist when he fled from a police officer, the issue of whether the officer had reasonable suspicion to pursue defendant was a mixed question of law and fact, limiting review by the Court of Appeals. Because there was record support for the determination of the lower courts, it was affirmed. *People v Gayden*, 28 NY3d 1035.

12. Dismissal of Direct Appeal Based on Defendant’s Involuntary Deportation.—The Appellate Term erred as a matter of law in dismissing defendant’s direct appeal from his judgment of conviction on the ground that he had been involuntarily deported following his conviction. Intermediate appellate courts are prohibited from dismissing pending direct appeals due to the defendant’s involuntary deportation, regardless of the contentions raised by the defendant on appeal, and regardless of any causal relationship between the defendant’s conviction and deportation. *People v Morales*, 28 NY3d 1087.

13. Preservation of Issue for Review — Validity of Guilty Plea.—Defendant’s challenge to the validity of his guilty plea based on an alleged justification defense

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was unpreserved for review by the Court of Appeals, and the narrow exception to the preservation requirement did not apply since he had an opportunity to seek relief from the sentencing court by moving to withdraw his plea on that ground. Moreover, defendant said nothing during the plea colloquy or the sentencing proceeding that negated an element of the crime or raised the possibility of a justification defense. *People v Pastor*, 28 NY3d 1089.

14. Preservation of Issue for Review — Validity of Guilty Plea — Court's Failure to Advise Defendant of Deportation Consequences.—Defendant's challenge to the validity of his guilty plea based on the alleged failure of the sentencing court to advise him of the immigration consequences of his plea was unpreserved for review by the Court of Appeals. Since the court informed defendant during the plea colloquy that if he was not a citizen, he could face deportation as a result of his guilty plea, he was informed before he pleaded guilty of that possibility, and if he was confused about that issue, he was obligated to move to withdraw his plea on that ground before the sentencing court. To the extent that defendant contended that his attorney misadvised him about the immigration consequences of his plea, defendant was required to raise that claim by way of a CPL 440.10 motion. *People v Pastor*, 28 NY3d 1089.

15. Waiver of Right to Appeal — Enforceability of Waiver of Right to Appeal — Sufficiency of Allocution.—Defendant knowingly and intelligently waived his right to appeal where the trial court separately explained to him the panoply of rights normally forfeited upon a guilty plea, ensured that he understood those rights, had him allocute to the facts of the crimes, and turned to the waiver of appeal only after the allocution. During the oral colloquy defendant stated he understood that he was “waiving [his] right to appeal” and “that this conviction, or these convictions will be final, that a court will not review what we have done here.” Moreover, that verbal waiver was accompanied by a detailed written waiver which stated, among other things, that “the right to appeal is separate and distinct from other rights automatically forfeited upon a plea of guilty.” *People v Bryant*, 28 NY3d 1094.

16. Matters Reviewable — Remittal by Court of Appeals to Appellate Division — Alternative Challenges Not Previously Considered by Appellate Division.—Where, on the People's appeal, the Court of Appeals reversed an Appellate Division order reversing defendant's judgment of conviction based on its determination that the Appellate Division erroneously concluded that the trial court was required to excuse a certain prospective juror for cause, the Court of Appeals was precluded from reviewing defendant's alternative challenge with respect to the legal sufficiency of the evidence. To credit defendant's alternative challenge, which was rejected by the Appellate Division, would be to afford him relief beyond that provided by the Appellate Division, that is, he would be entitled not just to the new trial ordered by the Appellate Division, but also to the reduction of the top count against him. Since the Appellate Division did not specifically address the balance of the alternative challenges defendant raised before the Appellate Division and reiterated before the Court of Appeals, the case was remitted to the Appellate Division so that it could pass upon the facts and those alternative contentions advanced by defendant for reversal (*see* CPL 470.40 [2] [b]). *People v Warrington*, 28 NY3d 1116.

17. Preservation of Issue for Review.—In the prosecution of defendant for trespassing on private property in violation of Environmental Conservation Law § 11-2113 (1), defendant's specific challenge that the People's evidence of the location of 32 compliant signs was deficient under the law, which requires that the property be posted with warning signs bearing the name and address of the property owner (ECL 11-2111 [2]), was not raised below and was therefore unpreserved and beyond review by the Court of Appeals. To the extent that defendant argued that evidence of one noncompliant sign undermined the People's case, that claim was also not within the Court of Appeals' powers of review (CPL 470.15 [5]). *People v Guerin*, 28 NY3d 1152.

18. Matters Reviewable — Identification of Defendant.—The Appellate Division's finding that the pretrial photo array that led to defendant's arrest was not unduly

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suggestive was supported by the record, and therefore beyond further review by the Court of Appeals, and, as a result, his contention that the photo array tainted the lineup after his arrest, to the extent that argument was preserved, was without merit. *People v Staton*, 28 NY3d 1160.

ARREST.

19. Probable Cause to Arrest Juvenile Based on Misrepresentation of Age.—The police had probable cause to arrest respondent juvenile, who was unable to produce identification after he was stopped by police for riding his bicycle against the flow of traffic on a one-way street, for disorderly conduct based on his representation that he was 16 years old and the officers' observations of him in the street. The officers' initial arrest of respondent was lawful in light of what they believed at the time. Respondent initially told police on the street that he was 16 years old. Because he lacked identification, the police transported him to the precinct, where, nearly an hour later, he told them that he was only 15 years old. Thereafter, the officers treated respondent as a juvenile, placing him in a juvenile room and making him remove his belt, shoelaces and shoes as a protective measure until his parents were notified and he could be picked up from the precinct. *Matter of Jamal S.*, 28 NY3d 92.

BURGLARY.

20. Burglary of Dwelling — Intrusion into Basement Inaccessible to and Remote from Residences.—The evidence presented in defendant's prosecution for entering, without permission, the basement of a deli located on the ground floor of a seven-story building with six floors of residential apartments above it and no access from the basement to the residential units was legally insufficient to support his conviction for burglary in the second degree (Penal Law § 140.25 [2]), as the basement did not constitute a "dwelling" within the meaning of Penal Law § 140.00 (3). The increased penalty for burglary of a dwelling was designed to prevent "midnight terror" and the danger to human life, growing out of the attempt to defend property from depredation. Given the isolation of the basement itself from the rest of the building, as well as the noncontiguous relationship of the basement to the residential units of the building, defendant did not come, nor could he have readily come, near to the residences. Therefore, under the narrow circumstances of this case, application of the general rule as to what constitutes a dwelling in a mixed residential and commercial building within the meaning of Penal Law § 140.00 (2) was not warranted. The deli basement was inaccessible to the residential apartments because defendant could not go anywhere into the building from the basement. The basement was also remote from the apartments given that it was not used by the residents for any purposes and that there was no proof of any relationship between that space and the residents. There was no close contiguity between the basement and the dwellings, and the special dangers inherent in the burglary of a dwelling thus did not exist. *People v Joseph*, 28 NY3d 1003.

CONDUCT OF TRIAL JUDGE.

21. Request to Sequester Judge's Notes and Electronic Devices.—The denial of defendant's mistrial motions and request during his nonjury criminal trial to sequester the judge's notes, cell phone, computer and an unidentified document alleged to be a document not in evidence did not deprive defendant of proper appellate review. In a nonjury trial the judge serves dual roles, and while sitting as the factfinder the judge continues to be responsible for all the judicial obligations attendant to overseeing a trial. Thus, a judge may take notes and rely on technological instruments to facilitate the proper discharge of those judicial duties. Moreover, any claim that the judge misused items defendant sought to have sequestered or that the judge was distracted and failed to give proper consideration to the evidence was unsupported by the record. Trial counsel admitted he did not know the nature or content of the document the judge was holding, and the judge indicated that he did not know what document counsel was referencing and assured him that he was listening to the testimony. Additionally, counsel failed to object at the time of the alleged misuse of the notes and electronic devices, and based his

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subsequent mistrial motion on mere observations of the judge's possession and unspecified operation of the phone and computer. Under such circumstances, there was no abuse of discretion in the trial judge's denial of defendant's motions. *People v Pabon*, 28 NY3d 147.

CONFESSION.

22. Voluntary Nature of Statements — Use by People for Impeachment Purposes.—County Court did not abuse its discretion in denying defendant's motion to preclude the People from using defendant's statements to police, made after he had invoked his *Miranda* rights and determined by County Court to be voluntary, on cross-examination or rebuttal for impeachment purposes should defendant choose to testify. If a statement made by the defendant to the police is voluntary, it may be used for impeachment purposes; but if a statement is involuntary, it will not be admissible, even if it may be deemed reliable. A rule rendering inadmissible for impeachment purposes any statement elicited by law enforcement after the defendant invokes the right to remain silent would effectively sanction perjury on the part of a testifying defendant by permitting the defendant to offer testimony that is inconsistent or at odds with the defendant's prior statements. The investigator who read defendant his *Miranda* rights acknowledged that he understood that defendant's post-*Miranda* statements could not be used by the People in their case-in-chief but could be utilized by the People for impeachment purposes. However, there was nothing in the record to support the contention that the investigator consciously circumvented defendant's invocation of his Fifth Amendment rights or otherwise rendered defendant's statements involuntary as a matter of law. *People v Wilson*, 28 NY3d 67.

CONSPIRACY.

23. Coconspirator Exception to Hearsay Rule — Statements Made by Coconspirators Prior to Defendant Joining Conspiracy.—When a conspirator subsequently joins an ongoing conspiracy, any previous statements made by his or her coconspirators in furtherance of the conspiracy are admissible against the conspirator pursuant to the coconspirator exception to the hearsay rule. A new recruit can be thought to have joined the conspiracy with an implied adoption of what had gone on before to enhance the enterprise of which he or she is taking advantage. Moreover, statements made after a coconspirator's alleged active involvement in the conspiracy has ceased, but the conspiracy continues, are admissible unless that conspirator has unequivocally communicated his or her withdrawal from the conspiracy to the coconspirators. Accordingly, the trial court in defendant's prosecution for his involvement in a conspiracy to commit official misconduct by preventing the arrest and prosecution of a police department benefactor's son properly admitted into evidence coconspirator hearsay statements made in furtherance of the conspiracy prior to defendant joining the conspiracy and after his active participation had ceased. Defendant, a high-ranking police supervisor, joined the conspiracy after a discussion with a coconspirator in which the coconspirator informed defendant of what had transpired and enlisted his help to prevent the criminal case from proceeding against the son. Moreover, defendant made no argument that he had unequivocally communicated his withdrawal from the conspiracy to his coconspirators. *People v Flanagan*, 28 NY3d 644.

24. Conspiracy to Commit Official Misconduct — Legally Sufficient Evidence.—Defendant's conviction for conspiracy in the sixth degree was supported by legally sufficient evidence proving the crime of official misconduct and the coconspirators' agreement to commit the crime of official misconduct by virtue of the actions of defendant, a high-ranking police supervisor, and his accomplices in returning recovered stolen property to the victim in an open felony investigation to prevent the arrest and prosecution of a police department benefactor's son. To be guilty of conspiracy in the sixth degree, a defendant must "with intent that conduct constituting a crime be performed . . . agree[] with one or more persons to engage in or cause the performance of such conduct" (Penal Law § 105.00). Once an illicit agreement is shown, the overt act of any conspirator may be attributed to other conspirators to establish the offense of conspiracy and that act may be the object

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crime. But the overt act itself is not the crime in a conspiracy prosecution; it is merely an element of the crime that has as its basis the agreement. The evidence was sufficient to prove the crime of official misconduct beyond a reasonable doubt, and there was sufficient evidence of the coconspirators' agreement to commit the crime of official misconduct. The existence of a conspiracy was supported by the trial testimony of defendant's coconspirators, defendant's admissions in emails with a subordinate and the father and by abundant circumstantial evidence which, when viewed in the light most favorable to the People, supported the jury's finding. *People v Flanagan*, 28 NY3d 644.

CORROBORATION OF ACCOMPLICE TESTIMONY.

25. Surveillance Video and Phone Records.—Defendant's burglary and robbery convictions were supported by legally sufficient evidence, as the testimony of one of his alleged accomplices was sufficiently corroborated as required by CPL 60.22 (1). Pursuant to CPL 60.22 (1), "[a] defendant may not be convicted of any offense upon the testimony of an accomplice unsupported by corroborative evidence tending to connect the defendant with the commission of such offense." However, the corroborative evidence need not show the commission of the crime; it need not show that the defendant was connected with the commission of the crime. It is enough if it tends to connect the defendant with the commission of the crime in such a way as may reasonably satisfy the jury that the accomplice is telling the truth. Here, the surveillance video clips depicting a man who physically resembled defendant and the detailed phone records of all three accomplices so harmonized with the testifying accomplice's narrative as to have a tendency to furnish the necessary connection between defendant and the crime. *People v Davis*, 28 NY3d 294.

DISCLOSURE.

26. Court Order to Provide Buccal Swab.—County Court did not err in granting the People's application directing defendant to provide a buccal swab for testing where defendant was indicted by a grand jury, a sexual assault evidence kit was taken from the victim, and its order directing defendant to provide a DNA sample was authorized by statute (CPL 240.40 [2] [b] [v]). *People v Roshia*, 28 NY3d 989.

EVIDENCE.

27. Excited Utterances — Victim's Disclosure of Sexual Abuse by Defendant.—In the prosecution of defendant for the sexual abuse of two minor girls, the trial court properly allowed the victims' mother to testify about one of the girls disclosing the abuse to her immediately after it occurred. While the prompt outcry exception to the hearsay rule is limited to testimony that a timely complaint was made, and does not allow further testimony concerning details, here the brief account of what the victim told her mother could be viewed as both a prompt outcry and an excited utterance. *People v Brewer*, 28 NY3d 271.

28. Prosecution for Sexual Abuse against Child — Proof of Prior Sexual Acts with Consenting Adult Women.—In the prosecution of defendant for the sexual abuse of two minor girls, evidence that defendant had engaged in sexual acts with consenting adult women in the exact same manner as he had forced the girls to was not *Molineux* or propensity evidence. *Molineux* analysis is limited to the introduction of a prior uncharged crime or a prior bad act, and should not be used to evaluate a prior consensual sexual act between adults. In addition, propensity evidence is limited for policy reasons, due to fear of the jury's human tendency to more readily believe in the guilt of an accused person when it is known or suspected that he or she has previously committed a similar crime. Here, that defendant engaged in oral sex with consenting adult women, while in a closet smoking crack cocaine with his shirt pulled over his head, showed no propensity to commit the crimes for which he was on trial. That the evidence corroborated the minor victims' accounts did not render it propensity evidence, because corroboration and propensity are distinct concepts. *People v Brewer*, 28 NY3d 271.

29. Prosecution for Sexual Abuse against Child — Proof of Prior Sexual Acts with Consenting Adult Women.—In the prosecution of defendant for the sexual abuse of two minor girls, the trial court properly admitted evidence of defendant's

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prior sexual acts with consenting adult women detailing that he had engaged in oral sex while in a closet smoking crack cocaine with his shirt pulled over his head, the same act that he had forced the girls to engage in. The decision to admit evidence of defendant's prior acts which does not constitute *Molineux* or propensity evidence rests upon the trial court's discretionary balancing of probative value and unfair prejudice. Here, where the People had established that the victims had never witnessed defendant's sexual encounters with their mother or other women, the evidence was relevant and probative because it tended to support the victims' accounts of their abuse by corroborating the peculiar manner in which defendant engaged in oral sex. Because the evidence of defendant's prior sexual encounters strengthened the People's case by making the victims' accounts ring true, it was prejudicial to defendant. However, taking into account the full extent of the evidence the People sought to introduce, and the trial court's limitation and, in some instances, outright preclusion thereof, the trial court did not abuse its discretion in concluding that the probative value of this particular evidence was not outweighed by potential prejudice. *People v Brewer*, 28 NY3d 271.

30. Surveillance Video Clips.—In defendant's prosecution for felony murder based upon the underlying predicate felonies of robbery and burglary, the trial court did not err in denying defendant's motion to preclude use of DVD video clips culled from the surveillance system on the victim's apartment building showing defendant enter and exit the building and in the area of the victim's apartment. The authenticating witness, who maintained the surveillance system, testified that during the computerized process of compressing and archiving the digital video files, certain images may overlap. However, he further testified that the process, which he personally conducted, did not conjure up persons that were not originally present in the camera shot. As such, the trial court did not abuse its discretion in concluding that the image-overlap issue went to weight, but not admissibility, of the video evidence. *People v Davis*, 28 NY3d 294.

31. Admissibility of Subscriber Information in Cell Phone Records — Nonhearsay Purpose.—In the prosecution of defendant for robbery and burglary for an incident in which an accomplice to the crime received cell phone calls from a cell phone number for which the person who activated the phone provided subscriber information that included a name, birth date and address associated with defendant, the subscriber information, while contained in a business record and not verified by the cell phone company, was properly admitted at trial for a nonhearsay purpose other than simply completing the narrative. Although the contents of the statements in a record are not admissible for the truth of the matters asserted therein under the business records exception to the hearsay rule (CPLR 4518 [a]) when, as here, the informant was not acting pursuant to a business duty to report, the contents of the record nevertheless may be used for a nonhearsay purpose. Here, the subscriber information was not hearsay because it was not admitted to prove the truth of the matters asserted therein, i.e., that an individual named "Darnell Patterson" was the subscriber of the cell phone account used at the time of the robbery, or that "Darnell" had a particular date of birth that matched that of defendant or lived at a particular address that was associated with defendant. Rather, the information was admitted for the limited purpose of showing that the individual who activated the cell phone number identified himself as Darnell Patterson and gave certain pedigree information that was otherwise associated with defendant. The evidence was ultimately relevant to help the jury assess the reliability of the victim's identification of defendant as the perpetrator, and for consideration as a piece of the puzzle, which, considered along with other relevant evidence, gave rise to an inference that defendant was the user of the phone. *People v Patterson*, 28 NY3d 544.

32. Tape Recordings — Hearsay — Adoptive Admission.—In a prosecution arising out of a series of domestic violence incidents, the trial court did not abuse its discretion as a matter of law in admitting into evidence the recording of a telephone call between defendant and his ex-girlfriend as an adoptive admission based on defendant's non-responsive and evasive answers to the ex-girlfriend's repeated accusations that he broke her ribs, notwithstanding that defendant's potential jail

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sentence was discussed and the call was recorded while defendant was incarcerated. The court properly concluded that the content of the conversation, itself, demonstrated that defendant both heard and understood what the ex-girlfriend was saying, but chose to give evasive and manipulative responses, and that view was supported by the context of the call, where defendant voluntarily contacted his accuser in violation of an order of protection in an attempt to influence her to drop the charges against him. Once the People satisfied those threshold evidentiary requirements for admissibility, the call was properly placed before the jurors, who were fully equipped to assess its significance and dynamics. The court also did not abuse its discretion as a matter of law in declining to redact that portion of the call that referenced, incorrectly, defendant's sentencing exposure as the mention of a potential prison term was inextricably intertwined with defendant's purpose in placing the call, and any potential juror prejudice was mitigated by the court's thorough limiting instruction, crafted by defense counsel. Finally, that defendant's evasive responses were made while he was incarcerated did not render them the product of an interrogation or its functional equivalent under the circumstances. *People v Vining*, 28 NY3d 686.

33. Certification of Reproduced Documents — Record of Breath Test Simulator Solution Testing Originally Created in Electronic Form.—In defendant's prosecution for driving while intoxicated in which the trial court admitted into evidence a record of testing of the simulator solution used during the breath test administered to defendant which did not include a verification pursuant to CPLR 4539 (b) showing that the record could not be tampered with, County Court correctly held on appeal that compliance with CPLR 4539 (b) was not required because the record was originally created in electronic form and that the applicable statute was CPLR 4518 (a), which provides that an "electronic record . . . shall be admissible in a tangible exhibit that is a true and accurate representation of such electronic record." CPLR 4539 (b) requires authentication when "[a] reproduction [is] created by any process which stores an image of any writing, entry, print or representation." CPLR 4539 (a), in turn, allows "reproduction[s]" made "in the regular course of business" to be admissible as the original. Thus, CPLR 4539 (b) applies only when a document that originally existed in hard copy form is scanned to store a digital "image" of the hard copy document, and then a "reproduction" of the digital image is printed in the original course of business. Inasmuch as the record of simulator solution testing was created electronically in the first instance, and was not scanned to create an "image" of a hard copy document, the certification did not need to comply with CPLR 4539 (b). Moreover, the record of simulator solution testing and records pertaining to the maintenance and calibration of the breath test instrument were properly admitted based upon the attached state agency certifications. The trial court also relied on the state agency certifications when admitting the documents into evidence, and therefore County Court did not violate CPL 470.15 (1) in concluding that the records were admissible based on those certifications. *People v Kangas*, 28 NY3d 984.

34. Detective's Testimony About Nontestifying Witness's Description of Perpetrators — Background Information.—In a robbery prosecution, the trial court did not abuse its discretion in allowing a detective's testimony about a description of the robbers given by a nontestifying witness as background information to explain why the police were able to capture relevant surveillance footage. The testimony—which was accompanied by a curative instruction explaining that it was not admitted for its truth—consisted of a generic description of the robbers that was cumulative of nonhearsay descriptions provided by other trial witnesses. It was also consistent with the visual depiction of the robbers seen in a surveillance video. *People v Speaks*, 28 NY3d 990.

35. Present Sense Impression.—In a prosecution stemming from a police officer's observations of defendant as he unlawfully entered a delivery truck and a building under construction while carrying a tile cutter and duffel bag, the hearsay statement of an unidentified woman who was standing nearby when the officer reached the back of the vehicle—"Did you see he was trying to get into the back of the truck? Are you going to get him?"—was properly admitted as a present sense

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impression. Under the present sense impression exception to the hearsay rule, spontaneous descriptions of events made substantially contemporaneously with the observations may be admitted if the descriptions are sufficiently corroborated by other evidence. Here, the woman's statement was made to the officer immediately after the event she described and before she had an opportunity for studied reflection, and the officer's own observations sufficiently corroborated her description. *People v Jones*, 28 NY3d 1037.

36. Excited Utterances — Statements by Child Victim Made within Half Hour of Sexual Abuse.—In defendant's prosecution for sexually abusing a three-year-old girl on the bus he drove, the trial court properly admitted into evidence as excited utterances the child's statements to her mother and father made shortly after the abuse occurred, as the surrounding circumstances reasonably justified the conclusion that the child's remarks were not made under the impetus of studied reflection. The excited utterance exception to the hearsay rule permits a court to admit an out-of-court statement made in response to a startling or upsetting event, if the circumstances surrounding the statement reveal that it was made while the declarant was under the stress of excitement and lacked the reflective capacity essential for fabrication. The evidence established that the child was in a highly emotional state when she first stepped off the bus and that she continued to cry inconsolably as she uttered the phrase "Senor Bus" to her mother and father at home and made a licking gesture with her tongue. Those statements were made within a half hour of the startling event, while the child was still under the stress of excitement. The child repeated the same phrase and gesture to her parents three hours later at a hospital and also pulled her mother's hand to the child's genital area. Even if the stress of excitement had sufficiently abated by the time the child made her later statements at the hospital, any error in their admission was harmless. Evidence at trial provided overwhelming proof of defendant's guilt, and there was no significant probability that the jury would have reached a different conclusion if the hearsay statements from the hospital had been excluded. *People v Hernandez*, 28 NY3d 1056.

FAIR TRIAL.

37. Appearance in Orange Correctional Pants during Jury Selection.—Defendant, who was compelled to wear orange correctional pants for half a day of jury selection, was not denied his right to a fair trial where there was no evidence that the pants were visible to the jury and the clothing that was visible, a black knitted top, was clearly not identifiable as correctional garb. Outside the presence of prospective jurors, the trial court noted on the record that defendant was seated at the end of a very wide, long table, separated by one chair with his attorney at the opposite end of that chair, and the furthest away possible from the prospective jurors. Moreover, after the entire jury panel entered the courtroom, the prosecutor asked whether anybody noticed something about the defendant, and the only response was from a prospective juror who noted, "He's in a wheelchair." Thus, the concerns that arise when a defendant is required to appear in a convict's attire were not implicated and the trial judge committed no error in allowing jury selection to proceed that day. *People v Then*, 28 NY3d 1170.

HARMLESS AND PREJUDICIAL ERROR.

38. Testimony That Defendant Lied during Police Interview.—The court's error in admitting into evidence in defendant's nonjury criminal trial over proper objection opinion testimony from an investigator that defendant had lied to him during a post-arrest interview was harmless. Absent some reliable indication that, notwithstanding the erroneous ruling, the judge knows that the evidence must be disregarded, it cannot be presumed that the judge, acting as the finder of fact, will forgo consideration of the evidence during the course of the trial or in reaching a verdict. Here, the judge's on-the-record statement that he was "not taking [the investigator's] judgment" provided sufficient assurance that he was not adopting the investigator's assessment of defendant's honesty. *People v Pabon*, 28 NY3d 147.

IDENTIFICATION OF DEFENDANT.

39. Lineup — Independent Source for Victim's Identification of Defendant.—In a criminal prosecution in which the People conceded that the pretrial lineup at

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which a victim identified defendant was unduly suggestive, the trial court did not abuse its discretion in denying defendant's requests that he not be required to sit next to his counsel during the witnesses' attempts to identify him at trial. Following the suggestive pretrial lineup, the court concluded that an independent source existed for the victim's in-court identification of defendant. Although the victim's companion was not the subject of an independent source hearing, he did not participate in any pretrial identification. Accordingly, because defendant failed to sufficiently cast doubt on the reliability of the witnesses' identification testimony or otherwise demonstrate impermissible suggestiveness by the traditional in-court identification procedure, no abuse was apparent. *People v Brown*, 28 NY3d 392.

40. Lineup — Distinctive Feature Prominently Figured in Prior Description.—In defendant's prosecution for robberies committed against four victims in which the trial court found that defendant's distinctive feature of long dreadlocks rendered the lineup where he was the only participant with long dreadlocks unduly suggestive as to two victims who had described their assailant as having dreadlocks, there was no record support for the denial of defendant's motion to suppress the lineup procedure as to the other two victims because they had not mentioned dreadlocks to the police. A lineup's suggestiveness should not turn solely on whether a defendant's distinctive feature figured prominently in a witness's prior description. Rather, a witness's prior description is but one factor a court should consider in determining whether the lineup was one that created a substantial likelihood that the defendant would be singled out for identification. The conclusion that defendant's dreadlocks were so distinctive that they rendered the lineup unduly suggestive as to the two victims who had mentioned the perpetrator's hairstyle in their initial description to police was supported by the lineup photographs introduced into evidence at the hearing, which clearly depicted defendant as the only person with long, visible dreadlocks. The lower courts' conclusion that the same distinctive feature was not unduly suggestive for the other two victims was premised solely on their having not included dreadlocks as part of their descriptions to police. No other findings of fact were made that would have distinguished the outcomes from one another. Moreover, because one of the two victims who had not mentioned dreadlocks to police was unable to identify defendant in court, and the lineup identification was the only evidence linking defendant to that incident, the robbery count relating to that victim was dismissed. *People v Perkins*, 28 NY3d 432.

INDICTMENT.

41. Challenge to Hearsay Statements Forfeited by Guilty Plea.—In a sexual assault prosecution in which defendant was arraigned on a "DNA indictment" identifying the perpetrator only by his DNA profile, which was later amended to add defendant's name, defendant, by pleading guilty to all counts of the amended indictment, forfeited his argument that the People improperly used hearsay statements to link defendant's DNA to the DNA profile contained in the DNA indictment. Insufficiency of an indictment's factual allegations does not constitute a jurisdictional defect that is reviewable by the Court of Appeals, and, once a guilty plea has been entered, the sufficiency of the evidence before the grand jury cannot be challenged. Thus, a guilty plea generally results in a forfeiture of the right to appellate review of any nonjurisdictional defects in the proceedings. In support of their motion to amend the DNA indictment only to reflect defendant's name, the People presented certain hearsay statements that, among other things, linked the DNA profile contained in the DNA indictment to DNA developed from a cigarette butt smoked by defendant. The amendment simply added defendant's name to the indictment, so that it was listed along with his DNA profile. As such, defendant's hearsay challenges to the amended indictment were nonjurisdictional in nature, and did not survive defendant's guilty plea or appeal waiver. *People v Guerrero*, 28 NY3d 110.

42. Sufficiency of Evidence before Grand Jury — Challenge to Nonjurisdictional Defects Forfeited by Guilty Plea.—In a sexual assault prosecution in which defendant was arraigned on a "DNA indictment" identifying the perpetrator only by

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his DNA profile, which was later amended to add defendant's name, defendant, by pleading guilty to all counts of the amended indictment, forfeited his right to challenge the legal sufficiency of the DNA indictment and amended indictment that named him. Insufficiency of an indictment's factual allegations does not constitute a jurisdictional defect that is reviewable by the Court of Appeals, and, once a guilty plea has been entered, the sufficiency of the evidence before the grand jury cannot be challenged. Thus, a guilty plea generally results in a forfeiture of the right to appellate review of any nonjurisdictional defects in the proceedings. Here, the DNA indictment properly charged a person with acts that constituted a crime. Defendant's challenge to the legal sufficiency of the DNA indictment was based on the failure to identify him as the perpetrator by name, but that alleged defect was not a jurisdictional one, and therefore did not survive his guilty plea. By pleading guilty, defendant acknowledged that he was the person who committed the offense, and his conviction thus rested directly on the sufficiency of his plea, not on the legal or constitutional sufficiency of any proceedings which might have led to his conviction after trial. *People v Guerrero*, 28 NY3d 110.

43. Jurisdiction to Correct Erroneous Dismissal.—Supreme Court had jurisdiction over defendant's criminal prosecution when it corrected an error in a decision issued one day prior based on an objective fact and thereby reinstated certain counts of defendant's indictment. Accordingly, there was no basis to disturb the judgment entered upon defendant's guilty plea. *People v Francis*, 28 NY3d 1034.

INSTRUCTIONS.

44. Supplemental Instruction Given to Deadlocked Jury.—The supplemental instruction given by the trial court in defendant's criminal prosecution after the jury returned a verdict that was not in fact unanimous was not coercive and did not deprive defendant of his right to a fair trial. When confronting a potential deadlock, a court may give a supplemental jury charge that encourages the jurors to reach a unanimous verdict. However, the court must not attempt to coerce or compel the jury to agree upon a particular verdict, or any verdict. Nor should the instruction impermissibly single out any juror for noncompliance with the majority or suggest that the jury would be forced to continue deliberations indefinitely. Here, the trial judge provided clarification that, in order to constitute a verdict, all jurors had to agree, and stressed that the jurors should "attempt" to reach a verdict, thereby leaving open the possibility that the jurors would have principled disagreements that would prevent them from reaching a unanimous verdict. The court did not overemphasize the need to return a verdict or suggest that the jurors were failing in their duty by not doing so, nor did the court indicate that the jurors would be subject to prolonged deliberations. Additionally, the absence of cautionary language was not fatal to the supplemental charge. Just two hours before its supplemental instruction, the trial court provided an instruction containing ample cautionary language reminding the jury "not [to] surrender an honest view of the evidence." The jury continued to deliberate for a full day after receiving the challenged supplemental charge, suggesting that it was not coerced. *People v Morgan*, 28 NY3d 516.

JURORS.

45. Selection of Jury — Prohibiting Questioning Regarding Views on Involuntary Confessions.—The trial court in defendant's criminal prosecution abused its discretion in entirely prohibiting questioning of prospective jurors with respect to their views on involuntary confessions, because it precluded all inquiry on the topic by either the court or defense counsel and did so, based in part, on the People's uncertainty of whether they intended to introduce defendant's inculpatory statements at trial. The judge presiding has broad discretion to control and restrict the scope of the voir dire examination. Any restriction imposed on voir dire, however, must afford counsel a fair opportunity to question prospective jurors about relevant matters. Defense counsel's request to question prospective jurors about their ability to follow the law and disregard an involuntary confession went to the heart of determining whether those jurors could be impartial and afford defendant a fair trial. Furthermore, the fact that the prosecution had not yet

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determined whether it would use defendant's inculpatory statements at trial should not have resulted in precluding any questioning on the issue altogether, by either the court or defense counsel. Defense counsel never sought to place the contents of defendant's statements before the jury. Moreover, the trial court had other ways to address any potential speculation and prejudice to the prosecution while still safeguarding defendant's right to adequately voir dire the jury. *People v Miller*, 28 NY3d 355.

46. Selection of Jury — Batson Challenge — Discrimination on Basis of Skin Color.—Skin color is a cognizable classification upon which a *Batson* challenge (*Batson v Kentucky*, 476 US 79 [1986]) may be lodged as the New York State Constitution and the Civil Rights Law acknowledge that color is a status that implicates equal protection concerns. Accordingly, where defense counsel in a robbery prosecution met her prima facie burden on a *Batson* challenge by alleging that the prosecutor was excluding dark-colored female prospective jurors, and the prosecutor failed to provide a non-discriminatory reason for excluding one of those jurors when he stated that he could not recall why he struck her, the trial court committed reversible error by not seating the juror. The separation of "race" and "color" in the Equal Protection Clause of the State Constitution (NY Const, art I, § 11) and Civil Rights Law § 13, which prohibits disqualification of a state citizen from jury service on the basis of certain personal characteristics, indicates that "color" is a separate and distinct classification from "race." It follows, then, that color has been recognized as a category upon which discriminatory practices have been based, including exclusion from jury service. Thus, when a movant seeks to meet his or her prima facie burden on a *Batson* challenge of demonstrating that a peremptory strike was used to discriminate by showing that multiple members of a cognizable group were excluded, the movant may meet the prima facie burden by demonstrating that the perempted potential jurors have a similar skin color. It is then for the trial court, using the existing *Batson* protocol, to decide whether the individuals identified as part of that group share a similar skin color. *People v Bridgeforth*, 28 NY3d 567.

47. Selection of Jury — Batson Procedure.—The issue whether defendant, who lodged a *Batson* challenge (*Batson v Kentucky*, 476 US 79 [1986]) in a robbery prosecution, made out a prima facie case of discrimination was not moot and could be revisited on appeal, notwithstanding that the trial court moved past that threshold inquiry without making a finding. Though the sufficiency of the movant's prima facie showing on a *Batson* challenge becomes moot when the opposing party presents a non-discriminatory reason for the use of the peremptory strike and the trial court rules on the ultimate question of intentional discrimination, the trial court here failed to reach the ultimate issue as to one juror where the prosecutor gave non-pretextual reasons for perempting some potential jurors, but gave no reason for perempting the juror at issue. *People v Bridgeforth*, 28 NY3d 567.

48. Selection of Jury — Denial of For-Cause Challenge — Previously Articulated Bias.—In a prosecution arising from the death of a five-year-old child, the trial court did not abuse its discretion by denying defendant's for-cause challenge to a prospective juror who articulated a bias during voir dire related to the age of the victim, based on her subsequent unequivocal assurances of impartiality during an examination by the court. CPL 270.20 (1) (b) provides that a party may challenge a potential juror for cause if the juror "has a state of mind that is likely to preclude him [or her] from rendering an impartial verdict based upon the evidence adduced at the trial." However, where a prospective juror unambiguously states that, despite preexisting opinions that might indicate bias, he or she will decide the case impartially and based on the evidence, the trial court has the discretion to deny a challenge for cause if it determines that the juror's promise to be impartial is credible. Under the circumstances here—including the trial court's direct reference to the questions it had asked of a different juror, which called to the subject juror's attention her previously stated bias—the trial court did not abuse its discretion. Viewing the prospective juror's statements in totality and in context, her assurances to the court adequately expressed her ability and willingness to adhere to her obligation to acquit defendant if the evidence required her to do so and

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established that she would render an impartial verdict untainted by any aforementioned bias or sympathy. The CPL does not require any expurgatory oath or talismanic words to resolve doubt about a potential juror's ability to be fair. *People v Warrington*, 28 NY3d 1116.

LESSER INCLUDED OFFENSE.

49. Coercion — Heinous Quality of Conduct.—In defendant's prosecution for coercion in the first degree for physically threatening his former girlfriend and threatening to ruin her business (*see* Penal Law § 135.65 [1]), the trial court did not err in declining to instruct the jury on the lesser included offense of coercion in the second degree (*see* Penal Law § 135.60), as defendant's conduct had the heinous quality contemplated by the first-degree statute such that the second-degree charge was not warranted. The crimes of coercion in the first and second degree are identical when the coercion is committed by instilling a fear that a person will be physically injured or that property will be damaged. The legislative history of the statutes reveals an intention that the felony of coercion in the first degree be charged whenever the method of coercion was to instill a fear of injury to a person or damage to property. The legislature, by making the misdemeanor offense all-inclusive, created a safety-valve feature in the event an unusual factual situation should develop where the method of coercion is by threat of personal or property injury, but for some reason lacks the heinous quality the legislature associated with such threats. Thus, second-degree coercion should be charged as a lesser included offense only in the unusual factual situation in which the coercion by threat of personal or property injury lacks the heinousness ordinarily associated with this manner of commission of the crime. This case did not present an unusual factual situation warranting the lesser included charge, as the People's evidence showed that defendant coerced his former girlfriend by threatening to drive away her clients, make it impossible for her to conduct business, hurt her physically and even kill her. *People v Finkelstein*, 28 NY3d 345.

MURDER.

50. Felony Murder — Sufficiently Direct Causation.—Defendant's convictions for felony murder based upon the underlying predicate felonies of robbery and burglary were supported by legally sufficient evidence, as the jury could have reasonably concluded that defendant's conduct in assaulting the victim during a home invasion was a sufficiently direct cause of the victim's death from heart failure. Sufficiently direct causation is established by proof that defendant's actions were an actual contributory cause of the death and that the fatal result was reasonably foreseeable. So long as the necessary causative link is established, other causes, such as a victim's preexisting condition, will not relieve the defendant of responsibility for homicide. The Medical Examiner testified that the stress caused by the blunt force trauma injuries inflicted by defendant, "given [the victim's] underlying heart disease[,] led to his death." That testimony, along with the crime scene evidence that defendant's beating of the victim was severe and immediate in its consequences, was sufficient to prove that defendant's conduct set in motion and legally caused the death of the victim. Moreover, defendant violently attacked the victim, in his home, breaking his jaw and leaving him on the floor in a blood-spattered room where he was found dead. Such proof was sufficient to permit the jury to conclude that the victim's heart failure, induced by the extreme stress and trauma of such a violent assault, was a directly foreseeable consequence of defendant's conduct. *People v Davis*, 28 NY3d 294.

OFFICIAL MISCONDUCT.

51. Malfeasance — Legally Sufficient Evidence.—Defendant's conviction for official misconduct for malfeasance (Penal Law § 195.00 [1]) was supported by legally sufficient evidence establishing that defendant, a high-ranking police supervisor, along with his accomplices, used his position of power to orchestrate the return of unvouchered evidence to a larceny victim with the goal of terminating the open felony investigation of a police department benefactor's son and preventing the son's imminent arrest. A detective involved in the conspiracy testified that he

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knew that as part of his official duties he was supposed to investigate the felony larceny, that he had ample basis to make an arrest and that he was responsible for vouchering the stolen property as well as securing the surveillance video of the crime. The detective admittedly evaded those duties because his supervising officer, who was acting in furtherance of the conspiracy, made clear that there would be no arrest or prosecution in the case. Preservation of evidence under Penal Law § 450.10 is undertaken to maintain the evidence's integrity for the prosecution of the case while affording due process to the defendant by providing his or her attorney with the opportunity to review the evidence before its return to the victim. However, the District Attorney was kept in the dark about the existence of the investigation, and the son's attorney, who was involved in negotiations with the complainant, was never contacted by police. Thus, the trial testimony was sufficient to establish that the return of the evidence of the crime, where the applicable statute and department protocols were not followed, was not an authorized exercise of official functions, that defendant knew that the official actions taken were unauthorized and that those actions were undertaken with the intent to obtain a benefit. *People v Flanagan*, 28 NY3d 644.

52. Nonfeasance — Legally Sufficient Evidence.—Defendant's conviction for official misconduct for nonfeasance was supported by legally sufficient evidence demonstrating that defendant, a high-ranking police supervisor, directed his accomplice officers to refrain from performing their fundamental duty to investigate a crime in order to prevent the arrest and prosecution of a police department benefactor's son, where there was overwhelming evidence of the crime, to the benefit of the suspect's father. The plain language of Penal Law § 195.00 (2) demonstrates that it is not the mandatory or discretionary nature of the failure to act that satisfies the duty element of nonfeasance, but rather it is the causal connection of the failure to a flagrant and intentional abuse of authority by those empowered to enforce the law. When a public servant, with the intent to obtain a benefit, knowingly refuses to perform a discretionary duty, the performance of which is so obviously fundamental to accomplishing the goals of the public servant's office, that refusal cannot legitimately be understood to be an exercise of discretion; rather, it constitutes an abuse of discretion, which equates to nonfeasance. Defendant's accomplice admitted that he did not exercise his discretion in failing to investigate the case and arrest the suspect, but instead complied with the unsavory directives of his accomplice supervisors and knowingly failed to perform his duties. Moreover, the officers here had no valid reason not to move forward with the investigation, and defendant, as an accomplice with a shared intent, could be held criminally responsible for the purposeful inertia of his accomplices. *People v Flanagan*, 28 NY3d 644.

PLEA OF GUILTY.

53. Alford Plea — Strong Evidence of Guilt.—Defendant's plea of guilty to attempted murder through an *Alford* plea (*North Carolina v Alford*, 400 US 25 [1970]), whereby the court accepted the plea even though defendant disputed that he possessed the requisite intent, was knowing, intelligent and voluntary and the extensive factual recitation of the trial evidence presented by both defense counsel and the People was sufficient for the court to be satisfied that there was strong evidence of guilt. If a defendant's factual recitation negates an essential element of the crime, raising substantial doubt as to guilt, the trial court must inquire further to ensure that defendant's guilty plea is both knowing and voluntary. The trial evidence indicated defendant was present in the park on the date at issue, that he was armed with a loaded handgun and displayed the handgun in the direction of his victims and that he pointed the gun at the back of one victim's head. Although defendant stated that the gun went off accidentally, three of the four victims testified that they heard defendant cock the gun before placing it at the back of the shooting victim's head. The court noted that it understood that defendant disputed whether he possessed the requisite intent, consistent with his trial testimony. After speaking with defendant, defense counsel stated that defendant did not dispute that his testimony would be consistent with his trial testimony should the case be tried. The court verified that defendant wished to proceed, and

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the plea was accepted. Under such circumstances, the court was not required to do more than it did to ensure that defendant voluntarily entered the plea. *People v Couser*, 28 NY3d 368.

54. Validity.—Defendant's plea of guilty to attempted murder, allegedly entered to ensure that he received a concurrent sentence after he had received consecutive sentences for robbery and attempted robbery convictions stemming from the same incident, was knowing, voluntary and intelligent, as concurrent sentencing was not required under the circumstances. In his attempt to rob one of the victims, defendant also shot that victim. Accordingly, the attempt to rob that victim was sufficient to support defendant's conviction for first-degree attempted murder. Wholly separate from that act, however, was the taking of another victim's purse. Although one criminal transaction occurred, those two separate and distinct acts—the shooting and the taking of the purse—perpetrated against two separate victims allowed the court to run the sentence for attempted first-degree murder consecutively to the robbery. Moreover, at the time the *Alford* plea (*North Carolina v Alford*, 400 US 25 [1970]) was requested by defendant, the People were facing retrial, during which they could have resolved their failure to specify which crime formed the basis for the first-degree attempted murder charge by identifying the attempted robbery of the shooting victim as the basis of the first-degree attempted murder count. Consequently, if defendant were convicted of attempted murder after retrial, that sentence could run consecutively to his sentence for robbery. Defendant therefore received the benefit he apparently sought by taking the plea—a concurrent minimum sentence. *People v Couser*, 28 NY3d 368.

55. Withdrawal of Plea — Failure to Disclose Handwritten Notes of Interview with Eyewitness.—The trial court did not abuse its discretion as a matter of law in denying defendant's request pursuant to CPL 220.60 (3) to withdraw his guilty plea to hindering prosecution in the second degree (Penal Law § 205.60), pursuant to which he admitted that he rendered criminal assistance to an individual who had committed second-degree murder, based on the People's failure to disclose the prosecutor's handwritten notes of a pretrial interview with the sole eyewitness to the fatal shooting. To establish that the People violated his federal and state due process rights, defendant was required to show that the People suppressed exculpatory evidence that would have materially affected his decision to plead guilty. Here, the handwritten notes included "blurbs" indicating that the eyewitness was "unsure," "saw punch thrown," that the individual accused of murder "starts pulling out gun," and the victim "grabbed gun" and "was punching" the accused individual. The notes did not refer to defendant's acts or intention, and, as such, they did not directly or expressly provide evidence favorable to defendant by negating or placing in doubt his criminal acts. Nor did the notes support a theory that the individual accused of murder acted in self-defense. Rather, the notes made it appear as if the victim acted in self-defense. Inasmuch as the notes were not favorable to defendant by exculpating him or the accused individual, they would not have materially affected defendant's decision to plead guilty. *People v Fisher*, 28 NY3d 717.

56. Withdrawal of Plea — Hindering Prosecution — Individual to Whom Defendant Provided Assistance Acquitted of Underlying Felony.—In a criminal prosecution in which defendant pleaded guilty to hindering prosecution in the second degree upon his admission that he rendered criminal assistance to an individual who had committed second-degree murder, and that he knew and believed that the individual had engaged in conduct constituting second-degree murder, the trial court did not abuse its discretion as a matter of law in denying defendant's motion to withdraw his guilty plea prior to sentencing (CPL 220.60 [3]) based on the fact that the individual to whom defendant provided assistance was acquitted of the felony charges of second-degree murder and second-degree criminal possession of a weapon. A defendant is guilty of hindering prosecution in the second degree when the defendant "renders criminal assistance to a person who has committed a class B or class C felony" (Penal Law § 205.60). The People must prove that the underlying felony was committed, but the statute does not require proof that the assisted person was ever arrested or convicted, and the People may satisfy their burden to

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establish the defendant's guilt beyond a reasonable doubt by relying on the defendant's admissions that the assisted person committed the crime. Here, defendant's statements established the commission of the underlying felony. An acquittal is only a finding of reasonable doubt, not a finding that the person tried is in fact innocent. Moreover, criminality of one defendant is not required to establish criminality of another. Nor did collateral estoppel bar the People's continued prosecution of defendant following the assisted person's acquittal because defendant pleaded guilty prior to the assisted person's acquittal, meaning that no previously determined facts were relitigated at defendant's sentencing. To rule that an assisted person's acquittal forecloses any finding of a defendant's criminal liability for hindering prosecution would treat as innocent a defendant who stymies an investigation, hides evidence, or otherwise sabotages the prosecution, because those efforts lead to the assisted person's acquittal. *People v Fisher*, 28 NY3d 717.

57. Sufficiency of Allocution.—The order of the Appellate Division, which had reversed a judgment of the Supreme Court convicting defendant, upon his plea of guilty, of operating a motor vehicle while ability impaired, vacated the guilty plea, and dismissed the accusatory instrument in the interest of justice, was reversed and the Supreme Court judgment reinstated. The totality of the circumstances established the voluntariness of the plea, where the record evidenced that defendant was aware that he had the right to a trial, had the benefit of his counsel's efforts and guidance, spoke with counsel, and chose to forgo trial in favor of entering a guilty plea. *People v Sosa*, 28 NY3d 965.

POSSESSION OF WEAPON.

58. Sufficiency of Accusatory Instrument — Metal Knuckles.—In the prosecution of defendant for criminal possession of a weapon in the fourth degree (Penal Law § 265.01 [1]), the accusatory instrument alleging that defendant unlawfully possessed "brass metal knuckles," which were recovered from defendant's pants pocket by the police officer who stopped him, was facially sufficient. Although the Penal Law provides no definition for "metal knuckles," one of the per se weapons listed in Penal Law § 265.01 (1), they have a common meaning in ordinary American parlance, which corresponds to the dictionary definition. The term "brass knuckles," or "metal knuckles," describes a metal object with multiple holes, through which an individual places his or her fingers so that a metal bar rests atop the individual's knuckles. That object is used as a weapon to cause increased pain when the person wearing it hits someone with a fist. Accordingly, the accusatory instrument clearly informed defendant that he was in criminal possession of "brass metal knuckles," a per se weapon, in violation of Penal Law § 265.01 (1). The term "brass metal knuckles" gave defendant a clear description of the object recovered from his pocket at a specific time and place. Under the common and natural definition of the term, as well as the dictionary definition, defendant was adequately informed of the charge against him. Moreover, the character of metal knuckles is such that one need only look at the object to discern whether it is in fact metal knuckles, and the accusatory instrument did not require any specific description of the officer's training or experience in identifying brass knuckles. *People v Aragon*, 28 NY3d 125.

59. Sufficiency of Accusatory Instrument — Extendable Metal Baton as "Billy."—In the prosecution of defendant for criminal possession of a weapon in the fourth degree, the accusatory instrument alleging that defendant possessed a metal, extendable striking weapon with a handle grip was sufficient to charge him with possessing a "billy" under Penal Law § 265.01 (1) so as to provide sufficient notice for him to prepare a defense and to protect him from multiple prosecutions. The Penal Law contains no definition of "billy," but dictionary definitions generally recognize that the term "baton" is synonymous with the word "billy" or "billy club." Although some dictionaries note that a billy is usually a wooden instrument, the definitions are not limited thereto, and the well-understood character of a "billy," as used in Penal Law § 265.01 (1), encompasses an extendable, metal baton. Moreover, Penal Law § 265.20 (b) creates an exception to the prohibition against possessing a billy set forth in section 265.01 for "that type of billy commonly known as

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a 'police baton.' ” That language—which must be harmonized and interpreted consistently with Penal Law § 265.01—demonstrates that the legislature considered “batons” that are designed as weapons to be a “type of billy” (Penal Law § 265.20 [b]). The common thread, consistent with the general understanding of the term, is that a “billy” is a cylindrical or rounded, rigid, club or baton with a handle grip which, from its appearance and inherent characteristics, is designed to be used as a striking weapon and not for other lawful purposes. Such a definition or description does not hinge on the type of material of which the billy is comprised, as is plain from the absence of any statutory language limiting the term “billy” to a specific material. *People v Ocasio*, 28 NY3d 178.

PROOF OF OTHER CRIMES.

60. Prosecution for Sexual Abuse against Child — Proof of Defendant's Drug Use.—In the prosecution of defendant for the sexual abuse of two minor girls, the Appellate Division correctly concluded that evidence of defendant's drug use was admissible *Molineux* evidence as it was not proffered to show defendant's propensity toward crime, but to corroborate details of the victims' testimony. Both victims testified that defendant pulled them into a closet or back bedroom and forced them to perform oral sex on him, while he smoked crack cocaine with his shirt pulled over his head. The evidence of defendant's use of crack cocaine while engaging in sexual acts was not overly prejudicial in the context of the trial. Further, the trial court prohibited the People from introducing evidence of the crack cocaine recovered from defendant during the execution of the search warrant, thereby exercising its discretion in permitting evidence of drug use only as it pertained to the sex acts as described by the victims. *People v Brewer*, 28 NY3d 271.

RIGHT OF CONFRONTATION.

61. Breath Test Results — Testimony of Observer to Instrument Operation.—In a prosecution for driving while intoxicated, no Confrontation Clause violation occurred where the police officer who directly observed defendant's breath test but did not personally administer it testified at trial based on his own observations and conclusions, rather than as a surrogate for his partner who actually administered the test, and none of the nontestifying officer's hearsay statements were admitted against defendant. The testifying officer was personally present during the entire time that the nontestifying officer and defendant were together, and he testified that he was trained to operate the machine, was very familiar with it and could tell whether it was working properly based on the nontestifying officer's actions inputting information and on sounds made by the machine itself. Based on the testifying officer's testimony that he saw the machine print out the test results, which was credited by the Appellate Term, he was as capable as the nontestifying officer of reading the printout and introducing it in evidence, regardless of who operated the machine. Though the testifying officer did not personally perform or observe the verification of the simulator solution temperature as displayed on the machine, the written checklist completed by the nontestifying officer was not admitted into evidence. As such, no testimonial statement by a nontestifying witness concerning the temperature—or any aspect of the testing procedure—was used against defendant, and the record was sufficient to allow the jury to find that the temperature of the simulator solution was within the proper range. *People v Hao Lin*, 28 NY3d 701.

RIGHT TO COUNSEL.

62. Effective Representation — Statutory Speedy Trial Motion — Claim That People Failed to Act with Due Diligence in Securing DNA Testing.—In a prosecution for rape and sexual assault in which defendant was charged with acting in concert with multiple accomplices, defendant was not denied effective assistance of counsel based on his trial counsel's failure to argue that two adjournments totaling 86 days were chargeable to the People due to their alleged failure to act with due diligence in securing DNA testing. Defendant's claim that the People did not exercise due diligence was based on the supposition that the People did not seek

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testing of fingernail screens as part of, or at the same time as, the sexual assault evidence collection kit and instead permitted the medical examiner to do sequential testing of the evidence after defendant had been excluded from the semen sample. In essence, defendant contended that had defense counsel argued that those delays were chargeable to the People, the indictment would have been dismissed. However, there was nothing in the record to demonstrate that the People were not diligent in requesting DNA testing on the evidence or that the manner in which the DNA testing was conducted was inconsistent with standard laboratory protocols. Moreover, at the time of defendant's CPL 30.30 motion, there already was Appellate Division authority holding that the period of time needed to obtain the results of DNA testing could be excluded from speedy trial computation as an exceptional circumstance under CPL 30.30 (4) (g). *People v Henderson*, 28 NY3d 63.

63. Effective Representation — Incorrect Advice Regarding Potential Sentences.—In defendant's prosecution for vehicular manslaughter and related crimes, defense counsel's incorrect advice that defendant's potential sentences on each count were statutorily required to run consecutively, which allegedly caused defendant to forgo pursuing a negotiated plea, did not deprive defendant of the effective assistance of counsel. A defendant has no constitutional right to a plea bargain, and defendant was required to show more than incorrect advice by defense counsel. The record supported the Appellate Division's determination that there was no possibility that a reduced plea would have been offered to defendant. Therefore, the incorrect advice could not have affected the outcome of the proceedings. The People entertained no plea possibility or any reduction in the sentence given, among other things, that the maximum sentence defendant faced for killing two adults and injuring a third was an aggregate term of just 5 to 15 years. Nor was there any proof that the court would have extended an offer to a reduced sentence. Rather, the sentencing court remarked that it did not think the maximum sentence was enough punishment for defendant under the circumstances. *People v Bank*, 28 NY3d 131.

64. Effective Representation — Testimony of Clinical Pharmacist Rather than Forensic Psychiatrist Regarding Effect of Medications on Defendant's Mental State.—In defendant's prosecution for vehicular manslaughter and related crimes, defense counsel's reliance, in support of the affirmative defense that defendant was suffering from a mental disease that rendered him legally not responsible, on the expert testimony of a clinical pharmacist, as opposed to a forensic psychiatrist, as to how defendant's prescription medications for bipolar disorder altered his mental state prior to the accident did not amount to ineffective assistance of counsel. Defendant and his attorney pursued a reasonable trial strategy by attempting to demonstrate the effect of the medications on defendant's mental health. The expert supported the defense's theory that defendant was in a state of mania as a result of the combination of his bipolar medication and a new prescription, and she testified in great detail as to how these drug interactions could have rendered defendant incapable of understanding the consequences of his actions. *People v Bank*, 28 NY3d 131.

65. Effective Representation — Erroneous Advice Prompting Defendant to Plead Guilty.—In a prosecution in which defendant received consecutive sentences for two felony convictions and subsequently pleaded guilty before retrial on an attempted murder charge stemming from the same incident, defendant was not entitled to vacatur of his guilty plea allegedly entered because of defense counsel's incorrect advice that defendant could receive an additional consecutive sentence if he went to trial. At the time of defendant's sentencing, the Appellate Division for the Fourth Department had not yet addressed whether the sentence on a first-degree felony murder charge must run concurrently with the sentence imposed on the underlying felony, but the Second and Third Departments had addressed the issue and held that it must run concurrently. However, the Fourth Department affirmed the sentencing court's conclusion that the sentences could run consecutively. Under such circumstances, defense counsel's advice to defendant, even if erroneous, did not render him ineffective. *People v Couser*, 28 NY3d 368.

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66. Effective Representation — No Duty to Make Losing Argument.—Defense counsel's failure to object to the trial court's imposition of an identical term of imprisonment at defendant's resentencing following his successful appeal of the original sentence did not render counsel's performance constitutionally deficient as the omitted challenge to the resentencing was not a winning argument. Though a presumption of vindictiveness arises where a defendant's sentence is increased following a successful appeal, a presumption has never been applied that a resentencing court relied on improper criteria where, as here, the court imposed an identical—but not greater—sentence following an appeal, and counsel can hardly be deemed ineffective for failing to pursue such an uncertain claim. In any event, a resentencing court's reimposition of an identical sentence does not indicate that it disregarded a binding appellate determination or that it necessarily relied on improper criteria. Rather, a resentencing court is entitled, on remittal, to perform a fresh sentencing calculation designed to achieve its overall sentencing goal. Accordingly, even after a resentencing court disregards factors that were improperly considered, a reduction is not required so long as the remaining factors continue to justify the previously-imposed sentence. While a defendant may still obtain relief by demonstrating actual vindictiveness or continued reliance on improper criteria at resentencing, the trial court here provided on-the-record, permissible and wholly nonvindictive reasons substantiating defendant's sentence. *People v Flowers*, 28 NY3d 536.

67. Effective Representation — Failure to Object to Clearing of Courtroom during Voir Dire.—Defendant was not deprived of the effective assistance of counsel where trial counsel in defendant's murder prosecution failed to object when the court ordered the courtroom cleared during voir dire to ensure seating for the prospective jurors. The right to a public trial has long been regarded as a fundamental privilege of the defendant in a criminal prosecution. However, at the time of defendant's trial, lower courts relied on Court of Appeals precedent to uphold the practice of excluding the public and family members where limited seating required it, without consideration of alternatives. Given the state of the law at the time, counsel was not ineffective for failing to object to a judicially sanctioned practice. *People v Clark*, 28 NY3d 556.

68. Effective Representation — Failure to Present Justification Defense in Favor of Misidentification Defense Approved by Defendant.—The failure of trial counsel in defendant's murder prosecution to present a justification defense did not deprive defendant of the effective assistance of counsel, where defendant had rejected a justification defense outright and counsel instead vigorously pursued a defense of misidentification in accordance with defendant's assertion of innocence on all charges. The right to effective assistance of counsel includes defendant's right to counsel's beneficial exercise of professional skill and judgment as defendant's advocate. This was not a case where defendant's chosen defense theory was self-destructive and ensured conviction, nor did the path taken by counsel undermine his ability to deploy professional skill and expertise in presenting the chosen defense. For the same reasons, counsel was not ineffective for objecting to any charge that would have presented justification to the jury as a response to the jury's request for further instructions. Moreover, in contrast to a justification defense, the misidentification theory had the potential to achieve defendant's acquittal on all charges. Therefore, counsel's efforts to achieve defendant's stated objective by solely advancing the misidentification defense was consistent with strategic decisions of a reasonably competent attorney. *People v Clark*, 28 NY3d 556.

69. Effective Representation — Failure to Object to Prosecutor's Comments during Summation.—Defense counsel's failure to object to various comments made by the prosecutor during summation did not deprive defendant of the effective assistance of counsel where throughout the course of the trial, defense counsel, demonstrating his familiarity with the relevant law and the particular facts of the case, vigorously advocated for defendant, made proper objections and appropriate motions, competently cross-examined witnesses, and presented a cogent defense case. As to the prosecutor's arguments in summation, defense counsel objected to the

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arguments about defendant's medical condition and then moved for a mistrial on that ground at the end of summation. The other challenged arguments were either fair comment on the evidence, within the bounds of permissible rhetorical argument, or appropriate response to arguments made in defendant's summation. The prosecutor's comments were not so far afield from acceptable argument that there was no apparent strategic explanation for defense counsel's silence. *People v Speaks*, 28 NY3d 990.

70. Effective Representation.—Defendant's argument that he was denied the right to counsel was belied by the record, and he failed to demonstrate the absence of any strategic or legitimate explanation for counsel's silence and inaction at sentencing. *People v Staton*, 28 NY3d 1160.

71. Effective Representation.—The Appellate Division properly held that, to the extent preserved, defendant's legal sufficiency challenges to the trial record lacked merit. However, counsel's overall performance fell below the "meaningful representation" standard and defendant was entitled to a new trial. *People v Maldonado*, 28 NY3d 1173.

RIGHT TO REMAIN SILENT.

72. Evidence of Defendant's Selective Silence in Spontaneous Statement to Police — Permissible Use to Impeach Defendant's Trial Testimony.—The trial court in defendant's robbery prosecution did not err in allowing the People to use defendant's selective silence, while making a spontaneous postdetention statement to police, to impeach his trial testimony that complainant had hit him on the head with a piece of wood, as defendant's conspicuous omission of such exculpatory facts tended to show that his trial testimony was a recent fabrication. While evidence of a defendant's pretrial silence is generally inadmissible, when given circumstances make it most unnatural to omit certain information from a statement, the fact of the omission is itself admissible for purposes of impeachment. Defendant's statement was not the product of interrogation, but was made spontaneously at the scene, prior to the issuance of *Miranda* warnings. In addition, the substance of defendant's spontaneous statement was not inculpatory, but a description of the complainant's conduct and was made to inform the police when the information was timely to their decision as to whether to arrest defendant or complainant. Defendant admitted in his direct testimony that he was not silent and that he had given the police his version of complainant's misconduct at the scene. Consequently, the credibility of his initial spontaneous statement was legitimately called into question by his trial testimony. Defendant elected to provide some explanation of what happened at the scene, and it was unnatural to have omitted the significantly more favorable version of events to which he testified at trial. *People v Chery*, 28 NY3d 139.

RIGHT TO REPRESENTATION PRO SE.

73. Ability to Prepare for Trial Jeopardized by Abuse of Jail Privileges.—In defendant's prosecution for coercion in the first degree, the trial court did not infringe defendant's constitutional right to represent himself by ruling that he forfeited his right to proceed pro se during pretrial proceedings. The court determined that defendant had abused his privileges of phone and law library access while incarcerated pending trial in such a way that jeopardized his ability to prepare for trial. Nevertheless, the court subsequently allowed defendant to represent himself at trial. *People v Finkelstein*, 28 NY3d 345.

RIGHT TO SPEEDY TRIAL.

74. Prosecutorial Delay in Obtaining Defendant's DNA Sample — Due Diligence.—The 161-day period of delay between defendant's consent to a DNA swab for comparison with the DNA results obtained from swabs of the gun he was charged with criminally possessing and the People's production of a report of the DNA results was chargeable to the People for speedy trial purposes, as they failed to exercise due diligence in obtaining defendant's DNA sample. The purpose behind CPL 30.30 is to promote prompt trials for defendants in criminal cases. CPL 30.30 (4) (g) allows exclusion from the computation of the time within which the People

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must be ready for trial “periods of delay occasioned by exceptional circumstances” in obtaining unavailable evidence “material to the people’s case, when the district attorney has exercised due diligence to obtain such evidence” (CPL 30.30 [4] [g] [i]). Therefore, if the exclusion is to be given reasonable effect and is to fulfill the legislative purpose, it must be limited to instances in which the prosecution’s inability to proceed is justified by the purposes of the investigation and credible, vigorous activity in pursuing it. There was no reasonable excuse for the People’s delay in seeking a court order for defendant’s DNA exemplar. The weapon was promptly submitted to the medical examiner by law enforcement for examination and the People waited almost nine months after the indictment to ask the medical examiner what results, if any, were obtained from the scientific testing performed on the gun swabs. Such prosecutorial inaction contravened CPL 30.30. *People v Clarke*, 28 NY3d 48.

75. Delay Attributable to Court — Adjournment Period Exceeding People’s Request.—In a criminal prosecution in which the People requested a six-day adjournment but the trial court adjourned the matter for 47 days, the trial court erred in charging the People for speedy trial purposes with the entire 41-day period between the final day of the People’s requested adjournment and the People’s off-calendar statement of readiness, as the postreadiness delay beyond the six days requested by the People was attributable to the court and was therefore excludable. Postreadiness delay may be charged to the People when the delay is attributable to their inaction and directly implicates their ability to proceed to trial. By contrast, postreadiness delay attributable to the court is not charged to the People. Thus, as to periods of delay that occur following the People’s statement of readiness, any period of an adjournment in excess of that actually requested by the People is excluded. Even if the People’s statement of readiness filed the day before the end of the adjournment period was illusory, the courts below should have charged the People going forward from the illusory statement as if that statement had never been made. They should not have attributed past court delay to the People. *People v Brown*, 28 NY3d 392.

76. Failure to Establish Valid Reason for Unreadiness.—A summary disposition of defendant’s motion to dismiss the indictment on speedy trial grounds pursuant to CPL 30.30 was not warranted, where the People failed to establish a valid reason for their unreadiness in response to defendant’s motion. Although the defendant bears the ultimate burden of demonstrating that a statement of readiness is illusory, the People retain the obligation in the postreadiness context to ensure that the record explains the cause of adjournments sufficiently for the court to determine which party should properly be charged with any delay. Accordingly, if the People announce that they are not ready after they have filed an off-calendar statement of readiness, the People ultimately must explain the reason for their change in readiness status. The People must establish a valid reason for their unreadiness in response to a defendant’s CPL 30.30 motion. Here, during a calendar call after the People had filed an off-calendar statement of readiness, the People answered not ready for trial. The People failed to state a reason for their unreadiness at the calendar call or in response to defendant’s CPL 30.30 motion. With respect to defendant’s motion, however, defendant first challenged the People’s off-calendar statement of readiness in reply papers filed after the People had opposed the motion. Thus, the record was insufficient to determine whether the statement of readiness was illusory. *People v Brown*, 28 NY3d 392.

77. Illusory Statement of Readiness for Trial — Burden of Proof.—In the event of a change in the People’s readiness status, a previously filed off-calendar statement of readiness is presumed truthful and accurate for speedy trial purposes; the presumption can be rebutted by a defendant’s demonstration that the People were not, in fact, ready at the time the statement was filed. If the defendant challenges such a statement—at a calendar call, in a CPL 30.30 motion, or both—the People must establish a valid reason for their change in readiness status to ensure that a sufficient record is made for the court to determine whether the delay is excusable. The defendant then bears the ultimate burden of demonstrating, based on the People’s proffered reasons and other relevant circumstances, that the prior state-

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ment of readiness was illusory. Requiring exceptional circumstances to justify a subsequent statement of non-readiness when the People were actually ready at the time they filed their statement of readiness ignores prior holdings placing the ultimate burden on the defendant in the postreadiness context to show that delay should be charged to the People and creates a new definition of an illusory statement that finds no support in case law. *People v Brown*, 28 NY3d 392.

78. Illusory Statement of Readiness for Trial.—Defendant was not entitled to dismissal of his criminal prosecution on speedy trial grounds, where defendant failed to demonstrate as a matter of law that the People's off-calendar statement of readiness for trial was illusory. To be effective, a statement of readiness must be communicated on the record at a time when the People are truly ready to proceed. A statement of readiness at a time when the People are not actually ready is illusory and insufficient to stop the running of the speedy trial clock. In the absence of proof that a readiness statement did not accurately reflect the People's position, the People have discharged their duty under CPL 30.30. On the court date following the People's statement of readiness, the People announced that they were not ready because the assigned prosecutor "just found out [the day before] that there [was] a [New York City Housing Authority] [h]earing related to the case." Because the prosecutor did not know of the hearing transcript at the time of the off-calendar statement of readiness, defendant failed to establish that the statement did not accurately reflect the People's position. *People v Brown*, 28 NY3d 392.

SENTENCE.

79. Concurrent and Consecutive Terms — Offenses Constituting Separate and Distinct Acts.—In defendant's prosecution for holding a group of people at gunpoint and taking one victim's purse before shooting another victim, the trial court did not abuse its discretion in imposing consecutive sentences for defendant's robbery and attempted robbery convictions, as the taking of the purse constituted a separate act against a single victim distinct from defendant's use of the gun in an attempt to rob the remaining victims. Under Penal Law § 70.25 (2), sentences imposed for two or more offenses may not run consecutively where a single act constitutes two offenses or where a single act constitutes one of the offenses and a material element of the other. When there is some overlap in the elements of multiple statutory offenses, courts retain discretion to impose consecutive sentences if the People can demonstrate that the acts or omissions committed by the defendant were separate and distinct acts, even though they were part of a single transaction. While the elements of attempted first-degree robbery and first-degree robbery overlap, here, the completed robbery included a separate and distinct act, giving the trial court discretion to run the sentences consecutively. The robbery was a single criminal episode, but the taking of the purse was a separate and distinct act from the attempted robberies achieved by waving the gun. *People v Couser*, 28 NY3d 368.

80. Lawful Prison Term.—Defendant's request for resentencing as a second felony offender, made for the first time on direct appeal, failed, without prejudice to him moving pursuant to CPL 440.20 for resentencing, where the record did not establish that his status as a first felony offender was erroneous and that, thus, his sentence was illegal as a matter of law. *People v Brown*, 28 NY3d 982.

81. Waiver of Right to Appear at Resentencing for Felony Conviction Must be Express.—Defendant did not validly waive his right to be present at resentencing where there was no record of any form of express waiver by defendant himself, whether oral or in writing, nor could waiver or forfeiture of the right to be present be inferred from defendant's actions or inaction. A defendant who has been convicted of a felony may waive his or her right to be present at sentencing (*see* CPL 380.40 [1]), but must do so expressly. The same principle applies in resentencing. *People v Stewart*, 28 NY3d 1091.

TIMELINESS OF PROSECUTION.

82. Toll of Limitations Period for Sexual Offenses Committed against Minor.—Defendant's prosecution for course of sexual conduct against a child in the first

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degree for acts committed when the victim was seven years old but not disclosed to police until the victim was 21 years old was not time-barred, as CPL 30.10 (3) (f) applied to toll the five-year statute of limitations set forth in CPL 30.10 (3) (former [e]) for defendant's crime until the victim attained the age of 18 and did not render CPL 30.10 (3) (e) superfluous and ineffective. The crime for which defendant stood convicted is expressly encompassed by CPL 30.10 (3) (f), and involves the type of conduct the legislature sought to address by expansive, albeit delayed, prosecution of multiple acts of sexual abuse against a minor. CPL 30.10 (3) (f) is a tolling provision and as such is dependent on reference to time limits found elsewhere in the statute. Thus, there is no conflict obvious from the interplay of paragraphs (e) and (f) of subdivision (3), as one sets forth a five-year prosecution deadline and the other explains when the clock begins to run on that deadline. The legislature created the crime of course of sexual conduct against a child in order to address the difficulty in prosecuting multiple sexual offenses committed against a child over an extended period of time. Moreover, CPL 30.10 (3) (e) was intended to address the obstacles to prosecution by recognizing that a series of multiple sexual assaults of a child over an extended period of time is a continuous crime. Further, the legislature's subsequent amendment of CPL 30.10 (3) (e) and (f) to eliminate the limitations period for course of sexual conduct against a child in the first degree indicates that it must have understood CPL 30.10 (3) (f) to have applied to that crime prior to the amendment. *People v Pabon*, 28 NY3d 147.

83. Due Process — Preindictment Delay.—In defendant's prosecution for criminally possessing a weapon and related crimes, there was record support for the conclusion that the nearly 4½ year delay between the crime and the indictment did not deprive defendant of his due process right to prompt prosecution. This was not a circumstance where a lengthy and unjustifiable delay in commencing the prosecution required dismissal even though no actual prejudice to defendant was shown. *People v Johnson*, 28 NY3d 1048.

UNLAWFUL SEARCH AND SEIZURE.

84. Reasonable Search of Juvenile's Shoes Following Arrest.—The search of respondent's shoes upon being placed in a juvenile room at the police precinct to wait for his parents to be notified of his arrest was reasonable. The officers were not first required to suspect that respondent either possessed contraband or posed a danger to himself or officers before being directed to remove his shoes. The limited search of respondent's shoes while he was temporarily detained and awaiting the notification of his parents was a reasonable protective measure employed by police to ensure both the safety of respondent and the officers, and the intrusion was minimal. *Matter of Jamal S.*, 28 NY3d 92.

85. Towing Vehicle Following Arrest.—Following defendant's arrest for shoplifting, the arresting police officers' exercise of their discretion to tow defendant's vehicle, which was parked in the same parking lot in which defendant had been arrested, in accordance with department policy was reasonable and lawful. The officers' decision to tow the vehicle was properly made in accordance with the "standard criteria" set forth in the police department's written policy, which limit an officer's discretion to tow a vehicle upon a driver's arrest to situations in which such action is necessary to ensure the safety of the vehicle and its contents and where releasing the vehicle to an owner or designee is not otherwise appropriate. Upon defendant's arrest, the vehicle would have been left unattended indefinitely in complainant's private parking lot, which had a history of vandalism, and complainant requested that the police remove the vehicle. The officers' decision to tow the vehicle was, therefore, consistent with a community caretaking function. Moreover, there was no indication that the officers suspected that they would discover evidence of further criminal activity in defendant's vehicle, or that they towed the vehicle for that purpose. *People v Tardi*, 28 NY3d 1077.

VACATUR OF JUDGMENT OF CONVICTION.

86. Failure to Apprise Defendant of Postrelease Supervision — Retroactive Application of New Precedent.—Retroactive application of the decision of the Court of Appeals in *People v Catu* (4 NY3d 242 [2005]) to vacate defendants' pre-*Catu* pred-

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icate felony convictions on the ground that they were unconstitutionally obtained because the court failed to apprise defendants of the postrelease supervision (PRS) component relative to the sentences imposed on their guilty pleas was not warranted, as defendants' convictions were not obtained in violation of the law as it existed at the time of their respective convictions. In *People v Catu* the Court of Appeals held that a defendant who is not apprised of the PRS component is entitled to reversal of the conviction and automatic vacatur of the plea, and that the defendant is not required to demonstrate that he or she would not have pleaded guilty had he or she been aware of the PRS component. A prior conviction may not be counted for predicate felony purposes if it was obtained in violation of the defendant's rights as defined by the law at the time of the conviction. The law at the time of defendants' respective predicate convictions did not require automatic vacatur for a court's failure to pronounce PRS. Although the law required a defendant be informed of the direct consequences of a guilty plea, it also required that defects in plea allocutions could not result in a reversal absent a showing of prejudice. Both state and federal law required that a defendant demonstrate that he or she would not have pleaded guilty had he or she known about a mandatory term of the sentence. *People v Smith*, 28 NY3d 191.

87. Failure to Apprise Defendant of Postrelease Supervision — Application of New Precedent Based on Federal Retroactivity Principles.—Federal retroactivity principles did not warrant vacatur of defendants' predicate felony convictions based upon the subsequently issued decision of the Court of Appeals in *People v Catu* (4 NY3d 242 [2005]) on the ground that those convictions were unconstitutionally obtained because the court failed to apprise defendants of the postrelease supervision (PRS) component relative to the sentences imposed on their guilty pleas. In *People v Catu* the Court of Appeals held that a defendant who is not apprised of the PRS component is entitled to reversal of the conviction and automatic vacatur of the plea, and that the defendant is not required to demonstrate that he or she would not have pleaded guilty had he or she been aware of the PRS component. A prior conviction may not be used as a predicate conviction where it was obtained in violation of present law which is properly applied to it under recognized principles of retroactivity. Under federal rules, new constitutional rules of criminal procedure will not be applicable to those cases which have become final before the new rules are announced. However, a new rule will be applied retroactively if it is a watershed rule of criminal procedure that implicates the fundamental fairness and accuracy of the criminal proceeding. The *Catu* "automatic vacatur" rule did not constitute such a "watershed rule" because it was not necessary to prevent an impermissibly large risk of an inaccurate conviction, and it was doubtful that the failure of the courts to apprise defendants of the PRS component resulted in them pleading guilty to crimes that they did not commit. Moreover, *Catu* did not alter the understanding of the bedrock procedural elements essential to the fairness of a proceeding. *People v Smith*, 28 NY3d 191.

88. Failure to Apprise Defendant of Postrelease Supervision — Application of New Precedent Based on State Retroactivity Principles.—State retroactivity principles did not support retroactive application of the decision of the Court of Appeals in *People v Catu* (4 NY3d 242 [2005]) to vacate defendants' predicate felony convictions on the ground that those convictions were unconstitutionally obtained because the court failed to apprise defendants of the postrelease supervision (PRS) component relative to the sentences imposed on their guilty pleas. In *People v Catu* the Court of Appeals held that a defendant who is not apprised of the PRS component is entitled to reversal of the conviction and automatic vacatur of the plea, and that the defendant is not required to demonstrate that he or she would not have pleaded guilty had he or she been aware of the PRS component. In determining whether a new precedent should be afforded a retroactive application, courts should weigh the purpose to be served by the new standards, the extent of the reliance by law enforcement on the old standards and the effect on the administration of justice of a retroactive application of the new standards. Although a court's failure to advise a pleading defendant of the PRS component constitutes a due process violation, it cannot be said that the purpose of the *Catu*

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rule—automatic vacatur—has any bearing on the defendant's guilt or innocence. While PRS is an important component of a sentence, a court's failure to inform a defendant of that component is not likely to result in the conviction of an innocent person. Moreover, prosecutors, defense counsel and courts had relied extensively on the legitimacy of pre-*Catu* predicate felony convictions for enhancement purposes where PRS had not been pronounced, and retroactive application of *Catu* would do little to advance the administration of justice as it would render useless prior predicate convictions as a result of a sentencing error that bore no relationship to the defendant's guilt or innocence. *People v Smith*, 28 NY3d 191.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

DEPOSITIONS.

See DISCLOSURE.

DISCLOSURE.

SCOPE OF DISCLOSURE.

1. Deficient Response to Expert Disclosure Statement — Timeliness of Objection.—The trial court did not abuse its discretion as a matter of law in denying as untimely plaintiff's mid-trial motion to preclude the testimony of defendant's expert on the ground that defendant's CPLR 3101 (d) disclosure statement was deficient. CPLR 3101 (d) (1) (i) requires each party to identify its expected expert witnesses "and [to] disclose in reasonable detail the subject matter on which each expert is expected to testify, . . . the qualifications of each expert witness and a summary of the grounds for each expert's opinion." A determination regarding whether to preclude a party from introducing testimony of an expert witness at trial based on the party's failure to comply with the statute is left to the sound discretion of the court. Assuming defendant's disclosure was deficient, such deficiency was readily apparent; the disclosure identified "causation" as a subject matter but did not provide any indication of a theory or basis for the expert's opinion. Moreover, the trial court's ruling did not endorse the sufficiency of the statement but instead addressed the motion's timeliness. The lower courts were entitled to determine, based on the facts and circumstances of this particular case, that the time to challenge the statement's content had passed because the basis of the objection was readily apparent from the face of the disclosure statement and could have been raised—and potentially cured—before trial. *Rivera v Montefiore Med. Ctr.*, 28 NY3d 999.

DISCONTINUANCE.

See DISMISSAL AND NONSUIT.

DISCOVERY AND INSPECTION.

See DISCLOSURE.

DIVORCE.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

DOUBLE JEOPARDY.

See CRIMES.

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE.

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

FORMER ADJUDICATION.

See JUDGMENTS.

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY).

FRATERNAL ORDERS.

See ASSOCIATIONS.

GAS AND OIL.

See, also, PUBLIC UTILITIES.

GUARANTEE.

See SURETYSHIP AND GUARANTEE.

HEALTH.**MEDICAID REIMBURSEMENT PAYMENTS.**

1. Medicaid Cap Statute — Constitutionality of Amendment Imposing Time Limit on Claims for Overburden Reimbursements.—A 2012 amendment (L 2012, ch 56, § 1, part D, § 61 [section 61]) to the Medicaid Cap Statute (L 2005, ch 58, § 1, part C, § 1), which provided that no overburden reimbursement (*see* Social Services Law § 368-a [1] [h]) for social services district expenditures incurred prior to January 1, 2006 would be made for claims submitted on and after April 1, 2012, was constitutional. Acts of the legislature are entitled to a strong presumption of constitutionality, which can only be overcome when it can be shown beyond a reasonable doubt that the act conflicts with a fundamental law, and reconciliation of the statute with the constitution has been found to be impossible. Here, even if petitioner counties, as social services districts, had a vested right to any reimbursements that accrued before 2006, section 61 was constitutional under any possible theory presented. The legislatively-mandated cutoff date for submission of pre-2006 claims was a response to judicial misinterpretations of prior statutory efforts to end the claims process, which was administratively instituted by the New York State Department of Health under the State's former Medicaid allocation regime. Once the State complied with its statutory obligation under Social Services Law § 368-a (1) (h) (i) to pay the counties for overburden reimbursements, it was fully consistent with the prior mandatory reimbursement scheme for the legislature to

HEALTH—Cont'd

impose a deadline on claims for unpaid funds. That deadline was not in conflict with a fundamental law or constitutional principles. Just as the counties could not be heard to complain that the legislature replaced one Medicaid allocation scheme with another, thus redefining the counties' expense burden, so too were they without recourse when the legislature imposed a deadline on their submission of claims for overburden reimbursements, thereby closing the door on pre-2006 claims. *Matter of County of Chemung v Shah*, 28 NY3d 244.

2. Medicaid Cap Statute — Constitutionality of Amendment Imposing Time Limit on Claims for Overburden Reimbursements — Procedural Due Process.—Procedural due process did not mandate extension of the April 1, 2012 deadline for petitioner counties, as social services districts, to submit claims for Medicaid overburden reimbursements (*see* Social Services Law § 368-a [1] [h]) for district expenditures incurred prior to January 1, 2006, as imposed by an amendment (L 2012, ch 56, § 1, part D, § 61 [section 61]) to the Medicaid Cap Statute (L 2005, ch 58, § 1, part C, § 1), to protect the counties' vested rights in any unpaid funds. Procedural due process guarantees notice and an opportunity to be heard before a claimant is deprived of liberty or a recognized property interest. As far back as 1988, the counties were on notice under the prior Medicaid allocation scheme that the State was obligated to pay overburden reimbursements and that the counties could pursue claims for amounts still owed after payment. The counties knew on a weekly basis the amount the State was taking to satisfy their local share of Medicaid expenses, and the State provided quarterly reports by which the counties could determine if they had a potential claim. After the enactment of the Medicaid Cap Statute, when the State began categorically rejecting claims submitted after 2006, almost a decade of litigation ensued and resulted in the eventual payment of all outstanding claims. Thereafter, the counties continued to submit more claims as the effective date of section 61 approached. Thus, it could not be said that the counties did not have notice of the claims process or an opportunity to seek reimbursement for claims, including those going back over 20 years. The counties had no claim to the continuation of the former overburden reimbursement system in perpetuity because the State acted well within its authority to reallocate Medicaid spending under the Medicaid Cap Statute, which provided significant benefits to the counties. Moreover, the deadline furthered the State's significant interest in the stability of its finances and the budgeting process. *Matter of County of Chemung v Shah*, 28 NY3d 244.

3. Medicaid Cap Statute — Constitutionality of Amendment Imposing Time Limit on Claims for Overburden Reimbursements.—An order of the Appellate Division which affirmed a judgment of the Supreme Court granting petitioner county's application to annul respondent Department of Health's (DOH) determination denying its claims for reimbursement of pre-2006 overburden expenses, was reversed, the petition dismissed in its entirety, and a declaration made in favor of respondents DOH and the Commissioner of Health that section 61 of part D of section 1 of chapter 56 of the Laws of 2012 has not been shown to be unconstitutional. *Matter of County of Broome v Shah*, 28 NY3d 1175.

HOTELS.

See INNKEEPERS.

HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

IMMIGRATION.

See ALIENS.

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles.

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

DISCLAIMER OF COVERAGE.

1. Coverage Requirements — Disclosure of Tower Crane in Total Project Value.—In plaintiffs' action seeking a declaration of coverage under the builder's risk policy furnished by defendants for storm damage to a tower crane affixed to a building for use in plaintiffs' construction of a skyscraper, a triable issue of fact existed as to whether the crane was covered under the insurance provided for temporary works. The crane was a "structure" within the meaning of the policy, and was "temporary" in that it was anchored and tied to the building only "during construction" and was to be "removed when . . . no longer needed." However, whether the value of the crane was disclosed as part of the "total project value," another requirement for coverage, could not be determined on the record as a matter of law. The evidence submitted with respect to the "total project value" question included an affidavit averring that the actual market value of the crane was impliedly, but not expressly, disclosed to defendants as required for the crane to constitute a "temporary work"—and, therefore, "covered property"—within the meaning of the policy. *Lend Lease (US) Constr. LMB Inc. v Zurich Am. Ins. Co.*, 28 NY3d 675.

2. Waiver of Late-Notice Defense.—Supreme Court properly granted defendants' motion for leave to amend their answer to reassert an affirmative defense of late notice, as defendants did not waive their right to assert the defense as a matter of law by failing to specifically identify late notice in their disclaimer letters. Defendants identified the late-notice defense in early communications with plaintiff before relying on a reservation of rights in two disclaimer letters. Thus, under common-law principles, triable issues of fact existed whether defendants clearly manifested an intent to abandon their late-notice defense. *Estee Lauder Inc. v OneBeacon Ins. Group, LLC*, 28 NY3d 960.

EXCLUSIONS.

3. Contractor's Tools, Machinery, Plant and Equipment.—Defendant insurers were not obligated to provide coverage under the builder's risk policy issued to plaintiffs for storm damage to a tower crane affixed to a building for use in plaintiffs' construction of a skyscraper, as the crane fell within the policy's exclusion for "[c]ontractor's tools, machinery, plant and equipment . . . not destined to become a permanent part of the [building]." The crane fell squarely within the definition of "machinery," and although components of the crane were to permanently remain part of the building following completion of construction, the record conclusively reflected that the principal parts of the crane were "not destined to become a permanent part of the [building]" upon the completion of construction. Moreover, the exclusion was not so broad as to render coverage afforded under the temporary works provision of the policy illusory. The contractor's tools exclusion did not defeat all of the coverage afforded under the policy's temporary works provision, and thus enforcement of the exclusion would not create a result that would have the exclusion swallow the policy. *Lend Lease (US) Constr. LMB Inc. v Zurich Am. Ins. Co.*, 28 NY3d 675.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

INTERVENTION.

See PARTIES.

JUDGES.**REMOVAL FROM OFFICE.**

1. Pattern of Calculated Misconduct.—The determination of respondent State Commission on Judicial Conduct that petitioner Justice should be removed from

JUDGES—Cont'd

office was accepted. Petitioner's conceded misconduct qualified as "truly egregious" as it reflected a pattern of calculated misconduct that militated against his assertion that the misbehavior complained of would not be repeated if he was allowed to remain on the bench. The record reflected that, among other things, petitioner used a sanction—a tool meant to "shield" from frivolous conduct—as a "sword" to punish a legal services organization for a perceived slight in an inexcusable and patently improper way. The record was also replete with instances in which petitioner used his office and standing as a platform from which to bully and to intimidate, and he repeatedly threatened to hold various officials and employees of the Village in contempt without cause or process. Significantly, petitioner's hectoring extended beyond the courthouse inasmuch as he willfully injected himself into the political process involving the election of an office other than his own. Petitioner's misconduct apparently was tempered only by the intervention of the Commission, and he appeared unrepentant and evasive at the hearing held on the matter, testifying falsely on at least two occasions in an attempt to minimize his misconduct. *Matter of Simon (State Commn. on Jud. Conduct)*, 28 NY3d 35.

JUDGMENTS.

See, also, EXECUTION, and other specific titles.

SUMMARY JUDGMENT.

1. Collective Negligence of Contractors on Home Renovation Project — Relationship between Contractors.—In an action to recover for property damage resulting from fires that experts determined were caused by the installation of wood floors during a home renovation project, the moving defendants, whose name was listed as the contractor on the building permit application and permit, were not entitled to summary judgment as a matter of law, since triable issues of fact existed as to the nature of their relationship with the nonmoving defendant, an unlicensed contractor involved in the project, as well as their authority to control the project. The moving defendants' role in the project was allegedly more than the mere listing of their name on the building permit and the completion of some minor carpentry work. The nonmoving defendant testified that he paid the moving defendants to obtain the permit to cover the entire renovation project, including the installation of wood floors, that they had engaged in similar arrangements on other projects, and that the moving defendants threatened to withdraw the permit if he did not supply additional funds for the job. Furthermore, the moving defendants submitted their own certificate of liability insurance for the project, contractor's license, and workers' compensation information. Thus, whether the nonmoving defendant and the moving defendants were partners, a joint venture, or in an agency relationship such that the moving defendants would be liable for the damage that occurred as a result of the flooring work was a question for a trier of fact. *Utica Mut. Ins. Co. v Style Mgt. Assoc. Corp.*, 28 NY3d 1018.

2. Medical Malpractice — Contraindicated Prescription.—In a medical malpractice action alleging that plaintiff's atrioventricular (AV) heart block resulted from defendant doctor's negligent administration of the combination of Lipitor and azithromycin, defendant was not entitled to summary judgment on the issue of proximate cause. Defendant's expert proffered only conclusory assertions unsupported by any medical research that defendant's actions in prescribing both drugs concurrently did not proximately cause plaintiff's AV heart block, which did not adequately address plaintiff's allegations that the concurrent Lipitor and azithromycin prescriptions caused his injuries. By ignoring the possible effect of the azithromycin prescription, alone or in conjunction with Lipitor, defendant's expert failed to tender sufficient evidence to demonstrate the absence of any material issues of fact as to proximate causation. *Pullman v Silverman*, 28 NY3d 1060.

JUDICIAL NOTICE.

See EVIDENCE.

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

LABOR—Cont'd

SAFE PLACE TO WORK.

1. General Contractor Liability.—In an action for damages arising from work-related injuries, the order of the Appellate Division, insofar as appealed from, determining that Supreme Court properly granted that branch of the motion of defendants-respondents for summary judgment dismissing the complaint insofar as asserted against them, was affirmed. Plaintiff failed to raise a triable issue of fact whether defendants-respondents were subject to general contractor liability. *Bennett v Huckle*, 28 NY3d 964.

2. Fall from Ladder — Summary Judgment.—Plaintiff, who fell from an A-frame ladder after receiving an electrical shock, was not entitled to partial summary judgment on the issue of liability on his Labor Law § 240 (1) claim, where questions of fact existed as to whether the ladder failed to provide proper protection, and whether he should have been provided with additional safety devices. *Nazario v 222 Broadway, LLC*, 28 NY3d 1054.

3. Use of Pine Planks for Flooring on Scaffold — Sole Proximate Cause.—Plaintiff injured worker's motion for partial summary judgment on the issue of liability on his Labor Law § 240 (1) claim against defendants was granted, where defendants failed to raise a triable issue of fact whether plaintiff was the sole proximate cause of his accident which arose from his construction of a scaffold. *Batista v Manhattanville Coll.*, 28 NY3d 1093.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES).

RENT REGULATION.

1. Major Capital Improvement Rent Increase — Appropriate Remand to Division of Housing and Community Renewal.—The Appellate Division did not err in permitting respondent New York State Division of Housing and Community Renewal to address on remand the application of respondent owner for a claimed major capital improvement rent increase based on resurfacing work consistent with the Appellate Division decision. *Matter of 60 E. 12th St. Tenants' Assn. v New York State Div. of Hous. & Community Renewal*, 28 NY3d 962.

2. Ancillary Service — Garage Space.—In a holdover summary proceeding seeking to recover possession of a garage space situated in the building premises in which respondent tenant's rent-stabilized apartment was located, petitioner landlord failed to satisfy its burden on its motion for summary judgment of making a prima facie showing of entitlement to judgment as a matter of law. *Matter of Bruckner Realty LLC v Cruz*, 28 NY3d 1138.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles.

ACTIONABLE WORDS.

1. Statements of and Concerning Plaintiffs.—In a defamation action by plaintiffs, employees of independent entities which provided management and talent services to a strip club raided as part of a federal investigation into a human trafficking ring, defendants' statements about the club's alleged involvement in the investigation and that the club was "run by the mafia" made during a news broadcast were not of and concerning plaintiffs. In order to establish a prima facie case of defamation, plaintiffs must show that the matter published is of and concerning them. Although it is not necessary for the plaintiffs to be named in the publication, they must plead and prove that the statement referred to them and that a person hearing or reading the statement reasonably could have interpreted it as such. The news broadcast stated that the club was purportedly used by the Mafia to carry out a larger trafficking scheme. It did not mention any employees of the club or of the management and talent agencies that facilitated its daily operations, let alone the individual plaintiffs, who were not identified or pictured in the report. In context, the statement that the club was "run by the mafia" could not reasonably

LIBEL AND SLANDER—Cont'd

have been understood to mean that certain unnamed individuals who did not work for the club but oversaw its food, beverage and talent services were members of organized crime. Thus, the broadcast failed to include sufficient particulars of identification in order to be actionable by an individual, and did not describe a particular, specifically defined group of individuals who ran the club such that the small group libel doctrine would apply. *Three Amigos SJJ Rest., Inc. v CBS News Inc.*, 28 NY3d 82.

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER.

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS.

MEDICAL REPORTS.

See DISCLOSURE.

MOTELS.

See INNKEEPERS.

MOTOR VEHICLES.**INJURIES TO PEDESTRIANS.**

1. In an action arising from the death of plaintiff's decedent, the Appellate Division correctly determined that legally sufficient evidence supported the jury's findings of negligence and entitlement to damages for decedent's conscious pain and suffering. *Oates v New York City Tr. Auth.*, 28 NY3d 1046.

PHYSICAL COORDINATION TESTS.

2. Police Policy of Not Administering Tests to Non-English Speaking Suspects — Equal Protection Violation — Standard of Review.—Strict scrutiny did not apply to non-English speaking defendant's claim that his equal protection rights were violated when the police, pursuant to departmental policy, did not administer physical coordination tests following defendant's arrest for driving while intoxicated on the basis that a language barrier prevented them from communicating the test instructions to defendant, where defendant failed to show that the challenged policy singled out or intentionally discriminated against members of a suspect class. The policy was facially neutral and was not based on race, ethnicity or national origin. Rather, the policy was based solely on a suspect's ability to speak and understand English, which, by itself, does not implicate a suspect class. Nor did defendant demonstrate intentional discrimination based on his ethnicity, as the record demonstrated that the officer's decision not to conduct a coordination test was based solely on a determination that a language barrier—not defendant's ethnicity—prevented the officer from administering the test. Moreover, there was no indication that defendant's language was treated as a surrogate for his ethnicity or was a mere pretext for racial discrimination. *People v Aviles*, 28 NY3d 497.

3. Police Policy of Not Administering Tests to Non-English Speaking Suspects — No Equal Protection Violation.—The New York City Police Department's policy of not administering physical coordination tests when a language barrier prevents the administering officer from communicating the test instructions to a non-English speaking person suspected of driving while intoxicated was rationally re-

MOTOR VEHICLES—Cont'd

lated to a legitimate governmental purpose. Accordingly, non-English speaking defendant's equal protection rights were not violated when the police failed to administer physical coordination tests on the basis of a language barrier following defendant's arrest for driving while intoxicated. Both the police department and the public have a substantial interest in ensuring the reliability of coordination tests, and the clarity of the instructions is crucial to the reliability of the results. Coordination tests are designed not only to assess a suspect's motor skills in completing specific tasks, but also to evaluate the suspect's capacity to follow instructions. However, the translation of instructions cannot be delegated to a translator and, given the time-sensitive nature of coordination tests, requiring an administering officer to seek out an appropriately trained translator could result in a delay that affects the results. The policy therefore rationally furthered the goals of avoiding delayed or erroneous results due to a language barrier. Moreover, requiring administration of translated instructions to all intoxicated driving suspects statewide would impose an exorbitant cost that would have a crippling impact on the State. *People v Aviles*, 28 NY3d 497.

4. Police Policy of Not Administering Tests to Non-English Speaking Suspects — No Due Process Violation.—The failure by police to offer non-English speaking defendant a coordination test following his arrest for driving while intoxicated on the basis that a language barrier prevented them from communicating the test instructions did not violate defendant's due process rights under the Federal and State Constitutions. The police have no duty to assist a defendant in gathering evidence or establishing a defense, nor does a defendant have a right to have the police perform a certain investigative step simply because it may yield information that is helpful to him or her. While defendants have a constitutional due process right to a qualified interpreter during judicial proceedings, the same right is not implicated during the pre-arrest investigation of suspected intoxicated driving, as the administration of coordination tests is not a judicial, quasi-judicial or administrative proceeding. In any event, the State has substantial interests in avoiding the cumbersome and prohibitively expensive administrative and fiscal burdens of providing translation services and ensuring the accuracy of physical coordination tests, which could be compromised by the use of translated instructions. *People v Aviles*, 28 NY3d 497.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles.

CONTRACT FOR PROFESSIONAL SERVICES.

1. Municipal Deviation from Request for Proposals.—An award of a contract under General Municipal Law § 104-b is arbitrary and capricious if the municipality evaluates a proposal using a standard that deviates from a standard expressly set forth in its request for proposals (RFP). Accordingly, in a proceeding to vacate an award by respondent County and its Department of General Services of school bus transportation contracts after the submission of public bids pursuant to section 104-b, the County acted arbitrarily as a matter of law by accepting proposals based on a method of evaluation for the cost category—premised on the assignment of points—that was inconsistent with the standard set out in its RFP. The County's failure to follow the cost category evaluation criteria outlined in the RFP was in violation of the County's own written procurement policy. Moreover, the fundamental legislative purpose of preventing favoritism, fraud and corruption applies in the General Municipal Law § 104-b context, and an award of a contract under that section is arbitrary and capricious if, as here, a municipality evaluates a proposal by a standard which is not consistent with that set forth in the RFP. If the County believed that the RFP's methodology did not adequately reflect the importance of the cost consideration, its only option was to reject all the proposals and start over with an RFP that better reflected the weight to be given to cost. *Matter of ACME Bus Corp. v Orange County*, 28 NY3d 417.

MUNICIPAL CORPORATIONS—Cont'd**NOTICE OF CLAIM.**

2. Notice Not Required Where County Not Statutorily Obligated to Indemnify Defendant County Sheriff.—The Appellate Division properly concluded that the County had no statutory obligation within the meaning of General Municipal Law § 50-e (1) (b) to indemnify defendant, the County Sheriff, such that plaintiff was not required to serve a notice of claim as a condition precedent to the commencement of his personal injury action against defendant. A decades old County resolution, entitled “Liability Insurance for the Sheriff’s Department,” did not statutorily obligate the County to indemnify defendant for purposes of section 50-e (1) (b). When read as a whole, the resolution made clear that the County agreed to provide “Liability Insurance” for defendant in exchange for nominal consideration because “policies of law enforcement liability insurance paid for by the County” had become prohibitively expensive. In resolving to act as an insurer, the County recognized that it could not statutorily obligate itself to defend and indemnify defendant, as it had agreed to do for defendant’s employees, under the New York State Constitution. *Villar v Howard*, 28 NY3d 74.

3. Late Notice — Substantial Prejudice.—A finding that a public corporation is substantially prejudiced by a late notice of claim must be based on evidence in the record and cannot be based solely on speculation and inference. Courts have broad discretion to evaluate the factors set forth in General Municipal Law § 50-e (5), which includes whether the delay in serving the notice of claim substantially prejudiced the public corporation. However, it is an abuse of discretion as a matter of law when, as here, a court determines, in the absence of any record evidence to support such determination, that a respondent will be prejudiced in its defense by a late notice of claim. Within days after his son was the victim of a hit-and-run accident at an intersection, petitioner reported the details, including the location of the accident and nature of the injuries, to his son’s high school, located within respondent school district. Petitioner’s notice of claim, filed five months late but shortly after petitioner discovered that there had been a large sign advertising a school play at the corner of the intersection at the time of the accident, alleged that respondent’s sign obstructed the view for pedestrians and drivers and created a distraction and a dangerous and hazardous condition. In determining that substantial prejudice existed, the lower courts presumed that the matriculation and graduation of students and personnel changes hindered respondent’s ability to collect information about the sign. However, this argument was not made by respondent and there was no record evidence to support it. Additionally, the courts inferred that the passage of time would prejudice respondent because of fading memories of potential witnesses. Although changes in personnel and the fading memories of witnesses may, in fact, be prejudicial, a court must consider whether record evidence indicates that substantial prejudice does in fact exist. *Matter of Newcomb v Middle Country Cent. Sch. Dist.*, 28 NY3d 455.

4. Late Notice — Substantial Prejudice — Burden of Proof.—In a proceeding in which a petitioner seeks permission to file a late notice of claim against a public corporation pursuant to General Municipal Law § 50-e (5), the burden initially rests on the petitioner to present some evidence or plausible argument that supports a finding of no substantial prejudice to the public corporation, but once an initial showing is made, the public corporation must respond with a particularized evidentiary showing that the corporation will be substantially prejudiced if the late notice is allowed. A petitioner seeking to excuse the failure to timely comply with the notice requirement should have the initial burden, but the public corporation is in the best position to know and demonstrate whether it has been substantially prejudiced by the late notice. Here, within days after his son was the victim of a hit-and-run accident at an intersection, petitioner reported the details, including the location of the accident and nature of the injuries, to his son’s high school, located within respondent school district. Petitioner’s notice of claim, filed shortly after petitioner received police photographs depicting a large sign advertising a school play at the corner of the intersection at the time of the accident, but five months after the statutory period for filing a claim had ended, alleged that

MUNICIPAL CORPORATIONS—Cont'd

respondent's sign obstructed the view for pedestrians and drivers and created a distraction and a dangerous and hazardous condition. Petitioner argued that the photographs, which documented the size and place of the sign, would permit respondent to reconstruct the conditions on the date of the incident. However, the lower courts, in determining that substantial prejudice existed, applied the incorrect legal standard by placing the burden solely on petitioner to establish lack of substantial prejudice and by failing to consider whether petitioner's initial showing shifted the burden to respondent. *Matter of Newcomb v Middle Country Cent. Sch. Dist.*, 28 NY3d 455.

TORT LIABILITY.

5. Proprietary Function — Duty to Keep Roadways in Reasonably Safe Condition — Failure to Implement Traffic Calming Measures.—In a personal injury action arising out of an incident in which infant plaintiff was struck by a speeding vehicle while he attempted to cross a four-lane road on his bicycle, the acts or omissions on the part of defendant City of New York which were claimed to have caused the injury, i.e., the City's negligent failure to conduct a traffic calming study and implement traffic calming measures on the roadway to reduce speeding, were proprietary functions within the field of roadway design and safety. When a negligence claim is asserted against a municipality, it must be determined whether the municipality was engaged in a proprietary function at the time the claim arose, and therefore subject to suit under the ordinary rules of negligence applicable to nongovernmental parties, or acted in a governmental capacity, requiring the plaintiff to prove the existence of a special duty and giving rise to the possible applicability of the governmental function immunity defense. Such determination turns solely on the acts or omissions claimed to have caused the injury. Police and fire protection are quintessential governmental functions, while highway planning, design and maintenance are proprietary functions arising from a municipality's proprietary duty to keep its roads and highways in a reasonably safe condition. Here, the City had received numerous, repeated complaints about speeding on the subject roadway, and the Intersection Control Unit (ICU) of the Department of Transportation, upon determining that there was a speeding problem, referred the issue to the police for enforcement. However, part of plaintiffs' theory of the case was that the ICU did not follow up to determine that police enforcement had not resolved the issue, which obligated the ICU to refer the issue to the Planning Unit to study and possibly implement traffic calming measures to deter speeding through roadway design changes. Although the behavior sought to be prevented (speeding) was unlawful, plaintiffs presented evidence that roadway design changes in the form of traffic calming measures were available to the City to accomplish that purpose. Because the City was acting in a proprietary capacity, plaintiffs had no duty to prove the existence of a special duty. *Turturro v City of New York*, 28 NY3d 469.

6. Qualified Immunity — Highway Planning and Design Decisions.—In a personal injury action arising out of an incident in which infant plaintiff was struck by a speeding vehicle while he attempted to cross a four-lane road on his bicycle, the defense of qualified immunity was not applicable to defendant City of New York's proprietary function actions in failing to conduct a traffic calming study and implement traffic calming measures to reduce speeding where it was aware of a dangerous condition on the roadway. When a municipality studies a dangerous condition and determines as part of a reasonable plan of governmental services that certain steps need not be taken, that decision may not form the basis of liability. That qualified immunity applies only where a duly authorized public planning body has entertained and passed on the very same question of risk as would ordinarily go to the jury. Upon receiving numerous and repeated complaints of speeding on the roadway, the Intersection Control Unit (ICU) of the Department of Transportation studied three intersections on the roadway, determined that there was a speeding problem, and referred the issue to the police for enforcement. Plaintiffs presented evidence that the primary purpose of the ICU studies was to determine whether traffic control signals should be installed at particular intersections, and although ICU also studied the approach speed at the intersections, the

MUNICIPAL CORPORATIONS—Cont'd

ICU studies did not study the problem of drivers speeding down the length of the roadway and were not traffic calming studies. Experts on both sides agreed that traffic signals generally are not used to control speed and may aggravate existing speeding problems. And, after ICU referred the speeding problem for police enforcement, it did not follow up unless it received another request for a traffic control device and only after 18 months had elapsed from its last study at that intersection. Thus, there was a rational process by which the jury could conclude that the ICU studies were plainly inadequate and did not study the very same question of risk that was before the jury, i.e., the danger presented by vehicles speeding down the length of the roadway. Furthermore, there was a rational process by which the jury could have concluded that even if the ICU studies examined the problem of vehicles speeding along a stretch of the roadway, the City failed to fulfill its continuing duty to review its plan in the light of its actual operation. *Turturro v City of New York*, 28 NY3d 469.

7. Immunity.—Defendant County was immune from liability for damages resulting from the sexual assault of plaintiff by a worker at a County-owned facility who defendant knew to be a level three sex offender, since defendant was acting in its governmental capacity when it referred the worker to the lessee of the facility and did not assume a special duty to plaintiff. When a negligence claim is asserted against a municipality, courts must examine the specific act or omission out of which the injury is claimed to have arisen and the capacity in which that act or failure to act occurred. The specific act or omission that caused plaintiff's injury was defendant's referral of the worker to the lessee of the facility through defendant's "welfare to work" program, a referral made in spite of the lessee's caveat that it would not accept candidates with a criminal record. The administration of the program by defendant's department of labor was quintessentially a governmental role, and defendant's conduct in referring the worker was undertaken solely in connection with its administration of that program and was part of defendant's fundamental governmental activity. Moreover, to sustain liability against a municipality, the duty breached must be more than that owed the public generally. Even if defendant promised that it would not refer anyone with a criminal background, that promise would have been made only to the lessee of the facility and there was no evidence that plaintiff ever had any knowledge of the terms requested by the lessee. In addition, there was no direct contact between plaintiff and defendant, and the critical element of justifiable reliance could not be met. Therefore, even if the referral was ministerial, plaintiff could not recover against defendant in the absence of a special duty. *Tara N.P. v Western Suffolk Bd. of Coop. Educ. Servs.*, 28 NY3d 709.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

DUTY.

1. Duty of County Sheriff to Protect County Jail Inmates.—In an action commenced by plaintiff, a former inmate of the county correctional facility, against defendant, the County Sheriff, arising after plaintiff was sexually assaulted twice in a correctional facility shower stall by another inmate, plaintiff's complaint adequately set forth a negligence claim against defendant sufficient to survive a motion to dismiss, notwithstanding the absence of allegations that defendant was present and failed to prevent the attacks on plaintiff, or had specific prior knowledge that plaintiff was particularly vulnerable to assault. Defendant—prescribed by law to safely keep inmates of the county jail—is by no means an insurer of inmate safety or required to provide unrelenting surveillance in all circumstances. However, having assumed physical custody of inmates, who cannot protect and defend themselves in the same way as those at liberty can, defendant owes a duty of care to safeguard inmates, even from attacks by fellow inmates. *Villar v Howard*, 28 NY3d 74.

NEGLIGENCE—Cont'd

2. Substance Abuse Treatment Facility — Criminal Acts Committed by Resident after Discharge for Violating Facility Policies.—Defendant residential mental health and substance abuse treatment facility did not owe a duty of care to plaintiff, who was assaulted by a resident discharged from defendant's program because he had violated policies prohibiting intoxication and physical violence, since defendant was no longer in charge of the resident when the incident occurred. Generally, there is no duty to control the conduct of third persons to prevent them from causing injury to others. However, a duty may arise where there is a relationship either between the defendant and a third-person tortfeasor that encompasses the defendant's actual control of the third person's actions, or between the defendant and the plaintiff that requires the defendant to protect the plaintiff from the conduct of others. Defendant's control over the resident was entirely dependent upon his willingness to comply with and carry out its directives. In the absence of the authority to prevent a participant from leaving, it followed that, when a participant was discharged from defendant's facility for violating its rules, or withdrew from the program, he or she would no longer be under the facility's control. Moreover, defendant was not negligent for failing to follow its internal policy of referring intoxicated residents discharged during the weekend to an intermediary facility. Although the resident was intoxicated at the time of his discharge, because he got into a physical altercation with another resident and was out of control while his transfer paperwork was being completed, defendant called the police in an effort to protect the other resident and its staff members. *Oddo v Queens Vil. Comm. for Mental Health for Jamaica Community Adolescent Program, Inc.*, 28 NY3d 731.

FORESEEABILITY.

3. Criminal Assault on Spectator by Another Spectator at Hockey Game.—In a personal injury action arising from a criminal assault on plaintiff spectator by another spectator at the conclusion of a youth hockey game, defendant youth hockey association which leased the arena where the game was held was entitled to summary judgment since the criminal assault was not a reasonably foreseeable result of any failure to take preventive measures. While defendant owed a duty to protect spectators from foreseeable criminal conduct, the scope of that duty was defined by the likelihood that the aggressive behavior would lead to a criminal assault. Defendant took measures to address player and spectator conduct, and the behavior of the fans, however inappropriate, did not create the risk that failure to eject any specific spectator would result in a criminal assault, particularly since such an assault had never happened before. Furthermore, defendant's alleged failure to enforce the zero tolerance policy of its national governing organization by ejecting spectators using "obscene, racial or vulgar language" did not constitute independent evidence of negligence. The violation of an organization's internal rules is not negligence in and of itself, and where an internal policy exceeds the standard of ordinary care, it cannot serve as a basis for imposing liability. Nor did the policy demonstrate that defendant was on notice of the likelihood of criminal assaults since a general awareness of incidents nationwide did not establish foreseeability here. *Pink v Rome Youth Hockey Assn., Inc.*, 28 NY3d 994.

INJURIES TO POLICE OFFICERS.

4. Right of Action against Municipal Employer Not Providing Workers' Compensation Law Coverage.—General Municipal Law § 205-e (1), which provides police officers a cause of action for line-of-duty injuries caused by statutory or regulatory violations subject to a proviso prohibiting recipients of workers' compensation benefits from suing their employers in tort under section 205-e, does not bar a police officer entitled to receive benefits under General Municipal Law § 207-c for a duty-related injury from pursuing a claim against the employer under section 205-e, where the municipal employer has elected not to provide coverage pursuant to the Workers' Compensation Law. Workers' compensation benefits and General Municipal Law § 207-c benefits are neither equivalent nor "mutually exclusive" such that the payment of benefits under one statute forecloses payment under the other statute. Rather, the two statutory compensation systems are inde-

NEGLIGENCE—Cont'd

pendent of each other. In enacting the two statutes, the legislature chose different eligibility standards, and separate bodies are charged with determining entitlement to benefits in proceedings involving significantly distinct burdens and procedures. The language of General Municipal Law § 205-e prohibits only recipients of workers' compensation benefits from commencing suit against their employers; it does not, by its terms, bar the commencement of suits by recipients of section 207-c benefits. Moreover, the legislative intent of section 205-e was to offer an umbrella of protection for police officers who, in the course of their many and varied duties, are injured by the negligence of anyone who violates any relevant statute or regulation. The legislative history demonstrates that the Governor, the legislature and the affected municipalities were aware that a municipality that does not provide workers' compensation could be sued by police officers despite their receipt of section 207-c benefits. *Matter of Diegelman v City of Buffalo*, 28 NY3d 231.

MAINTENANCE OF PREMISES.

5. Fall while Exiting Store — Summary Judgment.—In a personal injury action alleging that plaintiff fell while exiting a convenience store as a result of a dangerous and defective condition on the ramp leading from the public sidewalk to the entranceway of the store, an order of the Appellate Division, which denied the summary judgment motions of defendants owner and lessee of the premises, was affirmed. Defendants failed to satisfy their burden of establishing entitlement to judgment as a matter of law. *Taveras v 1149 Webster Realty Corp.*, 28 NY3d 958.

PROXIMATE CAUSE.

6. Plaintiff Hit by Speeding Vehicle — Foreseeable Consequence of City's Failure to Implement Traffic Calming Measures.—In a personal injury action arising out of an incident in which infant plaintiff was struck by a speeding vehicle while he attempted to cross a four-lane road on his bicycle, plaintiffs met their burden of demonstrating that defendant City of New York's negligence was a proximate cause of infant plaintiff's injuries based on their prima facie case that the City was aware of a dangerous condition on the roadway and failed to take appropriate action to study or remedy it. Although an intervening intentional or criminal act will generally sever the liability of the original tortfeasor, that principle has no application when the intentional or criminal intervention of a third party is reasonably foreseeable. Here, based on the evidence presented at trial, there was a valid line of reasoning and permissible inferences from which the jury could conclude that defendant driver's speeding down the roadway was a foreseeable consequence of the City's failure to implement traffic calming measures. Experts from both sides agreed that traffic calming measures are intended to modify driver behavior so as to deter drivers from speeding. The evidence demonstrated that the City did not adopt any traffic calming measures because it did not study whether any such measures were required in the first instance. Thus, there was a rational basis by which the jury could have concluded that traffic calming measures deter drivers from speeding, and that the City's failure to conduct a traffic calming study and to implement traffic calming measures was a substantial factor in causing the accident. *Turturro v City of New York*, 28 NY3d 469.

7. Triable Question Precluding Summary Judgment.—In an action to recover for injuries incurred by plaintiff when he descended from a loading dock, defendants' motion for summary judgment dismissing the complaint was denied where defendants' own submissions did not establish as a matter of law that their alleged negligence was not a proximate cause of the accident, but left open the possibility that some negligence on their part contributed to the injuries incurred, and that there was a causal link between that alleged negligence and plaintiff's fall. *Newman v RCPI Landmark Props., LLC*, 28 NY3d 1032.

NEGOTIABLE INSTRUMENTS.

See **BILLS, NOTES AND CHECKS.**

NEWSPAPERS.

See, also, **LIBEL AND SLANDER**, and other specific titles.

OPTICIANS.

See LICENSES; PHYSICIANS AND SURGEONS.

OPTOMETRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PARENT, CHILD AND FAMILY.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES, and other specific titles.

CUSTODY.

1. Standing of Non-Biological, Non-Adoptive Parent.—*Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]), which held that, in an unmarried couple, a partner without a biological or adoptive relation to a child is not the child's "parent" for purposes of standing to seek custody or visitation under the statute, notwithstanding their established relationship with the child, is overruled. In light of more recently delineated legal principles, including conferring parental standing based on equity in the context of adoption and support proceedings and the enactment of same-sex marriage in New York, the narrow definition of "parent" established in *Alison D.* had become unworkable when applied to increasingly varied familial relationships. *Matter of Brooke S.B. v Elizabeth A.C.C.*, 28 NY3d 1.

2. Standing of Non-Biological, Non-Adoptive Parent.—Where, in an unmarried couple, a partner without a biological or adoptive relation to a child proves by clear and convincing evidence that he or she agreed with the biological parent of the child to conceive and raise the child as co-parents, the non-biological, non-adoptive partner has standing to seek visitation and custody as the child's "parent" under Domestic Relations Law § 70 (a). Accordingly, in separate Family Court Act article 6 proceedings where each petitioner—the non-biological, non-adoptive partner—alleged that she entered into a pre-conception agreement with the respondent biological parent to conceive and raise a child as co-parents, the allegations, if proved by clear and convincing evidence, were sufficient to establish petitioners' standing to seek custody and visitation under the statute. Because both cases were necessarily decided based on the facts presented, it would be premature to consider adopting a test for situations in which a couple did not enter into a pre-conception agreement. Additionally, the ultimate determination of whether the custody or visitation rights sought by the non-biological, non-adoptive parent should be granted rested in the sound discretion of the court, which determines the best interests of the child. *Matter of Brooke S.B. v Elizabeth A.C.C.*, 28 NY3d 1.

3. Standing of Non-Biological, Non-Adoptive Parent.—In a Family Court Act article 6 proceeding brought by the partner in an unmarried couple without a biological or adoptive relation to the other partner's biological child, the Appellate Division order affirming Family Court's dismissal of the petition on constraint of *Matter of Alison D. v Virginia M.* (77 NY2d 651 [1991]) was reversed and the matter remitted to Family Court for further proceedings, as that decision has been overruled and no longer prevents the courts below from determining standing. Where, in an unmarried couple, a partner without a biological or adoptive relation to a child proves by clear and convincing evidence that he or she agreed with the biological parent of the child to conceive and raise the child as co-parents, the non-biological, non-adoptive partner has standing to seek visitation and custody as the child's "parent" under Domestic Relations Law § 70 (a). Accordingly, *Alison D.* no longer poses any obstacle to the consideration by the courts below of standing by equitable estoppel if petitioner proves by clear and convincing evidence her allegation that a pre-conception agreement existed. *Matter of Brooke S.B. v Elizabeth A.C.C.*, 28 NY3d 1.

4. Standing of Non-Biological, Non-Adoptive Parent.—In a Family Court Act article 6 proceeding brought by the partner in an unmarried couple who did not have a biological or adoptive relation to the other partner's biological child but had been ordered to pay child support, the courts below correctly resolved the question

PARENT, CHILD AND FAMILY—Cont'd

of standing by recognizing petitioner's standing to seek visitation as a "parent" under Domestic Relations Law § 70 (a) based on judicial estoppel. Respondent had obtained an order in the child support proceeding between the parties based on her successful argument that petitioner was a parent to the child, and was therefore estopped from taking the inconsistent position that petitioner was not, in fact, a parent to the child for purposes of visitation. *Matter of Brooke S.B. v Elizabeth A.C.C.*, 28 NY3d 1.

SUPPORT.

5. Timeliness of Objections — Failure to Serve Orders of Support Magistrate on Party's Attorney of Record.—If a party is represented by counsel, the time requirements set out in Family Court Act § 439 (e) for objections to a support magistrate's final order, when the order is served by mail, do not begin to run until the order is mailed to counsel. Accordingly, the objections of respondent-petitioner mother to a support magistrate's orders and accompanying findings of fact in related child support proceedings were improperly denied as untimely under section 439 (e) where the orders were not mailed to the mother's counsel of record, notwithstanding that they were mailed directly to the mother. Basic procedural dictates and fundamental policy considerations require that once counsel has appeared in a matter a statute of limitations or time requirement cannot begin to run unless that counsel is served with the determination or the order or judgment sought to be reviewed. Thus, in the absence of unambiguous statutory language stating a legislative intention to depart from the standard practice, any general requirement that notice must be served upon the party must be read to require, at least, that notice be served upon the attorney the party has chosen to represent him or her. Here, the reference to the mailing of the order to a "party or parties" in section 439 (e) must be read to require that the order be mailed to the party's counsel in order for the statutory time requirement to commence as the statute does not convey in language that could not be mistaken that mailing to a represented party is dispositive for time requirement purposes and mailing to counsel is unnecessary. *Matter of Odunbaku v Odunbaku*, 28 NY3d 223.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

PHYSICAL EXAMINATIONS.

See DISCLOSURE.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

POLITICAL PARTIES.

See ELECTIONS.

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles.

PRISONS AND PRISONERS.**DISCIPLINE OF INMATES.**

1. Right to Present Witnesses — Meaningful Inquiry into Witness Coercion.—When a hearing officer in a prison disciplinary hearing is presented with an affidavit in which a refusing inmate witness claims that he or she was coerced into refusing to testify at the hearing or in a related proceeding, the hearing officer has an obligation to undertake a meaningful inquiry into the allegation, either through an in-person or telephone interview of the witness or through a suitably briefed correction officer, depending on the circumstances surrounding the allegation. Accordingly, in a proceeding to review a determination after a rehearing that found petitioner inmate guilty of violating certain prison disciplinary rules, petitioner's

PRISONS AND PRISONERS—Cont'd

right to call witnesses at the rehearing was violated where the hearing officer failed to make a meaningful inquiry, either personally or through a correction officer, into an allegation made in a sworn affidavit by an inmate witness refusing to testify that at the time of the first hearing a named correction officer told him “that it would not be a good thing” to testify for petitioner, and that the officer had made this communication “in an aggressive manner meant to intimidate.” The record contained no indication that the hearing officer or anyone testifying before the hearing officer asked the refusing inmate witness whether his refusal to testify at the rehearing was influenced by a prior threat or intimidation. *Matter of Cortorreal v Annucci*, 28 NY3d 54.

2. Right to Present Witnesses — Requested Witness’s Refusal to Testify.—As a general rule, when a requested inmate witness refuses to testify at a prison disciplinary hearing, a simple statement by the inmate on a refusal form that he or she does not want to be involved or does not wish to testify is sufficient to protect the requesting inmate’s right to call that witness. Accordingly, in a proceeding to review a determination that found petitioner inmate guilty of violating certain prison disciplinary rules, petitioner’s right to call witnesses was not denied where three inmates from whom petitioner requested testimony wrote, next to a preprinted “I do not want to be involved” option on their refusal forms, the words “I do not wish to testify” or similar language. Though an inmate’s right to call witnesses is denied when a requested inmate witness refuses to testify and the record does not reflect any reason for the refusal or that any inquiry was made of him or her as to why he or she refused or that the hearing officer communicated with the inmate to verify his or her refusal, a refusing inmate witness provides a reason by stating that he or she does not wish to testify, which clarifies that the inmate will not testify because he or she does not wish to, and not because he or she is under compulsion or threat. Forcing a requested inmate witness to come up with an explanation that is judged substantial enough would be an unwise exercise. Rather, a hearing officer’s focus should be on whether the manner of refusal signifies coercion. *Matter of Cortorreal v Annucci*, 28 NY3d 54.

3. Preservation of Issue for Judicial Review — Denial of Requests for Documents and Witnesses.—Petitioner inmate did not waive his challenges to the Hearing Officer’s denial of petitioner’s requests to present certain documents and witnesses during his prison disciplinary proceeding by failing to make specific objections at the hearing. An inmate charged with violating a prison regulation is entitled to due process protections which include a right to call witnesses and present documentary evidence in his or her defense when permitting him or her to do so will not be unduly hazardous to institutional safety or correctional goals. The record showed that petitioner plainly requested access to specific documents and witnesses, and the Hearing Officer denied some of those requests. In light of the denial of petitioner’s requests, the courts below erred in determining that petitioner’s failure to specifically object to the Hearing Officer’s unfavorable rulings constituted a failure to preserve those rulings for judicial review. *Matter of Henry v Fischer*, 28 NY3d 1135.

PROCEEDING AGAINST BODY OR OFFICER.**MANDAMUS.**

1. When Remedy Available — State’s Payment of Medicaid Overburden Reimbursements to Counties.—Petitioner counties, as social services districts, were not entitled to mandamus relief requiring the New York State Department of Health (DOH) to pay all claims for Medicaid overburden reimbursement (see Social Services Law § 368-a [1] [h]) for district expenditures incurred prior to January 1, 2006, which were submitted after the April 1, 2012 deadline for such claims as imposed by an amendment (L 2012, ch 56, § 1, part D, § 61 [section 61]) to the Medicaid Cap Statute (L 2005, ch 58, § 1, part C, § 1). Mandamus is an extraordinary remedy which is used to enforce an administrative act positively required to be done by a provision of law. Here, DOH made its initial determinations and reimbursed counties quarterly, and then paid out all claims submitted

PROCEEDING AGAINST BODY OR OFFICER—Cont'd

prior to the deadline. The Social Services Law required no more. Inasmuch as section 61 was deemed constitutional, ordering mandamus would be inconsistent with that conclusion. *Matter of County of Chemung v Shah*, 28 NY3d 244.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER.

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

RAILROADS.

See, also, CARRIERS.

REAL ESTATE BROKERS.

See BROKERS.

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

RESIDENCE.

See DOMICILE.

RES JUDICATA.

See JUDGMENTS.

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

TEACHERS.

1. Termination of Probationary Teacher — Judicial Review.—In a CPLR article 78 proceeding, an order of the Appellate Division, which insofar as appealed from annulled the determination to terminate petitioner's probationary employment, was reversed, and so much of the petition as sought to annul that determination

SCHOOLS—Cont'd

was dismissed. Petitioner did not establish that the termination of her probationary employment was for a constitutionally impermissible purpose, violative of a statute, or done in bad faith. *Matter of Mendez v New York City Dept. of Educ.*, 28 NY3d 993.

SEPARATION.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

SLANDER.

See LIBEL AND SLANDER.

SOCIAL SERVICES.

REGISTER OF CHILD ABUSE AND MALTREATMENT.

1. Expungement of Reports in Cases Assigned to Family Assessment Response Track.—The procedure set forth in Social Services Law § 422 (5) (c) allowing parents to seek early expungement of sealed unfounded reports relating to child abuse does not apply where the parents are not formally investigated but are instead assigned to the Family Assessment Response (FAR) track pursuant to Social Services Law § 427-a. Social Services Law § 422 governs the investigative track for allegations of child abuse or maltreatment, and requires records to be preserved for “ten years after the receipt of the report” if the report is determined to be unfounded (Social Services Law § 422 [5] [b]) and for “ten years after the eighteenth birthday of the youngest child named in the report” if the report is determined to be “indicated” (Social Services Law § 422 [6]). The requirement that FAR track records be preserved by respondent “for ten years after the report was made” (Social Services Law § 427-a [4] [c] [i]) resembles the similar requirement in the investigative track, but the statute includes no provision corresponding to the mechanism for parents to seek early expungement of sealed unfounded reports available in the traditional investigative track. Although section 422 expressly provides that after the 10 years have elapsed the reports “shall be expunged” (Social Services Law § 422 [5] [b]; [6]), there is no reference to expungement at all in section 427-a. The failure of the legislature to include a substantive, significant prescription in a statute is a strong indication that its exclusion was intended, and the subject matter of the FAR track cannot be deemed identical to that of a traditional child abuse investigation. *Matter of Corrigan v New York State Off. of Children & Family Servs.*, 28 NY3d 636.

SPORTING EVENTS.

See THEATRES AND SHOWS.

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF.

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS.

SUBPOENA.

See WITNESSES.

SUMMONS.

See PROCESS.

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

TOWNS.

See MUNICIPAL CORPORATIONS.

TRIAL.**VERDICT.**

1. Setting Verdict Aside — “Utterly Irrational” Test.—In plaintiff’s action to recover damages for injuries sustained in a physical altercation with defendant, the Appellate Division failed to apply the “utterly irrational” test in determining as a matter of law that defendant was the initial aggressor, thereby improperly precluding him from raising a justification defense during retrial of the case. The Appellate Division may not disregard a jury verdict as against the weight of the evidence unless the evidence so preponderated in favor of the moving party that it could not have been reached on any fair interpretation of the evidence. Where the Appellate Division intends to hold that a jury verdict is insufficient as a matter of law, it must first determine that the verdict is “utterly irrational,” meaning that there is no valid line of reasoning and permissible inferences which could possibly lead a rational person to the conclusion reached by the jury on the basis of the evidence presented at trial. Although the Appellate Division examined the facts and determined that the jury’s conclusion that defendant was not the first to threaten the immediate use of physical force was unreachable on any fair interpretation of the evidence—ostensibly a weight of the evidence review—the effect of that order was to hold as a matter of law that defendant was the initial aggressor to whom the defense of justification was not available—a determination that could only be reached by concluding that the verdict was utterly irrational. *Killon v Parrotta*, 28 NY3d 101.

2. Setting Verdict Aside — Verdict Not “Utterly Irrational.”—In plaintiff’s action to recover damages for injuries sustained in a physical altercation with defendant, the jury’s determination that defendant acted in self-defense was not utterly irrational so as to render the verdict insufficient as a matter of law. To conclude that a verdict is utterly irrational, requiring vacatur of the verdict, the court must determine that there is no valid line of reasoning and permissible inferences which could possibly lead a rational person to the conclusion reached by the jury on the basis of the evidence presented at trial. Although the entire encounter occurred because defendant drove to plaintiff’s home, it was not utterly irrational for the jury, under the charge delivered to it, to determine that defendant was not the initial aggressor based on the conflicting versions of events. *Killon v Parrotta*, 28 NY3d 101.

UNEMPLOYMENT INSURANCE.**EMPLOYEE OR INDEPENDENT CONTRACTOR.**

1. Non-Staff Instructors at Yoga Studio.—An order of the Appellate Division which affirmed a decision of the Unemployment Insurance Appeal Board holding appellant yoga studio liable for additional unemployment insurance contributions upon the ground that its non-staff instructors were employees was reversed, since the Board’s determination that appellant exercised sufficient direction, supervision and control over the instructors to demonstrate an employment relationship was unsupported by substantial evidence. The non-staff instructors made their own schedules and chose how they were paid. Unlike staff instructors, they were paid only if a certain number of students attended their classes, had no restrictions on where they could teach, and were not required to attend meetings or receive training. Proof of incidental control, including that appellant inquired if the instructors had proper licenses, published the master schedule on its website, and provided the space for the classes, did not support the conclusion that the instructors were employees. Nor did evidence that appellant generally determined what fee was charged and collected the fee directly from the students, and provided substitute instructors for non-staff instructors supply sufficient indicia of control. Furthermore, appellant’s receipt of feedback about the instructors from the students did not support the Board’s conclusion, since the requirement that the work be done properly is a condition just as readily required of an independent contractor as of an employee and not conclusive as to either. *Matter of Yoga Vida NYC, Inc. (Commissioner of Labor)*, 28 NY3d 1013.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION.

VILLAGES.

See MUNICIPAL CORPORATIONS.

WELFARE.

See SOCIAL SERVICES.

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

WORKERS' COMPENSATION.**THIRD-PARTY ACTION.**

1. Consent to Settlement — Court Order to Compel Special Disability Fund's Consent Nunc Pro Tunc.—Petitioner workers' compensation carrier, having approved the settlement of the injured employee's underlying third-party action without seeking the written approval of the Special Disability Fund (Fund), which was responsible for reimbursing petitioner for some of the benefits paid to the employee under Workers' Compensation Law § 15 (8) (d), was entitled to seek to obtain the Fund's consent from Supreme Court nunc pro tunc under Workers' Compensation Law § 29 (5). Under Workers' Compensation Law § 29 (1), if the injured employee elects to bring a third-party action, "the person, association, corporation or insurance carrier" that is liable for workers' compensation and medical expenses is entitled to a lien on the proceeds. If the third-party settlement is in an amount less than the benefits payable to the injured employee, it "shall be made only . . . with the written approval of the person, association, corporation, or insurance carrier liable to pay the same," but such written approval is not necessary if the employee obtains a compromise order from the court (Workers' Compensation Law § 29 [5]). The language in section 29 (1) establishing what entities may be deemed lienors is essentially identical to the language in section 29 (5) referring to the entities whose consent to settlement is required and, if not obtained, can be compelled upon application to the court. The parties did not dispute that the consent of the Fund to settlement of the employee's third-party action was required. Thus, there was no principled basis for concluding that the Fund's consent was required as a lienor under one portion of the statute, but that the failure to obtain it could not be cured, as it could for other lienors, under the same statute. *Ace Fire Underwriters Ins. Co. v Special Funds Conservation Comm.*, 28 NY3d 1084.

ZONING.

See MUNICIPAL CORPORATIONS.

TABLE OF STATUTES AND RULES CONSTRUED

CIVIL PRACTICE LAW AND RULES.

- 302 (a) (1) (Personal jurisdiction by acts of non-domiciliaries; acts which are basis of jurisdiction). *Rushaid v Pictet & Cie*, 28 NY3d 316.
- 1601 (1) (Limited liability of persons jointly liable). *Artibee v Home Place Corp.*, 28 NY3d 739.
- 4518 (a) (Evidence; business records; generally). *People v Patterson*, 28 NY3d 544; *People v Kangas*, 28 NY3d 984.
- 4539 (a) (Evidence; reproductions of original). *People v Kangas*, 28 NY3d 984.
- 4539 (b) (Evidence; reproductions of original). *People v Kangas*, 28 NY3d 984.
- 5511 (Permissible appellant and respondent). *People v Johnson*, 28 NY3d 1104; *Matter of Shauntray T. (Eva W.—Margaret T.)*, 28 NY3d 1158.
- 5512 (Appealable paper; entry of order made out of court). *Ryan v Powers & Santola, LLP*, 28 NY3d 1068.
- 5513 (a) (Time to take appeal, cross-appeal or move for permission to appeal). *Bethune v MTA/Long Is. Bus.*, 28 NY3d 941.
- 5513 (b) (Time to move for permission to appeal). *Bethune v MTA/Long Is. Bus.*, 28 NY3d 941; *Matter of Zajac v New York State Div. of Human Rights*, 28 NY3d 958; *Matter of Morales v New York City Hous. Auth.*, 28 NY3d 1023; *Matter of Marshall v Annucci*, 28 NY3d 1068; *Chambliss v University Group Med. Assoc.*, 28 NY3d 1097.
- 5519 (Appeals generally; stay of enforcement). *Matter of Golub*, 28 NY3d 1110.
- 5601 (Appeals to Court of Appeals as of right). *Bhugra v Massachusetts Cas. Ins. Co.*, 28 NY3d 976; *People v Word*, 28 NY3d 1053; *People ex rel. Word v State of New York*, 28 NY3d 1106; *Matter of Alamin v Down Town Taxi, Inc.*, 28 NY3d 1153.
- 5601 (b) (1) (Appeals to Court of Appeals as of right; constitutional grounds). *Matter of County of Cayuga v Shah*, 28 NY3d 1021; *Matter of County of Chautauqua v Shah*, 28 NY3d 1021; *Matter of County of Genesee v Shah*, 28 NY3d 1021; *Matter of County of Jefferson v Shah*, 28 NY3d 1022; *Matter of County of Monroe v Shah*, 28 NY3d 1022; *Matter of County of Oneida v Shah*, 28 NY3d 1022.
- 5602 (Appeals to Court of Appeals by permission). *People v Morrell*, 28 NY3d 947; *People ex rel. Pearce v Eckert*, 28 NY3d 1045; *Badwal v Badwal*, 28 NY3d 1067; *People ex rel. Luscomb v Kickbush*, 28 NY3d 1104; *Aranoff v Aranoff*, 28 NY3d 1153.
- 5602 (a) (Appeals to Court of Appeals by permission). *People v Gamble*, 28 NY3d 1044; *People v Anderson*, 28 NY3d 1179.
- 5602 (a) (1) (ii) (Appeals to Court of Appeals by permission). *CF HY LLC v Hudson Yards LLC*, 28 NY3d 941; *Starr v Fuoco Group LLP*, 28 NY3d 1083.

CIVIL RIGHTS LAW.

- § 13 (Bill of Rights; right to serve on juries). *People v Bridgeforth*, 28 NY3d 567.

CODE OF PROFESSIONAL RESPONSIBILITY.

- DR 2-107 (a) (22 NYCRR 1200.12 [a]) (Division of fees among lawyers). *Marin v Constitution Realty, LLC*, 28 NY3d 666.

CRIMINAL PROCEDURE LAW.

- 30.10 (3) (f) (Timeliness of prosecutions; periods of limitation; periods of limitation extended in certain circumstances; toll for sexual offense against child less than 18). *People v Pabon*, 28 NY3d 147.

CRIMINAL PROCEDURE LAW—Continued

- 30.10 (3) (former [e]) (Timeliness of prosecutions; periods of limitation; periods of limitation extended in certain circumstances; course of sexual conduct against child, first degree). *People v Pabon*, 28 NY3d 147.
- 30.30 (Speedy trial; time limitations). *People v Clarke*, 28 NY3d 48; *People v Brown*, 28 NY3d 392.
- 30.30 (4) (g) (Speedy trial; time limitations; excludable periods of time; exceptional circumstances). *People v Clarke*, 28 NY3d 48; *People v Henderson*, 28 NY3d 63.
- 30.30 (4) (g) (i) (Speedy trial; time limitations; excludable periods of time; exceptional circumstances; unavailability of material evidence). *People v Clarke*, 28 NY3d 48.
- 60.22 (1) (Rules of evidence; corroboration of accomplice testimony). *People v Davis*, 28 NY3d 294.
- 210.45 (5) (c) (Motion to dismiss indictment; procedure; denial without hearing). *People v Allard*, 28 NY3d 41.
- 220.60 (3) (Plea; change of plea; withdrawal of plea prior to sentencing). *People v Fisher*, 28 NY3d 717.
- 240.40 (2) (b) (v) (Discovery; upon court order; samples of blood, hair or other materials from defendant's body). *People v Roshia*, 28 NY3d 989.
- 270.20 (1) (b) (Trial jury; challenge for cause of individual juror; state of mind likely to preclude rendering of impartial verdict). *People v Warrington*, 28 NY3d 1116.
- 380.40 (1) (Defendant's presence at sentencing; in general). *People v Stewart*, 28 NY3d 1091.
- 450.90 (Appeal to Court of Appeals from order of intermediate appellate court; in what cases authorized). *People v Word*, 28 NY3d 1053.
- 450.90 (2) (Appeal to Court of Appeals from order of intermediate appellate court; in what cases authorized). *People v Cooney*, 28 NY3d 957.
- 450.90 (2) (a) (Appeal to Court of Appeals from order of intermediate appellate court; in what cases authorized). *People v Evans*, 28 NY3d 1101.
- 460.20 (Certificate granting leave to appeal to Court of Appeals). *People v Jones*, 28 NY3d 980; *People v Lunan*, 28 NY3d 980; *People v Taylor*, 28 NY3d 980; *People v Martinez*, 28 NY3d 1052; *People v Hernandez*, 28 NY3d 1112; *People v Rodriguez*, 28 NY3d 1112; *People v Anderson*, 28 NY3d 1156.
- 460.60 (3) (Stay of judgment pending appeal to Court of Appeals from intermediate appellate court). *People v Flores*, 28 NY3d 979.
- 470.05 (2) (Determination of appeals; preservation of issue for review). *People v Allard*, 28 NY3d 41.
- 470.15 (1) (Determination of appeals by intermediate appellate courts; scope of review). *People v Patterson*, 28 NY3d 544.
- 470.40 (2) (b) (Determination by Court of Appeals of appeals from intermediate appellate courts; corrective action upon reversal or modification; remittal to intermediate appellate court for determination of facts). *People v Warrington*, 28 NY3d 1116.

DOMESTIC RELATIONS LAW.

- § 70 (a) (Custody and wages of children; habeas corpus for child detained by parent). *Matter of Brooke S.B. v Elizabeth A.C.C.*, 28 NY3d 1.

ENVIRONMENTAL CONSERVATION LAW.

- Art 8 (Environmental quality review). *Matter of Entergy Nuclear Operations, Inc. v New York State Dept. of State*, 28 NY3d 279.

FAMILY COURT ACT.

- § 439 (e) (Support proceedings; hearing; support magistrates; objections). *Matter of Odunbaku v Odunbaku*, 28 NY3d 223.

GENERAL MUNICIPAL LAW.

- § 50-e (1) (b) (Notice of claim; when and upon whom service required). *Villar v Howard*, 28 NY3d 74.

GENERAL MUNICIPAL LAW—Continued

- § 50-e (5) (Notice of claim; application for leave to serve late notice). *Matter of Newcomb v Middle Country Cent. Sch. Dist.*, 28 NY3d 455.
- § 104-b (Public contracts; procurement policies and procedures). *Matter of ACME Bus Corp. v Orange County*, 28 NY3d 417.
- § 205-e (Right of action to certain injured or representatives of certain deceased police officers). *Matter of Diegelman v City of Buffalo*, 28 NY3d 231.
- § 205-e (1) (Right of action to certain injured or representatives of certain deceased police officers). *Matter of Diegelman v City of Buffalo*, 28 NY3d 231.
- § 207-c (Payment of salary, wages, medical and hospital expenses of police officers with injuries or illness incurred in performance of duties). *Matter of Diegelman v City of Buffalo*, 28 NY3d 231.

JUDICIARY LAW.

- § 478 (Practicing or appearing as attorney-at-law without being admitted and registered). *Matter of Brandes*, 28 NY3d 1041.
- § 489 (1) (Purchase of claims by corporations or collection agencies). *Justinian Capital SPC v WestLB AG, N.Y. Branch*, 28 NY3d 160.
- § 489 (2) (Purchase of claims by corporations or collection agencies; exemption). *Justinian Capital SPC v WestLB AG, N.Y. Branch*, 28 NY3d 160.

NEW YORK CONSTITUTION.

- Art I, § 5 (Bail; fines; punishments; detention of witnesses). *People v Pena*, 28 NY3d 727.
- Art I, § 11 (Equal protection of laws; discrimination in civil rights prohibited). *People v Bridgeforth*, 28 NY3d 567.
- Art VI, § 3 (Jurisdiction of Court of Appeals). *Aranoff v Aranoff*, 28 NY3d 1153.
- Art VI, § 3 (b) (Jurisdiction of Court of Appeals). *Bhugra v Massachusetts Cas. Ins. Co.*, 28 NY3d 976; *People ex rel. Pearce v Eckert*, 28 NY3d 1045; *People v Word*, 28 NY3d 1053; *Badwal v Badwal*, 28 NY3d 1067; *People ex rel. Luscomb v Kickbush*, 28 NY3d 1104; *People ex rel. Word v State of New York*, 28 NY3d 1106; *Matter of Alamin v Down Town Taxi, Inc.*, 28 NY3d 1153.
- Art VI, § 3 (b) (7) (Jurisdiction of Court of Appeals). *People v Gamble*, 28 NY3d 1044.

PENAL LAW.

- § 70.25 (2) (Concurrent and consecutive terms of imprisonment). *People v Couser*, 28 NY3d 368.
- § 105.00 (Conspiracy, sixth degree). *People v Flanagan*, 28 NY3d 644.
- § 135.60 (Coercion, second degree). *People v Finkelstein*, 28 NY3d 345.
- § 135.65 (1) (Coercion, first degree; instilling fear of physical injury or property damage). *People v Finkelstein*, 28 NY3d 345.
- § 140.00 (2) (Criminal trespass and burglary; “building” defined). *People v Joseph*, 28 NY3d 1003.
- § 140.00 (3) (Criminal trespass and burglary; “dwelling” defined). *People v Joseph*, 28 NY3d 1003.
- § 140.25 (2) (Burglary, second degree; dwelling element). *People v Joseph*, 28 NY3d 1003.
- § 195.00 (1) (Official misconduct; malfeasance). *People v Flanagan*, 28 NY3d 644.
- § 195.00 (2) (Official misconduct; nonfeasance). *People v Flanagan*, 28 NY3d 644.
- § 205.60 (Hindering prosecution, second degree). *People v Fisher*, 28 NY3d 717.
- § 265.01 (1) (Criminal possession of weapon, fourth degree). *People v Aragon*, 28 NY3d 125; *People v Ocasio*, 28 NY3d 178.
- § 265.20 (b) (Firearms and other dangerous weapons; exemptions; police baton). *People v Ocasio*, 28 NY3d 178.
- § 450.10 (Disposal of stolen property). *People v Flanagan*, 28 NY3d 644.

REGULATIONS OF DEPARTMENT OF STATE.

- 19 NYCRR part 600 (Waterfront revitalization of coastal areas and inland waterways; policies and procedures). *Matter of Entergy Nuclear Operations, Inc. v New York State Dept. of State*, 28 NY3d 279.

RULES OF APPELLATE DIVISION, SECOND DEPARTMENT.

22 NYCRR 691.10 (Former) (Conduct of disbarred, suspended or resigned attorneys; abandonment of practice by attorney). *Matter of Leo*, 28 NY3d 360.

22 NYCRR 691.11 (c) (1) (Former) (Reinstatement following suspension, disbarment, or striking of name from roll of attorneys). *Matter of Leo*, 28 NY3d 360.

RULES OF COURT OF APPEALS.

22 NYCRR 500.23 (a) (Amicus curiae relief). *Matter of Simon*, 28 NY3d 954.

22 NYCRR 500.24 (b) (Motions for reargument of appeals, motions and decisions on certified questions; timeliness). *Drazek v Vital Transp., Inc.*, 28 NY3d 1023; *People v Berry*, 28 NY3d 1060; *Renke v Kwiecinski*, 28 NY3d 1082; *Manko v Mannor*, 28 NY3d 1099; *Manko v Mannor*, 28 NY3d 1100; *Manko v Lenox Hill Anesthesiology, PLLC*, 28 NY3d 1111; *Matter of Manko v New York State Div. of Hous. & Community Renewal, Off. of Rent Admin.*, 28 NY3d 1111; *Matter of Nizamuddeen v New York City Tr. Auth.*, 28 NY3d 1179.

22 NYCRR 500.24 (e) (Motions for reargument of appeals, motions and decisions on certified questions; limitation on motions). *Hayes v Hayes*, 28 NY3d 943; *Matter of Gurvey*, 28 NY3d 977.

22 NYCRR 500.27 (Discretionary proceedings to review certified questions from federal courts and other courts of last resort). *Griffin v Sirva, Inc.*, 28 NY3d 956; *Chauca v Abraham*, 28 NY3d 1108; *Gevorkyan v Judelson*, 28 NY3d 1109; *Global Reins. Corp. of Am. v Century Indem. Co.*, 28 NY3d 1129; *Matter of World Trade Ctr. Lower Manhattan Disaster Site Litig.*, 28 NY3d 1159.

RULES OF PROFESSIONAL CONDUCT.

Rule 1.5 (g) (22 NYCRR 1200.0) (Fees and division of fees). *Marin v Constitution Realty, LLC*, 28 NY3d 666.

SESSION LAWS.

2005, ch 58, § 1, part C, § 1 (County's selection of sales tax intercept option to ease effects of rising Medicaid costs). *Matter of County of Chemung v Shah*, 28 NY3d 244.

2012, ch 56, § 1, part D, § 61 (Medicaid; prohibiting claims by local governments for overburden expenses incurred prior to January 1, 2006). *Matter of County of Chemung v Shah*, 28 NY3d 244.

SOCIAL SERVICES LAW.

§ 368-a (1) (h) (Medicaid; state reimbursement). *Matter of County of Chemung v Shah*, 28 NY3d 244.

§ 422 (Statewide Central Register of Child Abuse and Maltreatment). *Matter of Corrigan v New York State Off. of Children & Family Servs.*, 28 NY3d 636.

§ 422 (5) (b) (Statewide Central Register of Child Abuse and Maltreatment; sealing unfounded report). *Matter of Corrigan v New York State Off. of Children & Family Servs.*, 28 NY3d 636.

§ 422 (5) (c) (Statewide Central Register of Child Abuse and Maltreatment; request to expunge unfounded report). *Matter of Corrigan v New York State Off. of Children & Family Servs.*, 28 NY3d 636.

§ 422 (6) (Statewide Central Register of Child Abuse and Maltreatment; expungement of reports). *Matter of Corrigan v New York State Off. of Children & Family Servs.*, 28 NY3d 636.

§ 427-a (Differential response programs for child protection assessments or investigations). *Matter of Corrigan v New York State Off. of Children & Family Servs.*, 28 NY3d 636.

§ 427-a (4) (c) (i) (Differential response programs for child protection assessments or investigations; reports). *Matter of Corrigan v New York State Off. of Children & Family Servs.*, 28 NY3d 636.

UNITED STATES CONSTITUTION.

6th Amend (Jury trials for crimes and procedural rights; right of confrontation). *People v Hao Lin*, 28 NY3d 701.

UNITED STATES CONSTITUTION—Continued

8th Amend (Cruel and unusual punishment prohibited). *People v Pena*, 28 NY3d 727.

WORKERS' COMPENSATION LAW.

§ 29 (1) (Remedies of employees; subrogation; right to compensation and to commence action). *Ace Fire Underwriters Ins. Co. v Special Funds Conservation Comm.*, 28 NY3d 1084.

§ 29 (5) (Remedies of employees; subrogation; settlement of third-party claims). *Ace Fire Underwriters Ins. Co. v Special Funds Conservation Comm.*, 28 NY3d 1084.

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

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|--|---|
| 1. 19 NY2d 159 (Thrasher v United States Liab. Ins. Co.) | At 19 NY2d 168, line 4 from the bottom of the page, change insurer's to insured's. |
| 2. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 3. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 4. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change constructive to constructive. |
| 5. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 6. 54 NY2d 137 (People v Baldi) | At 54 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 7. 64 NY2d 966 (Slatt v Slatt) | At 64 NY2d 967, line 15, change <i>Marlee Sales Corp. v Manufactur-ers Trust Co.</i> to <i>Morlee Sales Corp. v Manufacturers Trust Co.</i> |
| 8. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 9. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |

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|---|---|
| 10. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 11. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 12. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |
| 13. 85 NY2d 139 (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) | At 85 NY2d 146, second paragraph, line 13, change lead to led. |
| 14. 88 NY2d 41 (Town of Orangetown v Magee) | At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733. |
| 15. 88 NY2d 400 (People v Huston) | At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c]. |
| 16. 93 NY2d 382 (BDO Seidman v Hirshberg) | At 93 NY2d 391, line 25, change former employer to former employee. |
| 17. 1 NY3d 174 (People v Taylor) | At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840). |
| 18. 1 NY3d 541 (People v Sanchez) | In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings). |
| 19. 4 NY3d 739 (Matter of Peter R. [Stacey R.]) | Change the reported below citation from 8 AD3d 567 to 8 AD3d 576. |
| 20. 4 NY3d 857 (People v Smith [DeJesus]) | Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY). |

Errata

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21. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.

22. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.

23. **7 NY3d 703** (Matter of Park v Kapica) Change the page number of the reported below citation from 802 to 801.

24. **8 NY3d 944** (People v Charriez) In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U).

25. **9 NY3d 923** (People v Jacobs) In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868.

26. **11 NY3d 875** (People v Ford) On line 5 of the Summary, change Bronx County to New York County.

27. **13 NY3d 511** (Matter of Goldstein v New York Urban Dev. Corp.) At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition].

28. **18 NY3d 667** (People v Rodriguez) At 18 NY3d 671, second line from bottom of the page, change CPL 410.30 to CPL 430.10.

29. **21 NY3d 1043** (People v Mackey-Meggs) Change defendant's name in title from Mackey-Meggs to Marquan M.

30. **22 NY3d 648** (Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation) At 22 NY3d 654, eighth line of third paragraph, change 22,000 acres to 22,000 square feet.

31. **23 NY3d 455** (People v Golb)
- At 23 NY3d 461, in second full paragraph the email address “newsmedia.ucla.edu” should read “newsmedia@ucla.edu”
- At 23 NY3d 461, in third full paragraph the email address “steve.goransongmail.com” should read “steve.goranson@gmail.com”
- At 23 NY3d 462, in the first paragraph the email address “frank.cross2gmail.com” should read “frank.cross2@gmail.com”
- At 23 NY3d 462, in the second full paragraph the email address “larry.schiffmangmail.com” should read “larry.schiffman@gmail.com”
- At 23 NY3d 463, in the second full paragraph the email address “seidel.jonathangmail.com” should read “seidel.jonathan@gmail.com”
32. **23 NY3d 665** (Norex Petroleum Ltd. v Blavatnik)
- At 23 NY3d 668, footnote 3, last sentence on page should read For purposes of discussion in this opinion, we simply assume that, within the meaning of section 205 (a), Norex’s federal action was not terminated on the merits, and Norex’s state court action alleges claims “upon the same transaction or occurrence” as its federal predecessor
33. **24 NY3d 294** (People v Silva)
- At 24 NY3d 296, change attorney’s name for appellant in the second above-entitled action from Steven R. Bernard to Steven R. Bernhard.
34. **26 NY3d 903** (McMillin v Grimditch)
- Change the reported below citation from 130 AD3d 150 to 131 AD3d 150.
35. **26 NY3d 903** (Town of N. Elba v Grimditch)
- Change the reported below citation from 130 AD3d 150 to 131 AD3d 150.
36. **27 NY3d 1079** (People ex rel. Monte v Mingo)
- Change respondents’ name in title from *Warden* to *Warden Maxsolaine Mingo*.